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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. HARDY).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
March 15, 2016.

I hereby appoint the Honorable CRESENT HARDY to act as Speaker pro tempore on this day.

PAUL D. RYAN,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 5, 2016, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

NEW MEXICO'S BEHAVIORAL HEALTH CRISIS

The SPEAKER pro tempore. The Chair recognizes the gentleman from New Mexico (Mr. BEN RAY LUJÁN) for 5 minutes.

Mr. BEN RAY LUJÁN of New Mexico. Mr. Speaker, 3 years ago in my home State of New Mexico, our behavioral health system was thrown into crisis when the State froze payments to 15 New Mexico behavioral health providers, resulting in the eventual closure of some and replacement by 5 Arizona providers.

This transition and turmoil caused many New Mexicans to fall through the cracks. As a result, too many families are hurting, too many people are suffering, and too many New Mexicans have been unable to access the care they need.

To date, 13 behavioral health providers have been exonerated of fraud, the charges leveled by the State of New Mexico as the reason to cut off funding. But the damage has been done. That is why, along with my colleagues, Ms. MICHELLE LUJAN GRISHAM in the House and Senators TOM UDALL and MARTIN HEINRICH, I have called for a Federal investigation into this unwarranted and reckless disruption of services to some of our most vulnerable citizens.

I am also working with the delegation on legislation to prevent something like this from ever happening again. I am working to strengthen a behavioral health system that is currently in shambles through legislation that will provide enhanced funding to States that prioritize behavioral health infrastructure, data, and access. If we want States to build and maintain strong behavioral health systems, then we must provide States with the necessary support.

During our many conversations with CMS on the crisis and its impact on New Mexicans, it has been clear there is a lack of meaningful data that is needed to hold policymakers accountable. It is unacceptable that after months and months of requesting State-provided data on the behavioral health system in New Mexico, CMS would simply determine this data to have ''significant limitations.''

A report from New Mexico's Legislative Finance Committee identified similar concerns. The report stated that the amount and quality of utilization data collected by the State of New Mexico had ''deteriorated, leaving the question of whether enrollees are receiving more or less care.''

Without access to meaningful data, we cannot determine how best to invest to strengthen our behavioral health system, and we cannot possibly know if we are doing enough to ensure that the most vulnerable are being protected. What we do know is New Mexico's behavioral health system has been needlessly broken and that a full accounting is necessary to rebuild it and ensure that this will never happen again.

AMERICA MUST LEARN FROM VENEZUELA

The SPEAKER pro tempore. The Chair recognizes the gentleman from Alabama (Mr. BROOKS) for 5 minutes.

Mr. BROOKS of Alabama. Mr. Speaker, America has led the world culturally, scientifically, militarily, in freedom, and in many other ways, but if America does not stop its overspending and binge borrowing, then we are doomed to follow the footsteps of countries that chose to be financially irresponsible and are condemned to suffer the same dire consequences.

America need not speculate on our fate. Rather, America must learn from bad example countries, such as Venezuela, a socialist country that has already walked the financially irresponsible path America, unfortunately, is on.

Venezuela suffered the world's highest inflation rate, at 275 percent, in 2015. According to the International Monetary Fund, Venezuela's 2016 inflation rate will be 720 percent. Compare that to America, where 3 to 5 percent inflation causes concern.

To put Venezuela's inflation rate in everyday terms, let's apply it to things we buy. If a gallon of milk costs you $3 today, it will cost you $21 a year from now. If a pound of ground beef costs you $4 today, it will cost you $28 a year from now. A new car that costs you $25,000 today will cost you $175,000 a year from now.

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But the damage and danger does not end with hyperinflation. The International Monetary Fund reports Venezuela is experiencing ''widespread shortages of essential goods, including food, exacting a tragic toll.'' Grocery stores have rows and rows of empty shelves. Venezuelans can't find food to feed their families and form long lines outside of stores, hoping to buy whatever is in stock, from sugar to shampoo.

In response, Socialist President Maduro has ordered police to limit consumers to two shopping days per week at government-owned food stores. One frustrated Venezuelan shopper noted: ''It is exasperating, but it is the only way to get food in Venezuela.''

Inflation and food shortages are only the tip of the iceberg. When supplies run out, when jobs can't be found, violence erupts. In just 1 month in 2014, violent street riots killed 43 Venezuelans, blocking citizens from accessing food, transportation, and medical services. Occupied buildings were torched, injuring hundreds.

Venezuela is now one of the most violent countries in the world, with a chilling 82 homicides per 100,000 population, roughly 20 times worse than America's homicide rate. Caracas, Venezuela's capital, is the world's most violent city, with a war-zone-like 120 murders per 100,000 citizens.

Venezuela's insolvency has forced it to slash defense spending by 34 percent, putting Venezuelan citizens at even more heightened risk of loss of life.

Venezuela's tragedy is not because it is a resource-poor country. To the contrary, Venezuela has more proven oil reserves than any country on Earth, even more than the entire oil-rich North American continent.

Venezuela's collapse is because of two things. First, Venezuela decided to experiment with socialism, an economic model that has failed every country that has tried it. Second, Venezuela's politicians were seduced by the lure of out-of-control spending financed by more borrowing and higher debt, the same temptation Washington politicians have succumbed to for decades.

America must learn from Venezuela and every other country that has been financially irresponsible. Mr. Speaker, time is running out. Washington must balance the budget before America's debt burden spirals out of control. America cannot wait until our financial crisis is lost and it is too late to prevent the debilitating insolvency and bankruptcy that awaits us.

I pray the American people will be good stewards of our Republic in 2016 and elect Washington officials who both understand the threat posed by deficits and debt and have the backbone to fix it. Mr. Speaker, America's future depends on it.

BEHAVIORAL HEALTH CRISIS HURTS REAL PEOPLE

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from New Mexico (Ms. MICHELLE LUJAN GRISHAM) for 5 minutes.

Ms. MICHELLE LUJAN GRISHAM of New Mexico. Mr. Speaker, I rise to speak about a crisis in my home State of New Mexico, a crisis that has hurt real people who rely on the Medicaid program for lifesaving care.

Mr. Speaker, almost 3 years ago, the New Mexico Human Services Department, with the support of Governor Susana Martinez, claimed that it had credible allegations of fraud and suspended Medicaid payments to 15 behavioral health providers. This move wiped out the behavioral health system in a State where there are already significant provider shortages.

I want to take a minute to talk about what that really means. That means if you are a person who struggles with schizophrenia but manages it effectively with regular treatment, that regular treatment stops and you go back to square one. That means that if you are someone who has been diagnosed as bipolar, who has finally found a trusted provider, someone who has brought some stability and comfort to your care plan, you no longer have access to that person.

The loss of services is devastating, and I have seen it firsthand. There is a constituent who typically calls my office every day, multiple times a day. He calls my office. He calls other members of the delegation, the mayor's office, and the chief of police. But from time to time the calls stop. They stop because this individual, who can be the most warm-hearted person I know, is in jail. He has a mental illness and a substance abuse problem and can be belligerent when he feels threatened, so he sometimes has run-ins with local law enforcement, and he ends up in jail because the system is failing him. He is not receiving the services he needs.

Our jails and sometimes our emergency rooms have become the de facto behavioral health system in our State because, when you don't have the infrastructure to care for individuals with behavioral health issues, that is where people end up.

Mr. Speaker, I am, frankly, appalled that people in my home State are being treated in this way, but if you can believe it, it gets worse.

Last month, the New Mexico attorney general completed his review of the allegations and found that there did not appear to be a pattern of fraud. Thirteen of the 15 providers accused of fraud have now been cleared, and the people of New Mexico are left to wonder why, why a whole State's behavioral health system was wiped out and a large population of vulnerable individuals left to fend for themselves. I think they deserve answers.

I have been working with my colleagues in the New Mexico delegation, pushing the Centers for Medicare and Medicaid Services to exercise Federal oversight and ensure accountability since the payment suspension was announced. We have sent multiple letters, made phone calls, held in-person meetings with officials at every level at CMS and HHS, and I have to say I am extremely disappointed by their lack of engagement.

We sent another letter to CMS in February sharing the attorney general's report and asking that they conduct a Federal investigation, and we are going to continue pushing for accountability and working to make sure this never happens again.

I plan to introduce legislation that would ensure network adequacy and continuity of care in a State's Medicaid program, and I know my colleagues have legislation in the works as well.

Mr. Speaker, I have spent my entire career fighting for vulnerable New Mexicans, people who are voiceless in the political process. It would be easy to ignore them, as so many have done, because they are too busy struggling to survive to engage in the political process. It would be easy, but it would be wrong.

This is the most egregious abuse of power I have seen in my decades of government service, and I will not sit idly by while the most vulnerable among us suffer. We must have action. We must have accountability.

Mr. Speaker, I ask my colleagues to join me in calling for a long overdue Federal investigation of the behavioral health provider suspension in New Mexico.

NEGOTIATIONS BETWEEN COLOMBIA AND THE FARC

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Florida (Ms. ROS-LEHTINEN) for 5 minutes.

Ms. ROS-LEHTINEN. Mr. Speaker, I rise today to speak against the ongoing negotiations in Havana between the Government of Colombia and the terrorist group known as the FARC.

This draft agreement contains alarming provisions that could empower the ringleaders of the world's largest cocaine cartel and undermine America's security interests in the region.

It would also make American taxpayers foot the bill, through their tax dollars, in support of this bad agreement that effectively whitewashes human rights abuses while the administration of President Obama seeks more than $70 million to help implement this proposal.

This agreement diminishes the FARC's responsibility for its role in drug trafficking as well as the thousands of murders and kidnappings and other innumerable crimes that the FARC has perpetrated against the Colombian people by allowing the soldiers and the leaders of the FARC to avoid any jail time for all of those crimes.

To make matters worse, this agreement creates an equivalency between

the FARC and innocent civilians, categorizing both as actors in the conflict, when it has been civilians who have been the victims of the FARC's narcoterror and the FARC's brutality.

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As if that were not awful enough, Mr. Speaker, to equate innocent victims with the FARC in the courts of law, the draft agreement goes even further by allowing those very same violent drug dealers and insurgent leaders to not only stand for election to public office, but also to use the proceeds of the drug trade, the kidnappings, and all of the other illicit sources to fund their campaigns. This is incredible.

But the flaws in this deal don't end there, Mr. Speaker. This agreement will prevent the United States from extraditing any FARC members who have been accused of crimes against American citizens. This is especially troubling when we consider that many of the FARC members may receive immunity.

It would not surprise me if the Obama administration uses this deal as an excuse to drop the FARC from our list that designates the FARC as a foreign terrorist organization.

The Obama administration has never met a bad deal that it did not want to say yes to, especially if the deal empowers tyrants or acquiesces to terrorist demands. This puts our credibility and our national security at risk.

But what is really driving these requests is the Obama administration's continued quest to appease the Castro regime. This is the same Castro regime whose weapons systems from China to Cuba was intercepted by the Colombian Government just last March and which were suspected of being intended for the FARC.

While negotiations were taking place, they were doing this illicit arms shipment. Incredible. It is the same Castro regime that, for decades, has supported the FARC and trained many of its leaders in the terror camps.

Mr. Speaker, Cuba has no interest in a peaceful resolution to the conflict in Colombia. The Castro regime is only interested in leveraging a strengthened and legitimized FARC as a dominant player in Colombia.

The proposed deal as well as those requests by Colombia of the U.S. Government are not only dangerous to our Colombian partners, but they are also dangerous to our national security and our interests in the region.

I urge my fellow Members of Congress to speak out against this terrorist group, the FARC, as well as to block any attempts by our administration to go soft in these negotiations because this weak position could threaten our safety and block American citizens from receiving their rightful justice.

I urge my colleagues to block attempts by the Obama administration to use U.S. taxpayer dollars for this agreement between the Colombian Government and the FARC.

A reinforced FARC with established political legitimacy sets a dangerous precedent for other organizations with similar dangerous aspirations and anti-American objectives in the region.

Let's not force our constituents to pay for this flawed and dangerous deal with terrorist groups.

GUN CONTROL

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Ms. SPEIER) for 5 minutes.

Ms. SPEIER. Mr. Speaker, on February 25, in Hesston, Kansas, a disgruntled coworker killed Renee Benjamin, 30; Josh Higbee, 31; and Brian Sadowsky, 44, with an imported Serbian AK–47-type assault weapon.

ATF has the power to ban these weapons. President George H.W. Bush demanded a ban in 1989. Ironically, his son, President George W. Bush, was pressured by the NRA when he took office to repeal the importation of the assault weapon ban.

Today I am introducing the Imported Assault Weapons Ban, a bill that would ban the importation of these assault weapons once and for all. This continued bloodshed must stop. But, somehow, my colleagues continue to accept outrageous violence as part of everyday life.

In February 2016—just last month—there were 35 mass shootings, which is to say 35 acts of violence where four or more people were wounded or killed. That is more than one per day.

Here are the real people who died because of gun violence in February. Sadly, I don't have time on the floor today to name those who were injured, but those who died include the following:

Marvin Douglass Lancaster, III, age 21, was killed while in an adult club on February 6 in Tampa, Florida. Christopher Houston, 20, was also shot there and died later.

Carlos Doroteo, 49, was killed while walking in his neighborhood on February 6 in Los Angeles, California.

Jennifer Jacques, 42; Arthur Norton, 58; and Phinny Norton, 60, were killed by Jennifer's 19-year-old son Dylan in their home on February 6 in Uvalde, Texas.

Ernesto Ayber, 29, was killed on February 7 in Rochester, New York.

Joseph Villalobos, 22, and Jonathan Avila Rojas, 33, were killed inside a nightclub on February 7 in Orlando, Florida.

Carlos Bates, 29, and Isaiah Major, III, 43, were killed at a Mardi Gras parade on February 7 in Pass Christian, Mississippi.

Dwight Hughes, Jr., 21, was killed on February 7 in Chicago, Illinois.

Trisha Nelson, 28, was killed by her fiance, who was angry about parking, as she fled their car on February 12 in Plymouth, Minnesota. Her fiance was later killed in a shootout with police.

Armando Curiel, 17; Raul Lopez, 19; and his brother Angel Lopez, 20, were killed in an SUV on February 18 in Salt Lake City, Utah.

Michael Broadnax, 41, was killed in a driveway on February 19 in Vallejo, California. His son, Bomani Broadnax, 22, died later of his injuries.

Officer James Lee Tartt, 44, was killed in a shootout on February 20 in Iuka, Mississippi. His family had just moved into their new home just a month earlier.

Manual Ortiz, 28, was killed at a bar on February 20 in Tampa, Florida. He had a month-old son.

Mary Lou Nye, 62; Mary Jo Nye, 60; Dorothy Brown, 74; and Barbara Hawthorne, 68, were killed in a parking lot on February 21 in Kalamazoo, Michigan. The gunman then killed Rich Smith, 53, and son Tyler Smith, 17.

Emma Wallace, 37, was killed in a car on February 21 in Hazelwood, Missouri.

The Buckner family, including mother Kimberly, father Vic, 18-year-old daughter Kaitlin, and 6-year-old daughter Emma, were killed at their family home on February 23 in Phoenix, Arizona. Their son, the shooter, was killed by police.

A deputy sheriff, Corporal Nate Carrigan, 35, was killed while serving an eviction notice on February 24 in Bailey, Colorado.

Lana Carlson, 49, and her sons Quinn, 16, and Tory, 18, as well as their neighbor, Donna Reed, 68, were killed at their home by Lana's husband on February 25 in Belfair, Washington.

Crystal Hamilton, 29, was killed by her husband on February 27 in Woodbridge, Virginia. Officer Ashley Guindon, also 29, was killed while responding to the scene. It was her first shift as a police officer.

An unidentified man was killed in a parking lot on February 28 in Riverside, California.

May the dead rest in peace, the wounded recover quickly and completely, and the bereaved receive comfort. These are the faces of Americans gunned down because we lack the guts to do anything about gun violence.

WASTE, FRAUD, AND ABUSE IN AFGHANISTAN

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. JONES) for 5 minutes.

Mr. JONES. Mr. Speaker, yesterday I came back to Washington, as my colleagues did, and I saw the headlines in Politico that said: Hill GOP on the Hot Seat Ahead of Recess. It was a piece about the leadership's effort to pass a $1.7 trillion budget.

Mr. Speaker, we are headed off a fiscal cliff, with over $19 trillion in debt. Yet, Congress keeps driving toward that cliff.

Like most Members of Congress, I go home every weekend. I live in eastern North Carolina. I am very active in my district. I talk to many people, from

the grocery store to church. Many times the conversation is: Why can't you in Congress wake up before it is too late?

We just heard Congressman BROOKS from Alabama talk about Venezuela. We are headed right there just as quick as we can.

The waste, fraud, and abuse in Afghanistan is a prime example of Congress not doing its job. When I tell people back home that it was reported recently by John Sopko, Inspector General of Afghanistan Reconstruction, that the Pentagon spent $6 million to buy nine goats from Italy, some laugh and some are just disgusted.

How in the world could we keep funding the Pentagon when they waste money buying goats for $6 million? The waste of American taxpayer dollars in Afghanistan never ends.

The Wall Street Journal recently ran a story titled: ''Afghan Police Force Struggling to Maintain Membership,'' by Jessica Donati, in which she reports that more than 36,000 Afghanistan policemen left the force last year because of Taliban attacks and poor leadership.

We have spent $18 billion on training the Afghan police force and, here again, we lost 36,000. The poor taxpayer. We keep funding this waste in Afghanistan like we have got plenty of money. What we are doing in the Congress is absolute madness.

Mr. Speaker, I will include in the RECORD a NBC News report titled: ''12 Ways Your Tax Dollars Were Squandered in Afghanistan.''

[From www.nbcnews.com, March 5, 2016]

12 WAYS YOUR TAX DOLLARS WERE SQUANDERED IN AFGHANISTAN

(By Alexander Smith)

The United States has now spent more money reconstructing Afghanistan than it did rebuilding Europe at the end of World War II, according to a government watchdog.

The Special Inspector General for Afghanistan Reconstruction (SIGAR) said in a statement to Congress last week that when adjusted for inflation the $113.1 billion plowed into the chaos-riven country outstripped the post-WWII spend by at least $10 billion.

Billions have been squandered on projects that were either useless or sub-standard, or lost to waste, corruption, and systemic abuse, according to SIGAR's reports.

NBC News spoke to SIGAR's Special Inspector General John F. Sopko about 12 of the most bizarre and baffling cases highlighted by his team's investigations.

Paraphrasing Albert Einstein, Sopko said the U.S.'s profligate spending in Afghanistan is ''the definition of insanity—doing the same things over and over again, expecting a different result.''

1. $486 MILLION FOR 'DEATHTRAP' AIRCRAFT THAT WERE LATER SOLD FOR $32,000

Two of the G222 aircraft in a corner of Kabul International Airport in November 2013. SIGAR

The Pentagon spent close to half a billion dollars on 20 Italian-made cargo planes that it eventually scrapped and sold for just $32,000, according to SIGAR.

''These planes were the wrong planes for Afghanistan,'' Sopko told NBC News. ''The U.S. had difficulty getting the Afghans to fly them, and our pilots called them deathtraps. One pilot said parts started falling off while he was coming into land.''

After being taken out of use in March 2013, the G222 aircraft, which are also referred to as the C–27A Spartan, were towed to a corner of Kabul International Airport where they were visible from the civilian terminal. They had ''trees and bushes growing around them,'' the inspector general said.

Sixteen of the planes were scrapped and sold to a local construction company for 6 cents a pound, SIGAR said. The other four remained unused at a U.S. base in Germany.

Sopko called the planes ''one of the biggest single programs in Afghanistan that was a total failure.''

2. $335 MILLION ON A POWER PLANT THAT USED JUST 1 PERCENT OF ITS CAPACITY

Tarakhil Power Plant pictured in October 2009. SIGAR

The Tarakhil Power Plant was fired up in 2009 to ''provide more reliable power'' to blackout-plagued Kabul, according to the United States Agency for International Development, which built the facility.

However, the ''modern'' diesel plant exported just 8,846 megawatt hours of power between February 2014 and April 2015, SIGAR said in a letter to USAID last August. This output was less than 1 percent of the plant's capacity and provided just 0.35 percent of power to Kabul, a city of 4.6 million people.

Furthermore, the plants ''frequent starts and stops . . . place greater wear and tear on the engines and electrical components,'' which could result in its ''catastrophic failure,'' the watchdog said.

USAID responded to SIGAR's report in June 2015, saying: ''We have no indication that [Afghan state-run utility company] Da Afghanistan Breshna Sherkat (DABS), failed to operate Tarakhil as was alleged in your letter.''

3. ALMOST $500,000 ON BUILDINGS THAT 'MELTED' IN THE RAIN

The dry-fire range in Wardak is pictured in February 2013. SIGAR

U.S. officials directed and oversaw the construction of an Afghan police training facility in 2012 that was so poorly built that its walls actually fell apart in the rain. The $456,669 dry-fire range in Wardak province was ''not only an embarrassment, but, more significantly, a waste of U.S. taxpayers' money,'' SIGAR's report said in January 2015.

It was overseen by the U.S. Central Command's Joint Theater Support Contracting Command and contracted out to an Afghan firm, the Qesmatullah Nasrat Construction Company.

SIGAR said this ''melting'' started just four months after the building was finished in October 2012. It blamed U.S. officials' bad planning and failure to hold to account the Afghan construction firm, which used poor-quality materials. The U.S. subsequently contracted another firm to rebuild the facility.

Sopko called the incident ''baffling.''

4. $34.4 MILLION ON A SOYBEAN PROGRAM FOR A COUNTRY THAT DOESN'T EAT SOYBEANS

Some of the remaining soybean inventory in March 2014 after it was imported from the U.S. to Afghanistan. SIGAR

''Afghans apparently have never grown or eaten soybeans before,'' SIGAR said in its June 2014 report. This did not stop the U.S. Department of Agriculture funding a $34.4 million program by the American Soybean Association to try to introduce the foodstuff into the country in 2010.

The project ''did not meet expectations,'' the USDA confirmed to SIGAR, largely owing to inappropriate farming conditions in Afghanistan and the fact no one wanted to buy a product they had never eaten.

''They didn't grow them, they didn't eat them, there was no market for them, and yet we thought it was a good Idea,'' Sopko told NBC News.

''What is troubling about this particular project is that it appears that many of these problems could reasonably have been foreseen and, therefore, possibly avoided,'' the inspector general wrote in a letter to Agriculture Secretary Tom Vilsack in June 2014.

5. ONE GENERAL'S EXPLANATION WHY 1,600 FIRE-PRONE BUILDINGS WEREN'T A PROBLEM

Fire breaks out at an arch-span building at the Afghan National Army's Camp Sayer in October 2012. SIGAR

The U.S. Army Corps of Engineers built some 2,000 buildings to be used as barracks, medical clinics and fire stations by the Afghan National Army as part of a $1.57-billion program. When two fires in October and December 2012 revealed that around 80 percent of these structures did not meet international building regulations for fire safety, Sopko said he was ''troubled'' by the ''arrogant'' response from a senior USACE chief.

Major General Michael R. Eyre, commanding general of USACE's Transatlantic Division, said the risk of fire was acceptable because ''the typical occupant populations for these facilities are young, fit Afghan soldiers.'' Writing in a January 2014 memo published by SIGAR, Eyre said these recruits ''have the physical ability to make a hasty retreat during a developing situation.''

Sopko told NBC News that Eyre's comments ''showed a really poor attitude toward our allies.'' He added: ''It was an unbelievable arrogance, and I'm sorry to say that about a senior officer.''

6. A $600,000 HOSPITAL WHERE INFANTS WERE WASHED IN DIRTY RIVER WATER

A room in Salang hospital in January 2004. SIGAR

Despite the Department of Defense spending $597,929 on Salang Hospital in Afghanistan's Parwan province, the 20-bed facility has been forced to resort to startling medical practices.

''Because there was no clean water, staff at the hospital were washing newborns with untreated river water,'' SIGAR's report said in January 2014. It added that the ''poorly constructed'' building was also at increased ''risk of structural collapse during an earthquake.''

NBC News visited the hospital in January 2014 and witnessed some disturbing practices: a doctor poking around a dental patient's mouth with a pair of unsterilized scissors before yanking out another's tooth with a pair of pliers.

The United States Forces-Afghanistan responded to SIGAR's report in January 2014 saying it would investigate why the building was not constructed to standard.

In a separate report, SIGAR said that USAID reimbursed the International Organization for Migration for spiraling costs while building Gardez Hospital, in Paktia province.

The IOM's ''weak internal controls'' meant it paid $300,000 for just 600 gallons of diesel fuel—a price of $500 per gallon when market prices should not have exceeded $5, SIGAR said.

7. $36 MILLION ON A MILITARY FACILITY THAT SEVERAL GENERALS DIDN'T WANT

An unused room at the so-called ''64K'' facility. SIGAR

The so-called ''64K'' command-and-control facility at Afghanistan's Camp Leatherneck cost $36 million and was ''a total waste of U.S. taxpayer funds,'' SIGAR's report said in May 2015.

The facility in Helmand province—named because it measured 64,000 square feet—was intended to support the U.S. troop surge of 2010.

However, a year before its construction, the very general in charge of the surge asked

that it not be built because the existing facilities were ''more than sufficient,'' the watchdog said. But another general denied this cancellation request, according to SIGAR, because he said it would not be ''prudent'' to quit a project for which funds had already been appropriated by Congress.

Ultimately, construction did not begin until May 2011, two months before the drawdown of the troops involved in surge. Sopko found the ''well-built and newly furnished'' building totally untouched in June 2013, with plastic sheets still covering the furniture.

''Again, nobody was held to account,'' Sopko told NBC News, adding it was a ''gross . . . really wasteful, extremely wasteful amount of money.''

He added: ''We have thrown too much money at the country. We pour in money not really thinking about it.''

8. $39.6 MILLION THAT CREATED AN AWKWARD CONVERSATION FOR THE U.S. AMBASSADOR

A now-defunct Pentagon task force spent almost $40 million on Afghanistan's oil, mining and gas industry—but no one remembered to tell America's diplomats in Kabul, according to SIGAR, citing a senior official at the U.S. embassy in the city.

In fact, the first the U.S. ambassador knew about the multi-billion-dollar spend was when Afghan government officials thanked him for his country's support, SIGAR said.

The project, administered by the Task Force for Business and Stability Operations (TFBSO), was part of a wider $488 million investment that also included the State Department and USAID. These organizations ''failed to coordinate and prioritize'' their work, which created ''poor working relationships, and . . . potential sustainability problems,'' according to SIGAR.

It was, according to Sopko, ''a real disaster.''

One USAID official told the watchdog it would take the U.S. ''100 years'' to complete the necessary infrastructure and training Afghanistan needs to completely develop these industries.

9. $3 MILLION FOR THE PURCHASE—AND THEN MYSTERY CANCELLATION—OF EIGHT BOATS

One of the eight boats sitting in a Virginia warehouse in June 2014. SIGAR

SIGAR said the U.S. military has been unable to provide records answering ''the most basic questions'' surrounding the mystery purchase and cancellation of eight patrol boats for landlocked Afghanistan.

The scant facts SIGAR were able to find indicated the boats were bought in 2010 to be used by the Afghan National Police, and that they were intended to be deployed along the country's northern river border with Uzbekistan.

''The order was cancelled—without explanation—nine months later,'' SIGAR said. The boats were still sitting unused at a Navy warehouse in Yorktown, Virginia, as of 2014.

''We bought in a navy for a landlocked country,'' Sopko said.

10. $7.8 BILLION FIGHTING DRUGS—WHILE AFGHANS GROW MORE OPIUM THAN EVER

Afghan farmers harvest opium sap from a poppy field in Nangarhar province in May 2015. NOORULLAH SHIRZADA/AFP—Getty Images, file

Despite the U.S. plowing some $7.8 billion into stopping Afghanistan's drug trade, ''Afghan farmers are growing more opium than ever before,'' SIGAR reported in December 2014.

''Poppy-growing provinces that were once declared 'poppy free' have seen a resurgence in cultivation,'' it said, noting that internationally funded irrigation projects may have actually increased poppy growth in recent years.

The ''fragile gains'' the U.S. has made on Afghan health, education and rule of law were being put in ''jeopardy or wiped out by the narcotics trade, which not only supports the insurgency, but also feeds organized crime and corruption,'' Sopko told U.S. lawmakers in January 2014.

Afghanistan is the world's leader in the production of opium. In 2013, the value of Afghan opium was $3 billion—equivalent to 15 percent of the country's GDP—according to the United Nations Office of Drugs and Crime.

Sopko told NBC News the picture is no more optimistic today. ''No matter which metric you use, this effort has been a real failure,'' he said.

11. $7.8 MILLION ON A NEARLY-EMPTY BUSINESS PARK

The entrance to Shorandam Industrial Park in June 2014. SIGAR

The USAID-funded Shorandam industrial Park in Kandahar province was transferred to the Afghan government in September 2010 with the intention of accommodating 48 business and hundreds of local employees. Four years later, SIGAR inspectors found just one active company operating there.

This was due to the U.S. military building a power plant on one-third of the industrial park to provide electricity to nearby Kandahar City, causing ''entrepreneurs to shy away from setting up businesses'' at the site, SIGAR said in its report of April 2015.

After the military withdrew in mid-2014, the investigators were told that at least four Afghan businesses had moved into the industrial park. However, SIGAR said that it could not complete a thorough inspection because USAID's contract files were ''missing important documentation.''

12. $81.9 MILLION ON INCINERATORS THAT EITHER WEREN'T USED OR HARMED TROOPS

The DOD spent nearly $82 million on nine incineration facilities in Afghanistan—yet four of them never fired their furnaces, SIGAR said in February 2015. These four dormant facilities had eight incinerators between them and the wastage cost $20.1 million.

In addition, SIGAR inspectors said it was ''disturbing'' that ''prohibited items,'' such as tires and batteries, continued to be burned in Afghanistan's 251 burn pits. U.S. military personnel were also exposed to emissions from these pits ''that could have lasting negative health consequences,'' the watchdog said.

The Department of Defense said it was ''vitally interested in exploring all possible ways to save taxpayer dollars and ensure we are good stewards of government resources.''

A spokesman added: ''We'll continue to work with SIGAR, and other agencies, to help get to the bottom of any reported issues or concerns.''

A spokesman for Afghanistan's President Ashraf Ghani declined to comment on this story.

Mr. JONES. Some of the most egregious examples of waste in this list are the $486 million the Pentagon paid for deathtrap aircraft that were scrapped and sold for $32,000. You spend $486 million and what you get back is scrap. It costs $32,000. Also, $500,000 on training facilities for Afghan police that melted in the rain. The poor American taxpayer.

John Sopko, the Inspector General for Afghanistan Reconstruction, has told Congress on many occasions to look at the waste, fraud, and abuse in Afghanistan. Yet, every year we will pass appropriations bills on the floor of the House to continue to spend billions of dollars in Afghanistan. I do not understand it.

It is time for America to wake up. It is time for the Congress to wake up and bring our troops home from Afghanistan. It is time to say to Afghanistan: Fight it out, if you want to. It is your country.

Afghanistan is the graveyard of empires. There is a headstone in that graveyard that says: America, I am waiting for you. You are headed for this graveyard.

ZIKA VIRUS

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. RUIZ) for 5 minutes.

Mr. RUIZ. Mr. Speaker, I rise to address a serious public health issue facing our country.

As a physician, I am very concerned over the recent spread of the Zika virus in the Americas, particularly given the potential long-term effects that are now being linked to the virus.

Zika was first discovered in 1948 in Uganda. Until recently, little research or attention was paid to the virus. It was not thought to have any lasting effects until recently. Because of this, there is no vaccine, no drug treatment, and testing is not readily available.

It is important to note that four out of five individuals who contract Zika are unaware that they have it because they do not ever show any symptoms. For those that do, symptoms are generally mild.

However, as the virus continues to spread, researchers are identifying a link between Zika and infants being born with congenital microcephaly as well as a link between Zika and Guillain-Barre syndrome.

There are still many questions, and scientists are searching for answers. For example, can Zika be transmitted sexually? If so, for how long is it transmittable? What are the long-term health and economic effects of this infection?

While at this time there have been no reported cases of mosquito transmission within the U.S., there have been over 150 travel-related cases reported. Most recently a Zika case was found in Orange County, not too far from my district.

□ 1030

The CDC is currently advising pregnant women to postpone travel to Zika-affected areas, and if they must travel, to first consult with their physician and take all necessary precautions to avoid mosquitos.

Last month, the administration submitted a supplemental appropriations request for emergency funding to help fight the Zika virus. And my physician-scientist colleagues at the CDC and NIH have echoed the need for funding.

As we enter mosquito season and families start to travel for summer vacation, it is important that we do not

delay this funding and work to ensure that we contain the damage the virus could cause if left unchecked. Timing is of the essence and emergency funding needs to be appropriated immediately to mitigate any potentially destructive effects.

This is why I sent a bipartisan letter, along with 61 of my colleagues, urging Speaker RYAN to bring to the floor legislation that would appropriate emergency funding to help fight the Zika virus.

This is not a Democratic issue. This is not a Republican issue. It is a public health and health security issue. The cost of not acting is just too high.

SHENANDOAH AREA COUNCIL BOY SCOUTS OF AMERICA'S 2016 DISTINGUISHED CITIZEN OF THE YEAR

The SPEAKER pro tempore. The Chair recognizes the gentleman from West Virginia (Mr. MOONEY) for 5 minutes.

Mr. MOONEY of West Virginia. Mr. Speaker, I rise today in recognition of an outstanding member of my community in the Eastern Panhandle of West Virginia's Second Congressional District, Ed Wilson.

This afternoon in Martinsburg, Ed Wilson is being named the Shenandoah Area Council of the Boy Scouts of America's 2016 Distinguished Citizen of the Year. This award is given to exceptional members of the community who have ''noteworthy and extraordinary leadership.''

Past honorees include Senators Robert Byrd, Jay Rockefeller, SHELLEY MOORE CAPITO, and JOE MANCHIN, as well as Brigadier General V. Wayne Lloyd, the former head of the 167th Airlift Wing in Martinsburg.

My friend, Ed Wilson, also truly personifies all that this award embodies. Born in Woodbridge, New Jersey, Ed's journey of faith and service included a very early milestone.

At the age of 10, he joined the St. Vincent de Paul Society. This Catholic charitable organization, whose local chapter was founded by his wife, Midge, offers not a handout, but a hand up. This same ethic lies behind the mission of the Boy Scouts, who Ed has worked with for so many years.

Ed served in the Navy for 3 years before earning a position with the intelligence community as a linguist and analyst. Ed worked for the CIA for 31 years, 24 of which were overseas. He was stationed around the globe, in Europe, the Middle East, Central America, and Asia.

Finally, in 1977, Ed and his wife, Midge, moved to Falling Waters, in Berkeley County, West Virginia, where they have been committed to serving our community and its needs ever since.

Ed's work for our community has been called legendary by some, and I couldn't agree more. He has served with 16 agencies, charitable organizations, and community projects, including Big Brothers and Big Sisters of the Eastern Panhandle, Catholic Charities, March of Dimes, Martinsburg-Berkeley County Chamber of Commerce, Mountain State Apple Harvest Festival, and the United Way of the Eastern Panhandle.

Ed likes to say that life is too important to be taken seriously. I do agree, but I must add this. One of the serious reasons why the Boy Scouts honors Ed is the importance of his lifetime of service.

Ed provides an important role model for young men about the importance of commitment, virtue, culture, and just basic decency. With that in mind, I not only congratulate, but also thank my friend, Ed Wilson, for all he has done for our country and community.

WE NEED AN ALL-OF-THE-ABOVE ENERGY POLICY.

Mr. Speaker, I rise today to comment on a recent statement made by the leading Democrat candidate for President and former Secretary of State, Hillary Clinton, who just on Sunday night on CNN was asked about her policies.

She said, ''I am the only candidate which has a policy about bringing economic opportunity, using clean, renewable energy as the key into coal country because we are going to put a lot of coal miners and coal companies out of business.''

Mr. Speaker, we need a President who has an all-of-the-above energy policy, not one who so blatantly discriminates against coal. This attack and war on coal that Hillary Clinton plans to continue, just like our current President, has devastated our State. We are in a recession in West Virginia. We need a President who will fight for our coal miners, promote the all-of-the-above energy policy, and utilize our country's natural resources, including coal.

This is important to West Virginia and everyone in the country, so I call upon all of us to look at the importance of this upcoming discussion on this issue.

PENN STATE STUDENTS COMMITTED TO ADDRESSING THE NATIONAL DEBT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to laud the efforts of a student organization at Penn State University, located in the Pennsylvania Fifth Congressional District.

These students are participating, Mr. Speaker, in a nationwide competition called Up to Us. The goal is raising awareness of the national debt and the impact it will have on the leaders of tomorrow and generations to come, especially in terms of their future economic opportunities. The winning team will be recognized later this year and will receive $10,000.

The national debt isn't something you often hear much about from men and women in their late teens and early twenties, which is why I was so impressed by this.

These are signatures of more than 1,500 students seeking to raise awareness among the men and women who represent them in such places as the United States House of Representatives and the Senate.

I was happy to share some of the work we have done over the past few years in lowering the debt and pledge to continue that effort.

Spending has been reduced to historic levels under the Republican-led Congress. These fiscally responsible reductions are greater than those achieved under President Reagan and greater than those under former Speaker of the House Newt Gingrich.

This has been a challenge, given that before Republicans took charge of the House, total spending to gross domestic production had skyrocketed from 21 to 24 percent. Discretionary spending alone went from 7 percent to 10 percent. We were drowning in debt.

One of the first measures in restoring financial common sense advanced by Republicans was the Budget Control Act that decreased government spending by more than $2 trillion over 10 years. By flexing the power of the purse, the Republican-led House reduced spending from 9.1 to 6.5 percent of gross domestic product.

The second significant and successful debt reduction measure came in the form of the Ryan-Murray deal. This extended the Budget Control Act savings an additional 2 years.

Newly hired Federal employees are now required to contribute more to pension plans, and taxpayers contribute less. The spending reductions that were impacting mandatory spending for the first time resulted in faster and greater debt reduction.

The very first meaningful entitlement reform that provided even greater debt reduction came from the Republican-led Medicare reform legislation that has been enacted, known as the doc fix.

Now, while this legislation provided a permanent patch of the Medicare outpatient payment system, securing access to care, health care for America's older adults, the reforms are estimated to save $2.9 trillion over 10 years in Medicare's unfunded liabilities. This leadership reduced the debt and supported the Medicare program's sustainability.

While the Republican-led Congress has taken action on debt reduction, much work remains. Raising awareness of the threats that debt creates for fiscal health, individual opportunity, upward mobility, and national security is a critical step.

I want to say thank you to the students at Penn State University who are involved in leading the Up to Us

project for their work in this effort. I wish them the best of luck as they continue to work to bring attention to this very important issue.

I look forward to working with them as we continue to work at eliminating the debt that threatens their future and the future of our Nation.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 39 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. EMMER of Minnesota) at noon.

PRAYER

Reverend Tyrone M. Thomas, Charity Church, Baltimore, Maryland, offered the following prayer:

O Lord, our Lord, how excellent is Your name on all the Earth. We come before You today, first thanking You for another day You have allowed us to see and partake in.

We thank You for Your grace, mercy, and loving kindness you have extended to us on this day. God, we thank You for allowing us to arrive at destinations free from hurt, harm, or danger.

We ask You now, God, that You would allow our day to be a productive, purposeful, and peaceful day. Creator and God, we ask that You allow us to remain focused and on task as we go about our day-to-day responsibilities.

We ask Your continued blessings upon every Member of the House of Representatives who are represented here today. We ask that You would lead, guide, and strengthen their ability to make sound decisions for Your people.

God, as we conclude our day, we want to hear You say: Well done, thy good and faithful servant. We ask all these things in the name of the God who created all and who made all things.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentlewoman from Ohio (Mrs. BEATTY) come forward and lead the House in the Pledge of Allegiance.

Mrs. BEATTY led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

NATIONAL AGRICULTURE DAY

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Mr. Speaker, today is National Agriculture Day, where we recognize and celebrate the important role that agriculture plays in the United States.

As a lifelong farmer—on a small scale at times—and a longtime Christmas tree grower, I am committed to actively engaging in the creation of responsible farm policies that honor taxpayers while protecting the way of life of North Carolina's farming families.

The Fifth District of North Carolina has a rich agricultural tradition, and it is a privilege to work with local farmers to ensure they have the tools they need to continue producing their outstanding commodities.

I will keep looking for legislative innovations that ensure North Carolina's farmers are free to compete, adapt, and seize opportunities to safely maximize production and meet the needs of America and the world.

RECOGNIZING THE GIRL SCOUTS

(Mrs. BEATTY asked and was given permission to address the House for 1 minute.)

Mrs. BEATTY. Mr. Speaker, I rise today to recognize the young women of Girl Scout Daisy Troop 1944, ages 6 to almost 8 years of age, who recently visited my office.

After meeting with them, I was truly inspired. Mr. Speaker, they alerted me to all their great work, from volunteering in a local animal shelter to hosting a birthday party for homeless children. We also discussed the importance of civic engagement and honoring our Nation's veterans.

The members of this impressive troop are Roxanne Dion, Kirsten Wilson, Harley Craig, Cecelia Rodriguez, Aubree Meyerin, Kileigh Solberg, Brooklyn Cress, DeLana Windnagel, Lily Denovo, Georgia Woodward, Allison Helser, Kaylee Thompson, and Isabelle Jones.

During Women's History Month, let us pay tribute to the next generation of women leaders, like the young women of Daisy Troop 1944.

Mr. Speaker, please join me in recognizing the works of the 1.9 million girl members of the Girl Scouts as well as the individuals who volunteer to help them as troop leaders, their parents, and Girl Scouts CEO Anna Maria Chavez, all who strive to make the world a much better place.

I say to you, Daisy troops: Job well done.

MINNESOTA'S FIRST FEMALE BRIGADIER GENERAL

(Mr. EMMER of Minnesota asked and was given permission to address the House for 1 minute.)

Mr. EMMER of Minnesota. Madam Speaker, in honor of Women's History Month, I rise today to celebrate an inspiring woman who now has a permanent spot in Minnesota's history books. Last week Sandra Best became the first female Brigadier General in the Minnesota National Guard.

General Best was a 20-year-old college student when she joined the Air National Guard in 1984. During her 32 years of service, Best has proven her dedication to this Nation and to Minnesota through a variety of leadership positions.

In her new position as Brigadier General, Best will serve as the chief of staff for the Minnesota National Guard and will be in charge of the 133rd Airlift Wing and the 148th Fighter Wing.

General Best is a true trailblazer. She has broken down barriers and forged a path that other women are sure to follow. It is with great respect and great pride that I recognize her today.

HONORING DR. JUAN FRANCISCO LARA

(Ms. LORETTA SANCHEZ of California asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. LORETTA SANCHEZ of California. Madam Speaker, I rise today to honor the life of Dr. Juan Francisco Lara.

Dr. Lara passionately advocated for access to the University of California system for all students. For over 35 years, he was involved at UCLA and the University of California, Irvine, in many roles, including dean, professor, and assistant vice chancellor.

At UCI, Dr. Lara played a pivotal role in the Santa Ana Partnership, an educational partnership between UCI, Cal State Fullerton, Santa Ana College, and the Santa Ana Unified School District, which is now a national model in collaborative education.

Dr. Lara was a devoted husband, father, and grandfather known for his commitment to community and love for his family. I counted him as my friend. He believed that, with the power of knowledge, kindness, and education, we could change the world.

On behalf of the people of California's 46th Congressional District, I am proud to honor this inspiring and incredible man.

RETIREMENT OF MIKE BROWN

(Mr. MCCLINTOCK asked and was given permission to address the House for 1 minute.)

Mr. MCCLINTOCK. Mr. Speaker, I rise to express the heartfelt gratitude of the people of the Tahoe Basin for Chief Mike Brown of the North Lake Tahoe Fire Department.

On March 18, Chief Brown will close a distinguished career of 26 years with that department, including 9 years as its chief, and a total of 37 years as a firefighter.

The greatest environmental threat to the Tahoe Basin is catastrophic wildfire. Chief Brown has led the fight to develop community wildfire protection plans, promote best practices for fire management, and educate the public on maintaining defensible space.

His success is measured not only in the fires he has extinguished but, far more important and far less appreciated, the fires he has prevented.

Chief Brown has been a tireless advocate for restoring sound management to our public lands to protect our communities, and Tahoe has been most fortunate to have had him.

HONORING THE LIFE OF RODERICK ''ROD'' DURHAM

(Ms. GRAHAM asked and was given permission to address the House for 1 minute.)

Ms. GRAHAM. Mr. Speaker, today I rise to mourn the loss of Roderick ''Rod'' Durham, a Tallahassee teacher, actor, community leader, role model, and dear friend.

Rod was born in Maryland in 1964 and moved to Tallahassee in his teens. He graduated from Leon High School in 1982 with my sister, Cissy, and then returned to teach there in 1997.

However, Rod was far, far more than a teacher. He was a role model. His students knew they could trust to confide in him or look to him for inspiration in difficult times.

His personality was larger than life. He embodied joy and happiness. His positive energy would fill any room with smiles, love, and laughter.

His loss is heartbreaking for so many in north Florida, but I am blessed to have called him my friend. Our community will be forever grateful for his service and spirit.

Rest in peace, dear friend. Rest in peace.

PENN HIGH SCHOOL GIRLS BASKETBALL TEAM

(Mrs. WALORSKI asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. WALORSKI. Mr. Speaker, I rise today to congratulate the Penn High School girls basketball team for winning the Class 4A Girls Basketball State Championship on Saturday, February 27. This impressive achievement is the program's first State title.

The Kingsmen team entered the game ranked fourth in the division, but didn't let that deter them. They took a 31–30 lead at the beginning of the third quarter. The momentum continued when, after a pair of big runs, the team opened a 19-point lead early in the fourth quarter.

The Kingsmen rolled past the defending champs, the Columbus North Bulldogs, to win the championship 68–48. They finished the night shooting 52 percent from the floor and, after getting out-rebounded in the first half, topped the Bulldogs over the final 16 minutes.

This is truly an exciting victory, and it is because of the dedication of Coach Kristi Ulrich and the hard work of these student athletes that this honor has been earned.

Mr. Speaker, the names of the student athletes are: Kaitlyn Marenyi, Amber Smith, Makenzie Kilmer, Sara Doi, Chloe Foley, Delaney Jarrett, Tia Chambers, Claire Carlton, Camryn Buhr, Lindsay Chrise, Lindsy Kline, Kamra Solomon, and Janessa Chesnic. Also, Coach Kristi Kaniewski Ulrich.

On behalf of the people of Indiana's Second Congressional District, I applaud Kristi for building this team, thank the student athletes for their determination, and congratulate them all on an amazing season.

HONORING SOON-TO-BE BRIGADIER GENERAL JEANNIE LEAVITT

(Mr. HARDY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HARDY. Mr. Speaker, every day is a good day to honor the achievements of strong women in our lives, but March is a special time of year to highlight the stories of trailblazing women who serve as leaders in our communities and around the Nation.

This Women's History Month, I would like to recognize Colonel and soon-to-be Brigadier General Jeannie Leavitt, a woman who knows a thing or two about breaking through glass ceilings. In fact, as the Air Force's first female fighter pilot, the sky has always been her limit.

Colonel Leavitt will soon take command of the 57th Wing at Nellis Air Force Base back in my district, becoming the first woman to ever do so. This will make her the highest ranking female officer ever at Nellis and will place her in charge of our military's most important air combat testing and training assets.

While Colonel Leavitt's distinguished career in the United States Air Force has been filled with many firsts for women, it is important to remember that her achievements are a result of her being the best officer and commander for the job, man or woman.

FIX THE IMMIGRATION SYSTEM

(Mr. POLIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. POLIS. Mr. Speaker, the time to fix our broken immigration system is now. This is the time to make sure that families are unified and children aren't taken from their parents, the time to make sure we secure our southern border to prevent the illegal flow of people and drugs, the time to make sure that we know who is in our country and to make sure that they don't represent a security threat to American citizens.

The time is long overdue. I hope that my colleagues on both sides of the aisle appreciate that we need to work together to restore the rule of law, secure our border, and make sure there is a path to legalization for the 11 million people who work hard every day and contribute to make our country even greater.

In doing immigration reform, we can reduce our deficit by over $200 billion. That is an estimate of the nonpartisan Congressional Budget Office. Part of those savings go to securing our southern border and enforcing our laws, which remain completely unenforced because they are unenforceable.

I urge my colleagues on both sides of the aisle to work together to finally fix our broken immigration system with one that works, restore the rule of law, and recognize that we are a Nation of laws and a Nation of immigrants.

□ 1215

ANTI-TRUMP DEMONSTRATORS

(Mr. DUNCAN of Tennessee asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DUNCAN of Tennessee. Mr. Speaker, WMAL Radio in Washington reported yesterday that a group affiliated with Senator BERNIE SANDERS tweeted out a congratulations to those who forced the cancellation of the Trump rally in Chicago this past Friday, calling it a great victory.

This morning, Willie Geist, a co-host of the Morning Joe television program, said that one poll showed that 88 percent said Mr. Trump had actually been helped by the extremism of the anti-Trump demonstrators in Chicago.

Then Joe Scarborough reported that Mr. Trump had gone up 6 points in one poll in Florida since the Chicago protests, despite having $25 million in negative ads against him.

It was sad to see such hateful intolerance on public display this past Friday, and I am pleased that no conservatives are doing things like this to Clinton or Sanders rallies.

I have not endorsed anyone in this Presidential campaign, but these anti-free speech thugs and their leftist supporters should realize that all they did was make Donald Trump more popular.

RECOGNIZING RUNNING START

(Ms. ROS-LEHTINEN asked and was given permission to address the House

for 1 minute and to revise and extend her remarks.)

Ms. ROS-LEHTINEN. Mr. Speaker, as the first Hispanic woman elected to serve in Congress and as the 2016 Republican co-chair of Running Start, I am proud to recognize the great work that Running Start does to empower young women to become engaged in elective office.

Since its inception almost 10 years ago, Running Start has trained over 10,000 young ladies, many of whom are currently assisting in our congressional offices throughout the Star Fellowship program.

I have seen firsthand the level of commitment and professionalism that these young women possess. My office was introduced to Whitney Holliday, our first Start fellow, in 2009. Since then we have hosted a number of remarkable young women, including Lucinda Borque, Alexandra Curtis, Sarah Fink, and Shannon Carney. One of my staffers, Taylor Johnson, is also a proud alumna of this wonderful Running Start program.

They have all proven to be resilient young women with the skills necessary to thrive and become the leaders of tomorrow.

RECOGNIZING STATE SENATOR TOMMIE WILLIAMS

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Mr. Speaker, I rise today to recognize Senator Tommie Williams and his retirement from the Georgia State Senate.

Since first being elected to office in 1998, Senator Williams has spent the last 18 years representing his South Georgia constituents in extraordinary fashion.

Through the years, Senator Williams' hard work and passion has flourished as he has moved through the ranks from majority leader to President pro tempore, always working to keep Georgia's economy growing.

As a true conservative from Lyons, Georgia, a great friend, and a passionate lawmaker, Senator Williams' service to the State of Georgia will be missed. I wish my friend the best of luck in his future endeavors.

NATIONAL AGRICULTURE DAY

(Mr. BENISHEK asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BENISHEK. Mr. Speaker, I rise today in celebration of National Agriculture Day. Today we celebrate the farmers and ranchers who literally work to put the food on our dinner tables.

Last week I was in Posen, Michigan, and met the Styma family. They are growing hundreds of thousands of potatoes each year that families across the country will enjoy.

The next time you put a cherry on your ice cream sundae, think of Glen and Ben LaCross, who not only work full time raising cherries in northern Michigan, but also manage a fruit processing business to make delicious products, like maraschino cherries and pie fillings, available in Michigan and around the country.

Farmers, ranchers, and agribusiness owners and workers don't just provide food and fiber for the Nation; they are an important part of our economy.

In Michigan alone, the agriculture industry contributes over $100 billion annually to the economy, accounting for a quarter of Michigan's workforce.

As a member of the House Committee on Agriculture, I want to thank the farmers, producers, and agribusiness workers who feed and clothe America's families.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore (Mr. EMMER of Minnesota) laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, March 15, 2016.

Hon. PAUL D. RYAN,
The Speaker, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on March 15, 2016 at 9:29 a.m.:

Appointment:

United States Commission on International Religious Freedom.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

PROVIDING FOR CONSIDERATION OF H.R. 4596, SMALL BUSINESS BROADBAND DEPLOYMENT ACT, AND PROVIDING FOR CONSIDERATION OF H.R. 3797, SATISFYING ENERGY NEEDS AND SAVING THE ENVIRONMENT ACT

Mr. STIVERS. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 640 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 640

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 4596) to ensure that small business providers of broadband Internet access service can devote resources to broadband deployment rather than compliance with cumbersome regulatory requirements. All points of order against consideration of the bill are waived. The amendment in the nature of a substitute recommended by the Committee on Energy and Commerce now printed in the bill shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce; (2) the further amendment printed in part A of the report of the Committee on Rules accompanying this resolution, if offered by the Member designated in the report, which shall be in order without intervention of any point of order, shall be considered as read, shall be separately debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, and shall not be subject to a demand for division of the question; and (3) one motion to recommit with or without instructions.

SEC. 2. At any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 3797) to establish the bases by which the Administrator of the Environmental Protection Agency shall issue, implement, and enforce certain emission limitations and allocations for existing electric utility steam generating units that convert coal refuse into energy. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce. After general debate the bill shall be considered for amendment under the five-minute rule. The bill shall be considered as read. All points of order against provisions in the bill are waived. No amendment to the bill shall be in order except those printed in part B of the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions.

The SPEAKER pro tempore. The gentleman from Ohio is recognized for 1 hour.

Mr. STIVERS. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Colorado (Mr. POLIS), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. STIVERS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Ohio?

There was no objection.

Mr. STIVERS. Mr. Speaker, on Monday, the Committee on Rules met and reported out a rule for H.R. 4596, the Small Business Broadband Deployment Act, and H.R. 3797, the Satisfying Energy Needs and Saving the Environment Act. House Resolution 640 provides a structured rule for consideration of H.R. 4596 and H.R. 3797.

The resolution provides each bill 1 hour of debate equally divided between the chair and ranking member of the Committee on Energy and Commerce.

Additionally, the resolution provides for the consideration of five amendments offered to H.R. 3797, as well as one amendment offered to H.R. 4596.

Finally, Mr. Speaker, the resolution provides for a motion to recommit for each bill.

Mr. Speaker, I rise today to support the resolution and the underlying legislation. The SENSE Act would modify the EPA's Cross-State Air Pollution Rule and Mercury and Air Toxics Standards as they apply to coal refuse-to-energy power plants, while still requiring those facilities to reduce their emissions.

There are only 19 coal refuse-to-energy facilities in the United States, but they provide an estimated 1,200 direct and 4,000 indirect jobs, many of them in economically depressed areas.

In addition to providing well-paying jobs and generating affordable energy, these power plants also address issues presented by coal refuse at no cost to the taxpayer.

Coal refuse is a waste product of coal mining found near many abandoned coal mines, and they present environmental and safety hazards to communities around the country.

They are a source of major fires. They pollute waters. They are eyesores that threaten economic development in the surrounding areas. In Pennsylvania alone, the cost of addressing coal refuse is estimated to be $2 billion.

Coal refuse-to-energy plants use coal refuse as an energy to generate affordable and reliable electricity, and it is estimated that these facilities have removed 214 million tons of coal refuse from the environment, again, at no cost to the taxpayer, and they also generate electricity, in addition to removing this coal refuse.

However, only a few of the most recently built coal refuse-to-energy plants can comply with the EPA's Cross-State Air Pollution Rule and their Mercury and Air Toxics Standards, neither of which took the unique characteristics of these facilities into account.

Because coal refuse is a waste product containing varying levels of sulfur and other regulated contaminants, the plants using it need rules that reflect this variability. The EPA refused to provide any flexibility, placing the continued operation of these coal refuse-to-energy plants in doubt.

One way the SENSE Act would correct this is by making adjustments to sulfur dioxide allowances for these plants, without lowering the overall cap on emissions.

Forcing these plants to close would harm our communities, it would actually hurt jobs, it would make our environmental problems worse, not better, and it would cost our taxpayers more money.

The other bill under consideration is the Small Business Broadband Deployment Act, and it would exempt Internet service providers with 250,000 subscribers or fewer from having to implement the FCC's enhanced transparency requirements under the 2015 Open Internet Order.

Under this legislation, the exemption would remain in effect for 5 years, enabling these small Internet service providers to focus on expanding their networks and improving connectivity.

This is a major issue for my congressional district, which includes a lot of rural communities, and they are in need of faster Internet. Many of the communities I serve in rural southeast and southwest Ohio do not have a 4G-like connection.

I know that this is an issue that is shared by many districts across the country, many Members across the country, from both sides of the aisle. So I am hopeful that this measure will pass with strong bipartisan support.

It is also important to note that the Small Business Broadband Deployment Act does not prevent consumers from accessing information, as the disclosure requirements from the 2010 Open Internet Order remain in effect.

I look forward to debating these bills with my colleagues. I urge support for the rule and the underlying pieces of legislation.

I reserve the balance of my time.

□ 1230

Mr. POLIS. I thank the gentleman for yielding me the customary 30 minutes, and I yield myself such time as I may consume.

Mr. Speaker, I rise in opposition to this rule and the first of the two underlying bills. The second one is largely uncontroversial. The first, the Satisfying Energy Needs and Saving the Environment bill—so-called Saving the Environment bill—the SENSE Act, actually leads to greater risks and more contaminations I will discuss; and then the second, the noncontroversial bill, is called the Small Business Broadband Deployment Act.

I'm a little curious as to why we are going through this particular rule process. This could be scheduled for a suspension vote. We could have possibly even done it with unanimous consent and probably finished it yesterday. But apparently the Republicans don't find that there is anything important that America wants Congress to address, so they have us debating bills that are largely not controversial that we could get done in a matter of minutes and, instead, are spending several hours debating these bills, one of which will go nowhere, the other of which we could have done very quickly to avoid this Congress having the real discussions that I believe the American people want us to undertake.

When I go back home and have townhalls and hear from constituents, I hear people crying out for a Congress that will do something about our Federal budget deficit and that will actually pass a budget. You will see later in my remarks I will mention that our previous question motion will be one that would require Congress to stay in session until we pass a budget, because there has been discussion—I hope it is not true—that the Republicans are thinking of giving up on passing a budget in the House and simply sending all of Congress home for a vacation.

I think, already, Congress is scheduled to finish Wednesday of next week. Most Americans have to work Thursday and Friday of next week. I don't know why Congress only has to work 2½ days. But that is what they are telling us. If we can't even accomplish a budget during those 2½ days, I don't know what we expect the American people to think we are doing.

So we should be talking about the tough decisions we need to make: How do we reduce the deficit and make the necessary investments in growth? How do we pass a budget? How do we fix our broken immigration system with one that works, one that secures our borders, unites families, and has a pathway to citizenship for those who work hard and contribute to our country? How do we make sure that we can improve and build upon the successes of the Affordable Care Act, recognize its shortcomings, and make the improvements necessary to move it forward?

But, no, instead, we are not doing that. We are taking up a controversial bill, the SENSE Act, that won't become law. It has a misleading title. It won't do anything to satisfy American energy needs and certainly will not help the environment, which is why it is opposed by many environmental groups. The SENSE Act makes anything but sense.

What would make sense, of course, is discussing and voting on a budget. What would make sense is passing immigration reform. What would make sense is making progress towards balancing our budget. What would make sense is investing in research to cure cancer. What would make sense is doing our best to make America secure.

But, no, instead, we are discussing something that the Republicans have given the title the SENSE bill to, perhaps to overcompensate for the fact that it simply doesn't make sense.

Now, Republicans know the SENSE Act won't become law. Instead, we are spending, I don't know, half a day, three-quarters of a day bringing up yet another partisan attack on the Environmental Protection Agency, whose job it is to protect our air. We all breathe the air. Democrats, Republicans, Independents, animals, and

plants all breathe the air. What we need is common sense to improve our air quality and move forward. What we need are solutions to break through congressional gridlock.

Again, this set of rules in this bill—which I call upon my colleagues to vote down—is clear that the Republicans are not serious. They are either unable or unwilling to bring forward fresh ideas or address the issues that our constituents are crying out that we need to deal with. This bill is simply another form of pandering when we should be taking advantage of the few remaining weeks we have of session to address the real problems of our Nation.

Now, these two bills under one rule are completely unrelated. When the Speaker came into office, he promised we would move bills with regular order. I don't understand why we can't pass the noncontroversial one. I would have gotten it done already and then had more of an open process. We did an amendment in Rules Committee to allow for an open amendment process on the SENSE Act, but it was voted down on a partisan vote. Unfortunately, the two were combined under one rule, and I am very disappointed it is not an open rule.

We need to move forward on FAA reform, making sure that we reauthorize the Federal Aviation Administration to keep our skies that we rely on for commerce and tourism safe and open. We face an imminent expiration of that. We need to reauthorize the Child Nutrition Act, the Higher Education Act, find a solution to the affordable housing crisis. And, yes, we need to pass a budget. All of those things should be done before Congress gives itself another vacation. I think that is common sense.

We wonder why, in poll after poll, Congress has an approval rating of 12 percent or 14 percent. I sometimes wonder who those 12 percent are. I wonder who those 12 percent are, because I haven't met any of my constituents that have said: ''Congress is doing great. Keep on doing what you are doing.'' I think they misunderstand the question and they are probably answering in the negative, because I don't understand how any American could be satisfied with a United States Congress that punts and punts and punts on issue after issue and instead spends its entire days and weeks, on the rare occasion when it is in session, debating bills that won't go anywhere and won't be signed into law and then promptly give themselves additional vacation time as an extra bonus while patting themselves on the back. That is not the Congress that the American people want.

First, let me talk about the Small Business Broadband Deployment Act. Again, it is a bipartisan bill. I think we could have done it on suspension or unanimous consent on Monday. We could have finished it.

I come from the private sector. I operated several businesses, grew them over time and played various roles. Do you know what? In the private sector, when you can get something done quickly, the last thing you want to do is draw it out, to spend a couple of days on it. So if we have something that Congress could have finished Monday evening so that we could get moving and discussing and debating the important issues that the American people are crying out for Congress to address, why didn't we do it then? Why didn't we do it then? If they are drawing out something and having us spend half a day on something, then I think, because of the hard work of many Members who collaborated on this, we could probably complete it in 10 or 15 minutes.

This legislation is important, of course. I think we can pass it. The bill would make the temporary exemption that the FCC granted to ISPs with 100,000 or fewer subscribers and extend and expand the cap to ISPs with 250,000 or fewer subscribers that addresses bipartisan concerns about speeds and costs and gives regulatory certainty to Internet service providers, keeps the exemption level at a level that protects consumers, keeps the Internet free and open, doesn't allow large Internet service providers to act as gatekeepers that favor some content over others; and Congress should take notice of the administration's statement on this legislation, which cautions about bills that move towards threatening the open Internet. But on this exemption, specifically, I don't think we have enough information to know whether it needs to be made permanent, so I support the efforts of this bill to spur the FCC to provide needed information.

Again, I think there are a lot of Democrats and Republicans who have worked hard on this bill. We probably could have dispensed with it on Monday. But, hey, here we are. We are dealing with it under this rule. I thought, if we are going through the rulemaking process, we should at least offer an open rule. Every piece of legislation, even if it is passable, ought to encourage ideas from Democrats and Republicans in amendments to make it better. But, no, under this rule, the Rules Committee shut down the open amendment process and is not allowing Democrats or Republicans to offer germane, relevant amendments on the floor to the Small Business Broadband Deployment Act.

Now, moving on to the SENSE Act—or the non-SENSE act, as I like to call it—it won't become law. We spend a lot of time debating bills that won't become law. In fact, this House, apparently for lack of anything more important to do, has voted to repeal the Affordable Care Act over 60 times. The good news is we are not doing that again today. I thank the Speaker for not having us repeal the Affordable Care Act for the 65th time this week. That would have been a waste of time.

Instead, the Republicans are being creative about how we are going to waste our time. This is a new way to waste our time. Rather than discussing the budget or the FAA reauthorization or childhood nutrition or balancing our budget or fixing our broken immigration system, rather than doing any of those important things, we found a new and clever way to waste the time of the United States Congress in debate of a bill that will not become law.

Now, thank goodness it won't become law because the non-SENSE act is bad for Americans and poor for our health. It is a convoluted, senseless manner going after the Environmental Protection Agency's Cross-State Air Pollution Rule, which is called CSAPR, and going after the Mercury and Air Toxics Standards, which is called MATS. Specifically, this bill would change the requirements for plants that use coal refuse.

Now, there are about 20 of these coal refuse plants in the entire country. What this bill would do is it would abandon the market-based approach for sulfur dioxide emission allowances in favor of a one-size-fits-all Federal Government approach. So this bill is effectively a Federal takeover of the regulatory structure around our coal refuse plants.

Again, it is a particularly creative way to waste Congress' time, and it is ironic because the Republicans often attack efforts to take away control from the States. They say: How dare you Democrats suggest that anything can be done better at the national level. How dare you suggest that. How dare you suggest something that contravenes the 10th Amendment.

Do you know what? In this bill, the Republicans are proposing taking away State authority and a Federal takeover, because currently States have control over the incentives and work with coal refuse plants, but this simply says the Federal Government should override that work.

Now, that seems hypocritical. It seems against the philosophy that many Republicans have come here arguing, and it leads me to believe that many proponents of this bill seem to value their special interest pork over their philosophical integrity.

Now, this bill would create a system that the government picks winners and losers rather than markets. CSAPR has a trading program that allows plants to conform to emissions standards in different ways, like trading emission allowances; and that program, that market-based program, would be thrown out of the window with this legislation and the keys would be handed over to the Federal Government. Even more astonishing is allowing coal refuse plants to slip through loopholes in order to balance our credits actually makes it harder for regular coal plants to meet their pollution reduction goals.

I honestly don't know if the Republicans have thought about the impact of this bill or what it would do.

Now, again, knowing that it won't become law is simply a creative way

for Congress to waste its time as congressional approval sinks even lower. I know that the Republicans have often accused some Democrats of engaging in a war on coal, but with this particular bill, they are the ones attacking the coal industry.

The Republicans claim that this legislation is needed to allow coal refuse plants to be able to meet various air quality standards under the MATS rule, yet throughout the entire rulemaking process there hasn't been any evidence that they can't meet the standards that are already in place. That was recently confirmed by the D.C. circuit court.

Now, it is apparent that both CSAPR and MATS are workable, smart rules that approximately 20 coal refuse plants in our country can abide by in flexible, market-oriented ways. I want to be clear. Leaving coal refuse to spontaneously combust or seep into the ground via acid rain is simply unacceptable, and we need to be cleaning it up; but allowing the plants that are processing it to do so with a weak compliance system is harmful to our health, our homes, our communities, and the environment.

Simply put, this bill is an unnecessary, imprudent bill that does nothing to help our environment or put our country on the right track. I oppose the rule, in addition to H.R. 3797.

Today we could have shown the American people that Congress can come together and do something to solve important issues in a bipartisan manner, to keep our skies safe and open, protecting commerce, by reauthorizing the FAA to pass a bipartisan budget which balances our budget and deals with our deficit; to improve the Child Nutrition Act, the Higher Education Act, any of the myriad challenges that I hear about and, frankly, I believe my Republicans hear about in their townhalls.

I don't think when we are home and hearing from our constituents—by the way, I haven't received a single letter about this coal refuse bill. I haven't heard it in any of my townhalls or gotten calls from any of my constituents. They want us dealing with the pressing issues facing the American people.

We have 84 days of session left in this Congress. By the way, Congress works 84 days. Most Americans have at least 145 days that they go to work. As an example of that, Congress is scheduled to leave town next Wednesday, will have 2 days off that week, then 2 weeks off, then another day off. So that is the type of schedule we are running here.

People wonder what Congress is doing. The answer is we are not doing anything. When we are here, we are spending more time than necessary on uncontroversial bills and we are debating bills that won't become law, and then we all go home and take a vacation. That is the Republican Congress. That is the image of what the Republican Congress is and how they are running this institution. It spends a lot of time debating something that you don't even need to. It spends other time debating things that aren't going to become law, like repealing the Affordable Care Act over 60 times and like this non-SENSE Act, and then gives Congress much greater vacation time than the American people enjoy because, apparently, Republicans think this Congress is doing so well that we all deserve a lot of vacation.

Democrats want to stay here and work on the budget. That is going to be our previous question. We believe we should get a budget done. We would like it to be a bipartisan budget. It certainly is a governing majority. We encourage Republicans to pass a budget, but if they don't have the votes, then, by all means, let's do a bipartisan budget that makes sense for our country.

□ 1245

You will find us willing to roll up our sleeves and get to work, stay here this weekend, stay here next Thursday and Friday, stay here the following week. Let's get this done. This is the work the American people want to see done.

They want to see a budget. They want to see competence. We need to show people that Congress and competence are not mutually exclusive; yet, we continue to do the exact opposite by this course under this rule of debating a bill—and wasting a day—that won't even become law.

Now, look, we have an opportunity here. A vote on this rule is an important vote for that reason. If we defeat this rule—and I call upon my colleagues on both sides of the aisle to do so—we can truly send the message that we want to spend time debating the issues that the American people care about.

We want to fix the budget, the deficit, immigration, health care. Let's roll up our sleeves and get to work rather than continue to blame the President for this or that or blame the Democrats for this or that.

I am honestly curious. If we can't blame the President because he was on time with his budget and you can't blame the Democrats because we are willing to roll up our sleeves and work with you on a budget deal, who are the Republicans going to blame if they can't deliver a budget?

I remember the Republicans assailing the Democrats for not delivering budgets. I am sure my colleague will remind me of that yet again. But, again, that is something that you criticized us on.

If you can't deliver a budget yourself, what is the use of the American people even having the Republicans here? What use was that criticism of the Democrats for not delivering budgets on time if the Republicans themselves don't have the ability to deliver a budget?

Now, look, we can deliver a budget with you. If the Republicans are unable to because there is freedom this or liberty that or all these different buzzwords out there for people who don't want to vote for a budget, we are happy to work with the Republicans on a budget.

Ultimately, what comes out of this process between the House and the Senate is usually some bipartisan buy-in into the budget, anyway.

We are happy to start here with you. The perfect time to do that is now. The perfect time to do that is next Thursday and Friday and the following week. I think we owe the American people a budget rather than an enormous vacation, a paid vacation, for Members of Congress.

Look, we can do better by voting down this rule. I promise you we will do better.

I reserve the balance of my time.

Mr. STIVERS. Mr. Speaker, I yield myself such time as I may consume.

I would like to clear up some misconceptions about the calendar, the budget, the rule, and the SENSE Act.

With regard to the calendar, Mr. Speaker, I don't know how the gentleman from Colorado manages his calendar. But when I go home to my district—and I won't speak for every Member of Congress—it is certainly not a vacation.

I am home meeting with constituents, touring businesses, and letting my constituents talk to me so that I know what they think so that I can do my job of representing them. That is how most of the 435 Members of this Chamber treat the district workweeks.

To assume that we are only working when we are in Washington, the other side of the aisle might love Washington, but I prefer to be home in my district working with people and then come back to Washington to represent them.

With regard to things we have done, the gentleman talked about the Affordable Care Act, but he ignored the fact that I believe—and I may get this wrong, but I am close—seven of the changes to the Affordable Care Act were signed into law.

The gentleman talked about a budget. He did finally acknowledge that, when the Democrats were in charge, Mr. Speaker, they didn't pass a budget.

I have been here since 2011, when we took over the majority, and we have passed a budget every year and have passed a budget that balances.

I believe we are going to pass a budget this year. I hope not to be proved wrong, Mr. Speaker, but we are working hard at it.

With regard to the rule, the gentleman seems to want to have it both ways. He says that the Small Business Broadband Deployment Act should have been done on suspension, on the one hand, and then he wants an open rule that would eat up even more time, on the other hand. I am not sure which it is he wants here, but let's have it one way or the other.

And then, finally, on the SENSE Act, the gentleman from Colorado ignores the fact that this bill does not change

the overall emissions cap. He wants to talk about how it loosens the overall emissions cap. It does not.

Let's be clear. It does not change the overall emissions cap. It provides flexibility for only 19 refuse-to-power plants across this country, and it saves money because it would cost $2 billion in Pennsylvania alone just to clean up that refuse around these coal mines.

It is dangerous and it is bad for the environment. Providing this flexibility does not change our overall emissions, but it does help get those reclamation sites cleaned up cheaper, not as a cost to the taxpayer, and provides an additional benefit of jobs in energy. That sounds pretty American to me.

I think it is time to end this war on coal that some people in this administration and the other side of the aisle have. That is what the SENSE Act would do.

Mr. Speaker, I reserve the balance of my time.

Mr. POLIS. Mr. Speaker, I yield myself such time as I may consume.

The gentleman from Ohio talked about what we do when we are back home. Of course we tour businesses, meet with people, and do all of those wonderful things. What I hear from them is: Why aren't you back in Washington solving problems?

Look, I represent one of the most beautiful districts in the entire country: Winter Park, Vail, the beautiful Flatirons near Boulder, Rocky Mountain National Park, Estes Park, the great Arts Center in Loveland, and Fort Collins. I love nothing more than going home.

But when we got elected to this position, Mr. Speaker, we promised our constituents that we will make a sacrifice. Part of that sacrifice is saying: You know what. We are going to take some time away, leave our friends and family, to work for the good of the country, to roll up our sleeves and actually solve problems.

As much as I would like to be back in Colorado, in my beautiful district, right now and I would rather personally be hiking in the hills above our home in north Boulder than I would be debating the finer points of coal refuse policy with the gentleman from Ohio, that is what I signed up for.

I know, Mr. Speaker, that that is what he signed up for, too. We signed up to do work. We owe the American people a budget. We should stay here until we complete that budget, even if it means canceling the vacation that we have scheduled.

And, yes, that vacation—when we are back home, we can't do legislative work. Sure, we can put on an apron and visit a local kitchen. We do, and I do. And you know what, it is part of the job. I am happy to do it.

But we can't pass a single law while we are back home. It is impossible, Mr. Speaker, to pass a budget while we are all back home and Congress is not in session. It is not possible if Congress is not in session.

The gentleman asked: What is a better way to proceed with this noncontroversial bill and the controversial bill? Look, either way is fine if we had an open rulemaking process, an open rule.

At least there would be some point to these discussions on the floor. There would be Republicans and Democrats who might have ideas to make these bills better that would be bringing them forward. At least there would be some point to it.

But, no, there is no point to it. Because we are debating it, we know the outcome, and Republicans and Democrats can't even offer their bills to enhance it.

We are prohibited during all of this time debating one bill that is largely noncontroversial and one bill that isn't going anywhere and won't become law.

We are spending the entire week debating these bills—or most of the week. I know we will be back to discuss another court case relating to immigration later this week.

But the bulk of the week is debating this rather than the budget, securing our border, keeping the American people safe, growing the economy, creating jobs, investing in infrastructure, FAA authorization, any of those issues.

But when I am back home and visiting businesses, I hear about it from my constituents. You would think that, with all the time we spend back home that the gentleman from Ohio calls nonvacation time because we are always listening to people, we would listen more and actually do what the American people say.

Are the American people saying to address the miniscule aspects of the coal refuse plant and CSAPR and MATS?

Let me be honest, Mr. Speaker. Until this debate, I thought CSAPR was just a friendly ghost, because the American people back in my district are not really about CSAPR and MATS.

In fact, once I understood them, I thought they sounded good. They are market-based approaches. I don't think this Federal takeover that the Republicans are proposing is a good idea.

Instead, if we are spending all this time listening back home, which we certainly are because Congress is hardly working here, then at least let's listen to what the American people say.

I believe they are speaking strongly with one voice, whether they are Republican or Democratic. I hear the same things from my constituents, the unaffiliated constituents, the Republicans, the Democrats, the Greens, the Libertarians. What they all tend to say, what they all say, is: Go do your job. Pass a budget. Pass a budget.

Democrats believe that. Republicans believe that. Unaffiliated voters believe that. Greens, Libertarians, and the American Constitution Party believe that. If I have left out any other parties, I am pretty sure in saying that they also think that Americans should have a budget.

We have budgets for our households. I have a budget for my household. We have budgets for our States. Doesn't the American Congress owe the American people a budget?

Mr. Speaker, if we defeat the previous question, I will offer an amendment to the rule to prohibit the House from going on recess next week until we do our job and pass a budget.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD along with the extraneous material immediately prior to the vote on the previous question.

The SPEAKER pro tempore (Mr. SIMPSON). Is there objection to the request of the gentleman from Colorado?

There was no objection.

Mr. POLIS. Mr. Speaker, I reserve the balance of my time.

Mr. STIVERS. Mr. Speaker, I yield myself such time as I may consume.

I would just like to remind the gentleman from Colorado that, when the Democrats were in charge of Congress, they went on—I will use his word—vacation 4 years in a row without passing a single budget, not a single budget.

We have passed a budget every year, and I believe we are going to pass a budget this year, just as a reminder to the gentleman of what happened. I think he wants to have it both ways again, and I would just like to remind him, Mr. Speaker.

I yield 5 minutes to the gentleman from Pennsylvania (Mr. ROTHFUS), who listened to his constituents to deal with an issue that is very important to him. I will let him address it.

Mr. ROTHFUS. Mr. Speaker, I thank the gentleman for yielding.

In addition to listening to my constituents, I have been listening to my good friend from Colorado about wanting to come here to solve problems. Well, the SENSE Act is about solving a problem.

I, too, have a beautiful district. I consider it the most beautiful district in the country. You get on top of some of those mountain vistas and it is breathtaking.

But unlike the gentleman from Colorado, there are some scars when you look up at some of those vistas. The scars are a vestige of ages-ago mining.

That is why the SENSE Act, Mr. Speaker, is a smart and important legislative fix to ensure that the coal refuse-to-energy facilities can be held to strict, but achievable, standards.

Coal refuse, as some of you may know—and perhaps this is an educational moment for people in this country to learn more about what we have up there in Pennsylvania—is a byproduct of historic coal-mining operations. Anyone who has driven through coal country has seen the towering black mounds of this material that loom beside cities and towns and countrysides.

These mounds catch fire, burning uncontrollably and sending hazardous smoke into the air. Rainwater leaches terrible chemicals from those mounds, polluting nearby rivers and streams.

The coal refuse-to-energy industry turns this material into energy and uses the profits and beneficial residual material to remediate these formerly polluted sites at no cost to the taxpayer. It is really the only feasible solution to this massive environmental problem.

I have seen the tremendous work done by the hardworking men and women in this industry firsthand. I have stood on coal refuse piles in the process of remediation. I have walked on the restored sites. Parks and meadows now are regarded as community assets rather than liabilities.

Despite all the good that this industry does for Pennsylvania, coal refuse-to-energy facilities are under attack from the EPA. The people of my State and other coal States expect us to stand up for them as their environment and livelihoods come under threat from Washington.

As we debate the rule for this legislation and prepare for general and amendment debate, I want to share a few stories from the people in this industry. These are people who are proud of the great work they have done for their communities. Unfortunately, their way of life is currently endangered.

Bill Turner is a shift supervisor at the A/C Colver coal refuse facility in Cambria County. Bill has served at Colver for 22 years. He is a long-term resident of western Pennsylvania and has lived alongside coal refuse piles for many years.

Bill and his colleagues are proud of the reclamation work that his plant and others in the area have been able to complete over the years.

He was able to put three kids through college, thanks to his job at Colver, and I should mention that these kids grew up playing soccer on a field reclaimed from a coal refuse site.

□ 1300

When I asked him about the prospect that his industry might be destroyed by the EPA, he remarked, ''To see it disappear would be a travesty.''

Tim is an operations shift supervisor—a younger man, in his early thirties, with a wife and two small kids. Wages at his plant are well above the area average, and he is planning on building a new house near the plant for his young family.

Again, Mr. Speaker, these plants are in economically challenged areas. These jobs that these individuals have are not replaceable. Allowing inflexible EPA orthodoxy to shutter his plant, a plant that supports family-sustaining jobs and that repairs the local environment, would be a disaster for Tim and his family.

At least 5,200 jobs are at stake, and each one of those jobs is more than just a number. Each job lost is a Tim or a Bill. Each job lost represents a major hardship for an American family.

As we debate the SENSE Act, please keep in mind what the bill's supporters are fighting for. The SENSE Act is about protecting family-sustaining jobs and is about ensuring the continuation of the environmental success story of the coal refuse-to-energy industry.

I urge all Members to support this rule and the SENSE Act today so that we can begin to solve problems.

Mr. POLIS. Mr. Speaker, I yield myself such time as I may consume.

I would, of course, like to remind the gentleman from Pennsylvania that my mountains are higher than his mountains. I also want to let the gentleman know that my district is no stranger to coal mining as well. Coal mines in northern Colorado existed throughout my district and near my district in Marshall, Superior, Louisville, Lafayette, Erie, Dacono, Frederick, and Firestone. The mines employ thousands of people.

Just 2 years ago, we observed the 100th anniversary of the Ludlow Massacre, which was an attack by the Colorado National Guard and the Colorado Fuel and Iron Company guards on a tent colony of 1,200 striking coal miners and their families in Ludlow, Colorado, on April 20, 1914.

Unfortunately, in that tragedy, two-dozen people were killed in that black mark on our Nation's labor history. I would like to think how far the United Mine Workers have come and how far we have come in protecting workers' rights.

Certainly we understand the legacy of not just coal mining in my district. The gentleman mentioned abandoned mines in the mountain territory of our district. We have many abandoned silver and gold mines. We have an active molybdenum mine right near my district. Many workers live in my district and, of course, mining remains an important part of the West and, of course, of the East as well.

Again, I would certainly advance the argument that even coming from a mining district, Congress spending an entire week, basically, debating these two bills is not something that justifies our time here.

The gentleman from Ohio rightly mentioned that Democrats did not produce a budget, and yes, that might have been one of the reasons the American people said, ''Okay. Republicans, we will give you a chance. You guys produce a budget.''

Do you know what?

If you guys don't produce a budget, you guys are blowing that opportunity, Mr. Speaker. If the Republicans can't deliver a budget, I think the Democrats have learned from experience.

I certainly will go out and campaign on—and I think many of my colleagues will say—''Look. The Republicans could not deliver a budget.''

Most Democrats have learned our lesson. We are going to get back in the majority and we are going to deliver a budget to the American people. I certainly will work very hard to do that.

I am proud to be one of about 16 Democrats and a similar number of Republicans who voted for a bipartisan budget in the last Congress. It didn't pass. It was the only budget that had Democrats and Republicans supporting it. Of course, it also had Democrats and Republicans opposing it in greater numbers, unfortunately; but that is at least the spark—the kind of idea we need to pursue—to be able to work together to govern this country.

Rather than spinning our wheels and spending a lot of time debating a bill that isn't controversial and a lot of time debating a bill that isn't going anywhere, we should take up important legislation. We should address comprehensive immigration reform; securing our borders, making sure that workers who are important to our country have a way out of the shadows; uniting families; and protecting the security of the American people rather than wasting time in trying to change commonsense rules for 20 coal refuse plants—rules that are working and that have been affirmed by the district court.

We could be addressing the Nation's pressing issues like climate change and carbon emissions and out-of-control student debt or how we can improve opportunities for the struggling middle class.

Rather than wasting the American people's time and taxpayer dollars on debating a special interest provision, we could take up the Email Privacy Act, which would protect the American people's privacy and which has 312 cosponsors—more than any other bill in this Congress and which has a solid veto-proof majority.

We could take up criminal justice reform, which I know many people on both sides of the aisle feel very strongly about and which I strongly support, which could improve our economy, reduce crime, reduce costs, and is a moral imperative; or as I mentioned, we could take up our budget, as is the duty and responsibility of Congress, rather than all go back to our districts and put on aprons and serve lattes and meet people in our local diners.

I urge the House majority to take up these important pieces of legislation, which are supported by a majority of Americans, that are critical to our economy and align with our values rather than to debate stale, unnecessary miner bills that won't even become law.

I reserve the balance of my time.

Mr. STIVERS. Mr. Speaker, I yield myself such time as I may consume.

I would just like to remind the gentleman from Colorado that it is not a ''minor'' bill for the 5,200 people whose jobs are on the line every day right now.

Mr. POLIS. Will the gentleman yield?

Mr. STIVERS. I yield to the gentleman from Colorado.

Mr. POLIS. It is a ''miner'' bill. I was spelling ''miner'' a different way than you.

Mr. STIVERS. Okay. That kind of ''miner'' I am good with. I thank the gentleman.

Mr. Speaker, I yield such time as he may consume to the gentleman from Georgia (Mr. WOODALL), an esteemed member of both the Rules and Budget Committees.

Mr. WOODALL. I thank my friend from Ohio for yielding the time to me.

Mr. Speaker, I had not planned on coming down here. I know we are on a clock and we are trying to get some things done, but I heard the passionate words of my friend from Colorado—and he is my friend from Colorado.

I think about what is, sadly, the sometimes short list of folks who are on the other side of the aisle with whom you can grapple with the really difficult issues of the day in this institution.

Mr. POLIS is one of those folks to whom you can always go and have a very candid and serious conversation about things, even those things on which you disagree, which I think is why it has so distressed me to hear some of the words that he had to share today.

Now, I confess that this is sometimes part of the show down here on Rules Committee day, and sometimes folks have the talking points, and they are obligated to go through those talking points. Yet, as a member of the Budget Committee and as a relatively young Member in this institution, I would say to my friend from Colorado that the reason approval ratings in this institution are so low is that you and I stand up here and we tell our constituents that they are supposed to be so low.

Instead of telling our constituents that we have been working on a budget the way we are supposed to work on a budget—line by line, word by word because it is a serious challenge that deserves a serious solution—we tell folks we have just thrown up our hands and quit. Not true.

I sit on the Budget Committee. Tomorrow, from dawn until dusk, we will be in that hearing room doing nothing but budgeting. We will hear every single idea, every single alternative. Every choice that can be made, we are going to make tomorrow. Now, that is not just one day of budgeting; that is the culmination of days, weeks, and months of working together, trying to get this budget done.

My friend is right. When I hear constructive criticism about how Republicans ought to work to pass budgets, I know that doesn't come from this decade, because Democrats have not passed a budget this decade. This House has. Together we have, and I am very proud of that.

Every year since I have come to this institution—5 years ago—we have come together and we have passed a budget. Last year, we came together and we passed a budget for the entire United States of America. For the first time in a long time, we got the Senate to move.

This is a cooperative exercise, and I am proud to be in it; but we can't tell people that we are letting them down when, in fact, we are delivering.

I look at my friend from Pennsylvania who is delivering on the SENSE Act. I think the non-SENSE Act is a clever term, but the truth is the ''nonsense'' is suggesting that he is doing anything except the job his constituents sent him to do. He has facilities in his district that are closing down. He has families in his district who are losing their jobs. He has people who are depending on him, his bosses back home in the district depending on him to come and make a difference for them.

I get it. Folks over here might not like it, folks over here might not like it, folks over there might not like it, but it is what he gets paid to do. To suggest that bringing his ideas down here is a waste of time is something I reject in the most forceful terms. He is doing what he is supposed to do.

I would tell you that, if we all spent less time being focused on being good Republicans and less time on being good Democrats and more on being good servants to the people who sent us here, those approval ratings would take care of themselves.

These campaign seasons drive me crazy. Folks spend 18 months not doing their jobs and 6 months raising money, trying to convince people they were. I believe if we do our jobs, we are going to get rewarded for it; and if we don't do our jobs, we are going to be punished for it; but we have got to be clear about what our job is.

KEITH ROTHFUS' job is not to make anybody in the great State of Georgia happy or anybody in the great State of Colorado happy. His job is to stand up for families who can't stand up for themselves in Pennsylvania, and I applaud him for it. His job is to do the things that nobody else in this institution is going to do, because he works for them.

This is not a waste of time today. This is exactly what we are supposed to be doing. Don't you worry about that budget. Your Budget Committee is going to deliver for you, and you are going to be proud of the work product that we do; but we have got to tell folks that representative government still works. We have got to tell folks that Congress still works. We have got to tell folks that they are still the boss of the United States of America.

You look at this Bernie Sanders phenomenon and this Donald Trump phenomenon. Folks think they are no longer the boss. I look at KEITH ROTHFUS' State, and I know of the good men and women of Pennsylvania who sent him here to stand up in the face of attacks from all sides. He is delivering for his people back home. Vote ''yes'' or vote ''no.'' It is your voting card—do what you want to with it—but let's never impugn one of our colleagues for doing exactly what he was sent here to do, and that is to stand up for the men and women we represent back home.

Again, I say to my friend from Colorado, when it comes to the really hard issues of the day, there is no one who I am more comfortable working with. There is no one who is more willing to reach across the aisle, and I admire that vote on the bipartisan budget that he took. That was the very first year that I arrived here. Yet we can't let these political seasons turn into telling each other why everybody up here is a scoundrel and a cheat. There are some good men and women up here. The gentleman from Colorado is one, the gentleman from Ohio is one, and the gentleman who brings the SENSE Act here before us today is absolutely one. I am proud to serve with each of you.

Mr. POLIS. Does the gentleman from Ohio have any remaining speakers?

Mr. STIVERS. I am prepared to close.

Mr. POLIS. Mr. Speaker, I yield myself the balance of my time.

I thank the gentleman from Georgia for his thoughtful remarks. Certainly there is no one in this debate who has called anybody a scoundrel or anything of the sort.

The specific concerns of Mr. ROTHFUS would best be addressed in Harrisburg. For the Republicans, that is the capital of Pennsylvania. Don't worry. I had to ask as well. That is where this could best be addressed. The Republicans have talked a lot about empowering the States to solve problems rather than always coming to Washington to solve our problems for us.

Guess what?

Harrisburg is empowered to deal with this issue today, and the gentleman from Pennsylvania would be best served in spending time with his Governor, the State regulators, and the State legislature to address the very issues for which he is trying to do this end run in coming to Congress to spend our time here, debating.

The gentleman from Georgia also mentioned that they are hard at work on the Budget Committee. I hope so. I mean, I trust the gentleman. I am sure they are. They are working. I hope that this Congress will stay in session long enough to see the results of that and to pass a budget. That is what our ''previous question'' motion would do. It would simply say that we prohibit the House from going into recess until we do our job and pass a budget. It is entirely consistent with the work that the Budget Committee is doing that will ultimately have to then be reflected in the rank-and-file membership on both sides being a part of that process as well, and we owe it to the American people to let that process be completed and to pass a budget.

I urge the Republicans to take up these important pieces of legislation that I have talked about—a budget, the FAA reauthorization, the Child Nutrition Act, securing our border and fixing our broken immigration system, balancing our budget, investing in infrastructure, tax reform. These are actions that I hear about back home every day I am back, and I think it is important that we act on them. They are important to our economy and they

are important to our values as Americans—rather than debating bills that might feel good but won't become law and ultimately are not the right way to solve our problems.

Mr. Speaker, I urge my colleagues to vote ''no'' and defeat the previous question. I urge a ''no'' vote on the rule.

I yield back the balance of my time.

Mr. STIVERS. Mr. Speaker, before I close, I would like to urge my colleague from Colorado to use his 5 legislative days to ensure the CONGRESSIONAL RECORD does appropriately say it is a miner act—M-I-N-E-R instead of M-I-N-O-R act—where he said it was a minor act. I think that is a very important distinction, and it is a distinction with a difference. He made the statement earlier, so I hope he does use his 5 legislative days to correct the RECORD on that.

Mr. Speaker, I urge my colleagues to support the rule and the underlying bill.

The material previously referred to by Mr. POLIS is as follows:

AN AMENDMENT TO H. RES. 640 OFFERED BY MR. POLIS

At the end of the resolution, add the following new section:

SEC. 3. It shall not be in order to consider a motion that the House adjourn on the legislative day of March 23, 2016, unless the House has adopted a concurrent resolution establishing the budget for the United States government for fiscal year 2017.

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. STIVERS. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. POLIS. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess for a period of less than 15 minutes.

Accordingly (at 1 o'clock and 15 minutes p.m.), the House stood in recess.

□ 1331

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. JODY B. HICE of Georgia) at 1 o'clock and 31 minutes p.m.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on questions previously postponed.

Votes will be taken in the following order:

Ordering the previous question on House Resolution 640;

Adopting House Resolution 640, if ordered;

Suspending the rules and passing H.R. 2081; and

Suspending the rules and passing H.R. 3447.

The first electronic vote will be conducted as a 15-minute vote. Remaining electronic votes will be conducted as 5-minute votes.

PROVIDING FOR CONSIDERATION OF H.R. 4596, SMALL BUSINESS BROADBAND DEPLOYMENT ACT, AND PROVIDING FOR CONSIDERATION OF H.R. 3797, SATISFYING ENERGY NEEDS AND SAVING THE ENVIRONMENT ACT

The SPEAKER pro tempore. The unfinished business is the vote on ordering the previous question on the resolution (H. Res. 640) providing for consideration of the bill (H.R. 4596) to ensure that small business providers of broadband Internet access service can devote resources to broadband deployment rather than compliance with cumbersome regulatory requirements, and providing for consideration of the bill (H.R. 3797) to establish the bases by which the Administrator of the Environmental Protection Agency shall issue, implement, and enforce certain emission limitations and allocations for existing electric utility steam generating units that convert coal refuse into energy, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The vote was taken by electronic device, and there were—yeas 235, nays 177, not voting 21, as follows:

[Roll No. 114]

YEAS—235

Abraham	Comstock	Gohmert
Aderholt	Conaway	Goodlatte
Allen	Cook	Gosar
Amash	Costello (PA)	Gowdy
Amodei	Cramer	Granger
Barletta	Crawford	Graves (GA)
Barr	Crenshaw	Graves (LA)
Barton	Culberson	Griffith
Benishek	Curbelo (FL)	Grothman
Bilirakis	Davis, Rodney	Guinta
Bishop (MI)	Denham	Guthrie
Bishop (UT)	Dent	Hanna
Black	DeSantis	Hardy
Blum	DesJarlais	Harper
Bost	Diaz-Balart	Harris
Boustany	Dold	Hartzler
Brady (TX)	Donovan	Heck (NV)
Brat	Duffy	Hensarling
Bridenstine	Duncan (SC)	Hice, Jody B.
Brooks (AL)	Duncan (TN)	Hill
Brooks (IN)	Emmer (MN)	Holding
Buchanan	Farenthold	Hudson
Buck	Fincher	Huelskamp
Bucshon	Fitzpatrick	Huizenga (MI)
Burgess	Fleischmann	Hultgren
Byrne	Fleming	Hunter
Calvert	Flores	Hurd (TX)
Carter (GA)	Forbes	Hurt (VA)
Chabot	Fortenberry	Issa
Chaffetz	Foxx	Jenkins (KS)
Clawson (FL)	Franks (AZ)	Jenkins (WV)
Coffman	Frelinghuysen	Johnson (OH)
Cole	Garrett	Johnson, Sam
Collins (GA)	Gibbs	Jolly
Collins (NY)	Gibson	Jones

Jordan
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—177

Adams
Aguilar
Ashford
Bass
Beatty
Bera
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—21

Babin
Becerra
Beyer
Blackburn
Brady (PA)
Capuano
Carter (TX)
Davis, Danny
Duckworth
Ellmers (NC)
Graves (MO)
Gutiérrez
Herrera Beutler
Joyce
Lipinski
Roskam
Rush
Smith (WA)
Takai
Thornberry
Wenstrup

□ 1353

Messrs. TED LIEU of California, GRAYSON, and ASHFORD changed their vote from ''yea'' to ''nay.''

Mr. MURPHY of Pennsylvania changed his vote from ''nay'' to ''yea.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. MCGOVERN. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 235, noes 176, not voting 22, as follows:

[Roll No. 115]

AYES—235

Abraham
Aderholt
Allen
Amash
Amodei
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—176

Adams
Aguilar
Ashford
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Welch
Wilson (FL)
Yarmuth

NOT VOTING—22

Babin
Becerra
Blackburn
Brady (PA)
Cole
Davis, Danny

Duckworth
Ellmers (NC)
Graves (MO)
Gutiérrez
Herrera Beutler
Joyce
Lipinski
Rogers (AL)
Roskam
Rush
Smith (WA)
Takai
Thompson (MS)
Thornberry
Watson Coleman
Wenstrup

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1400

Ms. CLARKE of New York changed her vote from ''aye'' to ''no.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

EXTENDING DEADLINE FOR CONSTRUCTION OF HYDROELECTRIC PROJECT INVOLVING GIBSON DAM

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 2081) to extend the deadline for commencement of construction of a hydroelectric project involving the Gibson Dam, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Kentucky (Mr. WHITFIELD) that the House suspend the rules and pass the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 410, nays 2, not voting 21, as follows:

[Roll No. 116]

YEAS—410

Abraham
Adams
Aderholt
Aguilar
Allen
Amodei
Ashford
Barletta
Barr
Barton
Bass
Beatty
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Farr
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Grothman
Guinta
Guthrie
Hahn
Hanna
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lieu, Ted
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Weber (TX)
Webster (FL)
Welch
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—2

Amash
Watson Coleman

NOT VOTING—21

Babin
Becerra
Blackburn
Brady (PA)
Davis, Danny
Duckworth
Ellmers (NC)
Graves (MO)
Gutiérrez
Hardy
Herrera Beutler
Joyce
Lipinski
Roskam
Rush
Smith (WA)
Takai
Thornberry
Waters, Maxine
Wenstrup
Yarmuth

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. FLEISCHMANN) (during the vote). There are 2 minutes remaining.

□ 1408

Mr. RANGEL changed his vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

EXTENDING DEADLINE FOR CONSTRUCTION OF HYDROELECTRIC PROJECT NUMBERED 12642

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 3447) to extend the deadline for commencement of construction of a hydroelectric project, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Kentucky (Mr. WHITFIELD) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 406, nays 3, not voting 24, as follows:

[Roll No. 117]

YEAS—406

Abraham
Adams
Aderholt
Aguilar
Allen
Amodei
Ashford
Barletta
Barr
Barton
Bass
Beatty
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duffy
Duncan (SC)
Duncan (TN)
Edwards

Ellison	LaMalfa	Rangel
Emmer (MN)	Lamborn	Ratcliffe
Engel	Lance	Reed
Eshoo	Langevin	Reichert
Esty	Larsen (WA)	Renacci
Farenthold	Larson (CT)	Ribble
Farr	Latta	Rice (NY)
Fattah	Lawrence	Rice (SC)
Fincher	Lee	Richmond
Fitzpatrick	Levin	Rigell
Fleischmann	Lewis	Roby
Fleming	Lieu, Ted	Roe (TN)
Flores	LoBiondo	Rogers (AL)
Forbes	Loebsack	Rogers (KY)
Fortenberry	Lofgren	Rohrabacher
Foster	Long	Rokita
Foxx	Loudermilk	Rooney (FL)
Frankel (FL)	Love	Ros-Lehtinen
Franks (AZ)	Lowenthal	Ross
Frelinghuysen	Lowey	Rothfus
Fudge	Lucas	Rouzer
Gabbard	Luetkemeyer	Roybal-Allard
Gallego	Lujan Grisham (NM)	Royce
Garamendi	Luján, Ben Ray (NM)	Ruiz
Garrett	Lummis	Ruppersberger
Gibson	Lynch	Russell
Gohmert	MacArthur	Ryan (OH)
Goodlatte	Maloney, Carolyn	Sánchez, Linda T.
Gosar	Maloney, Sean	Sanchez, Loretta
Gowdy	Marchant	Sanford
Graham	Marino	Sarbanes
Granger	Massie	Scalise
Graves (LA)	Matsui	Schakowsky
Grayson	McCarthy	Schiff
Green, Al	McCaul	Schrader
Green, Gene	McClintock	Schweikert
Griffith	McCollum	Scott (VA)
Grijalva	McDermott	Scott, Austin
Grothman	McGovern	Scott, David
Guinta	McHenry	Sensenbrenner
Guthrie	McKinley	Serrano
Hahn	McMorris Rodgers	Sessions
Hanna	McNerney	Sewell (AL)
Hardy	McSally	Sherman
Harper	Meadows	Shimkus
Harris	Meehan	Shuster
Hartzler	Meeks	Simpson
Hastings	Meng	Sinema
Heck (NV)	Messer	Sires
Heck (WA)	Mica	Slaughter
Hensarling	Miller (FL)	Smith (MO)
Hice, Jody B.	Miller (MI)	Smith (NE)
Higgins	Moolenaar	Smith (NJ)
Hill	Mooney (WV)	Smith (TX)
Himes	Moore	Speier
Hinojosa	Moulton	Stefanik
Holding	Mullin	Stewart
Honda	Mulvaney	Stivers
Hoyer	Murphy (FL)	Stutzman
Hudson	Murphy (PA)	Swalwell (CA)
Huelskamp	Nadler	Takano
Huffman	Napolitano	Thompson (CA)
Huizenga (MI)	Neal	Thompson (MS)
Hultgren	Neugebauer	Thompson (PA)
Hunter	Newhouse	Tiberi
Hurd (TX)	Noem	Tipton
Hurt (VA)	Nolan	Titus
Israel	Norcross	Tonko
Issa	Nugent	Torres
Jackson Lee	Nunes	Trott
Jeffries	O'Rourke	Tsongas
Jenkins (KS)	Olson	Upton
Jenkins (WV)	Palazzo	Valadao
Johnson (GA)	Pallone	Van Hollen
Johnson (OH)	Palmer	Vargas
Johnson, E. B.	Pascrell	Veasey
Johnson, Sam	Paulsen	Vela
Jolly	Payne	Velázquez
Jones	Pearce	Visclosky
Jordan	Pelosi	Wagner
Kaptur	Perlmutter	Walberg
Katko	Perry	Walden
Keating	Peters	Walker
Kelly (IL)	Peterson	Walorski
Kelly (MS)	Pingree	Walters, Mimi
Kelly (PA)	Pittenger	Walz
Kennedy	Pitts	Waters, Maxine
Kildee	Pocan	Weber (TX)
Kilmer	Poe (TX)	Webster (FL)
Kind	Polis	Welch
King (IA)	Pompeo	Westerman
King (NY)	Posey	Westmoreland
Kinzinger (IL)	Price (NC)	Whitfield
Kirkpatrick	Price, Tom	Williams
Kline	Quigley	Wilson (FL)
Knight	Rangel	Wilson (SC)
Kuster	Ratcliffe	Wittman
Labrador	Reed	Womack
LaHood	Reichert	Woodall
LaMalfa	Renacci	Yoder
Lamborn	Ribble	Yoho
Lance	Rice (NY)	Young (AK)
Langevin	Rice (SC)	Young (IA)
Larsen (WA)	Richmond	Young (IN)
Larson (CT)	Rigell	Zeldin
Latta	Roby	Zinke
Lawrence	Roe (TN)	
Lee	Rogers (AL)	
Levin	Rogers (KY)	
Lewis	Rohrabacher	
Lieu, Ted	Rokita	
LoBiondo	Rooney (FL)	
Loebsack	Ros-Lehtinen	
Lofgren	Ross	
Long	Rothfus	
Loudermilk	Rouzer	
Love	Roybal-Allard	
Lowenthal	Royce	
Lowey	Ruiz	
Lucas	Ruppersberger	
Luetkemeyer	Russell	
Lujan Grisham (NM)	Ryan (OH)	
Luján, Ben Ray (NM)	Sánchez, Linda T.	
Lummis	Sanchez, Loretta	
Lynch	Sanford	
MacArthur	Sarbanes	
Maloney, Carolyn	Scalise	
Maloney, Sean	Schakowsky	
Marchant	Schiff	
Marino	Schrader	
Massie	Schweikert	
Matsui	Scott (VA)	
McCarthy	Scott, Austin	
McCaul	Scott, David	
McClintock	Sensenbrenner	
McCollum	Serrano	
McDermott	Sessions	
McGovern	Sewell (AL)	
McHenry	Sherman	
McKinley	Shimkus	
McMorris Rodgers	Shuster	
McNerney	Simpson	
McSally	Sinema	
Meadows	Sires	
Meehan	Slaughter	
Meeks	Smith (MO)	
Meng	Smith (NE)	
Messer	Smith (NJ)	
Mica	Smith (TX)	
Miller (FL)	Speier	
Miller (MI)	Stefanik	
Moolenaar	Stewart	
Mooney (WV)	Stivers	
Moore	Stutzman	
Moulton	Swalwell (CA)	
Mullin	Takano	
Mulvaney	Thompson (CA)	
Murphy (FL)	Thompson (MS)	
Murphy (PA)	Thompson (PA)	
Nadler	Tiberi	
Napolitano	Tipton	
Neal	Titus	
Neugebauer	Tonko	
Newhouse	Torres	
Noem	Trott	
Nolan	Tsongas	
Norcross	Upton	
Nugent	Valadao	
Nunes	Van Hollen	
O'Rourke	Vargas	
Olson	Veasey	
Palazzo	Vela	
Pallone	Velázquez	
Palmer	Visclosky	
Pascrell	Wagner	
Paulsen	Walberg	
Payne	Walden	
Pearce	Walker	
Pelosi	Walorski	
Perlmutter	Walters, Mimi	
Perry	Walz	
Peters	Waters, Maxine	
Peterson	Weber (TX)	
Pingree	Webster (FL)	
Pittenger	Welch	
Pitts	Westerman	
Pocan	Westmoreland	
Poe (TX)	Whitfield	
Polis	Williams	
Pompeo	Wilson (FL)	
Posey	Wilson (SC)	
Price (NC)	Wittman	
Price, Tom	Womack	
Quigley	Woodall	
Rangel	Yoder	
Ratcliffe	Yoho	
Reed	Young (AK)	
Reichert	Young (IA)	
Renacci	Young (IN)	
Ribble	Zeldin	
Rice (NY)	Zinke	
Rice (SC)		
Richmond		
Rigell		
Roby		
Roe (TN)		
Rogers (AL)		
Rogers (KY)		
Rohrabacher		
Rokita		
Rooney (FL)		
Ros-Lehtinen		
Ross		
Rothfus		
Rouzer		
Roybal-Allard		
Royce		
Ruiz		
Ruppersberger		
Russell		
Ryan (OH)		
Sánchez, Linda T.		
Sanchez, Loretta		
Sanford		
Sarbanes		
Scalise		
Schakowsky		
Schiff		
Schrader		
Schweikert		
Scott (VA)		
Scott, Austin		
Scott, David		
Sensenbrenner		
Serrano		
Sessions		
Sewell (AL)		
Sherman		
Shimkus		
Shuster		
Simpson		
Sinema		
Sires		
Slaughter		
Smith (MO)		
Smith (NE)		
Smith (NJ)		
Smith (TX)		
Speier		
Stefanik		
Stewart		
Stivers		
Stutzman		
Swalwell (CA)		
Takano		
Thompson (CA)		
Thompson (MS)		
Thompson (PA)		
Tiberi		
Tipton		
Titus		
Tonko		
Torres		
Trott		
Tsongas		
Upton		
Valadao		
Van Hollen		
Vargas		
Veasey		
Vela		
Velázquez		
Visclosky		
Wagner		
Walberg		
Walden		
Walker		
Walorski		
Walters, Mimi		
Walz		
Waters, Maxine		
Weber (TX)		
Webster (FL)		
Welch		
Westerman		
Westmoreland		
Whitfield		
Williams		
Wilson (FL)		
Wilson (SC)		
Wittman		
Womack		
Woodall	Young (AK)	Zeldin
Yoder	Young (IA)	Zinke
Yoho	Young (IN)	

NAYS—3

Amash	Wasserman Schultz	Watson Coleman

NOT VOTING—24

Babin	Graves (GA)	Rush
Becerra	Graves (MO)	Salmon
Blackburn	Gutiérrez	Smith (WA)
Brady (PA)	Herrera Beutler	Takai
Davis, Danny	Joyce	Thornberry
Duckworth	Lipinski	Turner
Ellmers (NC)	Poliquin	Wenstrup
Gibbs	Roskam	Yarmuth

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1415

Mr. TAKANO changed his vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. POLIQUIN. Mr. Speaker, on rollcall No. 117, I was unavoidably detained. Had I been present, I would have voted "yes."

SATISFYING ENERGY NEEDS AND SAVING THE ENVIRONMENT ACT

GENERAL LEAVE

Mr. WHITFIELD. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and to include extraneous material on the bill, H.R. 3797.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 640 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 3797.

The Chair appoints the gentleman from Georgia (Mr. WESTMORELAND) to preside over the Committee of the Whole.

□ 1417

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 3797) to establish the bases by which the Administrator of the Environmental Protection Agency shall issue, implement, and enforce certain emission limitations and allocations for existing electric utility steam generating units that convert coal refuse into energy, with Mr. WESTMORELAND in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

The gentleman from Kentucky (Mr. WHITFIELD) and the gentleman from New Jersey (Mr. PALLONE) each will control 30 minutes.

The Chair recognizes the gentleman from Kentucky.

Mr. WHITFIELD. Mr. Chairman, I yield myself such time as I may consume.

It is not often that Congress has the opportunity to help an industry that creates both jobs and energy while also improving the environment, and it is especially rare when we can do that at no cost to the taxpayer. H.R. 3797, the SENSE Act, accomplishes all this. That is why we are here today, and that is why I urge my colleagues to vote ''yes'' on this legislation.

Mr. Chairman, I yield 5 minutes the gentleman from Pennsylvania (Mr. ROTHFUS), the author of the legislation.

Mr. ROTHFUS. I thank the chairman for yielding, and I thank him for the support that he and the Energy and Commerce Committee have expressed for H.R. 3797, the Satisfying Energy Needs and Saving the Environment Act, also known as the SENSE Act.

Mr. Chair, the SENSE Act is a vitally important effort that I have championed in various forms for my nearly 3 years in Congress. This bill recognizes the overwhelming success of the endangered coal refuse-to-energy industry in making my district in western Pennsylvania and others across coal country healthier and cleaner places to work and live.

Without the SENSE Act, coal refuse-to-energy facilities will close, and their environmental mediation efforts will end. Contrary to the claims of this legislation's supposedly environmentalist opponents, the SENSE Act is a pro-environment bill.

As many of you know, the coal industry has been an important part of the economy in Pennsylvania for many generations. Historic mining activity unfortunately left behind large piles of coal refuse. These piles consist of lower quality coal mixed with rock and dirt. For a long time, we did not have the technology to use this material, so it accumulated in large piles in cities and towns, close to schools and neighborhoods, and in fields across the countryside. This has led to a number of environmental problems that diminish the quality of life for many people in the surrounding areas. Vegetation and wildlife have been harmed, the air has been polluted, and acid mine drainage has impaired nearby rivers and streams.

I have been to many of these sites and seen firsthand the environmental danger they pose. Coal refuse piles can catch fire, causing dangerous and uncontrolled air pollution. Runoff from these sites can turn rivers orange and leave them devoid of life.

The cost to clean all this up is astronomical. Pennsylvania's environmental regulator estimates that fixing abandoned mine lands could take over $16 billion, $2 billion of which would be needed for coal refuse piles alone.

We needed an innovative solution to this tough challenge. A commonsense compromise was necessary to get the job done and protect the environment. That is where the coal refuse-to-energy industry comes in. Using advanced technology, this industry has been able to use this previously worthless material to generate electricity. This activity powers remediation efforts that have so far been successful in removing over 200 million tons of coal refuse and repairing formerly polluted sites across the Commonwealth and other historic coal regions.

Thanks to the hard work of the dedicated people in this industry, landscapes have been restored, rivers and streams have been brought back to life, and towns across coal country have been relieved of unsafe and unsightly waste coal piles.

They do say that a picture paints a thousand words, and that is what I have here. In the foreground you have a waste coal pile that is under the process of remediation. In the background, the green hillside used to look just like the black foreground that you see here. This has been reclaimed. This is what is happening across Pennsylvania as we restore these hillsides.

It is important to note that private sector leadership on this issue has saved taxpayers millions of dollars in cleanup costs. That is why Pennsylvania's abandoned mine reclamation groups have endorsed my bill, and that is why we have also earned the support of clean water advocates.

Unfortunately, intensifying and inflexible EPA regulations threaten to bring much of the coal refuse industry's activity to a halt. This would leave billions of dollars of vital cleanup unfinished, lead to thousands of job losses, and endanger our energy security.

The SENSE Act addresses challenges arising from the implementation of two existing rules: MATS, the Mercury and Air Toxics Standards, and CSAPR, known as the Cross-State Air Pollution Rule.

Though all coal refuse-fired power generators can meet—can meet—the mercury standard under MATS, many facilities will be unable to meet the rule's new hydrogen chloride or sulfur dioxide standards. Contrary to what critics allege, the SENSE Act simply provides operators with alternative MATS compliance standards that are strict but achievable.

Similarly, although coal refuse-fired power generators were provided sufficient sulfur dioxide allocations in phase 1 of CSAPR's implementation, these facilities were allocated insufficient credits in phase 2, which is set to begin in 2017. The SENSE Act seeks to provide coal refuse-fired power generators with the same allocations levels in phase 2 as in phase 1.

My bill also contains provisions to ensure that this change does not simply create a profit center for the industry. Credits allocated as a result of the SENSE Act's implementation must go to covered plants, specifically those that use bituminous coal refuse, and they cannot be sold off to other operators.

The CHAIR. The time of the gentleman has expired.

Mr. WHITFIELD. Mr. Chairman, I yield the gentleman from Pennsylvania an additional 1 minute.

Mr. ROTHFUS. In the last Congress, I merely attempted to exempt these facilities from MATS compliance with SO_2 and HCl. Building upon my efforts, Senators TOOMEY and CASEY from the Commonwealth of Pennsylvania offered a bipartisan amendment providing similar treatment for these plants within the context of both MATS and CSAPR. While this proposal was supported by a bipartisan majority of Senators, it failed to achieve the supermajority necessary to pass.

What we are looking to achieve today is much narrower and far more limited than our effort in the last Congress, which received bipartisan support. This should not be a controversial or bipartisan issue. We want to hold this industry to high standards, but standards they can actually achieve.

My bill will help keep the coal refuse industry in business so that the local community, economy, and environment will continue to reap the benefits. The people who live near coal refuse piles and all of the communities downstream of these hazards expect us to find a solution.

I thank the chairman for his time and cooperation with this vital piece of legislation.

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, I rise in opposition to H.R. 3797. Once again, this House is using valuable time to consider a bill that has no chance of becoming law.

H.R. 3797, the Satisfying Energy Needs and Saving the Environment Act, or the SENSE Act, is an unnecessary bill that undermines public health and the environment. Unfortunately, this is no surprise. Throughout this Congress and the previous one, House Republicans have brought many bills to the floor that undermine the Clean Air Act, which also undermines public health and environmental protection. But this bill deserves special recognition because it also undermines States' authorities and picks winners and losers in the emission reduction effort.

H.R. 3797 denies a State's right to decide which tradeoffs to make in allocating emission credits among different facilities in its jurisdiction. It allows waste coal-burning facilities to generate more pollution, forcing other facilities, including traditional coal-fired utilities, to find greater emission reductions.

The legislation undermines two important public health rules issued under the Clean Air Act. The first is the Cross-State Air Pollution Rule, or CSAPR, and the second is the Mercury and Air Toxics Standards, or MATS, rule. These rules will help reduce toxic air emissions, including sulfur dioxide, hydrochloric acid, and mercury, which makes the air cleaner and safer to breathe for all of us.

CSAPR uses an emissions trading mechanism to incentivize utilities and other facilities to reduce harmful air pollutants. These market-based mechanisms have been very successful at reducing pollution at the lowest cost. Facilities that become cleaner, either by becoming more efficient, installing pollution control equipment, or by switching to another fuel, generate valuable pollution credits, and they can use these credits or sell them to other facilities.

Unfortunately, this legislation undermines the proven market mechanism used in CSAPR. If the SENSE Act were to become law, there would be far less incentive to reduce pollution because the bill effectively reduces the value of making emission control investments.

With respect to the second rule, the MATS rule, the bill's advocates claim that waste coal plants deserve special consideration due to the nature of the fuel that they burn. They argue that these plants are being used to clean up waste coal piles, the coal refuse and other materials that were left over from past coal mining operations. This waste causes land and water pollution problems in many former coal mining areas.

While there may be benefits to burning waste coal to generate electricity, it can and should be done in a manner that avoids undue air pollution. Otherwise, the problems that now exist on land and in the water will simply be transferred to the air and spread out over a larger area. Mercury, in particular, is a highly toxic substance that does not break down. It is associated with serious health impacts, including neurotoxicity and cancer.

The operators of waste coal facilities asked EPA to consider their facilities separately from other coal plants, but EPA found these facilities are able to comply with these rules and there is no justification for treating waste coal facilities differently from other coal-fired generation facilities—and the courts agreed. These are coal-burning utilities, and they can use existing pollution control technologies to reduce their emissions.

So, Mr. Chairman, under the conditions of CSAPR, States have the authority to design their own emission allocation. Today, a State can allow waste coal facilities to emit higher levels of pollution and impose stricter pollution limits on other facilities if they choose to do so, but this legislation eliminates the State's flexibility and imposes a one-size-fits-all solution on the States. This legislation is essentially coming to the floor to benefit fewer than 20 facilities that exist in a handful of States, with most of the facilities located in Pennsylvania.

The States already have the ability to provide waste coal facilities with additional emission credits or other assistance if they choose to do so. So the SENSE Act creates more problems than it solves. It is unnecessary. It undermines the incentive to produce cleaner air, which is essential to improving public health and the environment, and it undermines State authority.

The White House strongly opposes the bill and has issued a veto threat saying that it would threaten the health of Americans. I agree, and I urge my colleagues to join me in voting against this bill.

Mr. Chairman, I reserve the balance of my time.

Mr. WHITFIELD. Mr. Chairman, I yield 3 minutes to the gentleman from Georgia (Mr. CARTER).

Mr. CARTER of Georgia. Mr. Chairman, I thank the gentleman for yielding.

Mr. Chairman, I rise today in support of H.R. 3797, the Satisfying Energy Needs and Saving the Environment Act, or the SENSE Act.

Mr. Chairman, coal refuse is an aboveground waste product of coal mining that can pose a number of environmental and safety threats to our country. To address these threats, specialized power plants, known as coal refuse-to-energy plants, were developed to recycle their waste product while generating affordable, reliable electricity to the American people.

□ 1430

Yet, the EPA has continually written rules and regulations that will ultimately shut down these specialized plants.

The Agency's Cross-State Air Pollution Rule and their Mercury and Air Toxics Standards include certain emission limits that are just not achievable for coal refuse-to-energy plants.

These EPA regulations will cost and result in billions of dollars in environmental cleanup. This could all be prevented by refuse-to-energy plants.

That is why H.R. 3797 is so important. It will provide targeted modifications to the EPA rules as they apply to coal refuse-to-energy plants.

There are no major initiatives. There are no new laws being created. We are only making target modifications to EPA's Cross-State Air Pollution Rule and their Mercury and Air Toxics Standards so Americans can receive safe, affordable energy, keep their jobs, and have a cleaner environment.

I urge my colleagues to support H.R. 3797 so that we can make sure that we continue to create more jobs while making our environment cleaner.

Mr. PALLONE. Mr. Chairman, I yield such time as he may consume to the gentleman from Pennsylvania (Mr. DOYLE), my colleague.

Mr. MICHAEL F. DOYLE of Pennsylvania. Mr. Chairman, I want to thank my ranking member, Mr. PALLONE, for the time.

I rise in opposition to the SENSE Act.

This bill, introduced by Congressman ROTHFUS from my home State, is an effort to help coal refuse plants, most of which are located in the State of Pennsylvania.

Industry estimates that coal waste piles cover approximately 170,000 acres of Pennsylvania, left over from coal-mining operations that stopped decades ago.

Coal refuse plants then turn this coal waste into a small portion of Pennsylvania's energy portfolio and play an important part in remediating and rehabilitating the environment.

Left alone, these waste coal fields can pollute the groundwater and contaminate other water sources. They can also, if sparked by an ATV, lightning, or other occurrences, burn unabated and release dangerous pollutants at eye level.

For years, these waste coal plants have provided an important service, turning environmental hazards into energy. Accordingly, they have enjoyed many years of bipartisan support in my home State.

I want to say at the outset I appreciate what Mr. ROTHFUS is trying to do. This is an important issue in our State, and it needs to be addressed. The problem is it is his solution that I can't support.

This bill seeks to make it easier for these plants to comply with two regulations, CSAPR and MATS. It does this not by funding new technology to make plants cleaner or more efficient, reducing costs of operation, or changing electricity contracts.

Instead, what the SENSE Act does is two things. It fundamentally changes CSAPR by playing favorites with power sources and then rolls back important standards under MATS.

By extending phase 1 implementation standards for SO_2 for only these plants, but not increasing the overall cap, the SENSE Act prioritizes coal refuse plants over all other sources of electricity.

All other sources in my home State have to make up for the extra credits coal refuse plants get to keep. This is bad policy and bad practice. You can't rob Peter to pay Paul in complying with regulations.

The SENSE Act would significantly increase the proportion of SO_2 credits allocated to coal refuse plants. I have seen estimates that the percentage of SO_2 credits allocated to these plants would actually double. Again, all other plants in my State would then have to make up the difference.

The SENSE Act also removes an important option provided to States under CSAPR: the ability to draft and submit their own compliance plan.

At this point, our State has chosen not to take this option, but we shouldn't remove Pennsylvania's and other States' abilities to craft their own implementation plans. The SENSE Act just creates alternative implementation standards for coal refuse plants under MATS that are weaker on protecting our air.

What comes next? I know we have implementation dates for NO_X standards that could be tough across the coal industry in my own State. Are coal refuse plants going to come back and say they need another carveout, another exception? This just sets a bad precedent.

But it is not just a bad precedent. It is a dangerous precedent. CSAPR and MATS protect the air we breath and help mitigate the impact that we have on our climate. If every single source of power was allowed to make exceptions to rules and regulations, we would be in deep trouble.

There are coal refuse plants that burn both bituminous and anthracite waste coal that have said they will be able to comply with CSAPR and MATS. There are only 19 of these facilities in the entire country.

Fourteen of them are in Pennsylvania, and five of those plants say they can comply with CSAPR and MATS as currently written. They may need to add some new technology and improve their processes, but that is the nature of the power industry in the 21st century.

It is changing. We have to adapt. Bills that roll back or modify these regulations I just don't believe are the right way forward. I think there may be alternative ways forward on this tough issue.

Like I said earlier, these plants provide an important environmental benefit to my home State, and I would like to see it continue.

We should look at all available options, whether it is States drafting their own implementation plants, whether it is providing a tax credit for the processing of this coal based on its environmental benefit, incentivizing other plants to co-fire with waste coal, or adding new fuel sources at existing waste coal plants.

I want to work with my colleagues on both sides of the aisle to take a hard look at this and try to come up with a solution that we can all agree to because this is a critical issue.

I want to thank my colleague from Pennsylvania for bringing much-needed attention to waste coal. I hope that we are able to work together on this issue in the future. But, for now, the SENSE Act is not the right solution to the problem, and I must oppose it.

Mr. WHITFIELD. Mr. Chairman, I yield myself as much time as I may consume.

Mr. Chairman, I want to commend Mr. ROTHFUS once again for introducing this important legislation.

We find ourselves here today because the EPA in the Obama administration has been more aggressive than any EPA in history.

I might say that the Supreme Court recently issued a stay on the clean energy plan because it was so extreme, so unprecedented, that even legal scholars

like Professor Larry Tribe at Harvard University said that the clean energy plan was like tearing up the Constitution of the U.S., that what they are doing under that plan is so extreme.

What we are talking about here is we are talking about 19 coal refuse-to-energy facilities operating in America. They employ about 1,200 people directly, about 4,000 people indirectly, and they have a payroll of about $84 million a year. Each one of these plants, on average, is less than 100 megawatts.

The amount of emissions is very small. But the fact that they are able to use coal refuse that has been accumulating for years and years and years as America burned coal to produce electricity—we have a lot of waste refuse out there. These plants are cleaning it up. We know that, without this kind of cleanup, taxpayer dollars would be used to do it.

It is true that they have some emissions. It is also true that there is a tremendous environmental benefit by cleaning it up, not to mention the jobs that are created.

Now, people always say: Well, if you change this rule at all, if you adjust what EPA has done at all, you are going to make it more harmful to Americans who are breathing the air.

In our hearings about this particular issue, the Mercury and Air Toxics rule, I want to point out that the EPA admitted that its own Mercury and Air Toxics rule would not generate significant mercury reduction benefits and, in fact, attributes nearly all of that rule's benefits to the indirect reductions in fine particulate matter that is regulated in another part of the Clean Air Act.

EPA itself has admitted that allowing these plants to operate and the adjustments to be made is not a significant issue.

If you consider the fact that—actually, the U.S. Court of Appeals rendered a decision because a lawsuit was brought about EPA not forming a special subcategory for these coal refuse plants and they said it was not a violation of the Clean Air Act, that a subcategory was not set up by EPA.

But if you read the opinion, EPA certainly could have set up a special category for these coal refuse plants and decided not to do it.

The reason we are here today is because we have a job. We are the party, we are the body, that wrote the Clean Air Act, and we disagree with the EPA on this particular issue.

We are saying 19 plants, 14 in one State, 1,200 jobs directly, 4,000 jobs indirectly, $84 million in a payroll, and EPA itself says this is not a major environmental issue.

We make the argument that the benefits of cleaning up these abandoned sites would offset the minute lack of reduction in the MATS rule and the SOx rule.

For those reasons, I respectfully would say that I think, overall, the benefits are much greater by adopting the SENSE Act as authored by Mr. ROTHFUS.

I reserve the balance of my time.

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, I wanted to respond to some of the Republican claims regarding the MATS rule.

The Energy and Commerce Committee held a legislative hearing on the SENSE Act on February 3 of this year. At that hearing, we heard testimony regarding the ability of waste coal units to meet the requirements of the MATS rule.

As Mr. Walke testified, when waste coal plants owners filed lawsuits challenging the MATS rule, claiming it was ''virtually impossible to meet the acid gas and sulfur dioxide limits,'' the court had little trouble rejecting these arguments unanimously.

The judge pointed to the evidence and data submitted to EPA showing that many of the waste coal units could already meet the rule's acid gas standard or alternative sulfur dioxide standard.

The court also noted that some of these already-compliant plants are among the best performers in reducing hydrogen chloride emissions among all coal-burning power plants around the country.

If the majority, along with the bill's proponents, are trying to say that the bill is needed because all of the currently operating waste coal units can't meet the MATS standards, that is not how the Clean Air Act works.

The Clean Air Act's use of maximum achievable control technology for setting air pollution standards takes a reasonable approach.

It says that EPA should set emission limits based on the emission levels already being achieved by similar facilities in the real world.

For existing sources, EPA bases the emission standards for each pollutant on the average emissions achieved by the best performing 12 percent of facilities.

Congress, in setting up its program, did not want to merely maintain the status quo. They wanted all facilities within an industrial sector to make the necessary upgrades to reduce their emissions in line with the best performing units.

The advocates of this bill claim that coal refuse facilities should be treated differently from other coal fuel-generation facilities and that the technology and fuel used would prevent these facilities from meeting the MATS standards for acid gases and sulfur dioxide, but that is simply not true.

First, under the MATS rule, facilities have a choice of meeting either the acid gas standard or the sulfur dioxide standard. They don't have to meet both.

But, second, there is emission control technology available today that can bring these waste coal facilities into compliance with the rule.

I see no justification for allowing these facilities to emit more pollutants than other similar facilities.

I reserve the balance of my time.

□ 1445

Mr. WHITFIELD. Mr. Chairman, I yield myself such time as I may consume.

I want to point out, once again, that we are here because Congress wants to make the decision that the EPA should set up subcategories in this particular instance. Both the Clean Air Act and the EPA regulations promulgated under it, on a routine basis, divide regulated entities into separate categories, but the EPA was unwilling to do it in this case primarily because coal was involved. It is no secret that when the President was running, in an editorial interview in San Francisco, he made the comment publicly that he would bankrupt the coal industry; and that actually is happening.

Mr. Chairman, I yield an additional 3 minutes to the gentleman from Pennsylvania (Mr. ROTHFUS), the author of this bill.

Mr. ROTHFUS. I thank the chairman.

Mr. Chairman, there are only 19 plants we are talking about here and four States that are involved. There are some plants out there that can comply—there is not a question about that—but there are only a few of them, and we are looking at a number of plants that do not have the capacity to comply with these one-size-fits-all standards.

While the State should be looking at this, the SENSE Act does what the EPA should have done in creating these categories. It could take up to 2 years, Mr. Chairman, for the EPA to get back as to any kind of modification. The State could propose a change, but then it has to wait and wait and wait, and while it waits, we will see power plants close that do not have this technology.

There is something called a ''margin'' in business, Mr. Chairman. You take a look at the expense of doing things, you look at the cost of things, and you look at the income. Once the expense or the cost exceeds the income, plants' businesses go out of business. People lose jobs. That is what we are talking about. In this case, not only do people lose jobs, but the tremendous environmental cleanup stops that is taking place.

Pennsylvania estimates it would take $2 billion to clean up these waste coal sites. I have walked the fields where they have been cleaned up in Allegheny County and in Cambria County. I have seen hillsides on which deer now graze where it used to be just a martian landscape, and I have seen rivers that used to be orange that now have fish in them. This is an industry that has been cleaning up these sites without the taxpayers picking up the tabs.

Every State in this country is having budget issues and is trying to find resources to address critical things like

environmental cleanup. This is something that is working. When you have one size fits all, where the EPA refuses to make an accommodation because it does not recognize the tremendous benefit that these facilities are bringing to Pennsylvania, that is what this legislation seeks to change.

There is no free pass here for these plants. They will still be measured and they will still have to comply, but this is a customization to something that is achievable, and it is a customization that I would argue is what the EPA should have been doing all along.

Mr. PALLONE. Mr. Chairman, I yield such time as he may consume to the gentleman from Pennsylvania (Mr. MICHAEL F. DOYLE).

Mr. MICHAEL F. DOYLE of Pennsylvania. I thank the gentleman.

Mr. Chairman, I just want to say to my friend from Pennsylvania that I agree with a lot of what he said as far as the value of these coal refuse sites. No one is debating that. Certainly I am not. This is almost a Pennsylvania exclusive piece of legislation given the fact that 14 of the 19 sites are in our State, and I believe about five of those can comply at this point.

The problem I have with the gentleman's proposal is that when one takes emission credits and gives them to the coal refuse plants in excess of what they get, it is coming out of somebody else's allocation. In western Pennsylvania, where we are both from, most of our electricity is from coal-fired utilities. What one is doing, in effect, is taking those emission credits from other coal-fired utilities to give them to this small number of coal refuse plants, and that is going to cost others' margins on those utility sites. It will affect their margins because now they have to work harder to clean up their emissions because they don't have these credits because they have gone to the coal refuse plants. That is a big problem I see, especially in a State like ours that still has a lot of coal-fired electricity generation.

I think there are better ways forward. I think we would be better served in our State to push our State legislature and the Governor's office, too, to come up with a State implementation plan that allows for some flexibility and takes into account what goes on at these plants, because this is primarily a Pennsylvania issue. As I said in my remarks before, there are other ways, I think, to solve this problem.

Look, the President has issued a SAP. He is going to veto this bill. So this piece of legislation isn't going to become law. Yet I am not standing here to say that I think we should stop our efforts to do something to keep this resource, because it is cleaning up a lot of sites in Pennsylvania, and there is a benefit to the environment. There is a lot of water pollution potential for leaving these sites as they are.

I want to work with the gentleman, and I say to him that, while this piece of legislation may not ever become law, I extend my offer to work with the gentleman in constructive ways, both with our Governor and State legislature, and in alternative ways to attack this problem that doesn't take emission credits from other coal-fired utilities in our State.

Mr. WHITFIELD. Mr. Chairman, I yield an additional 2 minutes to the gentleman from Pennsylvania (Mr. ROTHFUS), the author of the legislation.

Mr. ROTHFUS. Mr. Chairman, it would be great for Pennsylvania to come up with a customization on its own, but that would take a couple of years for approval from the EPA. In the meantime, these plants will be closed.

Few, if any, conventional coal plant owners have expressed concerns about the SENSE Act. Bear in mind, we are talking about an overall allocation for SO_2 and a reconfiguring within that overall allocation. So there is not going to be an increase in SO_2; it will be a mere customization and allocation, and it should have been done and should have been allowed by the EPA.

While the President may have issued a veto threat, my hope is, before the President would follow through on such a veto threat, that he would come to western Pennsylvania, that he would walk the hills with me, that he would see the streams that have come back to life, that he would talk to Tim and talk to Bill and talk to the men and women at these plants who are taking care of their families, so they can say, ''Mr. President, we need some help here. Our communities have been economically distressed. We are sustaining our communities with these jobs. We are raising our kids with these jobs. What we don't like, Mr. President, are these one-size-fits-all edicts coming out of Washington, D.C., that give our States and communities the burden of complying—totally excluding the benefits that have been happening on the ground.''

Again, to see these places that have been reclaimed is remarkable. It is my hope that the President would visit those places before he follows through on any kind of veto threat.

Mr. PALLONE. Mr. Chairman, I yield such time as he may consume to the gentleman from Pennsylvania (Mr. MICHAEL F. DOYLE).

Mr. MICHAEL F. DOYLE of Pennsylvania. I will not consume any more time after this. I don't want to play Chip and Dale with the gentleman all day.

Mr. Chairman, let me just say that our President has been to Pittsburgh probably more than to any city in the country, and I have been with him many times when he has been there. I have walked on these sites, too. I have one up in Harmar Township. I have seen them. I know what the gentleman is talking about, and I think it is a problem we need to address. The SENSE Act is really a one-size-fits-all kind of solution, not current law. Current law gives States flexibility, and I think that is what is important.

I would just say to my friend that this is a real problem and a real concern in our home State, and I reiterate my willingness to work with him on a solution.

Mr. WHITFIELD. Mr. Chairman, there are no additional speakers on my side of the aisle.

I reserve the balance of my time to close.

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, in closing, I include in the RECORD the Statement of Administration Policy.

STATEMENT OF ADMINISTRATION POLICY

H.R. 3797—SATISFYING ENERGY NEEDS AND SAVING THE ENVIRONMENT (SENSE) ACT—REP. ROTHFUS, R–PA, AND SIX COSPONSORS

The Administration strongly opposes H.R. 3797, which would threaten the health of Americans by requiring changes to the Environmental Protection Agency's (EPA) Cross-State Air Pollution Rule (CSAPR) and the Mercury and Air Toxics Standards (MATS) for electric generating units (EGUs) that use coal refuse as their main fuel source. Specifically, H.R. 3797 would restrict the market-based approach currently used to allocate sulfur dioxide emission allowances issued under the CSAPR, thereby raising the costs of achieving the pollution reduction required by the rule. The bill also would undermine the emissions limits for hazardous acid gases from those established under the MATS, leading to increased health and environmental impacts from increased emissions of hydrogen chloride, hydrogen fluoride, other harmful acid gases, and sulfur dioxide.

CSAPR and MATS protect the health of millions of Americans by requiring the reduction of harmful power plant emissions, including air toxics and emissions that contribute to smog and fine particle pollution. The pollution reductions from CSAPR and MATS will prevent thousands of premature deaths, asthma attacks, and heart attacks. An important feature of the CSAPR is its trading program which allows power plants to meet emission budgets in different ways, including by trading emissions allowances between emission sources within a State and some trading across States. This market-based approach reduces the cost of compliance while ensuring reductions in air pollution for citizens across the CSAPR region.

H.R. 3797 would create an uneven playing field by picking winners and losers in CSAPR compliance. The bill establishes a special market of CSAPR allowances for EGUs that burn coal refuse and prohibits the trading of allowances allocated to coal refuse EGUs, which would interfere with and manipulate market conditions. By doing so, H.R. 3797 would: (1) economically advantage coal refuse EGUs over other EGUs by giving them allowances that would otherwise have been allocated to others; (2) reduce compliance choices for other State units; and (3) distort the economic incentives of coal refuse EGUs to reduce emissions. Further, the allowances allocated to coal refuse EGUs would be unavailable for use by any other sources, resulting, in the aggregate, in less efficient and more costly CSAPR compliance. Additionally, H.R. 3797 would interfere with existing opportunities under the CSAPR for each State to control the allocation of allowances among its EGUs.

If the President were presented with H.R. 3797, his senior advisors would recommend that he veto the bill.

Mr. PALLONE. The sponsor of the legislation mentioned the President's

coming to visit, but I think if you look at the Statement of Administration Policy, it is quite clear that what the President is essentially saying is that he doesn't want the Congress to pick the winners and the losers. He wants the States—in this case, Pennsylvania—to have the flexibility to make their own decisions.

It is not a question of what the President decides. It is clear that he is vetoing this legislation or would veto this legislation because he thinks that the flexibility is already there under the law and that the States should make those decisions rather than having Congress pick the winners and losers.

I am not going to read the whole thing, Mr. Chairman, but I did want to just read the section that relates to that, if I could, from the Statement of Administration Policy.

It reads:

''H.R. 3797 would create an uneven playing field by picking winners and losers in CSAPR compliance. The bill establishes a special market of CSAPR allowances for EGUs that burn coal refuse and prohibits the trading of allowances allocated to coal refuse EGUs, which would interfere with and manipulate market conditions. By doing so, H.R. 3797 would: (1) economically advantage coal refuse EGUs over other EGUs by giving them allowances that would otherwise have been allocated to others; (2) reduce compliance choices for other State units; and (3) distort the economic incentives of coal refuse EGUs to reduce emissions. Further, the allowances allocated to coal refuse EGUs would be unavailable for use by any other sources, resulting, in the aggregate, in less efficient and more costly CSAPR compliance. Additionally, H.R. 3797 would interfere with existing opportunities under the CSAPR for each State to control the allocation of allowances among its EGUs.''

Again, I think the Statement of Administration Policy is based on the idea that there is flexibility under the law and that States are in the best positions to make these decisions. I think it is quite clear, and I agree with everything that is in this veto message as being the basis for why we oppose the legislation; so I urge my colleagues to oppose the bill.

I yield back the balance of my time.

Mr. WHITFIELD. Mr. Chairman, I yield myself the balance of my time.

I would just reiterate, once again, far from undercutting States, the SENSE Act offers the best solution for States. The EPA, in these two regulations, is dictating to the States what can and cannot be done. Even if the States wanted to take additional action, they would have to meet the requirements of those regulations. The SENSE Act makes minor modifications to the Cross-State Air Pollution Rule and to the Mercury and Air Toxics Standards, and it does not raise the cap of the emissions.

I have a great deal of respect for both of the gentlemen on the other side of the aisle who have different views on this subject; but I can tell you the generating plants that are burning coal to produce electricity have not talked to us at all about being concerned about the SENSE Act. They are overwhelmingly concerned about the clean energy plan, which is basically going to change every aspect of the way they do business if the courts do not rule it in violation of the Clean Air Act.

In closing, as a Member of Congress and as Congresspeople, we do have the responsibility to step in and change some parts of the Clean Air Act if we view it as being in the best interest of the American people. Because these coal refuse plants have already cleaned up, recycled, over 200 million tons of coal refuse by combusting it to produce electricity and because the overall caps are not going to be raised, there are going to be minor modifications, we are going to continue to clean up these refuse piles. We are going to continue to protect 1,200 direct jobs, 4,000 indirect jobs, $84 million in payroll.

It seems to me that the benefits far outweigh the negative aspects of this legislation. For that reason, I would respectfully request my colleagues to support H.R. 3797 and pass this legislation.

I yield back the balance of my time.

Mr. BARLETTA. Mr. Chair, I rise in support of legislation that's important to my part of Pennsylvania, and to all of the coal-producing regions of this country.

The SENSE Act, offered by my colleague from western Pennsylvania, Mr. ROTHFUS.

This bill is a long time coming.

In my part of the country, we are familiar with ''coal refuse''—a mixture of low-quality coal, rock, and dirt, which is left behind after mining.

This coal refuse has a much lower energy content, and for years it could not be processed efficiently or economically.

As a result, piles of it were left behind, which led to a variety of detrimental results: loss of vegetation and wildlife, and concentrated levels of acid drainage into local streams and ponds.

But the technology has advanced, and we can now reclaim that waste—the private sector can use the coal waste product to burn and generate electricity.

What's left over after that can be used to restore the natural landscape, or refill abandoned mines.

But, once again, the Environmental Protection Agency couldn't stand this type of progress.

They came up with the MATS Rule—the Mercury and Air Toxics Standards rule.

This sets certain unattainable levels for the industry.

The SENSE Act provides relief from these unrealistic limits.

It seeks to establish an alternative compliance standard for coal refuse facilities based upon the removal and control of Sulfur Dioxide.

Now, in some parts of the country, and in some speeches on the campaign trail, it has become fashionable to attack the coal industry, and make its people out to be the bad guys.

As a candidate, our current president promised to bankrupt the coal industry.

And he has made a tremendous effort to do just that—including this MATS Rule from his EPA.

Just in the last few days, the frontrunner on the Democratic side promised that as president, she would put coal mines and coal miners out of work.

Now, all of that might sound pretty good in certain focus groups, or around the cocktail party circuit, but let me tell you . . . where I come from, it sounds pretty devastating.

The coal industry—in no small part—helped build this country and make it a world leader.

It generates cheap electricity for millions of people.

And for many tens of thousands of people back home in Pennsylvania, it still provides a good living, and it puts food on the table.

This bill makes sense—common sense.

It provides a use for coal refuse, generates electricity, and protects jobs.

And it will allow us to reclaim land previously mined, which means it has a positive impact on the environment.

And when that land is reclaimed, it can again be put to use, and placed back on the tax rolls, making it good for local government.

I urge support for the SENSE Act.

Mr. UPTON. Mr. Chair, today we have another opportunity to say yes to energy and protect jobs with H.R. 3797, the SENSE Act. This sensible bill will help coal refuse-to-energy facilities continue their work producing energy while addressing the nation's coal refuse problem.

Vast mounds of coal refuse sit near many abandoned coal mines throughout coal country, and they pose a serious threat to air and water quality as well as to public safety. But through American ingenuity, coal refuse-to-energy plants have been developed that actually use this harmful waste product to generate electricity. The end product is ash, which is environmentally safe and used to reclaim the land.

There are 19 such plants in operation today that are producing energy and jobs while providing a practical solution to the coal refuse problem that would otherwise cost billions of dollars to address.

Unfortunately, there are two EPA rules targeting all coal-fired power plants that are causing some problems. Coal refuse-to-electricity plants are very different than conventional coal-fired plants and may not be able to meet these EPA rules which are geared toward the conventional plants. As a result, the future of these facilities and their environmental and economic benefits is now in danger.

Thankfully, Mr. ROTHFUS of Pennsylvania has spearheaded a solution. The SENSE Act still requires coal refuse-energy-plants to reduce their emissions, but creates new compliance methods more appropriate for this technology. This would allow these plants to continue operating, to the great benefit to the communities where these facilities are located.

The SENSE Act is about as commonsense as they get. I urge all my colleagues to support this pro-energy, pro-jobs, and strongly pro-environment bill.

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The CHAIR. All time for general debate has expired.

Pursuant to the rule, the bill shall be considered for amendment under the 5-minute rule. The bill shall be considered as read.

The text of the bill is as follows:

H.R. 3797

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Satisfying Energy Needs and Saving the Environment Act'' or the ''SENSE Act''.

SEC. 2. STANDARDS FOR COAL REFUSE POWER PLANTS.

(a) DEFINITIONS.—In this Act:

(1) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Environmental Protection Agency.

(2) BOILER OPERATING DAY.—The term ''boiler operating day'' has the meaning given such term in section 63.10042 of title 40, Code of Federal Regulations, or any successor regulation.

(3) COAL REFUSE.—The term ''coal refuse'' means any byproduct of coal mining, physical coal cleaning, or coal preparation operation that contains coal, matrix material, clay, and other organic and inorganic material.

(4) COAL REFUSE ELECTRIC UTILITY STEAM GENERATING UNIT.—The term ''coal refuse electric utility steam generating unit'' means an electric utility steam generating unit that—

(A) is in operation as of the date of enactment of this Act;

(B) uses fluidized bed combustion technology to convert coal refuse into energy; and

(C) uses coal refuse as at least 75 percent of the annual fuel consumed, by heat input, of the unit.

(5) COAL REFUSE-FIRED FACILITY.—The term ''coal refuse-fired facility'' means all coal refuse electric utility steam generating units that are—

(A) located on one or more contiguous or adjacent properties;

(B) specified within the same Major Group (2-digit code), as described in the Standard Industrial Classification Manual (1987); and

(C) under common control of the same person (or persons under common control).

(6) CROSS-STATE AIR POLLUTION RULE.—The terms ''Cross-State Air Pollution Rule'' and ''CSAPR'' mean the regulatory program promulgated by the Administrator to address the interstate transport of air pollution in parts 51, 52, and 97 of title 40, Code of Federal Regulations, including any subsequent or successor regulation.

(7) ELECTRIC UTILITY STEAM GENERATING UNIT.—The term ''electric utility steam generating unit'' means either or both—

(A) an electric utility steam generating unit, as such term is defined in section 63.10042 of title 40, Code of Federal Regulations, or any successor regulation; or

(B) an electricity generating unit or electric generating unit, as such terms are used in CSAPR.

(8) PHASE I.—The term ''Phase I'' means, with respect to CSAPR, the initial compliance period under CSAPR, identified for the 2015 and 2016 annual compliance periods.

(b) APPLICATION OF CSAPR TO CERTAIN COAL REFUSE ELECTRIC UTILITY STEAM GENERATING UNITS.—

(1) COAL REFUSE ELECTRIC UTILITY STEAM GENERATING UNITS COMBUSTING BITUMINOUS COAL REFUSE.—

(A) APPLICABILITY.—This paragraph applies with respect to any coal refuse electric utility steam generating unit that—

(i) combusts coal refuse derived from the mining and processing of bituminous coal; and

(ii) is subject to sulfur dioxide allowance surrender provisions pursuant to CSAPR.

(B) CONTINUED APPLICABILITY OF PHASE I ALLOWANCE ALLOCATIONS.—In carrying out CSAPR, the Administrator shall provide that, for any compliance period, the allocation (whether through a Federal implementation plan or State implementation plan) of sulfur dioxide allowances for a coal refuse electric utility steam generating unit described in subparagraph (A) is equivalent to the allocation of the unit-specific sulfur dioxide allowance allocation identified for such unit for Phase I, as referenced in the notice entitled ''Availability of Data on Allocations of Cross-State Air Pollution Rule Allowances to Existing Electricity Generating Units'' (79 Fed. Reg. 71674 (December 3, 2014)).

(C) RULES FOR ALLOWANCE ALLOCATIONS.—For any compliance period under CSAPR that commences on or after January 1, 2017, any sulfur dioxide allowance allocation provided by the Administrator to a coal refuse electric utility steam generating unit described in subparagraph (A)—

(i) shall not be transferable for use by any other source not located at the same coal refuse-fired facility as the relevant coal refuse electric utility steam generating unit;

(ii) may be transferable for use by another source located at the same coal refuse-fired facility as the relevant coal refuse electric utility steam generating unit;

(iii) may be banked for application to compliance obligations in future compliance periods under CSAPR; and

(iv) shall be surrendered upon the permanent cessation of operation of such coal refuse electric utility steam generating unit.

(2) OTHER SOURCES.—

(A) NO INCREASE IN OVERALL STATE BUDGET OF SULFUR DIOXIDE ALLOWANCE ALLOCATIONS.—For purposes of paragraph (1), the Administrator may not, for any compliance period under CSAPR, increase the total budget of sulfur dioxide allowance allocations for a State in which a unit described in paragraph (1)(A) is located.

(B) COMPLIANCE PERIODS 2017 THROUGH 2020.—For any compliance period under CSAPR that commences on or after January 1, 2017, but before December 31, 2020, the Administrator shall carry out subparagraph (A) by proportionally reducing, as necessary, the unit-specific sulfur dioxide allowance allocations from each source that—

(i) is located in a State in which a unit described in paragraph (1)(A) is located;

(ii) permanently ceases operation, or converts its primary fuel source from coal to natural gas, prior to the relevant compliance period; and

(iii) otherwise receives an allocation of sulfur dioxide allowances under CSAPR for such period.

(c) EMISSION LIMITATIONS TO ADDRESS HYDROGEN CHLORIDE AND SULFUR DIOXIDE AS HAZARDOUS AIR POLLUTANTS.—

(1) APPLICABILITY.—For purposes of regulating emissions of hydrogen chloride or sulfur dioxide from a coal refuse electric utility steam generating unit under section 112 of the Clean Air Act (42 U.S.C. 7412), the Administrator—

(A) shall authorize the operator of such unit to elect that such unit comply with either—

(i) an emissions standard for emissions of hydrogen chloride that meets the requirements of paragraph (2); or

(ii) an emission standard for emissions of sulfur dioxide that meets the requirements of paragraph (2); and

(B) may not require that such unit comply with both an emission standard for emissions of hydrogen chloride and an emission standard for emissions of sulfur dioxide.

(2) RULES FOR EMISSION LIMITATIONS.—

(A) IN GENERAL.—The Administrator shall require an operator of a coal refuse electric utility steam generating unit to comply, at the election of the operator, with no more than one of the following emission standards:

(i) An emission standard for emissions of hydrogen chloride from such unit that is no more stringent than an emission rate of 0.002 pounds per million British thermal units of heat input.

(ii) An emission standard for emissions of hydrogen chloride from such unit that is no more stringent than an emission rate of 0.02 pounds per megawatt-hour.

(iii) An emission standard for emissions of sulfur dioxide from such unit that is no more stringent than an emission rate of 0.20 pounds per million British thermal units of heat input.

(iv) An emission standard for emissions of sulfur dioxide from such unit that is no more stringent than an emission rate of 1.5 pounds per megawatt-hour.

(v) An emission standard for emissions of sulfur dioxide from such unit that is no more stringent than capture and control of 93 percent of sulfur dioxide across the generating unit or group of generating units, as determined by comparing—

(I) the expected sulfur dioxide generated from combustion of fuels emissions calculated based upon as-fired fuel samples; to

(II) the actual sulfur dioxide emissions as measured by a sulfur dioxide continuous emission monitoring system.

(B) MEASUREMENT.—An emission standard described in subparagraph (A) shall be measured as a 30 boiler operating day rolling average per coal refuse electric utility steam generating unit or group of coal refuse electric utility steam generating units located at a single coal refuse-fired facility.

The CHAIR. No amendment to the bill shall be in order except those printed in part B of House Report 114–453. Each such amendment may be offered only in the order printed in the report, by a Member designated in the report, shall be considered read, shall be debatable for the time specified in the report, equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

AMENDMENT NO. 1 OFFERED BY MR. PALLONE

The CHAIR. It is now in order to consider amendment No. 1 printed in part B of House Report 114–453.

Mr. PALLONE. Mr. Chairman, I offer my amendment.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike sections 2(a)(6), 2(a)(8), and 2(b) and redesignate accordingly.

Amend section 2(a)(7) to read as follows:

(7) ELECTRIC UTILITY STEAM GENERATING UNIT.—The term ''electric utility steam generating unit'' means an electric utility steam generating unit, as such term is defined in section 63.10042 of title 40, Code of Federal Regulations, or any successor regulation.

The CHAIR. Pursuant to House Resolution 640, the gentleman from New

Jersey (Mr. PALLONE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New Jersey.

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume in support of my amendment.

This is a targeted amendment that strikes section 2(b) from the bill. This section deals with EPA's Cross-State Air Pollution Rule, also known as CSAPR. This is one of the most important Clean Air Act rules in recent years. It protects the health of millions of Americans by requiring upwind States in the eastern and central United States to reduce power plant emissions that cause air quality problems in downward States.

As I have mentioned before during general debate, an important feature of CSAPR is the trading program that allows sources in each State to meet emission budgets in many different ways, including trading of emission allowances. This approach reduces the overall cost of compliance, while ensuring reduction in air pollution.

I mentioned previously during general debate that the Committee on Energy and Commerce held a legislative hearing on this bill on February 3. At that hearing, the EPA and John Walke from the Natural Resources Defense Council provided testimony that described a number of policy and technical issues with this section of the bill, and I just want to touch on a few of them now.

First, by allocating emission allowances to waste coal units that cannot be traded, the SENSE Act would eliminate economic incentives to reduce toxic air pollution at these waste coal units.

Second, by reallocating allowances from other sources within the State to waste coal units and then limiting the ability to transfer or trade these additional allowances to other facilities, the bill would choose winners—that is, the waste coal plants—and losers—that is, all other coal plants in a given State.

Third, by interfering with the conditions of the CSAPR market, compliance costs would increase for covered facilities.

Now, the SENSE Act would also remove a State's right to determine the appropriate method of compliance with CSAPR. To be more specific, currently, under the Clean Air Act, an individual State may choose to reduce emissions from power plants based on EPA's CSAPR framework, or they can choose to comply with the rule by reducing emissions based on a framework the State develops and the EPA approves.

One of the most egregious aspects of the bill's CSAPR provision—and it is one that I am surprised my Republican colleagues would support—is that, if the bill were to become law, it would actually take this power away from the States and give it to the EPA. Or, to put it another way, the SENSE Act would wrest control away from States to make these basic decisions for the first time in the 39-year history of the Clean Air Act's interstate air pollution program.

EPA also pointed out that the SENSE Act would deny States control over allocations of allowances by rendering any submitted State plan with a different allocation to these units unapprovable. So why supporters of this bill would want to change a successful EPA program to make it less flexible and more costly is beyond me. The CSAPR provisions of the bill make unnecessary changes to the rule since States already have the power to help out waste coal plants if they want to.

So, again, I urge my colleagues to join me in supporting this amendment to strike the CSAPR portion of this SENSE Act.

I reserve the balance of my time.

Mr. WHITFIELD. Mr. Chairman, I rise in opposition to the amendment.

The CHAIR. The gentleman from Kentucky is recognized for 5 minutes.

Mr. WHITFIELD. Mr. Chairman, I yield 5 minutes to the gentleman from Pennsylvania (Mr. ROTHFUS).

Mr. ROTHFUS. Mr. Chairman, this amendment is not warranted because any change in a State's compliance cost will be very low. There are only 19 coal refuse-to-energy facilities in the United States, mostly small, under 100 megawatts, and only a subset will avail themselves of the bill's provisions. We are only talking about four States: West Virginia, Pennsylvania, Utah, and Montana.

The bill merely reallocates emission allowances under the Cross-State Air Pollution Rule from other plants to coal refuse-to-energy facilities. This will help ensure the continued operation of these plants but is unlikely to have much of a cost impact.

As was stated in an earlier debate, this bill does what the EPA should have done. It creates provisions that are realistic and achievable for coal refuse-to-energy facilities. Both the Clean Air Act and the EPA regulations promulgated under it routinely divide regulated entities into separate categories that are treated differently based on their unique characteristics.

Coal refuse-to-energy facilities have many such unique characteristics and should have been treated as a separate category in EPA rulemakings. It was discretionary for them not to, the Court held, but that doesn't mean they should not have. And it is the policymaking branch of this government, this Congress, this Article I branch, where the people should have a say in how they are governed. They were not accommodated in the EPA rulemakings, and the SENSE Act addresses that omission.

Any modest costs, Mr. Chairman, are more than offset by the jobs, energy, and especially the environmental benefits of keeping the coal refuse-to-energy fleet in operation. States' environmental regulators estimate the cost of addressing coal refuse to be approximately $2 billion in Pennsylvania alone, and that is just for cleanup.

When one of these coal piles catch fire and the damage that is done—and when they are on fire, there is no control, Mr. Chairman. There is no control. Nothing is being eliminated as these waste coal piles burn. When the waste coal is being used by the energy industry in these plants, there are controls in place.

Finally, with respect to giving States flexibility, everything has to be approved by the EPA, Mr. Chairman. That is illusory. It could take 2 years for the EPA to approve a State plan. In the meantime, the plants close, the progress stops, and the people lose their jobs.

I would urge a vote ''no'' on this amendment.

Mr. WHITFIELD. Mr. Chairman, I yield back the balance of my time.

Mr. PALLONE. Mr. Chairman, I urge support for the amendment.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from New Jersey (Mr. PALLONE).

The question was taken; and the Chair announced that the noes appeared to have it.

Mr. PALLONE. Mr. Chairman, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from New Jersey will be postponed.

AMENDMENT NO. 2 OFFERED BY MR. PALLONE

The CHAIR. It is now in order to consider amendment No. 2 printed in part B of House Report 114–453.

Mr. PALLONE. Mr. Chairman, as the designee of the gentleman from New York (Mr. ENGEL), I offer amendment No. 2.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 8, after line 23, insert the following new paragraph:

(3) APPLICABILITY.—This subsection shall not apply with respect to a State if the Governor of the State, or the head of the authority that implements CSAPR for the State, makes a determination, and notifies the Administrator, that implementation of this subsection will increase the State's overall compliance costs for CSAPR.

The CHAIR. Pursuant to House Resolution 640, the gentleman from New Jersey (Mr. PALLONE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New Jersey.

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume.

Last month, the Energy and Power Subcommittee held a hearing that identified numerous flaws in the SENSE Act, and this amendment is designed to correct two of them.

If the SENSE Act were to become law, waste coal facilities would be able to emit more than their fair share of pollution under the Cross-State Air Pollution Rule, known as CSAPR. Specifically, section 2(b) of the SENSE Act

would reserve emission credits for waste coal plants, thereby prohibiting them from being traded under the CSAPR trading system.

According to Janet McCabe, the Acting Assistant Administrator for the Office of Air and Radiation at EPA, this would remove the economic incentives to reduce emissions and ultimately increase the cost of compliance. Section 2(b) would also interfere with the State's right to determine how to best comply with the rule, instead putting those decisions in the hands of the EPA Administrator. Not only are these changes harmful, but they are also unnecessary because the State that wishes to give a break to waste coal units can already do so under the rule.

So this bill, as written, would take longstanding State authority, transfer it to the Federal Government, and then use that authority to pick winners and losers; and it does all of this while increasing the cost of compliance. This amendment would allow a State to opt out of section 2(b) of the SENSE Act if it determines that implementation of the subsection would increase the State's overall compliance cost.

I urge my colleagues to protect the integrity of the CSAPR rule and support this amendment.

I reserve the balance of my time.

Mr. WHITFIELD. Mr. Chairman, I rise in opposition to the amendment.

The CHAIR. The gentleman from Kentucky (Mr. WHITFIELD) is recognized for 5 minutes.

Mr. WHITFIELD. Mr. Chairman, I yield 5 minutes to the gentleman from Pennsylvania (Mr. ROTHFUS).

Mr. ROTHFUS. Mr. Chairman, I would just point out that what we are looking at here is that the SENSE Act seeks to accomplish what the EPA should have done in creating special categories.

Again, if you are looking at compliance costs, any costs are going to be low. And then when you combine that with the requirement to seek EPA approval and the delays that that would incur, these plants will be closed, the environmental progress will stop, and challenged communities will be further challenged.

These are solid, good-paying, family-sustaining jobs in these plants. We know that while some plants are in compliance, others are not.

So, again, this SENSE Act seeks to do what the EPA should have done from the very beginning and create appropriate categorization.

Mr. WHITFIELD. Mr. Chairman, I reserve the balance of my time.

Mr. PALLONE. Mr. Chairman, how much time do I have remaining?

The CHAIR. The gentleman from New Jersey has 3½ minutes remaining.

Mr. PALLONE. Mr. Chairman, I yield 3 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Chairman, I rise in opposition to the underlying bill but in support of the Engel amendment. It is perfect, good sense giving the Governor of a State the ability to opt out of the section of the bill that modifies the Cross-State Air Pollution Rule if the Governor determines that implementing those provisions would increase the overall cost of complying with the rule.

There goes, if you will, the underlying problem of this bill. There has been no determination as to the burden of this particular bill, and I oppose it.

I oppose it in particular because the bill would undermine the emissions limits for hazardous acid gasses from those established under the MATS, leading to increased health and environmental impacts from increased emissions of hydrogen chloride, hydrogen fluoride, and other harmful acid gasses and sulfur dioxide.

Specifically, the CSAPR and MATS protect the health of millions of Americans by requiring the reduction of harmful power plant emissions, including the air toxics and emissions that contribute to smog and fine particle pollution. The pollution reduction from CSAPR and MATS have real-life impacts: prevention of thousands of premature deaths, asthmatic attacks, and heart attacks.

I would offer to say, as a member of the Homeland Security Committee, we are always dealing with toxics as it relates to chemical plants and protecting the homeland in the area of security, but we also need to protect them in the area of good quality health care.

I would argue that this bill would economically advantage coal refuse EGUs over other EGUs, reduce compliance choices for other State units, and distort the economic incentives of coal refuse EGUs to reduce emissions. Also, the allowances allocated to coal refuse EGUs would be unavailable for use by any other sources.

I ask my colleagues to oppose this legislation. I don't believe that this bill will be considered in the Senate. I don't believe that it will be considered for signature by the White House.

I would offer to say that, besides the budget and the appropriations process that is ongoing, we in this Congress need to deal with the restoration of the Voting Rights Act and provide for section 5. Let's get to work on things impacting the American people, creating more jobs, as opposed to providing poor quality of life, poor quality of air for our citizens throughout this Nation.

Once again, I support the Engel amendment.

Mr. Chair, I rise in strong opposition to H.R. 3797—Satisfying Energy Needs and Saving the Environment (SENSE) Act.

I oppose this unwise and unnecessary legislation for several reasons.

H.R. 3797, would threaten the health of Americans by requiring changes to the Environmental Protection Agency's (EPA) Cross-State Air Pollution Rule (CSAPR) and the Mercury and Air Toxics Standards (MATS) for electric generating units (EGUs) that use coal refuse as their main fuel source.

In doing this, H.R. 3797 would restrict the market-based approach currently used to allocate sulfur dioxide emission allowances issued under the CSAPR, thereby raising the costs of achieving the pollution reduction required by the rule.

This bill also would undermine the emissions limits for hazardous acid gases from those established under the MATS, leading to increased health and environmental impacts from increased emissions of hydrogen chloride, hydrogen fluoride, other harmful acid gases, and sulfur dioxide.

Specifically, CSAPR and MATS protect the health of millions of Americans by requiring the reduction of harmful power plant emissions, including air toxics and emissions that contribute to smog and fine particle pollution.

The pollution reductions from CSAPR and MATS have real life impacts: prevention of thousands of premature deaths, asthma attacks, and heart attacks.

Let me also underscore that an important feature of the CSAPR is its trading program which allows power plants to meet emission budgets in different ways, including by trading emissions allowances between emission sources within a State and some trading across States.

This market-based approach reduces the cost of compliance while ensuring reductions in air pollution for citizens across the CSAPR region.

I oppose H.R. 3797 because it would create an uneven playing field by picking winners and losers in CSAPR compliance.

Indeed, this bill establishes a special market of CSAPR allowances for EGUs that burn coal refuse and prohibits the trading of allowances allocated to coal refuse EGUs, which would interfere with and manipulate market conditions.

Specifically, H.R. 3797 would: economically advantage coal refuse EGUs over other EGUs by giving them allowances that would otherwise have been allocated to others; reduce compliance choices for other State units; and distort the economic incentives of coal refuse EGUs to reduce emissions.

Also, the allowances allocated to coal refuse EGUs would be unavailable for use by any other sources.

This will result in the aggregate, in less efficient and more costly CSAPR compliance.

Finally, I oppose H.R. 3797 because it would interfere with existing opportunities under the CSAPR for each State to control the allocation of allowances among its EGUs.

Instead of wasting time supporting this bill, I urge my colleagues to join me in focusing on more important issues affecting our nation: more jobs for Americans in the energy and other sectors, energy security and independence and utilization of innovation in energy to solve some of the contemporary issues we face in our country.

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Mr. WHITFIELD. Mr. Chairman, I yield the balance of my time to the gentleman from Pennsylvania (Mr. ROTHFUS).

Mr. ROTHFUS. Mr. Chairman, I would just respond to the gentlewoman from Texas. She mentioned the word ''burdensome.'' What is really burdensome is the way that these rules are being applied. When the EPA had a chance to do a customized approach, they chose not to.

Why is it burdensome? It is burdensome because there are plants that will not be able to comply, which means the environmental progress that we have seen will stop, which means that their jobs will be lost.

I do note that there is bipartisan support for this initiative. Both Senators CASEY and TOOMEY, on the other side of this Capitol, from the Commonwealth of Pennsylvania—one a Republican, one a Democrat—recognize the practicality of this approach. They recognize that the legislation makes sense.

For that reason, Mr. Chairman, I urge a ''no'' vote on the amendment.

Mr. WHITFIELD. Mr. Chairman, I yield back the balance of my time.

Mr. PALLONE. I yield myself the balance of my time.

Mr. Chairman, I would urge a ''yes'' vote on this amendment.

The underlying bill is another unnecessary special interest bill that undermines Clean Air Act regulations. The bill, if it were to reach the President's desk, will be vetoed.

We should be using our time to move forward with the many other issues that need to be addressed in this Congress. Our water infrastructure is in dire need of repair and maintenance. We have Superfund and brownfield sites that need to be cleaned up and returned to productive use. States need support for modernizing and hardening the electricity grid, and there are still many Americans who are unemployed or underpaid for the work that they are doing. All of these things, especially the infrastructure issues, must be addressed by Congress. They impact every person, every State, and every industry in the country.

Instead of wasting time on bills like the SENSE Act, we should get to work on these important issues that will support economic growth and job creation throughout the country.

Mr. Chairman, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from New Jersey (Mr. PALLONE).

The question was taken; and the Chair announced that the noes appeared to have it.

Mr. PALLONE. Mr. Chairman, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from New Jersey will be postponed.

AMENDMENT NO. 3 OFFERED BY MR. BERA

The CHAIR. It is now in order to consider amendment No. 3 printed in part B of House Report 114–453.

Mr. BERA. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 11, after line 17, insert the following new section:

SEC. 3. GAO REPORT.

Not later than 90 days after the date of enactment of this Act, the Comptroller General of the United States shall issue a report detailing the increase in emissions of sulfur dioxide and other air pollutants that will result from implementation of this Act and the effect of such emissions on public health.

The CHAIR. Pursuant to House Resolution 640, the gentleman from California (Mr. BERA) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. BERA. Mr. Chairman, my amendment is simple. It would require the Government Accountability Office, a nonpartisan government watchdog, to complete a report on the impact this legislation would have on public health.

I look at this from the perspective of a doctor and public health expert, and one of my guiding principles as a doctor is to make sure we protect the public health.

Coal refuse plants not only increase the amount of pollution in our air, they also use a power source which is less efficient than normal coal and contains higher levels of mercury. Exposure to sulfur dioxide and other pollutants such as mercury have been known to increase risks of cardiovascular disease and respiratory illnesses, including aggravated asthma, bronchitis, and heart attacks.

My amendment would require the GAO to investigate whether this legislation would increase emissions of sulfur dioxide and other pollutants.

I strongly believe the EPA plays an important role in protecting the health of our families and our environment from dangerous pollutants. While we should be mindful about the impact of regulations on our economy, we have a responsibility to address urgent threats to the planet, such as climate change, and we have a responsibility to make sure legislation that is being passed protects our public health.

This legislation before us today would hamper the EPA's ability to limit dangerous pollution and protect public health, and it will also slow down our transition to clean energy. That is why I introduced my amendment today, to ensure that we know the true impact this bill would have on public health and on our environment.

Mr. Chairman, I reserve the balance of my time.

Mr. WHITFIELD. Mr. Chairman, I claim the time in opposition to the amendment.

The CHAIR. The gentleman from Kentucky is recognized for 5 minutes.

Mr. WHITFIELD. Mr. Chairman, I do rise in opposition to this amendment. This amendment would require a GAO report detailing an increase, if any, in sulfur dioxide and other emissions and the effect of implementing the legislation on public health.

Now, this legislation has come about because of two EPA rules—the Cross-State Air Pollution Rule and the Mercury and Air Toxics Standards rule—and I might say that the SENSE Act does not change in any way the caps on the sulfur dioxide. That would basically remain the same. Coal refuse-to-energy plants are negligible emitters of mercury. In fact, EPA testified that by closing down the coal refuse plants, there would not be any significant benefit on the mercury side. All of the benefits come from the reduction in fine particulate matter, and we are not addressing that.

I would point out once again that 214 million tons of this refuse have already been cleaned up. If we allow these regulations to go into effect and these plants close down, those refuse piles will not be cleaned up, 1,200 people will lose their jobs, 4,000 indirect people will lose their jobs, and $84 million in payroll will be lost.

EPA has admitted that there is no significant environmental benefit, and they had the opportunity to set up a special category for these coal refuse plants, all of which are less than 100-megawatt plants. They are very small. There are only 19 in the country, 14 in one State.

The gentleman from Pennsylvania and others from Pennsylvania have asked Congress to intervene to help them on this matter. For that reason, I would respectfully oppose the gentleman's amendment and ask that the amendment be defeated.

Mr. Chairman, I yield back the balance of my time.

Mr. BERA. Mr. Chairman, I urge my colleagues to support this amendment. It is a no-nonsense amendment that will allow us to know the impact on public health.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from California (Mr. BERA).

The question was taken; and the Chair announced that the noes appeared to have it.

Mr. BERA. Mr. Chairman, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from California will be postponed.

AMENDMENT NO. 4 OFFERED BY MR. PETERS

The CHAIR. It is now in order to consider amendment No. 4 printed in part B of House Report 114–453.

Mr. PETERS. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 11, after line 17, insert the following new section:

SEC. 3. PUBLIC NOTICE.

Not later than 90 days after the date of enactment of this Act, the Administrator shall give notice of the anticipated effects of this Act on air quality to all States, municipalities, towns, tribal governments, or other governmental entities in areas that—

(1) include or are adjacent to a coal refuse electric utility steam generating unit to which this Act applies; or

(2) are likely to be affected by air emissions from such a unit.

The CHAIR. Pursuant to House Resolution 640, the gentleman from California (Mr. PETERS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. PETERS. Mr. Chairman, the existing Cross-State Air Pollution Rule set new standards for the emission of sulfur dioxide based on public health risks.

Under this rule, States can choose to comply by adapting new technologies or employing cleaner energy sources. Today's bill would raise the acceptable levels threshold for sulfur dioxide emissions from one source, coal waste plants, allowing them to pour more of these pollutants into our air.

It props up coal waste plants, thereby undermining flexibility for States to meet public health targets. It also distorts the ability of the market to determine which energy sources are most sustainable, cost effective, and meet the public's need.

The underlying bill would pick winners and losers by favoring waste coal-burning power plants at the expense of other power sources. If coal waste plants can adapt and reduce their emissions to help States meet these targets, then they should do so; but short of that, the market is determining that there are more efficient ways to produce energy.

Congress should not subsidize any energy source that does not compete with innovative and cleaner options that also better protect our children's health; but if this bill is going to raise these limits and allow more pollutants to be emitted, we should be honest with the communities that will be affected. My amendment requires the EPA to inform the general public and municipalities adjacent to waste coal plants about the anticipated effects of this bill on air quality not later than 90 days after its enactment.

According to the American Lung Association, sulfur dioxide can cause breathing problems, exacerbate asthma symptoms, and reduce lung function. Exposure to sulfur dioxide has been connected to an increased risk of hospital admissions, especially among children, seniors, and people with asthma. This puts families' health at risk in the communities downwind and nearby.

Last month I visited Flint, Michigan, with my colleagues, where we saw the devastating effects of keeping the public in the dark.

Americans have a right to know how this legislation is going to affect the quality of the air they breathe.

I urge my colleagues to support my amendment.

I yield back the balance of my time.

Mr. ROTHFUS. Mr. Chairman, I rise in opposition to the amendment.

The CHAIR. The gentleman from Pennsylvania is recognized for 5 minutes.

Mr. ROTHFUS. Mr. Chairman, if we could take a look at this amendment, this amendment would require the EPA Administrator to notify affected States and localities of any anticipated effects of the legislation on air quality.

The issue is the SENSE Act prohibits any increase in covered emissions, so any impact on air quality will be very limited. The SENSE Act mandates that sulfur dioxide emissions stay within the EPA-approved caps so there can be no increase above approved levels.

Coal refuse-to-energy plants are negligible emitters of mercury, and the bill requires emissions reductions of hydrogen chloride and other compounds only at a rate achievable for this type of facility.

The proposed amendment is one-sided, as it ignores the air and water quality benefits from reducing the coal refuse problem, including reducing the risk of heavily polluting coal refuse fires that can affect many State and local governments. For example, this amendment would not require the EPA Administrator to notify affected communities of what happens when a coal refuse pile catches on fire and there is an uncontrolled release of pollutants into the environment.

We should be focused on ensuring that these innovative refuse-to-energy facilities can continue to operate and reduce the serious water and air quality problems posed by coal refuse.

I urge a ''no'' vote on this amendment.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from California (Mr. PETERS).

The amendment was rejected.

AMENDMENT NO. 5 OFFERED BY MR. VEASEY

The CHAIR. It is now in order to consider amendment No. 5 printed in part B of House Report 114–453.

Mr. VEASEY. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end, add the following new section:

SEC. 3. EFFECTIVE DATE.

This Act may not go into effect until the Administrator certifies that implementation of this Act will not cause or result in an increase of emissions of air pollutants that adversely affect public health, including by increasing incidents of respiratory and cardiovascular illnesses and deaths, such as cases of heart attacks, asthma attacks, and bronchitis.

The CHAIR. Pursuant to House Resolution 640, the gentleman from Texas (Mr. VEASEY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. VEASEY. Mr. Chairman, I rise today in support of my amendment to H.R. 3797, the so-called Satisfying Energy Needs and Saving the Environment Act. This bill is anything but that.

What this bill does do is that it gives special breaks under two very important Clean Air Act rules and allows certain power plants to spew out as much nasty pollution as they wish to. These power plants, which use waste coal, still emit all the toxic substances a regular coal plant does, and they absolutely should not get a pass.

If the SENSE Act passes, it will significantly affect air quality. This is not some radical assertion, and it has stood up to the scrutiny of the courts. These rules, the Cross-State Air Pollution Rule and the Mercury and Air Toxics Standards rule, are two important rules for protecting public health from toxic air pollutants like mercury and sulfur dioxide.

If this bill were to become law, waste coal facilities would be able to pollute at a higher rate than any other power plants. There are many pieces of particulate matter emitted by coal plants, such as sulfur dioxide, mercury, and others, and science has clearly shown that air pollutants such as these cause severity when it comes to asthma, bronchitis, and even can contribute to heart attack risk. My amendment protects the most vulnerable from these adverse health effects.

□ 1530

My amendment today would ensure that public health is front and center in this conversation, which it needs to be. Air quality is an issue that affects the most vulnerable among us.

When you think about it, children, pregnant women, and the elderly are some of the members of our society that are most at risk when it comes to respiratory diseases from toxic emissions, such as sulfur dioxide. My amendment ensures that the effects of air quality are taken into account before enactment of the SENSE Act.

Mr. Chairman, I know a thing or two about this. I don't know how often you get to Dallas-Fort Worth, but when you come to our area, despite all the jobs and prosperity that we have, we have some of the absolute worst smog in the entire country.

This amendment would serve to protect vulnerable populations by ensuring their health is not in danger if this bill becomes law.

Also, only after their health has been deemed safe may the Administrator of the Environmental Protection Agency allow this law to go into effect.

There are so many different economic costs when it comes to asthma, Mr. Chairman. The Centers for Disease Control and Prevention alone estimates that asthma costs the United States $56 billion each year when it comes to treating people for asthma, particularly our young children with asthma.

So at the end of the day, what I want to do, Mr. Chairman, is make sure that the least that we do in this House is to make sure that everybody can breathe clean air. I don't think that that is asking for too much.

If my Republican colleagues truly believe the public health of our Nation will not be affected by this bill, they

will have no problem voting for my amendment.

Mr. Chairman, I yield back the balance of my time.

Mr. WHITFIELD. Mr. Chairman, I claim time in opposition to the amendment.

The CHAIR. The gentleman from Kentucky is recognized for 5 minutes.

Mr. WHITFIELD. Mr. Chairman, I do rise in opposition to the gentleman's amendment.

I would remind everyone that we are talking about 19 coal refuse plants around the country. They have already cleaned up 214 million tons of coal refuse that are creating significant environmental problems.

The SENSE Act does not change or increase in any way the sulfur dioxide emission caps. So it does not have any impact on that.

The EPA itself said that the only benefit from their Cross-State Air Pollution Rule and their sulfur dioxide emission rule would be the reduction in particulate matter, which is regulated in another aspect of the Clean Air Act, and the SENSE Act does not affect or have any impacts on that.

So even the EPA has said that this is not really an issue of polluting or endangering the clean air. They simply made a decision that they were not going to have a subcategory to deal with these plans.

The gentleman's amendment would require the EPA Administrator to certify that the act would not result in the increase in emission of air pollutants. They have already basically said that.

One thing that he does not look at in his amendment is the tremendous benefits that the public is receiving by the cleaning up of these coal refuse piles around the country.

So, for those reasons, we respectfully oppose the gentleman's amendment. I would remind everyone once again that the SENSE Act is designed to clean up these environmental problems, protect 1,200 direct jobs and 4,000 indirect jobs and an $84 million payroll, all doing so without increasing any emissions toxics to the American people.

For that reason, I would respectfully oppose the gentleman's amendment.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. VEASEY).

The question was taken; and the Chair announced that the noes appeared to have it.

Mr. VEASEY. Mr. Chairman, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Texas will be postponed.

ANNOUNCEMENT BY THE CHAIR

The CHAIR. Pursuant to clause 6 of rule XVIII, proceedings will now resume on those amendments printed in part B of House Report 114–453 on which further proceedings were postponed, in the following order:

Amendment No. 1 by Mr. PALLONE of New Jersey.

Amendment No. 2 by Mr. PALLONE of New Jersey.

Amendment No. 3 by Mr. BERA of California.

Amendment No. 5 by Mr. VEASEY of Texas.

The Chair will reduce to 2 minutes the minimum time for any electronic vote after the first vote in this series.

AMENDMENT NO. 1 OFFERED BY MR. PALLONE

The CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from New Jersey (Mr. PALLONE) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 166, noes 224, not voting 43, as follows:

[Roll No. 118]

AYES—166

Adams
Aguilar
Amash
Ashford
Bass
Beatty
Bera
Beyer
Bonamici
Boyle, Brendan F.
Brown (FL)
Brownley (CA)
Bustos
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Fincher
Foster
Fudge
Gabbard
Gallego
Graham
Grayson
Green, Al
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Pelosi
Perlmutter
Peters
Pingree
Pocan
Poliquin
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Walz
Wasserman Schultz
Watson Coleman
Wilson (FL)
Yarmuth

NOES—224

Abraham
Aderholt
Allen
Amodei
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blum
Bost
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Emmer (MN)
Farenthold
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Gosar
Gowdy
Graves (GA)
Graves (LA)
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Katko
Kelly (MS)
Kelly (PA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin

NOT VOTING—43

Babin
Becerra
Blackburn
Blumenauer
Boustany
Brady (PA)
Butterfield
Costa
Davis, Danny
Duckworth
Edwards
Ellmers (NC)
Frankel (FL)
Garamendi
Goodlatte
Granger
Graves (MO)
Gutiérrez
Hartzler
Herrera Beutler
Johnson (GA)
Joyce
King (IA)
Lipinski
Marino
Matsui
Payne
Polis
Roskam
Rush
Scott, David
Sessions
Sinema
Smith (NJ)
Smith (WA)
Takai
Thompson (MS)
Turner
Visclosky
Waters, Maxine
Welch
Wenstrup
Zinke

□ 1555

Messrs. MESSER, WESTERMAN, Mrs. BLACK, Messrs. HUELSKAMP, HANNA, PEARCE, JORDAN, FITZPATRICK, and GENE GREEN of Texas changed their vote from ''aye'' to ''no.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

Stated for:

Ms. SINEMA. Mr. Chair, during rollcall vote No. 118 on H.R. 3797, I was unavoidably detained. Had I been present, I would have voted "yes."

Ms. EDWARDS. Mr. Chair, during rollcall vote No. 118 on H.R. 3797, I was unavoidably detained. Had I been present, I would have voted "yes."

Stated against:

Mr. GOODLATTE. Mr. Chair, on rollcall No. 118, I was unavoidably detained. Had I been present, I would have voted "no."

AMENDMENT NO. 2 OFFERED BY MR. PALLONE

The CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from New Jersey (Mr. PALLONE) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 175, noes 233, not voting 25, as follows:

[Roll No. 119]

AYES—175

Adams
Aguilar
Amash
Ashford
Bass
Beatty
Bera
Beyer
Bonamici
Boyle, Brendan F.
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Gibson
Graham
Grayson
Green, Al
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Poliquin
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—233

Abraham
Aderholt
Allen
Amodei
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin

NOT VOTING—25

Babin
Becerra
Blackburn
Blumenauer
Brady (PA)
Davis, Danny
Duckworth
Ellmers (NC)
Garamendi
Graves (MO)
Gutiérrez
Herrera Beutler
Joyce
Lipinski
McNerney
Meadows
Polis
Ribble
Roskam
Rush
Smith (WA)
Takai
Velázquez
Wenstrup
Zinke

ANNOUNCEMENT BY THE CHAIR

The CHAIR (during the vote). There is 1 minute remaining.

□ 1559

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 3 OFFERED BY MR. BERA

The CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from California (Mr. BERA) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 179, noes 235, not voting 19, as follows:

[Roll No. 120]

AYES—179

Adams
Aguilar
Ashford
Bass
Beatty
Bera
Beyer
Bishop (GA)
Bonamici
Boyle, Brendan F.
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross

O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—235

Abraham
Aderholt
Allen
Amash
Amodei
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—19

Babin
Becerra
Blackburn
Blumenauer
Brady (PA)
Davis, Danny
Duckworth
Ellmers (NC)
Graves (MO)
Gutiérrez
Herrera Beutler
Joyce
Lipinski
Roskam
Rush
Smith (WA)
Takai
Waters, Maxine
Wenstrup

ANNOUNCEMENT BY THE CHAIR

The CHAIR (during the vote). There is 1 minute remaining.

□ 1604

Mr. HIMES changed his vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 5 OFFERED BY MR. VEASEY

The CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Texas (Mr. VEASEY) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 182, noes 234, not voting 17, as follows:

[Roll No. 121]

AYES—182

Adams
Aguilar
Ashford
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—234

Abraham
Aderholt
Allen
Amash
Amodei
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder

Yoho	Young (IA)	Zeldin
Young (AK)	Young (IN)	Zinke

NOT VOTING—17

Babin	Ellmers (NC)	Roskam
Becerra	Graves (MO)	Rush
Blackburn	Gutiérrez	Smith (WA)
Brady (PA)	Herrera Beutler	Takai
Davis, Danny	Joyce	Wenstrup
Duckworth	Lipinski	

ANNOUNCEMENT BY THE CHAIR

The CHAIR (during the vote). There is 1 minute remaining.

□ 1608

So the amendment was rejected.

The result of the vote was announced as above recorded.

The CHAIR. There being no further amendments, under the rule, the Committee rises.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. WOMACK) having assumed the chair, Mr. WESTMORELAND, Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 3797) to establish the bases by which the Administrator of the Environmental Protection Agency shall issue, implement, and enforce certain emission limitations and allocations for existing electric utility steam generating units that convert coal refuse into energy, pursuant to House Resolution 640, reported the bill back to the House.

The SPEAKER pro tempore. Under the rule, the previous question is ordered.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Ms. ADAMS. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentlewoman opposed to the bill?

Ms. ADAMS. Mr. Speaker, I am opposed to the bill in its current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Ms. Adams moves to recommit the bill H.R. 3797 to the Committee on Energy and Commerce, with instructions to report the same back to the House forthwith, with the following amendment:

At the end, add the following new section:

SEC. 3. EFFECTIVE DATE.

This Act shall not take effect until the Administrator certifies that implementation of this Act will not result in an increase in air emissions that—

(1) harms brain development or causes learning disabilities in infants or children; or

(2) increases mercury deposition to lakes, rivers, streams, and other bodies of water, that are used as a source of public drinking water.

The SPEAKER pro tempore. The gentlewoman from North Carolina is recognized for 5 minutes.

Ms. ADAMS. Mr. Speaker, this is the final amendment to the bill, which will not kill the bill or send it back to committee. If adopted, the bill will immediately proceed to final passage, as amended.

Mr. Speaker, my amendment is a critical improvement that would help protect American children in our most vulnerable communities.

This unnecessary bill would weaken both the Cross-State Air Pollution Rule and the Mercury and Air Toxics Standards by allowing waste coal plants to emit more sulfur dioxide. Health risks from exposure to sulfur dioxide can cause breathing problems, reduced lung function, and asthma exacerbations.

I think about the children in Mecklenburg County that I represent who are already suffering from high asthma rates. This bill would further put their health at risk as well as the communities both near waste coal plants and downwind.

Communities with limited resources and political clout are often low-income communities and communities of color. We must ensure, together, that these communities and their unique needs have a voice when it comes to environmental health policy so that we bolster their resilience and reduce the impacts of future disasters.

As representatives of the people, only negligence and apathy could lead us to ignore the risks that this bill poses to human health and the environment.

If my amendment passes, it would make sure that an increase in emissions will not harm brain development or cause learning disabilities in infants or children and will protect our Nation's sources of public drinking water from mercury pollution.

Research shows that babies and children who are exposed to mercury may suffer damage to their developing nervous systems, hurting their ability to think, to learn, and to speak.

Have we not been paying attention?

Just look at North Carolina. It took a disastrous spill of coal ash into the Dan River to make it clear that we were not doing a good enough job to protect our communities and our waterways.

Look at the children and the families in Flint who will never be the same because we failed to protect their basic human right of access to clean water.

How could this be a 21st century issue in America? And what has this body done to help?

Not much.

When will it stop?

Republicans and Democrats, alike, voted in 1990 to strengthen the Clean Air Act to require dozens of industry sectors to install modern pollution controls on their facilities. Since then, EPA has set emissions standards that simply require facilities to use pollution controls that others in their industry are already using. But a few major industrial sources so far have escaped regulation, and the Republicans appear to be on a mission to help them continue to evade emissions limits on toxic air pollution.

This bill is just another Republican handout: weakening the rule and allowing more toxic air pollution and more of these types of health hazards. It favors polluting industries at the expense of Americans and air quality.

Moreover, the bill sets a very dangerous precedent that could open the floodgates to other special treatment bills, creating loopholes and lax treatment that may cause additional health hazards that the Mercury and Air Toxics Standards now prevent. This bill is toxic, and it will be the knife in our children's back.

My amendment will improve the bill by putting the health and safety of our Nation's children first instead of allowing Republicans to continue their assault on the health of our Nation. I urge my colleagues to support it.

□ 1615

Mr. ROTHFUS. Mr. Speaker, I rise in opposition to the motion to recommit.

The SPEAKER pro tempore. The gentleman from Pennsylvania is recognized for 5 minutes.

Mr. ROTHFUS. Mr. Speaker, as the father of six children, I, too, am very concerned about environmental risk to our kids, and I am very concerned about the ending of the environmental progress of what we have seen in the refuse-to-energy industry to date.

Let me be clear. There is no change because of the SENSE Act in overall changes on SO_2, and there is no issue with mercury because these plants already comply with the mercury requirements.

We need to consider the health of our communities if these facilities close. This is a reasonable, balanced, and commonsense approach. Let's not circle the wagons and say no to continued cleanup on the hillsides of Pennsylvania. Let's not say no to restoring streams. Let's not say no to the jobs that these plants represent.

Mr. Speaker, my district is in danger and my constituents are at risk unless this bill passes. Coal refuse piles that have persisted for generations catch fire and burn uncontrollably, spewing toxic pollutants into the air.

Acid mine drainage leaches into rivers and streams, turning them orange and destroying wildlife. Great mountains of coal refuse reminiscent of moonscapes feature prominently in the countryside, looming over towns, school yards, and farms.

Without the hard work of the men and women of the coal refuse-to-energy industry, work that includes painstaking remediation, this problem would be far worse. Yet, EPA regulations that are blind to this industry's unique circumstances threaten to bring their work to an end.

You would think our environmental regulatory agencies and conservation-minded Members of Congress would be eager to find a viable solution to addressing this environmental problem and protecting vulnerable communities across coal country.

Some Members of this body, it seems, choose not to acknowledge the challenges faced by the coal refuse-to-energy industry. They look past the overwhelming good done by these plants as they seek to impose their environmental orthodoxy.

It would seem, based on this afternoon's debate, that preventing uncontrolled coal refuse fires, ruined waterways, and environmental degradation is outweighed by an unflinching attachment to inflexible and unfair Washington environmentalist dogma.

Contrary to what the SENSE Act's opponents claim, these facilities will be forced to close if we fail to provide them with reasonable and achievable emissions limits.

It may interest some in this Chamber that the SENSE Act has typically been a bipartisan proposal. In fact, both of Pennsylvania's Senators—Republican PAT TOOMEY and Democrat BOB CASEY—previously introduced an amendment that was much broader than the conservative and restrained bill on the House floor today. Despite it being a far more aggressive proposal, the Casey-Toomey amendment earned the support of a majority of Senators.

Back home, organizations that work to actually address Pennsylvania's environmental issues have rallied to the SENSE Act. Both the Western and Eastern Pennsylvania Coalition for Abandoned Mine Reclamation have endorsed my bill. Watershed groups have also issued letters of support.

Some today have wrongly argued that the SENSE Act picks winners and losers, that it somehow advantages small, endangered coal refuse-to-energy facilities.

Somehow, in the minds of the bill's opponents, David became Goliath. They fail to see that the issue at hand concerns a small socially beneficial industry unfairly battered by an all-powerful regulatory giant and fighting for survival.

What is most striking about the opposition's mischaracterization is that the EPA has created winners and losers through its inflexible implementation of these rules in which they refuse to treat these plants as a separate category.

The SENSE Act merely recognizes what the EPA should have acknowledged a long time ago, that coal refuse facilities are different from traditional coal-fired power plants.

This bill eliminates the EPA's unfairness by giving these facilitates a realistic chance of complying with air quality rules.

Some today have suggested that the States could simply address this issue on their own, that my bill gets in the way of State autonomy. In fact, States have little to no autonomy in administering CSAPR, since any requested change must be approved by the EPA.

According to the SENSE Act's opponents, the EPA, which has thus far refused to provide flexibility for these plants, would somehow have a change of heart and decide to approve State-requested policy changes. I find that hard to imagine.

Some have also charged that the SENSE Act would threaten air quality, forgetting that this legislation specifically avoids causing any increase in State SO_2 allocations.

More importantly, without the remediation work fueled by this industry, the uncontrolled and environmentally catastrophic coal refuse pile fires that are far too common will only continue. The unregulated emissions from these fires are a greater concern to public health.

It is unfair that some in Washington have pursued an unfair and uncompromising orthodoxy on this issue and have derided in their zeal an overwhelmingly successful private sector solution to a pressing environmental challenge.

The SENSE Act is about protecting vulnerable coal country communities from pollution and environmental degradation. It is about standing up for over 5,200 family-sustaining jobs, many of which are in areas that have experienced economic hardship. These jobs come with names: Robert, John, Tim, James, Pat.

I urge approval of this legislation.

I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

RECORDED VOTE

Ms. ADAMS. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, this 5-minute vote on the motion to recommit will be followed by a 5-minute vote on passage of the bill, if ordered.

The vote was taken by electronic device, and there were—ayes 173, noes 236, not voting 24, as follows:

[Roll No. 122]

AYES—173

Adams
Aguilar
Ashford
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Edwards
Ellison
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Wilson (FL)
Yarmuth

NOES—236

Abraham
Aderholt
Allen
Amash
Amodei
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)

Ros-Lehtinen
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—24

Babin
Bass
Becerra
Blackburn
Brady (PA)
Davis, Danny
Duckworth
Ellmers (NC)
Engel
Graves (MO)
Gutiérrez
Herrera Beutler
Hoyer
Joyce
Lipinski
Pelosi
Rice (NY)
Roskam
Rush
Smith (WA)
Stivers
Takai
Welch
Wenstrup

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1626

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. PALLONE. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 231, noes 183, not voting 19, as follows:

[Roll No. 123]

AYES—231

Abraham
Aderholt
Allen
Amodei
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—183

Adams
Aguilar
Amash
Ashford
Bass
Beatty
Bera
Beyer
Blumenauer
Bonamici
Boyle, Brendan F.
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cummings
Curbelo (FL)
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (NJ)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—19

Babin
Becerra
Blackburn
Brady (PA)
Davis, Danny
Duckworth
Ellmers (NC)
Graves (MO)
Gutiérrez
Herrera Beutler
Joyce
Lipinski
Rice (NY)
Roskam
Rush
Sanford
Smith (WA)
Takai
Wenstrup

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1631

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

RECOGNIZING PENN STATE UNIVERSITY'S BIG TEN WRESTLING TITLE

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise to congratulate the Penn State Nittany Lion wrestling team on earning its fifth Big Ten wrestling title in the past 6 years.

The Lions scored 150.5 points to win the title over Iowa earlier this month, which was just one-half point shy of its school record. Beyond the title itself, Penn State wrestler Zain Retherford was named Big Ten Wrestler of the Year, and Jason Nolf won the conference's Freshman of the Year award. Penn State coach Cael Sanderson was also named Coach of the Year.

With a Big Ten title on the books, the focus shifts this week to the NCAA National Championships in New York City. Nine members of the team will compete for the university's fifth national title in 6 years, mirroring their Big Ten success.

I wish these young men the best of luck as they compete in New York City this week, and I congratulate them on their achievement in securing the Big Ten title.

VICTIMS OF GUN VIOLENCE

(Mr. PETERS asked and was given permission to address the House for 1 minute.)

Mr. PETERS. Mr. Speaker, Mountain, Alabama, November 16, 2015: Pamela Oshel, 49 years old.

Tyrone, Missouri, November 18, 2015: Darrell Dean Shriver, 68 years old; Garold Dee Aldridge, 52; Harold Wayne Aldridge, 50; Janell Arlisa Aldridge, 48; Julie Ann Aldridge, 47; Carey Dean Shriver, 46; Valirea Love Shriver, 44.

Manchester, Connecticut, December 8, 2013: Artara Benson, 46 years old;

Brittany Mills, 28; Kamesha Mills, 23 years old.

Manson, Washington, March 10, 2015: Jose Rodriguez, 58 years old; Maria Sedano, 50; Edgar Costumbre, 24.

Glade Spring, Virginia, February 25, 2014: Terry Griffin, 75 years old; Nancy Griffin, 74; Kristin Palmer, 46; Kevin Palmer, 44; Griffin Palmer, 17.

Fontana, California, December 31, 2013: Silvia Miranda, 34 years old; Rayna Miranda, 10; Ramon Miranda, Jr., 12 years old.

GOVERNMENT SPIES ON CITIZENS

(Mr. POE of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. POE of Texas. Mr. Speaker, in a secret court, the FBI quietly revised its privacy policy for searching through data that is collected on Americans by the NSA. The NSA, which I call the National Surveillance Agency, gives the FBI access to not only the data it collects but to the content of personal communications, like emails, texts, and phone calls.

What the intelligence agencies have been doing is lawfully collecting information on foreign terrorists but, at the same time, creating large databases of information that also contains information on American citizens. This identifying information is then used for what the FBI calls routine searches that are unrelated to national security.

Mr. Speaker, the FBI does not obtain a court-approved Fourth Amendment warrant for these searches. This leeway by the NSA and the FBI allows for a backdoor to spy on Americans. Thus, the FBI is ignoring the U.S. Constitution.

The NSA and the FBI will continue to violate the constitutional protections that are guaranteed to all Americans unless Congress intervenes and protects and upholds the right of privacy of all Americans.

And that is just the way it is.

WOMEN'S HISTORY MONTH

(Ms. LORETTA SANCHEZ of California asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. LORETTA SANCHEZ of California. Mr. Speaker, I rise to commemorate Women's History Month.

As one of the 108 women in Congress today, I am thankful to follow the trail blazed by so many American women who demanded the right to vote and participate in our democracy.

I am inspired by recent historic milestones, for example, of the first women ever who are graduating from the Army's elite Ranger school and of the Department of Defense, which is finally expanding all combat roles to qualified servicewomen. These achievements are further proof that women can break any barrier if they are given the chance, if they are willing to, and if they are given the support and opportunity to do so.

Unfortunately, today's widespread social and economic inequalities disproportionately hurt American women. In 2016, a typical woman in America earns only 79 cents to the dollar that a man earns. Over a lifetime, that is $400,000 of wages lost, and she risks losing her job if she needs to care for her children or sick family members.

So we take this month to thank America's women, but there is a lot more to do.

CONGRATULATING DUNBAR HIGH SCHOOL

(Mr. VEASEY asked and was given permission to address the House for 1 minute.)

Mr. VEASEY. Mr. Speaker, I rise to congratulate Dunbar High School for its recent advancement to the UIL 5A Texas State basketball tournament.

Dunbar High School has been recognized throughout the years for both its academic and athletic achievements, with the fine Wildcats' basketball success being the latest. The Wildcats were led by Coach Robert Hughes, Jr., and they fought their way all the way to the State tournament in San Antonio, Texas. The team entered unranked and as one of only two qualifiers that were unranked.

Dunbar, a three-time champion, is no stranger to big games, with their last trip being in 2007. They won the UIL State Basketball Championship in 1963, 1965, 1967, 1993, 2003, and 2006. Back in the sixties and early nineties, they were under the leadership of Coach Robert Hughes, Sr.

Today I am proud to recognize the success of Dunbar High School's basketball team and their outstanding 23–12 record. They have made Fort Worth very proud, and I wish the program continued success.

VETERANS WHO RETURN HOME WITH THE MENTAL WOUNDS OF WAR

The SPEAKER pro tempore (Mr. BUCK). Under the Speaker's announced policy of January 6, 2015, the gentleman from New York (Mr. ZELDIN) is recognized for 60 minutes as the designee of the majority leader.

GENERAL LEAVE

Mr. ZELDIN. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous materials on the topic of this Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. ZELDIN. Mr. Speaker, tonight I rise on behalf of our veterans who return home with the mental wounds of war.

For generations, we have sent our sons and daughters into harm's way. For generations, they have served this country honorably. They don't come home in the same way they left. There were generations who came back to the United States who didn't even receive a ''thank you.'' There was not even a handshake or a hug waiting for them.

For our Vietnam veterans who are watching at home, we say to this day, ''welcome home,'' because when they first came home, they were spat on. Fortunately, we have learned a lesson from that generation. For me and my generation, as we return from Iraq and Afghanistan, there is a ''thank you,'' but there is so much more that needs to be done.

That is why we are here tonight for this Special Order. It is on behalf of our veterans who return home with the mental wounds of war.

Each and every one of our congressional districts is home to these veterans. For me, I represent Suffolk County, New York, on the east end of Long Island. We are proud of not only having the highest veterans' population of any county in New York, but of having the second highest veterans' population of any county in the country.

We have veterans who come home to family, to friends, and to people with whom they work who don't understand what it is their loved one or colleague is going through. Isolated and alone, too many of our veterans are losing their struggles with posttraumatic stress disorder and traumatic brain injury, and there is so much more that each and every one of us can do on their behalf.

Tonight is a bipartisan Special Order. We are joined by my colleague from Arizona, who has led the fight on a national level on behalf of men and women from all corners of this country who are struggling with recoveries from suicide attempts, and who has led in the effort to prevent that attempt in the first place.

I yield to the gentlewoman from Arizona (Ms. SINEMA).

□ 1645

Ms. SINEMA. Mr. Speaker, I thank Congressman ZELDIN for organizing this Special Order hour and for bringing attention to this important issue.

An estimated 22 American veterans die by suicide every day. These men and women are our neighbors and our friends, our sons and our daughters, our mothers and our fathers.

Veteran suicide is too important an issue to be overshadowed by bipartisan politics. It is why we have come together tonight to show our commitment to veterans who have given so much to keep America safe.

We must do more—Congress, the VA, the American public—to end the epidemic of veteran suicide and to ensure veterans and their families have access to the best possible mental health care. This is a responsibility we all share.

That is why I support Congressman ZELDIN's legislation, the PFC Joseph P.

Dwyer Veterans Peer Support program, to expand access to peer-to-peer counseling for veterans.

A battle buddy can open the door to the care and support a veteran needs, and we must support efforts to expand the availability and accessibility of mental health care. No one who returns home from serving our country should ever feel like he or she has nowhere to turn.

I have often shared this story of a young veteran in my district, Sergeant Daniel Somers. Sergeant Somers was an Army veteran with two tours in Iraq.

Diagnosed with a traumatic brain injury and post-traumatic stress disorder, Sergeant Somers ultimately took his own life after struggling with the VA bureaucracy and not getting the help he needed in time.

Together with the Somers family, we have worked to develop legislation to ensure that all veterans, including those with classified experiences, get immediate access to mental health services in the appropriate care setting.

The Daniel Somers Act was combined with Congresswoman JULIA BROWNLEY's Female Veteran Suicide Prevention Act and passed unanimously by the House of Representatives.

Senator JON TESTER introduced companion legislation in the Senate, and we continue to work to get this bill signed into law.

I pledge to continue working with my colleagues to ensure that no veteran feels trapped like Sergeant Somers did and that all of our veterans have access to appropriate mental health care.

Mr. Speaker, I thank Congressman ZELDIN for his work on behalf of our veterans and for hosting this bipartisan Special Order on veterans mental health care.

Mr. ZELDIN. Mr. Speaker, I commend Representative SINEMA for her efforts on behalf of the Somers family.

We lose a lot of our sons and daughters in harm's way, and there is reflection for that family as to what that sacrifice accomplished. I guess it depends on the year, the place, the circumstances.

But the Somers family knows that they have a champion here fighting on their behalf so that the sacrifice was not for naught. A legacy is left behind that those who struggle moving forward might have a helping hand.

I thank Ms. SINEMA for her advocacy not just on behalf of the Somers family in her district, but for all of our veterans who need more help all across America.

At this time, I would like to recognize the gentleman from Pennsylvania (Mr. ROTHFUS) and thank him for his efforts in his home State and for joining this cause tonight on behalf of our veterans who not only are going to benefit from the immediate effort of this Chamber with all the different ideas that are before it now, but really for the decades and generations still to serve ahead.

I yield to the gentleman from Pennsylvania (Mr. ROTHFUS).

Mr. ROTHFUS. Mr. Speaker, I thank the gentleman from New York for his service to this country, having himself put on the uniform prior to his coming to this Congress.

He is one of the greatest assets we have in this Chamber. It is just a real pleasure to have gotten to know him over the last year and a half and to call him a friend.

When this country makes a decision to send people to war, we need to understand that the people own that decision. What does that mean?

It means, when we put people out in harm's way, our servicemen and servicewomen, we better be there when they come home. It is the principle of solidarity. They stand for us. We have to stand for them.

I am joining this Special Order today because I want to again bring attention to this serious issue that should trouble everyone's conscience.

We have been made painfully aware in the past several years that the VA has failed in a number of ways to adequately serve our Nation's veterans. As I understand it, while most Americans are patriotic, too few have taken the time to develop empathy for what our veterans go through, especially in combat.

Mr. Speaker, everyone in America needs to be engaging our veterans. This is all hands on deck. We all know veterans. It is good to ask them about their service and to walk with them.

As I have talked to veterans across my district, I asked for some emails from them because I knew I was going to be coming to have this Special Order.

''The United States isn't united in purpose,'' one veteran explained to me. ''We're divided, fighting a global war with a peacetime mindset. Americans have never been farther away from our Nation's veterans . . . from what it takes to defend our Nation's freedom. The true cost of war is lost on most.''

The failure to understand what veterans have gone through is not just characteristic of the broader population, but it is also a problem at the VA, an agency that should strive to fully understand the experience of our servicemen and -women so that they can better serve them.

Many veterans suffering with mental health issues as a result of traumas experienced during their service have too often been left to fend for themselves.

In fact, the VA has come up short so often it has risen to the level of a scandal, with an estimated 22 veteran deaths per day, or over 8,000 annually, as a result of mental health issues.

One young veteran told me about the condescending and patronizing language used by some—let me emphasize some—VA staff.

There are VA staff on the front lines who are very dedicated and very committed to serving our veterans. It is disturbing that we would have some who don't see it that way.

He told me that one staff stooped so low as to call veterans bums when they were seeking financial assistance during hard times.

It is outrageous and painful to think that men and women who are willing to die for this country are not being treated with the utmost dignity and respect. But that is the tragic reality, and it is unacceptable.

The good news is that we can and must do better. I have heard directly from veterans in my district about what they believe can be done to improve this startling trend.

I have been working to reform the VA throughout my time in Congress to improve its standards and ensure quality service for our veterans by increasing accountability within the agency. Beyond this, however, there are commonsense and innovative ways we can help veterans.

One of them is to facilitate veteran peer support programs. Veterans want to help each other. Because while many VA employees may have never served in the military, the men and women of our Armed Forces have experiences in common that civilians do not share.

Less than 1 percent of Americans serve in the military and fewer still see combat. They truly understand each other. They speak each other's language, so to speak. The VA should not be an obstacle to veterans coming to each others' aid.

Another veteran told me this: ''Peer-to-peer counseling for combat veterans is a critical aspect of a multifaceted approach to healing an invisible wound that lacks a universal fix.

''The universal nature of recognizing that the veteran is not alone: acknowledgement other veterans have faced the same problems and situations, and hope from their stories of triumph over their demons, enables the combat veteran to take the critical steps of admitting to themselves they have a problem.''

It helps them take the ''seemingly hardest step of admitting they are not in a hopeless situation,'' this veteran told me.

He also told me, ''Peer-to-peer counseling helps the counselor as much as the counseled via preservation of camaraderie and the fulfillment of helping their own.''

Far too many veterans experience hopelessness and isolation even though they do not have to. This needs to change, and I am sure that we can do better for the men and women who risked everything to protect our way of life.

Mr. Speaker, the VA's inadequacies are unacceptable, and the agency should embrace commonsense solutions to provide veterans with higher quality, effective treatment and opportunities for healing.

I laud my colleague, Representative ZELDIN, for his PFC Joseph Dwyer Veterans Peer Support program. As I

looked at this legislation, inevitably, you go look at who Joseph Dwyer was.

I would encourage this country to look at that and to look for the other Joseph Dwyers, to look and reach out to those who have served empathetically.

To our veterans who may be watching today, you are not alone. Thank you for your service.

Mr. Speaker, I thank Representative ZELDIN for his service and for his work on this important piece of legislation. I look forward to further consideration by this House.

Mr. ZELDIN. Mr. Speaker, I thank the gentleman literally for every single word and for his passion and advocacy on behalf of all the veterans not only in his district, but in mine and elsewhere.

It is so incredibly important for the words that we just heard to be echoed throughout this Chamber and inspiration to be found for some of what are great ideas to actually come into effect.

Because while there is one Joseph Dwyer who served our country, as the gentleman just pointed out, there are numerous Joseph Dwyers all around America who have not yet lost their struggles.

Now, it is interesting because we so often call those who lose their bouts with the mental wounds of war—we call it suicide. Joseph Dwyer's last words were, ''I don't want to die.'' He was huffing, trying to get temporary relief from his pain.

The struggles with post-traumatic stress disorder led to him losing his life, and he left behind a young widow and a 2-year-old daughter.

There are Joseph Dwyers all around America who have not yet left behind young children and young widows. It is our duty in this House to fight for them with whatever energy and inspiration that we can find within us to ensure that what starts as a good idea becomes law.

The PFC Joseph Dwyer Veterans Peer Support program is not a new idea. It may be a new idea for this Chamber. We created it in New York State back in 2012. At that time, I was in the New York State Senate, and we created it as part of the 2012–2013 State budget.

As we just heard from the gentleman from Pennsylvania, veteran-to-veteran peer support, veterans helping veterans, is the key.

We started the program in four counties in New York: Suffolk County, which is my home county; Jefferson County, home of the 10th Mountain Division, Fort Drum; Rensselaer County; and Saratoga County.

The program was so successful in these four counties and, by the way, operating at just $200,000 per county. Here in Washington, we talk about programs in the billions, the trillions, and the hundreds of millions.

In my home county, we helped hundreds of veterans in just that first year. Hundreds of veterans were helped, over 400, and $200,000.

We know firsthand how many lives were saved as a result. It was so successful. It started in four counties and expanded to over a dozen. In New York State, we are so proud of the Dwyer program.

I just came to Congress. This is my first term. I was sworn in January of 2015. There may be no other mission during my time here in this Chamber that will be more satisfying for me personally than to do my part to hopefully save at least one veteran's life. But there are so many more that can be saved if this Chamber takes up this bill and makes it law.

It doesn't matter whether you live in one of the most populated counties in America of veterans, like Suffolk, or if you live in a county that might not be that well populated overall anywhere else in this country.

If you raised your hand and you are willing to lay down your life in protection of our freedoms and liberties for that flag, for everything that makes our country great, to protect it and defend it, when you come home, you should have shoes on your feet.

□ 1700

There should be food on your table. There should be a roof over your head. Some come home with the physical wounds of war; others come home with the mental wounds of war.

Our veterans are fighting for us, all of us—not just for their family or friends, but for strangers, too. Isn't it our duty while we are here, as elected representatives, to be fighting for not just those veterans with the mental wounds of war whom we know, but the countless others who are under the radar right now? They are under the radar because they don't know where to go for help.

Within our communities, we have veterans. We have veterans service organizations—you know, like the VFW, the American Legion, the Vietnam Veterans of America, the list goes on—and we have mental health professionals who want to offer their services. We have others who may want to provide a venue for a meeting, others who may want to provide food.

The setting is not that hard to put into place. For someone from our community who may live around the block from any Member of this Chamber, the setting is not that hard to put together for that veteran to go to that room and be with maybe 8, 10 veterans, understanding the struggles that they are going through so that they can share each other's stories and help each other cope with what are the mental wounds of war. It is our duty; it is our opportunity to be able to bring these veterans together and to save lives.

As was noted earlier, the statistics are staggering: an estimated 22 veteran deaths per day—22. That is 8,000 in a year. It was just about a month ago when the Department of Veterans Affairs indicated that 17 of these 22 individuals weren't even in the VA system.

Some don't go for help because they don't know where to go; others might fear the consequences. What is so important is, with the Dwyer program, maintaining confidentiality so our veterans won't fear that they might lose their job because they are going for help. That is incredibly important as well.

A recent New York University Medical Center report indicated over 270,000 Vietnam-era veterans still suffer from post-traumatic stress disorder. These figures are alarming. They are disturbing. The VA doesn't currently offer what we are talking about. This is different.

We are hearing about how some of our veterans are being helped because of pets—dogs, horses—fishing, other activities. Let's think outside the box. Let's not think of just the same way of doing things that have not worked inside the Department of Veterans Affairs. Let's do something different. We are not starting from scratch.

I would encourage any Member of this House to look at what we are doing in my home county of Suffolk. I am proud to say that we are leading the way in America, and there is a model there that works and should be replicated everywhere.

Staffing shortages, untrained support staff, lacking family support services and access to services during nonbusiness hours are just some of the problems that have been reported at the Department of Veterans Affairs.

I recently introduced legislation, H.R. 4513, which would expand nationally the PFC Joseph P. Dwyer Veterans Peer Support program. PFC Joseph Dwyer was from my district. His home was Mount Sinai, New York.

A lot of people know Joseph Dwyer because of an iconic photo from the start of the Iraq war. This picture was on national news. It was on the front cover of magazines. It was that iconic picture of that American soldier post-9/11 at the start of the war holding a wounded Iraqi boy as his unit was fighting its way up to Baghdad.

It looked like Joseph came home in one piece, a hero. While it may have seemed that he came home in one piece because he didn't have some of the physical wounds of war that we unfortunately see from other heroes, he came back with post-traumatic stress disorder.

PFC Dwyer died in 2008. Matina, his young widow, was left behind. Meaghan, his 2-year-old daughter, was left behind.

This was an effort that was launched in his honor, the PFC Joseph P. Dwyer Veterans Peer Support program. It is for our veterans with post-traumatic stress disorder and traumatic brain injury. It provides a safe, confidential, and educational platform where all veterans are welcome to meet with other veterans to build vet-to-vet relationships in support of one another's

successful transition from military life to post-service life.

We were able to conduct 148 group sessions, serving 450 veterans in my home county of Suffolk, just in the first year. Since 2013, the program has helped, now, into the thousands, as we count veterans from across New York with PTSD and TBI.

Through my bill, the Secretary of Veterans Affairs would be authorized to make grants to State and local entities to carry out peer-to-peer mental health programs. The bill would secure $25 million over a 3-year period to establish a grant program at the VA that will provide up to $250,000 in funding for all selected entities, such as nonprofits, congressionally chartered VSOs, or State or local agencies to implement the peer-to-peer program.

Let's think about that—$250,000. The Denver VA Hospital construction project, originally budgeted for just over $600 million, is operating $800 million to $900 million over budget—$800 million to $900 million over budget.

The Department of Veterans Affairs came to a Committee on Veterans' Affairs hearing, which I am proud to serve on that committee, and they said that they are operating off what they referred to as an artificial budget. Has anyone ever heard of an artificial budget?

I had one colleague who was asking for when she was going to get a timeline of when we would have an actual budget. Unable to get an answer, she asked the follow-up question, not trying to embarrass the Department. She ended up asking the follow-up question of when she was going to get a timeline of when she was going to get a timeline of when we were going to have an actual budget.

When $800 million to $900 million ends up getting spent over budget, think of the hundreds of veterans in one county alone who could be helped for just $200,000. The money is there.

When the Secretary of the VA, when the Department of Veterans Affairs signs off on a relocation and incentive bonus for one of their own, whose position is in Washington, D.C., and she wants to go to Philadelphia, where her family is, and take over a position in charge of their Veterans Affairs hospital, she arranges a move to get the person, the gentleman in charge of the Philly VA hospital moved to Los Angeles. So now she gets the job she wanted. She is closer to family, and she gets herself a relocation and incentive bonus over $200,000.

The Office of Inspector General was outraged. They made a report recommending that this gets referred to the Department of Justice. The Department of Veterans Affairs was so outraged at this report from the inspector general that they ended up turning on their own inspector general, not referring anything to the Department of Justice.

One of the responsibilities of this House is oversight. You look at our Constitution. Article I is long, all the powers granted to Congress. Look at the powers of the President and the executive. It is short. Within that article, it talks about the oversight of this body, oversight to make sure that money is being spent appropriately, wisely, efficiently, and that people are held accountable when they are not doing the right thing on behalf of our veterans.

My bill would effectively and efficiently, as it has proven, provide 24/7 peer-to-peer mental health services by trained peer specialists for veterans, Reservists, and National Guardsmen wherever and whenever they are needed.

In addition, the Dwyer program will provide group and individual meetings to help foster a greater sense of inclusion and community amongst our veterans and, as I mentioned earlier, the program also addresses the many privacy concerns that veterans and other servicemembers have, as the Dwyer program representatives themselves will be veterans and would not be responsible to the Department of Veterans Affairs, therefore easing reporting concerns.

This is a bill that I have been working on since I took office in January 2015, working closely with the House Committee on Veterans' Affairs that I serve on, the American Legion, other VSOs, the National Disability Rights Network, various healthcare providers on Long Island, as well as my Veterans Advisory Panel, which is made up of representatives from veterans groups and veterans themselves.

I want to thank the Dwyer family for all the inspiration the sacrifice of Joseph has provided to so many in our community and our country, and for me included. There would not be a Dwyer program in the State of New York without the sacrifice of Joseph Dwyer.

I want to thank the county of Suffolk and specifically Tom Ronayne, who runs the Veterans Service Office, for the countless hours and the love that he and his team have put into this effort that we talk about here tonight on the House floor; to Chris Delaney, Joseph's friend, who has served our country as well as Tom has and has done so much through his work with 9–1–1 Veterans and also serving on my Veterans Advisory Panel.

I think of so many individuals who have given so much of their personal time to make this work. It is an honor to be here on behalf of that team advocating for this cause.

I unapologetically love my country. I believe that we live in the greatest Nation in the world. I will say that the highlight of my day during my time in Iraq was going back to my tent at the end of the day. There would be care packages waiting for us from strangers—8-year-olds, 9-year-olds from other corners of the country—with pictures of tanks and flags and soldiers, cards saying, ''Thank you for your service.'' The generation that came before me didn't get that treatment.

Just think. Right now we have servicemembers in Iraq, Afghanistan, and elsewhere who were 4 years old on 9/11. Their entire generation, it is all they know. They went through their entire life, from 4 years old to today, knowing exactly what they were signing up for; and actually knowing what they were signing up for gave them all the motivation and inspiration in the world they needed to put on that uniform.

It is a great feeling the first time you get to put on our Nation's uniform. For me, it wasn't a feeling that I had about myself when I looked in the mirror and I saw myself wearing a uniform. It was thinking of those generations who came before us, like our Nation's Greatest Generation. It is a challenge for our generation to earn the title of our Nation's next Greatest Generation. Maybe that generation is now serving here in this Chamber where 31 Members of the House are under the age of 40, including new Members who have come in who served in Iraq and Afghanistan.

□ 1715

As I think about that 8-year-old and 9-year-old who wrote that card to that stranger they did not know and as we stand here today enjoying our freedoms, we think of those who are in harm's way—strangers—we don't know them—they are going to come back after seeing things none of us would ever want to see in our lives. And will we be there for them?

Mr. Speaker, there is one other bill that was filed in this Chamber called the Fairness for Veterans Act. An Iraq veteran from Long Island, Kristofer Goldsmith, received a general discharge, which is a less-than-honorable discharge.

As a result, he doesn't have the same veterans benefits that someone who is separated with an honorable discharge would receive. He came back with post-traumatic stress disorder. He attempted to take his own life.

When your post-traumatic stress disorder ends up leading to a discharge with a less-than-honorable discharge, isn't it our responsibility to ensure that they have the ability to diagnose and treat their post-traumatic stress disorder?

What if they are applying for an upgrade of their discharge status? Should we put the burden on that veteran to prove that the circumstances that led to their discharge is connected to their post-traumatic stress disorder? No.

This bill addresses that by putting the burden on the government to show that the circumstances weren't connected to what led to that discharge.

We must fight for all our veterans who are willing to fight for us. My bills will bring much-needed support—the Dwyer Program and the Fairness for Veterans Act—to millions of veterans, if you think of all those not only serving now, but in the future, and their families.

Passing these bills and others to address veterans' mental health is of the highest priority for many of us in this Chamber. I will work every day in Congress to spread awareness of these two bills and gather cosponsors and the support of veterans groups and mental health organizations from all across the country so that we pass this bill as soon as possible.

One last word about our families. We often say thank you to our veterans, as we should. We say thank you to our first responders, our law enforcement, our volunteer firefighters, our EMTs.

There are so many people who try to give back and who believe in service because they love their community, their State, their country. They want to give back. They want to leave this place better than they found it.

When I was in Iraq this past Christmas, I met the Command Sergeant Major for the 82nd Airborne Division. He is on his 11th deployment. I spoke earlier about that veteran who was 4 years old on 9/11. We also have that Command Sergeant Major of the 82nd Airborne Division who was on his 11th deployment.

My daughters were born 14½ weeks early. They were less than a pound and a half when they were born. They spent their first 3½ months in the hospital. After they came out of the hospital—I was stationed at Fort Bragg, North Carolina, at the time—I came across this woman who had three sets of triplets. She lost one from each set. All six of her kids had special needs.

Her shopping cart was full. Her husband was on another deployment to Iraq. With a smile on her face, with a very positive attitude, she is telling my wife and I all the resources that were available to us on Fort Bragg so that we could be better parents.

That was the last time my wife or I would ever have the nerve to feel sorry for ourselves for what we were going through with our daughters. They came home with about a dozen medications and heart monitors. They were going through a hard time.

But this woman, with her husband on another deployment, her shopping cart full, with six special needs kids with her as she is walking through the Fort Bragg commissary, with that positive attitude and a smile on her face, helping us be better parents, I realized that, when she was going to go home, no one was going to be waiting with an outstretched hand and a hug and say: Thank you for your service.

These bills and this effort tonight are for our veterans and their families in need, and it is the way that we give back. This is how to say a proper thank you.

Mr. Speaker, I yield back the balance of my time.

PUBLICATION OF BUDGETARY MATERIALS

HOUSE OF REPRESENTATIVES,
COMMITTEE ON THE BUDGET,
Washington, DC, March 15, 2016.

Re Communication from the Chairman of the Committee on the Budget.

DEAR MR. SPEAKER: Section 3(h) of House Resolution 5 requires the concurrent resolution on the budget to include a section related to means-tested and non-means-tested direct spending programs. It also requires the Chair of the Committee on the Budget to submit a statement in the Congressional Record defining those terms prior to the consideration of such concurrent resolution on the budget.

Enclosed please find two tables prepared in order to fulfill this requirement. I have also included a communication and associated tables from the Director of the Congressional Budget Office, with whom I have consulted in the preparation of this material. While the non-means-tested list is not exhaustive, all programs not considered means-tested can be considered non-means-tested direct spending.

Sincerely,

TOM PRICE, M.D.,
Chairman,
Committee on the Budget.

U.S. CONGRESS,
CONGRESSIONAL BUDGET OFFICE,
Washington, DC, February 16, 2016.

Re Spending for Means-Tested Programs in CBO's Baseline, 2016–2026.

Hon. TOM PRICE, M.D.,
Chairman, Committee on the Budget, House of Representatives, Washington, DC.

DEAR MR CHAIRMAN: As you requested, enclosed are two tables that show federal spending for the government's major mandatory spending programs and tax credits that are primarily means-tested (that is, spending programs and tax credits that provide cash payments or other forms of assistance to people with relatively low income or few assets):

Table 1 shows CBO's January 2016 baseline projections for the 2016–2026 period.

Table 2 shows historical spending data from 2006 through 2015 along with CBO's estimates for 2016.

Each table also includes a line showing total spending for mandatory programs that are not primarily means-tested. (Some of those programs—the student loan programs, for example—have means-tested components, however.) The tables exclude means-tested programs that are discretionary (such as the Section 8 housing assistance programs and the Low Income Home Energy Assistance Program). However, each table shows discretionary spending for the Federal Pell Grant Program as a memorandum item because that program has discretionary and mandatory components and because the amount of the mandatory component depends in part on the amount of discretionary funding.

In The Budget and Economic Outlook: 2016 to 2026, which CBO published in January 2016, mandatory outlays for means-tested programs are projected to grow over the next decade at an average annual rate of 4.3 percent, compared with an average rate of 5.5 percent for non-means-tested programs, such as Social Security, most of Medicare, and civilian and military retirement programs (see Table 1). Mandatory outlays in 2016 will be boosted by an estimated shift of $39 billion in payments from fiscal year 2017 to 2016 (because October 1, 2016, falls on a weekend). If not for that shift, mandatory outlays for means-tested programs would grow over the next decade at an average annual rate of 4.4 percent, compared with 5.7 percent for non-means-tested programs. Compared with growth from 2007 through 2016, projected growth from 2017 to 2026 (adjusted for shifts in the timing of payments) is much lower for means-tested programs (which will have grown at an average rate of 7.2 percent from 2007 to 2016, by CBO's estimate). In contrast, projected growth for non-means-tested programs (which will have grown at an average rate of 4.8 percent from 2007 to 2016, CBO estimates) is almost one percentage point higher per year, in part because of the aging of the population (see Table 2).

Overall, the growth rates projected for total mandatory spending over the coming decade are slower than those of the past 10 years—by about one-half of a percentage point per year, on average. However, most of that difference results from the shift of some payments from 2017 to 2016. If not for that shift, the average growth rate projected for total mandatory spending over the coming decade would be 5.4 percent, equal to the rate recorded for the past 10 years.

A number of programs shown in Tables 1 and 2 have been or are scheduled to be significantly affected by changes in law. The most recent recession and the continuing recovery also exert an influence. As a result, important aspects of the programs in the future may differ significantly from experience over the past decade, and those differences may be the source of some of the variation between the growth rates in the past 10 years and those in the coming decade. For example, spending for several programs—Medicaid, the Children's Health Insurance Program (CHIP), subsidies for health insurance purchased through an exchange, the Supplemental Nutrition Assistance Program (SNAP), and the refundable portions of the earned income and child tax credits—has been or will be significantly affected by program changes that unfold over time:

Medicaid spending shot up by 35 percent from 2008 to 2010, during the most recent recession, both because of enrollment growth and as a result of a temporary increase in the federal matching rate. After dropping off a bit subsequently, that spending has been boosted by the expansion of Medicaid coverage under the Affordable Care Act. As that expansion has been phased in, spending for the program increased by 32 percent from 2013 to 2015 and is projected to rise by 9 percent in 2016. Under current law, the rate of growth in Medicaid spending would decline through 2019, CBO projects, after which it would largely level off at a rate of roughly 5 percent per year through the end of the projection period.

Under current law, spending authority for CHIP will expire at the end of fiscal year 2017. Consistent with statutory guidelines, CBO assumes in its baseline spending projections that annual funding for the program after 2017 will continue at $5.7 billion.[1] As a result, in CBO's baseline, spending for CHIP is projected to drop to $11 billion in 2018 and to about $6 billion in subsequent years; it had grown from $5 billion to $13 billion from 2006 to 2016.

Payments of subsidies for health insurance purchased through an exchange began in January 2014 and totaled $27 billion in fiscal year 2015. They are projected to continue to grow rapidly between 2016 and 2018, largely as a result of significant growth in enrollment. CBO and the staff of the Joint Committee on Taxation project annual growth averaging about 4 percent between 2019 and 2026.

SNAP spending increased markedly during the most recent recession—roughly doubling between 2008 and 2011—as more people became eligible for those benefits. In addition,

the American Recovery and Reinvestment Act of 2009 (ARRA) temporarily raised the maximum benefit under that program. The combination of higher enrollment and an increased benefit caused outlays to peak at $83 billion in 2013. Spending has fallen since then because subsequent legislation eliminated the increase in the maximum benefit (as of October 31, 2013) and because the program's caseload (which peaked in 2014) has declined. CBO expects that enrollment will continue to fall in each year of the projection period as the economy continues to improve. As a result, spending for SNAP is projected to decline slightly over the next several years, after growing by an average of 8 percent per year over the 2007–2016 period.

Outlays for the earned income and child tax credits rose by almost 40 percent from 2007 to 2008 and have grown slowly since then. Provisions expanding the refundability of those credits originally enacted in ARRA (and subsequently extended) recently were made permanent.[2] As a result, those outlays are projected to continue to grow slowly—by an average of about 2 percent per year—over the projection period.

Finally, because of the unusual budgetary treatment of the Pell grant program—which has mandatory and discretionary components—the growth rates for the mandatory portions of that program give incomplete information. The bulk of the funding is provided annually in appropriation acts and thus is discretionary. In recent years, spending for the program also has included two mandatory components that have allowed the discretionary budget authority provided by the regular appropriation acts to remain well below the full cost of the program.

In keeping with procedures that govern CBO's baseline, the projection for the discretionary portion of the Pell grant program is based on the budget authority appropriated for fiscal year 2016, adjusted for inflation. (That projection of discretionary spending is shown as a memorandum item in both tables.) Thus, the baseline projection for both discretionary and mandatory spending for Pell grants does not represent an estimate of the expected future costs of the program; such a projection also would account for such factors as award amounts, eligibility, and enrollment.

I hope that you find this information helpful. If you have any further questions, please contact me or my staff. The primary staff contact is Barry Blom.

Sincerely,

KEITH HALL,
Director.

Enclosures.

ENDNOTES

1. Under current law, funding for the program in 2017 consists of two semiannual allotments of $2.85 billion—amounts that are much smaller than the allotments made in the past. (The first semiannual allotment in 2017 will be supplemented by $14.7 billion in one-time funding for the program.) Following the rules prescribed by the Balanced Budget and Emergency Deficit Control Act of 1985, CBO extrapolates the $2.85 billion provided for the second half of the year to arrive at projected annual funding of $5.7 billion.

2. Refundable tax credits reduce a filer's overall income tax liability; if the credit exceeds the rest of the filer's income tax liability, the government pays all or some portion of that excess to the taxpayer. Those tax credits also affect the budget, to a lesser extent, by reducing tax revenues; those revenue effects are not shown in the tables.

TABLE 1—MANDATORY OUTLAYS IN CBO'S 2016 BASELINE

[Outlays by fiscal year, billions of dollars]

	2016	2017	2018	2019	2020	2021	2022	2023	2024	2025	2026	Average Annual Growth (Percent) 2017–2026
Means-Tested Programs:												
Health Care Programs:												
Medicaid	381	401	420	439	460	484	509	536	564	593	642	5.4
Medicare Part D Low-Income Subsidies	28	28	27	32	34	37	44	44	45	53	57	7.4
Health insurance subsidies [a, b]	39	57	67	70	71	74	79	82	86	89	93	9.1
Children's Health Insurance Program	13	13	11	6	6	6	6	6	6	6	6	−7.6
Subtotal	460	499	525	546	571	601	637	668	700	740	798	5.7
Income Security:												
Earned income and child tax credits [b, c]	83	82	82	84	86	88	91	93	95	97	99	1.8
SNAP	75	74	73	73	72	72	72	72	72	73	74	−0.1
Supplemental Security Income	59	56	53	60	61	63	70	67	64	71	74	2.2
Family support and foster care [d]	31	32	32	33	33	33	34	34	34	35	35	1.1
Child nutrition	23	24	25	26	27	28	29	30	32	33	34	4.2
Subtotal	271	267	265	274	280	285	296	296	297	309	317	1.6
Veterans' pensions	6	6	6	7	7	7	8	7	7	8	8	2.9
Pell Grants [e]	7	6	8	8	8	8	8	8	8	8	8	2.3
Subtotal, Means-Tested Programs	744	778	804	835	865	901	948	979	1,012	1,065	1,130	4.3
Non-Means-Tested Programs [f]	1,959	2,018	2,076	2,238	2,377	2,519	2,720	2,829	2,933	3,156	3,362	5.5
Total Mandatory Outlays [g]	2,703	2,796	2,880	3,073	3,243	3,419	3,669	3,808	3,944	4,221	4,492	5.2
Memorandum:												
Pell Grants (Discretionary) [h]	23	25	28	23	24	24	25	25	26	26	27	1.8
Means-Tested Programs Adjusted for Timing Shifts	737	778	811	835	865	901	939	979	1,021	1,065	1,130	4.4
Non-Means-Tested Programs Adjusted for Timing Shifts	1,927	2,015	2,111	2,238	2,377	2,519	2,669	2,825	2,988	3,156	3,362	5.7

Source: Congressional Budget Office; staff of the Joint Committee on Taxation.

The projections shown here are the same as those reported in Congressional Budget Office, The Budget and Economic Outlook: Fiscal Years 2016 to 2026 (January 2016).

The average annual growth rate over the 2017–2026 period encompasses growth in outlays from the amount projected for 2016 through the amount projected for 2026.

Projections of spending for benefit programs in this table exclude administrative costs that are classified as discretionary but generally include administrative costs that are classified as mandatory.

SNAP = Supplemental Nutrition Assistance Program.

Because October 1 will fall on a weekend in 2016, 2017, 2022, and 2023, certain federal payments that are due on those dates will instead be made at the end of the preceding September and thus be shifted into the previous fiscal year. Those shifts primarily affect outlays for Supplemental Security Income, veterans' compensation benefits and pensions, and Medicare.

[a] Differs from the amounts reported in Table 3–2 in The Budget and Economic Outlook: Fiscal Years 2016 to 2026 in that it does not include payments to health insurance plans for risk adjustment (amounts paid to plans that attract less healthy enrollees) and reinsurance (amounts paid to plans that enroll people with high health care costs). Spending for grants to states to establish exchanges is also excluded.

[b] Does not include amounts that reduce tax receipts.

[c] Differs from the amounts reported in Table 3–2 in The Budget and Economic Outlook: Fiscal Years 2016 to 2026 in that it does not include other tax credits that were included in that table.

[d] Includes the Temporary Assistance for Needy Families program, the Child Support Enforcement program, the Child Care Entitlement program, and other programs that benefit children.

[e] Includes mandatory spending designed to reduce the discretionary budget authority needed to support the maximum award amount set in the appropriation act plus mandatory spending that, by formula, increases the total maximum award above the amount set in the appropriation act.

[f] Does not include offsetting receipts.

[g] Does not include outlays associated with federal interest payments.

[h] The discretionary baseline does not represent a projection of expected costs for the discretionary portion of the Federal Pell Grant Program. As with all other discretionary programs, the budget authority is calculated by inflating the budget authority appropriated for fiscal year 2016. Outlays for future years are based on those amounts of budget authority and also reflect a temporary surplus of budget authority provided in 2016.

TABLE 2—MANDATORY OUTLAYS SINCE 2006

[Outlays by fiscal year, billions of dollars]

	2006	2007	2008	2009	2010	2011	2012	2013	2014	2015	Est., 2016	Annual Growth (Percent 2007–2016
Means-Tested Programs:												
Health Care Programs:												
Medicaid	181	191	201	251	273	275	251	265	301	350	381	7.7
Medicare Part D Low-Income Subsidies	11	17	17	19	21	24	20	22	22	24	28	9.6
Health insurance subsidies [a,b]	0	0	0	0	0	0	0	0	13	27	39	n.a.
Children's Health Insurance Program	5	6	7	8	8	9	9	9	9	9	13	8.7
Subtotal	197	213	225	277	302	308	279	297	346	411	460	8.8
Income Security:												
Earned income and child tax credits [b]	52	54	75	67	77	78	77	79	82	81	83	4.8
SNAP	35	35	39	56	70	77	80	83	76	76	75	8.1
Supplemental Security Income	37	36	41	45	47	53	47	53	54	55	59	4.8
Family support and foster care [c]	30	31	32	33	35	33	30	32	31	31	31	0.3

TABLE 2—MANDATORY OUTLAYS SINCE 2006—Continued

[Outlays by fiscal year, billions of dollars]

	2006	2007	2008	2009	2010	2011	2012	2013	2014	2015	Est., 2016	Annual Growth (Percent 2007–2016
Child nutrition	14	14	15	16	17	18	19	20	20	22	23	5.1
Subtotal	168	170	202	217	247	260	254	266	263	264	271	4.9
Veterans Pensions	4	3	4	4	4	5	5	5	6	5	6	5.5
Pell Grants[d]	0	0	1	2	4	14	12	16	8	10	7	n.a.
Subtotal, Means-Tested Programs	369	386	431	501	557	587	550	584	623	690	744	7.3
Non-Means-Tested Programs[c]	1,188	1,242	1,349	1,787	1,553	1,648	1,710	1,752	1,753	1,865	1,959	5.1
Total Mandatory Outlays[f]	1,556	1,628	1,780	2,288	2,110	2,236	2,260	2,336	2,376	2,555	2,703	5.7
Memorandum:												
Pell Grants (Discretionary)	13	13	15	13	20	21	21	17	23	20	23	5.8
Means-Tested Programs Adjusted for Timing Shifts	368	389	431	501	557	581	556	584	623	690	737	7.2
Non-Means-Tested Programs Adjusted for Timing Shifts	1,202	1,241	1,349	1,787	1,553	1,627	1,731	1,752	1,753	1,865	1,927	4.8

Source: Congressional Budget Office; staff of the Joint Committee on Taxation.
The average annual growth rate over the 2007–2016 period encompasses growth in outlays from the amount recorded in 2006 through the amount projected for 2016.
Data on spending for benefit programs in this table exclude administrative costs that are classified as discretionary but generally include administrative costs that are classified as mandatory.
SNAP = Supplemental Nutrition Assistance Program; n.a. = not applicable.
Because October 1 fell on a weekend in 2006, 2007, and 2012, certain federal payments that were due on those dates were instead made at the end of the preceding September and thus shifted into the previous fiscal year.
[a] Differs from the amounts reported in Table 3–2 in The Budget and Economic Outlook: Fiscal Years 2016 to 2026 in that it does not include payments to health insurance plans for risk adjustment (amounts paid to plans that attract less healthy enrollees) and reinsurance (amounts paid to plans that enroll people with high health care costs). Spending for grants to states to establish exchanges is also excluded.
[b] Does not include amounts that reduce tax receipts.
[c] Includes the Temporary Assistance for Needy Families program, the Child Support Enforcement program, the Child Care Entitlement program, and other programs that benefit children.
[d] Includes mandatory spending designed to reduce the discretionary budget authority needed to support the maximum award amount set in the appropriation act plus mandatory spending that, by formula, increases the total maximum award above the amount set in the appropriation act.
[e] Does not include offsetting receipts.
[f] Does not include outlays associated with federal interest payments.

ADJOURNMENT

Mr. ZELDIN. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 5 o'clock and 21 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, March 16, 2016, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

4648. A letter from the Under Secretary, Acquisition, Technology, and Logistics, Department of Defense, transmitting the Department's Chemical Demilitarization Program Semi-Annual Report to Congress for March 2016, pursuant to 50 U.S.C. 1521(j); to the Committee on Armed Services.

4649. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting a report entitled ''Community First Choice: Final Report to Congress'', pursuant to 42 U.S.C. 1396n(k)(5)(C)(ii); Public Law 111-148, Sec. 2401; (124 Stat. 300); to the Committee on Energy and Commerce.

4650. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's delegation of authority — Announcement of the Delegation of Partial Administrative Authority for Implementation of Federal Implementation Plan for the Confederated Tribes of the Colville Reservation [EPA-R10-OAR-2015-0847; FRL-9943-54-Region 10] received March 11, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

4651. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting a report entitled ''Office of Refugee Resettlement Annual Report to Congress FY 2014'', pursuant to Sec. 413(a) of the Immigration and Nationality Act; to the Committee on the Judiciary.

4652. A letter from the Executive Director, National Mining Hall of Fame and Museum, transmitting the Museum's 2014 Report and Audit, pursuant to 36 U.S.C. 152112; Public Law 105-225, 152112; (112 Stat. 1412) and 36 U.S.C. 10101(b)(1); Public Law 105-225, 10101(b)(1); (112 Stat. 1283); to the Committee on the Judiciary.

4653. A letter from the Director, National Legislative Division, American Legion, transmitting a financial statement and independent audit of The American Legion, and proceedings of the 97th Annual National Convention of the American Legion, held in Baltimore, Maryland from September 1-3, 2015, and a report on the organization's activities for the year preceding the convention, pursuant to 36 U.S.C. 10101(b)(1); Public Law 105-225, 10101(b)(1); (112 Stat. 1283) (H. Doc. No. 114—116); to the Committee on Veterans' Affairs and ordered to be printed.

4654. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting a report entitled ''Temporary Assistance for Needy Families (TANF) Program Eleventh Report to Congress'', pursuant to 42 U.S.C. 611(b); Aug. 14, 1935, ch. 531, title IV, Sec. 411 (as added by Public Law 104-193, Sec. 103 (a)(1)); (110 Stat. 2148); to the Committee on Ways and Means.

4655. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Work Opportunity Tax Credit (WOTC) Guidance and Transition Relief [Notice 2016-22] received March 11, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

4656. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Department's Evaluation of the Medicare Patient Intravenous Immunoglobulin Demonstration Project: Interim Report to Congress, pursuant to 42 U.S.C. 13951 note; Public Law 112-242, Sec. 101(f)(1); (126 Stat. 2375); jointly to the Committees on Energy and Commerce and Ways and Means.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. BISHOP of Utah (for himself, Mr. SIMPSON, Mrs. LUMMIS, Mr. AMODEI, Mr. BRIDENSTINE, Mr. WEBER of Texas, Mr. GOSAR, Mr. DUNCAN of South Carolina, Mr. LAMBORN, Mr. STEWART, Mr. HARDY, Mr. ZINKE, Mr. HURD of Texas, Mr. COOK, and Mr. CHAFFETZ):

H.R. 4739. A bill to provide for the conservation and preservation of the greater sage grouse by facilitating State recovery plans; to the Committee on Natural Resources.

By Ms. CLARK of Massachusetts:

H.R. 4740. A bill to direct the Attorney General to make grants to States and units of local government for the prevention, enforcement, and prosecution of cybercrimes against individuals, and for other purposes; to the Committee on the Judiciary.

By Mr. THORNBERRY:

H.R. 4741. A bill to amend title 10, United States Code, to provide for modular open system architecture in major defense acquisition programs, and for other purposes; to the Committee on Armed Services.

By Ms. ESTY (for herself, Mrs. COMSTOCK, Ms. EDDIE BERNICE JOHNSON of Texas, and Mr. SMITH of Texas):

H.R. 4742. A bill to authorize the National Science Foundation to support entrepreneurial programs for women; to the Committee on Science, Space, and Technology.

By Mr. CASTRO of Texas (for himself, Mr. RICHMOND, Mr. HURD of Texas, Mr. DOGGETT, Mr. CUELLAR, Mr. SMITH of Texas, and Mr. WELCH):

H.R. 4743. A bill to authorize the Secretary of Homeland Security to establish a National Cybersecurity Preparedness Consortium, and for other purposes; to the Committee on Homeland Security.

By Mrs. KIRKPATRICK:

H.R. 4744. A bill to require the Secretary of the Interior to carry out a 5-year demonstration program to provide grants to eligible Indian tribes for the construction of tribal schools, and for other purposes; to the Committee on Education and the Workforce, and in addition to the Committees on Financial Services, and Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MULVANEY:

H.R. 4745. A bill to amend the Nuclear Waste Policy Act of 1982 to authorize the Secretary of Energy to enter into contracts for the storage of certain high-level radioactive waste and spent nuclear fuel and take title to certain high-level radioactive waste and spent nuclear fuel; to the Committee on Energy and Commerce.

By Mr. RUSSELL:

H.R. 4746. A bill to provide that no additional Federal funds may be made available for National Heritage Areas, and for other

purposes; to the Committee on Natural Resources.

By Mr. DAVID SCOTT of Georgia (for himself, Mr. TOM PRICE of Georgia, Mr. WESTMORELAND, Mr. LEWIS, Mr. WOODALL, Mr. GRAVES of Georgia, Mr. JOHNSON of Georgia, Mr. AUSTIN SCOTT of Georgia, Mr. BISHOP of Georgia, Mr. COLLINS of Georgia, and Mr. ALLEN):

H.R. 4747. A bill to designate the facility of the United States Postal Service located at 6691 Church Street in Riverdale, Georgia, as the ''Major Gregory E. Barney Post Office Building''; to the Committee on Oversight and Government Reform.

By Ms. SPEIER (for herself, Ms. ADAMS, Mr. BEYER, Mr. BLUMENAUER, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. CÁRDENAS, Ms. CLARKE of New York, Ms. CLARK of Massachusetts, Mr. COHEN, Mr. CONYERS, Mr. DESAULNIER, Mr. GUTIÉRREZ, Mr. HASTINGS, Mr. HONDA, Ms. JACKSON LEE, Ms. LEE, Mr. LYNCH, Ms. MCCOLLUM, Mr. MEEKS, Mr. NADLER, Ms. NORTON, Mr. PALLONE, Mr. QUIGLEY, Mr. RANGEL, Mr. RUSH, Mr. SCOTT of Virginia, Mr. SERRANO, Mr. SIRES, Mr. SWALWELL of California, Mr. TAKANO, Mr. VAN HOLLEN, Mrs. WATSON COLEMAN, and Mr. MCGOVERN):

H.R. 4748. A bill to ban the importation of semiautomatic assault weapons, and for other purposes; to the Committee on the Judiciary.

By Ms. LORETTA SANCHEZ of California:

H. Res. 643. A resolution honoring women who have served, and who are currently serving, as members of the Armed Forces and recognizing the recently expanded service opportunities available to female members of the Armed Forces; to the Committee on Armed Services.

By Mr. PEARCE (for himself, Ms. MICHELLE LUJAN GRISHAM of New Mexico, Mr. JONES, Mr. ASHFORD, and Mr. SAM JOHNSON of Texas):

H. Res. 644. A resolution recognizing the 100th anniversary of the First Aero Squadron's participation as the first aviation unit to take part in military operations, and the group's contribution to the Nation's airpower heritage; to the Committee on Armed Services.

By Mrs. WALORSKI (for herself, Mr. BYRNE, Mr. COFFMAN, Mr. FRANKS of Arizona, Mr. FLEMING, Mr. LAMBORN, Mr. AUSTIN SCOTT of Georgia, Mr. WILSON of South Carolina, and Mr. ZINKE):

H. Res. 645. A resolution expressing the sense of House that individuals captured by the United States for supporting the Islamic State of Iraq and the Levant should be detained at United States Naval Station, Guantanamo Bay, Cuba; to the Committee on Armed Services, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

MEMORIALS

Under clause 3 of rule XII,

178. The SPEAKER presented a memorial of the Legislature of the State of New Mexico, relative to Senate Joint Memorial 15, stating that the State of New Mexico stands in support of the passage of the Dine College Act of 2015 and urges the New Mexico Congressional Delegation to work to ensure its passage into Federal Law; which was referred to the Committee on Education and the Workforce.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. BISHOP of Utah:

H.R. 4739.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 provides authority to Congress to provide for the common Defense and general Welfare of the United States; as well as to make provisions and regulations for the military forces of the United States. Since proposed Sage Grouse habitat negatively impacts several military installations and training facilities, the Congress has authority under Section 8 to act to mitigate those impacts in order to preserve national defense readiness, while at the same time, empowering the States which have conservation plans for preservation and recovery of the Sage Grouse species.

By Ms. CLARK of Massachusetts:

H.R. 4740.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Secton 8

By Mr. THORNBERRY:

H.R. 4741.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the power of Congress ''to provide for the common Defence'', ''to raise and support Armies'', ''to provide and maintain a Navy'' and ''to make Rules for the Government and Regulation of the land and naval Forces'' as enumerated in Article I, section 8 of the United States Constitution.

By Ms. ESTY:

H.R. 4742.

Congress has the power to enact this legislation pursuant to the following:

article I, section 8, clause 18 of the Constitution.

By Mr. CASTRO of Texas:

H.R. 4743.

Congress has the power to enact this legislation pursuant to the following:

Constitutional Authority—Necessary and Proper Clause (Art. I, Sec. 8, Clause 18 THE U.S. CONSTITUTION ARTICLE I, SECTION 8: POWERS OF CONGRESS CLAUSE 18

The Congress shall have power . . . To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.

By Mrs. KIRKPATRICK:

H.R. 4744.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8 (18) To make all Laws which shall be necessary and power for carrying into Execution the foregoing Powers, and all other Powers vest by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. MULVANEY:

H.R. 4745.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1. ''The Congress shall have Power To . . . provide for the . . . general Welfare of the United States . . .''

Article I, Section 8, Clause 3. ''To regulate commerce with foreign nations, and among the several states, and with the Indian tribes.''

Article I, Section 8, Clause 18. ''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. RUSSELL:

H.R. 4746.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. DAVID SCOTT of Georgia:

H.R. 4747.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8 Clause 7 of the Constitution, giving Congress the power to ''Establish Post Offices and Post Roads''.

By Ms. SPEIER:

H.R. 4748.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article 1, Section 8 of the United States Constitution.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 153: Mr. WEBSTER of Florida.

H.R. 242: Mr. QUIGLEY, Mr. PASCRELL, and Mr. BEYER.

H.R. 244: Mr. NEWHOUSE.

H.R. 303: Mr. PETERSON and Mr. DESAULNIER.

H.R. 465: Mr. FRANKS of Arizona and Mr. BRAT.

H.R. 494: Mr. TROTT.

H.R. 546: Mr. CALVERT and Mr. FRANKS of Arizona.

H.R. 556: Mrs. ELLMERS of North Carolina.

H.R. 619: Ms. EDWARDS.

H.R. 649: Mr. PASCRELL.

H.R. 711: Mr. MESSER, Mr. THOMPSON of California, Mr. LATTA, and Mr. GIBBS.

H.R. 748: Mr. GRIJALVA and Ms. SINEMA.

H.R. 759: Mr. VARGAS.

H.R. 845: Mr. GIBSON.

H.R. 913: Mrs. LAWRENCE.

H.R. 953: Mr. GRAYSON, Mr. COHEN, Mr. POLIS, and Ms. BONAMICI.

H.R. 986: Mr. ZELDIN and Mr. PITTS.

H.R. 1116: Mr. RUSH and Mrs. ELLMERS of North Carolina.

H.R. 1130: Mrs. COMSTOCK.

H.R. 1185: Mr. TROTT, Mr. GUINTA, Mr. HASTINGS, Mr. SHUSTER, Mr. HUIZENGA of Michigan, and Mr. FORTENBERRY.

H.R. 1193: Mr. RUPPERSBERGER.

H.R. 1220: Mr. LEWIS, Mrs. ROBY, Mr. HULTGREN, and Mrs. LAWRENCE.

H.R. 1221: Mr. TED LIEU of California.

H.R. 1336: Mr. BOUSTANY.

H.R. 1397: Mr. GOODLATTE.

H.R. 1427: Mr. REICHERT and Mr. SMITH of Washington.

H.R. 1515: Mr. GRAYSON.

H.R. 1631: Mrs. ELLMERS of North Carolina.

H.R. 1655: Mr. JOLLY and Mr. SARBANES.

H.R. 1671: Mr. THORNBERRY.

H.R. 1707: Mr. GALLEGO.

H.R. 1797: Mr. CICILLINE.

H.R. 1996: Mr. DUNCAN of South Carolina.

H.R. 2170: Mr. RENACCI and Ms. CLARK of Massachusetts.

H.R. 2205: Mrs. MILLER of Michigan, Mr. MCCLINTOCK, Mr. RANGEL, and Mr. ASHFORD.

H.R. 2237: Mr. DESAULNIER.

H.R. 2254: Mr. GALLEGO.

H.R. 2260: Mr. TED LIEU of California.

H.R. 2264: Mr. GOODLATTE, Mr. COLLINS of New York, Mr. KELLY of Pennsylvania, and Mr. DESAULNIER.

H.R. 2293: Mr. TROTT and Mrs. BUSTOS.
H.R. 2313: Mrs. MILLER of Michigan.
H.R. 2404: Mr. NOLAN.
H.R. 2483: Mr. EMMER of Minnesota.
H.R. 2567: Mr. WALKER and Mr. MOOLENAAR.
H.R. 2711: Mr. GOSAR, Mr. EMMER of Minnesota, and Mr. BRAT.
H.R. 2712: Mr. CRAMER.
H.R. 2726: Mr. JOHNSON of Ohio.
H.R. 2775: Mr. CICILLINE.
H.R. 2802: Mr. HUIZENGA of Michigan.
H.R. 2826: Mr. RENACCI.
H.R. 2844: Mr. LANGEVIN and Ms. EDDIE BERNICE JOHNSON of Texas.
H.R. 2874: Mr. BOUSTANY.
H.R. 2896: Mr. JENKINS of West Virginia.
H.R. 2902: Mr. SCHRADER.
H.R. 3048: Mr. PEARCE.
H.R. 3084: Mr. MURPHY of Florida.
H.R. 3099: Mr. BISHOP of Michigan, Mr. HUNTER, and Mr. SMITH of Washington.
H.R. 3180: Mr. MOOLENAAR and Mr. POLIS.
H.R. 3209: Mr. RANGEL and Mr. NUNES.
H.R. 3235: Mr. TAKANO.
H.R. 3326: Ms. ESTY.
H.R. 3399: Ms. SCHAKOWSKY.
H.R. 3411: Ms. ADAMS and Mr. MICHAEL F. DOYLE of Pennsylvania.
H.R. 3546: Mr. DAVID SCOTT of Georgia, Mr. DENHAM, Mr. LYNCH, and Ms. SCHAKOWSKY.
H.R. 3648: Mr. DEFAZIO.
H.R. 3713: Mr. LEWIS.
H.R. 3747: Mr. COHEN and Ms. FRANKEL of Florida.
H.R. 3765: Mr. GRAVES of Missouri, Mr. ASHFORD, Mr. CARTER of Georgia, and Mr. RUSSELL.
H.R. 3779: Mr. PETERS.
H.R. 3799: Ms. JENKINS of Kansas.
H.R. 3804: Mr. RENACCI.
H.R. 3808: Mrs. ELLMERS of North Carolina and Mr. KLINE.
H.R. 3817: Mr. RANGEL, Mr. AMODEI, Mr. ASHFORD, Mr. HASTINGS, Mrs. KIRKPATRICK, Ms. SLAUGHTER, and Ms. NORTON.
H.R. 3849: Ms. LORETTA SANCHEZ of California.
H.R. 3851: Mr. GRAYSON.
H.R. 3974: Mr. FOSTER, Mr. CÁRDENAS, and Mrs. KIRKPATRICK.
H.R. 3982: Mr. MACARTHUR.
H.R. 4016: Mrs. WAGNER.
H.R. 4043: Ms. JUDY CHU of California.
H.R. 4062: Mr. FITZPATRICK.
H.R. 4073: Mrs. KIRKPATRICK, Mr. ROSS, and Mr. CARNEY.
H.R. 4126: Mr. GROTHMAN and Mr. CARTER of Georgia.
H.R. 4133: Mr. BROOKS of Alabama and Mrs. ROBY.
H.R. 4144: Mrs. CAROLYN B. MALONEY of New York and Mr. RUSH.
H.R. 4177: Mr. HARDY and Mr. FLEMING.
H.R. 4197: Mr. BOUSTANY.
H.R. 4229: Mr. CHABOT, Mr. BISHOP of Michigan, and Mr. ASHFORD.
H.R. 4247: Mr. POLIS.
H.R. 4249: Ms. MAXINE WATERS of California.
H.R. 4262: Mr. TROTT and Mr. MOONEY of West Virginia.
H.R. 4277: Mr. TED LIEU of California.
H.R. 4293: Mr. OLSON, Mr. CRAMER, and Mr. LATTA.
H.R. 4301: Mr. MCCAUL.
H.R. 4336: Mrs. MCMORRIS RODGERS, Mr. HARDY, Mr. JOLLY, and Ms. DELAURO.
H.R. 4352: Ms. ESHOO and Mr. BEN RAY LUJÁN of New Mexico.
H.R. 4375: Mr. EMMER of Minnesota.
H.R. 4400: Mrs. ELLMERS of North Carolina.
H.R. 4420: Mr. MILLER of Florida.
H.R. 4428: Mr. ABRAHAM and Mr. GOODLATTE.
H.R. 4442: Mrs. BEATTY.
H.R. 4447: Mr. WELCH, Mr. TONKO, and Mr. KEATING.
H.R. 4469: Mr. GIBBS.
H.R. 4472: Mr. REICHERT, Mr. NUNES, Mr. BOUSTANY, Mr. KELLY of Pennsylvania, and Mr. RENACCI.
H.R. 4481: Mr. MCGOVERN, Mr. ROSS, and Mr. MCCAUL.
H.R. 4490: Mr. BEYER.
H.R. 4511: Mr. OLSON.
H.R. 4514: Mr. SCHIFF, Mr. KINZINGER of Illinois, Mr. FLEMING, Mr. COLE, and Mr. SHERMAN.
H.R. 4553: Mr. CRAMER.
H.R. 4570: Ms. TSONGAS and Mr. O'ROURKE.
H.R. 4622: Mr. ALLEN.
H.R. 4626: Mrs. COMSTOCK.
H.R. 4651: Mr. LOUDERMILK, Ms. MCSALLY, Mr. ROGERS of Alabama, and Mr. DUNCAN of South Carolina.
H.R. 4653: Mr. VAN HOLLEN and Ms. SCHAKOWSKY.
H.R. 4662: Mr. CROWLEY, Ms. NORTON, Mr. HASTINGS, Ms. BROWN of Florida, Ms. PLASKETT, Mr. COSTELLO of Pennsylvania, and Mr. DUNCAN of Tennessee.
H.R. 4664: Mr. CICILLINE.
H.R. 4668: Mr. CICILLINE, Mrs. CAROLYN B. MALONEY of New York, Mr. TED LIEU of California, Mr. KEATING, and Mr. BEYER.
H.R. 4678: Mr. COOK and Mrs. WALORSKI.
H.R. 4681: Mr. DESAULNIER.
H.R. 4690: Mr. HILL.
H.R. 4700: Mr. TAKAI and Ms. ESHOO.
H.R. 4712: Ms. LEE, Mr. CARSON of Indiana, and Mr. VEASEY.
H.R. 4720: Mr. SESSIONS.
H.R. 4723: Mr. MEEHAN and Mr. RENACCI.
H.R. 4730: Mr. FLORES.
H.R. 4731: Mr. SENSENBRENNER, Mr. SESSIONS, and Mr. CHAFFETZ.
H.J. Res. 12: Mr. RIBBLE.
H.J. Res. 55: Mr. RENACCI.
H.J. Res. 85: Mr. CARTER of Georgia.
H. Con. Res. 19: Mr. COSTA.
H. Con. Res. 40: Ms. SLAUGHTER and Mr. O'ROURKE.
H. Con. Res. 56: Mr. DESANTIS.
H. Con. Res. 89: Mr. WALBERG.
H. Con. Res. 122: Mr. BEN RAY LUJÁN of New Mexico and Ms. MICHELLE LUJAN GRISHAM of New Mexico.
H. Res. 12: Mr. LATTA.
H. Res. 28: Mr. LATTA.
H. Res. 207: Mr. BRENDAN F. BOYLE of Pennsylvania and Mr. BENISHEK.
H. Res. 220: Ms. MATSUI and Ms. VELÁZQUEZ.
H. Res. 294: Mr. BRADY of Pennsylvania.
H. Res. 343: Mr. SMITH of New Jersey.
H. Res. 374: Mr. KILMER.
H. Res. 419: Mr. REICHERT and Mr. MCCAUL.
H. Res. 432: Mr. HUFFMAN.
H. Res. 541: Mr. DESAULNIER and Miss RICE of New York.
H. Res. 631: Mr. TAKAI.
H. Res. 641: Mrs. CAROLYN B. MALONEY of New York.
H. Res. 642: Mr. POCAN.

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PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, SECOND SESSION

Vol. 162 WASHINGTON, TUESDAY, MARCH 15, 2016 *No. 41*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Merciful God, You alone have brought us to this moment. Help us to hear Your whispers and to follow Your leading. Speak to our lawmakers about the difficult issues of our time, reassuring them that You continue to take control of our destinies. Teach them to count their blessings, cultivating an attitude of gratitude. Give us the wisdom to shut out yesterday's disappointments and tomorrow's fears. Lord, show us how to live in day-tight compartments with total dependence on Your mercy and grace. Help us to cherish the freedom of this land as You continue to emancipate us from sin's slavery.

We pray in Your sacred Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Mr. COTTON). The majority leader is recognized.

FILLING THE SUPREME COURT VACANCY AND GENETICALLY MODIFIED FOOD LABELING BILL

Mr. MCCONNELL. Mr. President, in the last national election, the American people elected a Republican Senate. Since then, we have accomplished a lot of important things for our country—landmark education reform, permanent tax relief for families and small businesses, significant action to repair America's roads and bridges—and, just last week, decisive steps to address the prescription opioid and heroin epidemic. The Republican Senate has been able to lead on many important issues because we focused on areas where both sides can agree, rather than just fight about issues where we don't.

Everyone knows one issue where we don't agree; that is, whether the American people deserve a voice in filling the current Supreme Court vacancy. Republicans think the people deserve a voice in this important vacancy. The President and Senate Democrats do not.

Whoever is chosen to fill the Supreme Court vacancy could radically change the direction of the Court for a generation. The American people obviously deserve a voice in such an important conversation. They can continue making their voices heard, and we can continue doing our work in the Senate to move America forward on important issues.

Americans elected this Republican Senate to serve as a check-and-balance to the President. It is natural that both parties will disagree in some areas. It is natural we will find common ground in others. Let's keep focused on those areas of common ground.

For instance, today I hope colleagues across the aisle will join us in working to protect middle-class families from unnecessary and unfair increases in their food and grocery bills. Vermont passed food-labeling legislation that will be implemented soon and could increase annual food costs across America by more than $1,000 per family. It is one State's decision, but it could negatively affect families—especially lower and middle-income families—in other States. Now we see other States following in Vermont's footsteps, which could lead to a patchwork of State laws. We should work to protect America's middle class from the unfair higher food prices that could result, and that is just what the Senate is working to do now.

We know this may be the last chance to stop this economic blow to the middle class, but we can't act if colleagues block us from helping the middle class. As our Democratic colleagues know, we are eager to continue working toward a solution. I would encourage our colleagues across the aisle to work with the bill managers to offer the amendments or alternative proposals they may have.

The commonsense, bipartisan legislation offered by Chairman PAT ROBERTS of the Agriculture Committee would set clear, science-based standards in order to prevent families from being unfairly hurt by a patchwork of conflicting State and local labeling laws passed in places where they don't even live. This bipartisan bill would help meet consumer interest for information about how food is made, while keeping costs from rising at every level of production. It has earned the support of more than 650 groups nationally, including farmers and small businesses. As Kentucky's agriculture commissioner put it, this bipartisan bill would ''allow for a more efficient flow of food to consumers everywhere and would cut down on production costs.''

We know this is not a safety or health issue. It is a market issue. Officials at both USDA and the FDA—the two agencies charged with ensuring the safety and delivery of our Nation's food supply—have found there are no health, safety, or nutritional risks associated with bioengineered crops and products. At the same time, we recognize that many families have a desire to know what is in the food they are purchasing. That is why the legislation Chairman ROBERTS is working on would offer incentives for the marketplace to provide more information to

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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consumers while also addressing many of the unintended consequences of a patchwork of State laws. I thank Senator ROBERTS for his continued work with colleagues from both sides of the aisle to move to a solution this week.

The Agriculture Committee recently passed the chairman's mark by a bipartisan vote, and the House passed its own legislation last summer. Now it is time for the full Senate to act so we can protect the middle class from higher food costs, and with continued cooperation from across the aisle, that is just what we can do.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

GENETICALLY MODIFIED FOOD LABELING BILL AND FILLING THE SUPREME COURT VACANCY

Mr. REID. Mr. President, 90 percent of Americans want to know what is in their food. All of Europe, China, Russia, they know what is in their food. We should know what is in our food. Senator STABENOW, the ranking member of the Agriculture Committee, has been trying to work to come up with some reasonable approach, but what she has gotten is not much help from the chair of the committee. There are no discussions going on right now that are meaningful. The Republican leader has offered an amendment that is a purely voluntary scheme, which is a quasi-Roberts proposal and would leave consumers actually in the dark, and that is the truth. But this is just another case of where Republicans in the Senate are trying to create an appearance of doing something without really doing anything at all. It happens so often. This has happened so often during the past year. Things that my friend the Republican leader comes to the floor and boasts about are things we tried to do and we were blocked by Republican filibusters. We have been happy in the minority to be responsible and work with the Republicans to get things done, and we continue to do that. It is the right thing for the country. We are not trying to block everything, as they in fact did. We are trying to get things done.

One of the things we need to get done that belies the fact of this great Senate Republican majority is the fact that we think there should be a Supreme Court Justice. There should be 9, not 8.

One hundred years ago today, this very day, this Senate concluded the confirmation hearing of Justice Louis Brandeis, the first Jewish Supreme Court Justice ever. Prior to his nomination, it was not a custom for the Senate to hold public confirmation hearings to set up Supreme Court nominations, but over the last century these hearings have become a vital part of the Senate's constitutional duty to provide its advice and consent. For 100 years, the Senate has had open hearings to deal with controversies—real or imagined—surrounding Supreme Court vacancies and nominees.

It is disappointing that Republicans are now willing to throw away a century of transparency and deliberation just to block President Obama's Supreme Court nominee. Republicans will not even meet with this man or this woman. Republicans will not allow a hearing for this man or this woman. Republicans will not allow a vote on this man or this woman, and that is wrong. We want transparency on what is going on here with the Supreme Court. We want transparency on the food we eat.

They are adamant that President Obama's nominee will have nothing—no opening hearing, no public hearing, no hearing at all. It is further evidence of how far Republicans will go to avoid their constitutional duties.

Mr. President, I see no one on the floor to speak, so I ask the Chair to announce the schedule of the day.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

MORNING BUSINESS

The PRESIDING OFFICER. Under the previous order, the Senate will be in a period of morning business until 12:30 p.m., with Senators permitted to speak therein for up to 10 minutes each.

Mr. REID. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. TESTER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator is recognized.

GENETICALLY MODIFIED FOOD LABELING BILL

Mr. TESTER. Mr. President, many of you know that in my real life I am a farmer. I know where my food comes from and how it is made. Unfortunately, that is not true for most Americans.

We will be dealing with a bill called the DARK Act shortly, and quite frankly the DARK Act does not empower America's consumers. It does not tell them what is in the packaged food they purchase, and it doesn't give them any information when we are dealing with genetically modified ingredients.

I was told that the customer is always right. If you are a good businessman, you listen to your customers. In this particular case, the customer has a right to know what is in their food. In fact, they expect it because 9 out of 10 consumers say they want labeling for genetically engineered foods. Some of the folks in this body are not listening to the customers. They are not listening to their constituents. Instead, they are listening to the big corporations that want to keep consumers in the dark, and we cannot allow that to happen in this body today. The Senate is above that.

Transparency in everything leaves better accountability and gives more power to average Americans, and that is also true when we talk about food. Free markets work when consumers have access to information. The U.S. Senate should not be in the business of hiding information from consumers.

Let's be clear. What the new DARK Act, which is sponsored by the Senator from Kansas, does is it tells the American people: We in the Senate know what is best for you, and quite frankly, whether you want this information or not, you are not going to get it.

How does this DARK Act do this? First of all, it blocks the States from enforcing their own laws, so we can throw States' rights out the window. Second, this ''compromise'' would hide the information behind 800 numbers and QR codes.

Let me tell you, if you think this is labeling, if you think this is giving the consumer a right to know what is in their food, you are wrong. This is a game. And for the mom who wants to know what is in her child's cereal or soup or bread, there may be a bunch of different 800 numbers out there, and I don't know about you, but when it comes to phone numbers, especially the older I get, the harder it is for me to remember. Or you will stand in a grocery store aisle and scan each individual product with a smartphone, if you have a smartphone and if you have cell phone coverage at that location, because, quite frankly, in rural America, we don't in a lot of places. And that is going to be the labeling. Unbelievable.

The fact is, if folks are so proud of the GMOs, they should label them. What they are saying is you can voluntarily do it. Frankly, voluntary standards are no standards at all. If they were standards, we would say to the super PACs: Tell us who you get your money from. Tell us what you are spending it on, why you are spending it. We don't know that. We don't know that in our elections, by the way, which puts our democracy at risk, and we won't know about our food if this DARK Act passes.

There are 64 countries out there that require GMO labeling. China, Russia, and Saudi Arabia are not exactly transparent countries, but they are requiring GMO labeling. Vermont passed a GMO labeling law that would go in effect in July. Maine and Connecticut have passed mandatory labeling laws. There are numerous States that require things like farm-raised or wild-

caught. FDA, in fact, even regulates terms such as ''fresh'' and ''fresh frozen.''

Some of the proponents of the DARK Act will say: Well, you know, folks from California and Washington defeated it when it was on the ballot.

Yes, they did. Let me give you some figures. In Washington, more than $20 million was spent in opposition to the labeling law—more than $20 million. By the way, about $600 of that came from Washington residents, according to the Washington Post. About $7 million was in support of that campaign, with at least $1.6 million of that $7 million coming from Washington residents.

In California, the opponents to labeling our food with GMOs spent about $45 million to defeat it. Monsanto alone spent $8 million of that $45 million. Supporters of the labeling spent about $7 million.

So let's be clear. When people have a choice to vote and get the facts, they want their food labeled. This DARK Act does exactly the opposite. It is bad legislation. It does not empower consumers. It does not empower the American people. In fact, it does what the title of this bill says: Keep them in the dark. That is not what the U.S. Senate should be about. We need to defeat this bill, whether it is through the cloture process or later on. This is bad, bad, bad policy.

I yield my time to the Senator from Oregon.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Mr. President, will my colleague from Montana yield for a question?

Mr. TESTER. Yes, I will.

Mr. MERKLEY. Thank you. I appreciate the Senator's presentation.

This Monsanto DARK Act 2.0—this new version—says to the States that they no longer have the right to respond to consumers' interest in providing a consumer-friendly label that alerts them to genetically engineered ingredients, but it does not replace that with a federal consumer-friendly label?

Mr. TESTER. Correct.

Mr. MERKLEY. Is it right that the Federal Government takes away this power from States, which are, if you will, our places of experimentation and creativity, and then does nothing at the national level? Is this an overreach of the Federal Government?

Mr. TESTER. Absolutely. The Senator came out of the State Legislature in Oregon. I came out of the State Legislature in Montana. Quite frankly, much of the work is done at the State level. We follow their lead. This bill does exactly the opposite. It prevents States from labeling for genetically modified foods, and it replaces it with a voluntary labeling system basically or QR codes that nobody is going to have the technology, quite frankly, or the time to be able to investigate. So the Senator is right. This tells folks in Vermont and Maine and Connecticut and many other States—as I said, 9 out of 10 consumers want genetically modified foods labeled, and this replaces it basically with nothing.

The proponents will walk out here and say: No, no, no, there is going to be a QR code or 800 number. That simply does not give the consumers the ability to know what is in their food. We live in a very fast-paced society. I can tell you, it happened just this weekend when I was home. I pulled up in a pickup. My wife ran in the grocery store, grabbed what she needed, came out, and we zipped home. People don't have the time to look unless it is sitting right there and they can see it. And that is what your bill does, I say to Senator MERKLEY. Your bill gives the consumer the ability to simply look at the package and know what is in it, and that is what we should be fighting for in this body. We shouldn't be fighting to keep people in the dark; we should fight to let people know so they can make good decisions. If you have good information—and it is true here and it is true amongst the American public—if you have good information, you can make good decisions. When parents buy food for their kids, they ought to have the information so they can make good decisions. It is simply a right to know what is in your food.

Mr. MERKLEY. Mr. President, I ask unanimous consent to engage in a colloquy with my colleague from Montana.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MERKLEY. Thank you very much, Mr. President.

I will use these papers as examples of food products. I have three different bags of rice, and I want to look. I can scan the ingredients list of these three products to see what they contain. Well, in about 5 seconds—if what is required of me is to pull out my phone, call up an 800 number, work my way through a phone tree, proceed to talk to someone who may or may not even know what I am calling about—and maybe I will get a busy signal or a message that says: I am sorry, our phone lines are very busy, but we will get to you in 25 minutes. How long am I going to have to stand there versus the 5 seconds that it takes if there is a symbol or an indication on the ingredients panel for these three products? While standing in the aisle of the grocery store, how long is it going to take me to try to find out if these three products have genetically engineered ingredients?

Mr. TESTER. Well, you said it. For the people who heard you explain the process you would go through, that is not labeling. That is not transparency. That isn't telling folks what is in their food.

Needless to say, I have to tell you, I think these are a pain in the neck. If I wasn't in this body, I don't think I would even have one, and there are a lot of people who feel that way. So now I am going to have to spend money and get a plan so I can determine what is in my food? Not everybody has the resources to have one of these. What does this do to folks who are poor? They deserve to have the food that they want to eat. They deserve to know what is in it. And they are not going to have that capacity. Then what about folks in places such as eastern Washington or all of Montana that isn't where a lot of people live? Oftentimes there is not that service. So it just does not make any sense. You are trying to replace what Vermont is doing with nothing, and that is not fair. It is not fair to the consumers.

As I said in my remarks, the consumer is always right. They are. It is a fact of business. We ought to be listening to folks. That is why we have single-digit approval ratings in this body. We need to listen. And we are not listening with the DARK Act.

Mr. MERKLEY. Is the Senator saying the whole idea presented in the Monsanto DARK Act 2.0 about putting a phone number on the package so someone can call a company is a sham?

Mr. TESTER. Bogus.

Mr. MERKLEY. Bogus.

Mr. TESTER. Yes. It is worse than nothing. At least if you had nothing, you know what you have.

Mr. MERKLEY. There is a second option put into the Monsanto DARK Act, which is the quick response code. You have to have a smartphone that can take a picture of that quick response code, take you to a Web site to get information—information, by the way, written by the very company that controls the product you are looking at. It is not some third party. I picture that as taking just as much time and being just as complex for the ordinary person as the 1–800 number. The QR code requires first that you actually have a data plan to be able to get to a Web site, that you have a smartphone instead of an ordinary cell phone, and furthermore it reveals information about you when you go to that Web site, so you are giving up your privacy.

So is the QR code option being discussed also a sham?

Mr. TESTER. Absolutely. It is just as bogus as the 800 number, quite frankly, if not more, for all the same reasons. First of all, you have to have a phone. You have to have service. Oftentimes that isn't the case.

Quite frankly, what we need is what your bill does, and that is, just tell folks what is in the package—parentheses, three letters, or an asterisk that says what it is, very simple. People can understand and they don't have to jump through all these hoops.

I know proponents of this DARK Act will say: Well, you know, that is going to cost a lot of money.

Look, Budweiser makes a beer labeled for every NFL football team in the country. At Christmastime, they put Santa Claus on, and then they make the ones in the blue cans too. It is standard stuff. It is all the same

price. Companies change their labels all the time.

So the fact that we are replacing what would be common sense—the Senator's bill, which is what we should be taking up and passing here on the floor because it makes sense, it gives consumers the right to know what is in their food—with something that has an 800 number or QR code is crazy. It is crazy. And the arguments that folks are using for keeping people in the dark simply are not factual.

Mr. MERKLEY. Well, in this Monsanto DARK Act 2.0 that has been put on the floor, there is a third option beyond the voluntary labeling and beyond the 1–800 numbers and QR code, and the third option—door No. 3, if you will—is that the company can put something on social media, which means, I assume, Instagram, Facebook, or who knows what. So if I am a customer and I am in the store and I see these three products and I want to find out if they have GE ingredients and there is no 800 number and there is no QR code because the company has chosen door No. 3, how am I to know that?

Mr. TESTER. You don't. And by the way, there are three doors here, and it is kind of like ''Let's Make a Deal.'' The problem is, what is behind No. 1, 2, and 3 are all zonks for the American consumers.

I say to Senator MERKLEY, this makes no sense to me whatsoever because it is confusing. It absolutely keeps the consumers in the dark. And we are actually going to try to promote something like that in the Senate? It doesn't make any sense to me.

Mr. MERKLEY. The majority leader has put this bill on the floor, and it has not even gone through a committee hearing because this is a new creation that we have just seen for the first time last night. Furthermore, it has been put on the floor the night before one of the most important primary days in the Presidential election, strategically scheduled, if you will, so that the news networks are busy with Florida and Ohio and Illinois and two other States, and they are not paying attention to this egregious proposal to take away States' rights and consumers' rights.

We had a pledge from the majority leader coming into here that due process—things would be considered in committee and things would be fairly considered on the floor with an open amendment process. Has this Monsanto DARK Act 2.0 gone through a committee process, and is it getting a full opportunity to be heard on the floor? In fact, the motion to close debate was filed within seconds of it being put on the floor last night. Is this a true opportunity for the American people to wrestle with a major policy decision taking away States' rights and consumers' rights?

Mr. TESTER. No. In a word, no. And of all the choices that we have out there, that we do every day, food is one of the most important choices we make. That is what we put in our bodies. It gives us power. It gives us intellect. It gives us the ability to do our daily jobs, to work, to be successful, to support our family. Quite frankly, this bill—and the timing of it is curious—this bill does none of those things to help move families and the people and society forward. It just keeps them in the dark, which is disturbing.

As I said in my opening statement, the Senate should be above this. We should be empowering people, not taking away their right to know.

Mr. MERKLEY. Well, this taking away the right to know—it isn't like the right to know some detail about how your car was manufactured. As the Senator put it, this is about the food you put into your mouth. This is about the food we feed our families. This is about what our children consume.

I was very surprised to read this from a scientific study: Two-thirds of the air and rainfall samples tested in Mississippi and Iowa in 2007 and 2008 contain glyphosate, which is the herbicide being applied in massive quantities because of the genetically engineered resistance of key crops, including corn and soybeans and sugar beets. So the herbicide is very prevalent in the rainfall samples and it is very prevalent in the air samples, or at least two-thirds of the air samples.

Then, a recent study published in the Journal of Environmental & Analytical Toxicology found that humans who consume glyphosate-treated GMO foods have relatively high levels of glyphosate in their urine. So, actually, residuals are finding their way into our bodies

There are other effects. Glyphosate is a known carcinogen. It has been defined as a known carcinogen. But this herbicide is also running into the streams. Study after study is showing big impacts on the microbial population, and that is at the base of the food chain, so it is affecting the food chain inside our rivers and our streams. There is gene transfer to relatives—weeds that are relatives of the growing crops. There is an impact on the evolution of bugs; specifically, the western corn root worm which is evolving, if you will, to become resistant to the pesticide that is in the plant because of the genetic—

The PRESIDING OFFICER. The time of the Senator has expired.

Mr. MERKLEY. Thank you, Mr. President. I ask unanimous consent to continue for another 10 minutes.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. MERKLEY. I thank the Chair.

So we have these affects that scientific documents are showing.

So when people come to this floor and say that it is OK to suppress the consumers' right to know because consumers have no legitimate concerns, that there are no scientific studies that show any legitimate concerns about the impacts of genetically engineered plants, are they telling the truth? Is that accurate?

Mr. TESTER. Well, I think that is up to the consumer to find out, and the consumer never knows if it is not on the label. I think we put a lot of things on labels. I bought some orange juice last night. It was not from frozen concentrate; it was fresh squeezed. That is a consumer choice that I have. I buy that because I like it. I think it is better. I think it is better for you. That is what I choose to do.

I think what this DARK Act does is it doesn't allow consumers to make the choices they want. They can do the research. Once they see what is in it and make the decision whether they—some people may want to eat it. It may be a positive thing: This is good. It has GMO in it. I want to buy that. For other folks, they may say: No, I don't want to buy that. That is their choice. That is what this country is about. It is about freedom. Now we are stopping that. That is what this debate is about. It is about labeling of food. It is about letting consumers know what they are eating and letting them make the decision as to what is best for their family.

Mr. MERKLEY. I think my colleague summed it all up in the word ''freedom''—the freedom to choose. And that freedom to choose—if it is between wild fish and farmed fish, we facilitate that by giving the information on the package. If it is the freedom to choose between juice from concentrate versus fresh squeezed—juice from concentrate or fresh juice—that, in fact, is a freedom of the consumer, and they can exercise it from the package.

If someone decides they want to have a product that is vitamin A enriched, such as golden rice which has been done by GE engineering—maybe they need more vitamin A—they should have the freedom to choose it.

In fact, my point here is that there are scientific studies that show benefits in a variety of circumstances from genetic engineering, and there are studies that show legitimate concerns. On the benefits side we have cases—for example, sweet potatoes—in which they have been made to resist viruses that kill. In South Africa, that has been very important to the growth of sweet potatoes and the provision of that as part of a significant source of food in parts of that country. Then there is golden rice being enriched with vitamin A in regions of the world where people eat primarily rice, but they really lack vitamin A. But there are also studies that show concern.

Shouldn't we as consumers have freedom? Why is it that we have on the floor a bill which not only takes away States' rights to respond to consumers' interests in freedom, but proceed to squash, for all time and in all geographic areas, the freedom of an individual to make that decision? And then they put up a sham which says that somehow, the consumer could inquire by guessing at a social media outlet or going to a phone bank that is somewhere overseas in the Philippines to

find out whether or not there is a GE ingredient or having to give up their privacy and go to a Web site sponsored by the company that made the food. That is not information that allows the consumer to make a choice.

What if a consumer had to go to a phone company operating overseas to find out—I don't know—the calories that are in the food or the vitamins that are in the food? That would be ridiculous. It is absurd. It is a sham and a scam. It is a theft of individual freedoms in this country. And shouldn't we all in the Senate be standing up for freedom for American citizens who, by the way, when asked in a nationwide poll, 9 to 1 say they want this information on the package; 9 to 1 say that. Here we are in this deeply divided country where we have this huge spectrum of ideologies that we are seeing in the Presidential campaign. Yet, on this issue, Independents, Republicans, and Democrats, 9 to 1—I am rounding off slightly, but very close—9 to 1 in all three categories say they want this information on the package, and 7 out of 10 said they feel very strongly about this. So that is the desire of the American people. That is the ''We the People'' that is in our Constitution that we are pledged to support.

Here we have a bill on the floor that is designed in the dark of night while people are paying attention to Presidential primaries, the press is paying attention to that, and in the dark of night they are trying to take away that freedom. Isn't that just completely wrong?

Mr. TESTER. Well, absolutely. The Senator from Oregon hit the nail on the head. We need to defeat cloture. We need to defeat this bill. If we want to take up a labeling bill, we ought to take up the Merkley bill and pass it. That would empower consumers. It would give them freedom. It would live up to what our forefathers had in mind for this country. Instead, in my opinion, they are doing exactly the opposite.

This is a bad piece of legislation. The Senator is right. The polls do show that across the parties, we are all Americans on this one, 9 to 1. We have to listen.

If folks are having a hard time hearing what people are saying, they should just read their emails. Hear what the folks out in front of our offices are saying, because folks are talking and we need to listen. Read the editorial pages. Folks are not asking for anything out of the ordinary. They just want to know so they can make decisions.

So I hope this body will defeat this bill, put it to bed, and then we can talk about a labeling bill that makes sense for this country.

Mr. MERKLEY. I thank so much my colleague from Montana for being such a clear and powerful voice on this issue of freedom, of American consumers' rights, of States' rights, and for his solid opposition to this Monsanto DARK Act—Deny Americans the Right to Know—2.0. Thank you.

Mr. President, I yield the floor.

The PRESIDING OFFICER (Mr. LEE). The Senator from Arkansas.

NATIONAL AGRICULTURE DAY

Mr. COTTON. Mr. President, I grew up on a cattle farm in Dardanelle, where I started helping my dad around the farm when I was just a little boy. In fact, I was kicking hay bales off the truck when I was barely bigger than those hay bales. Growing up, most people I knew had some connection to farming, and I am proud to say that in Arkansas, that is still mostly the case today.

In honor of National Agricultural Day, I wish to say a few words about Arkansas' agriculture and what it means to our State.

Agriculture is Arkansas' largest industry. It accounts for over $20 billion in value added to our State economy each year and contributes to thousands and thousands of jobs. Arkansas is a top 25 producer in 23 different agricultural commodities, and we rank first in the Nation in rice production, producing close to 50 percent of the rice in the United States.

It doesn't end there. We are also a major exporter of crops like soybeans, cotton, poultry, and feed grains. Our catfish and timber industries are booming and our cattle inventory exceeds 1.7 million head. Our agriculture industry is also expanding by the day. We have recently become a big player in the peanut industry.

For Arkansas, agriculture is more than just a business; it is a passion and a way of life. We have nearly 50,000 farms in Arkansas, and 97 percent of them are owned by families. Neighborly chats in Arkansas often tend to focus on planting seasons and beef prices. And in towns like Dardanelle, kids don't have to worry about farm chores keeping them from playing with their friends on a Saturday because those friends are likely busy helping on their farms too.

Agriculture is who we are. I have certainly taken the lessons I learned growing up on a farm with me into the Army, the Congress, and now fatherhood.

So, today, and every day, let's remember Arkansas' and America's farmers and ranchers. Happy National Agriculture Day.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mrs. MURRAY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. MURRAY. Mr. President, I ask unanimous consent that I may speak in morning business.

The PRESIDING OFFICER. The Senator from Washington is recognized.

FILLING THE SUPREME COURT VACANCY AND WOMEN'S HEALTH CARE

Mrs. MURRAY. Mr. President, I come to the floor once again with a simple message for Senate Republican leaders: Do your job and let me do mine.

When President Obama sends us a nominee to fill this vacancy on the Supreme Court, Republican leaders need to stop playing politics, stop pandering to the tea party, and fulfill their responsibility to their constituents, their country, and the Constitution. That is what people across the country are demanding.

But the hearing Republicans on the Judiciary Committee held this morning makes it clear they are not getting the message, because while the Republicans on that committee say they won't take up their time to do their most important actual job, they were happy to spend their time this morning on their favorite hobby—doing everything they can to turn back the clock on women's health care. While they say they won't even hold a hearing on a Supreme Court nominee to fulfill their constitutional responsibilities, they were eager to hold the hearing this morning to attack women's constitutional rights.

Mr. President, I wish I were surprised by this, but, unfortunately, this is just the latest example of Republican leaders playing political games with the rights of women across the country and pandering to their extreme tea party base.

Republicans love to say they want to keep government out of people's lives, unless of course we are talking about women's health care and their choices. They love to talk about the Constitution, unless we are talking about a woman's constitutional right to make decisions about her own body or the part that lays out the Senate's responsibility when it comes to filling Supreme Court vacancies.

But people across the country are sick of the partisanship, sick of the gridlock, and sick of the games. They want Republicans to do their jobs, and they are not buying their excuses for inaction.

For the last few weeks, Republican leaders have been desperately trying to convince people that there is a precedent for their extreme obstruction in this election year. Well, first of all, their arguments have run up against the facts. They simply are not true. The Democratic Senate confirmed President Reagan's Supreme Court nominee in his last year in office. And that is just one example of many.

But in case the facts weren't enough, last week the Republicans' message facade began to crumble, and the truth began to come out. First, one Republican leader warned that any potential nominee should be aware that he or she

will be treated like a pinata. Republicans say they will refuse to even meet with the nominee. But they and their special interest groups are clearly getting ready to drag him or her through the mud.

Also, speaking to his constituents back home, another Senator made it clear that Republicans' refusal to do their jobs right now is nothing more than partisan politics. He said: If this President were a Republican, it would be ''a different situation,'' and there would be ''more accommodation.''

We all knew this Republican obstruction had nothing to do with what is actually right and everything to do with the fact they do not like that President Obama is President right now, but it was nice to hear a Republican Senator actually admit that out loud.

Another Republican, the senior Senator from South Carolina, admitted last week that this kind of blind obstruction, this refusal to even meet with a Supreme Court nominee or hold hearings, is absolutely unprecedented. He said Republicans wanted to create a new rule—right now—limiting President Obama's constitutional authority and responsibility. Well, I am glad he made clear that what Republican leaders have been saying about their obstruction being based on precedent isn't true, but creating this new partisan precedent for Supreme Court nominations would be absolutely wrong too.

Republicans may not like to hear this, but the American people spoke. They elected President Obama twice, and they entrusted him with the powers and responsibilities laid out in the Constitution. Those responsibilities don't just last for 3 years. They last a full term, and people across the country are making it very clear they expect Republicans to work with the President, to meet with the nominee, to hold hearings, and to do their job.

But if Republicans are open to new election-year precedents, I have one I would like to offer for their consideration that would actually be helpful. I propose that Republicans stop using attacks on women's health care to rally their tea party base, that they stop using women's rights as an election-year political football. That would be unprecedented for sure, but it sure would be a step in the right direction, and women across this country would really appreciate it.

So when President Obama sends us a nominee, I hope Senate Republican leaders will move out of the partisan corner they are in now, will stop focusing on throwing red meat to the tea party, and will do their jobs.

I yield the floor.

The PRESIDING OFFICER. The Senator from California.

Mrs. BOXER. Mr. President, I want to thank the Senator from Washington for her remarks and for her passion for women's health and also for doing our job—for doing our job.

The Senator from Washington is right. The Republican members of the Senate Judiciary Committee have vowed not to hold a single hearing on a Supreme Court nominee when the President does his job and sends us down his nomination. They refuse to do their job. And I would say that if every American just got up in the morning one day and said: You know what, I don't feel like doing my job, they would be fired. They would be fired.

But do our Republican colleagues have time to do other things with their time? Oh yes. What are they doing right now? My colleague pointed this out. They are holding a hearing today on legislation that, if passed, would threaten the health and the lives of women.

This is about using women's health as a political football once again. It is about reopening debates we have already settled, including the debate over Roe vs. Wade itself. That case was decided in 1973. Before that, women died from back-alley abortions. Women received no respect for private personal decisions they made with their doctor, they made with their God. Oh no, they have to keep challenging Roe v. Wade.

That is what Republicans are doing today in the Judiciary Committee, after they decided, well, they just don't have time enough or will enough to hold a hearing on the President's nominee for the Supreme Court.

Now, the decision in Roe was very clear. It said that in the early stages of a pregnancy, a woman has the right to decide whether to continue her pregnancy. Later decisions confirmed that, yes, she still has that right. Roe also affirmed that later in the pregnancy, the health and the life of the mother must always be protected. Let me say that again. The health and the life of the mother must always be protected. That is the law of this land.

Now, the major problems with the bills the Judiciary Committee is hearing today is they have no respect for the health and the life of the mother and they have no respect for doctors.

The first bill, the 20-week abortion ban, is a direct violation of Roe v. Wade and a grave threat to women. And, by the way, the Senate has already rejected that bill. They are bringing it back again. No matter what Roe says—that you can't threaten the health and life of a woman—they have brought it back. That bill—that 20-week abortion ban—offers no health exception for a woman facing cancer, facing kidney failure, facing blood clots, or other tragic complications during the pregnancy. And it would throw doctors in jail for doing nothing more than helping a woman who is at risk for paralysis or infertility or who has cancer and whose life would be in danger if the pregnancy continued.

That bill—that bill they say is going to help women—harms women. It also revictimizes survivors of rape and incest by assuming they are lying—lying—and creating unconscionable barriers to care.

The American Congress of Obstetricians and Gynecologists, which represents thousands of physicians nationwide—physicians who help women with their first line of health care in many cases—said: These restrictions are ''dangerous to patients' safety and health.''

So that is the first bill they are hearing today—a bill that has already been rejected, a bill that will hurt women and their families.

The Judiciary Committee is also wasting precious time debating a second bill this morning because we already have a law that we voted for called the Born-Alive Infant Protections Act. That bill, which I supported, says that a fetus that is alive at birth has the same protections as every other human being. We voted on it, I say to my friend, in 2002.

So what they are doing over in the Judiciary Committee is rehearing a bill we already voted on, and they are rehearing a bill that passed, and then they are rehearing a bill that we voted down. This is politics, pure and simple.

Our job is to improve the health and lives of the people, not to undermine it. Our job is to act when there is a vacancy on the Supreme Court.

You know, the Republicans always quote Ronald Reagan. Some of us do as well, but he is definitely a Republican hero. Let's see what President Ronald Reagan said when there was an opening in an election year during his Presidency and he nominated Justice Kennedy. What did he say? Ronald Reagan said: ''Every day that passes with a Supreme Court below full strength impairs the people's business in that crucially important body.''

That is not BARBARA BOXER. That is not PATTY MURRAY. That is not President Obama. That is not Vice President BIDEN. That is not HARRY REID. That is not CHUCK SCHUMER. And I could go on. That is Ronald Reagan. So let me say it again. ''Every day that passes with a Supreme Court below full strength impairs the people's business in that crucially important body.''

You know what. We had a Democratic-controlled Senate, and we voted on Justice Kennedy in an election year, and we didn't give speeches and say: Well, let's wait for the American people to decide the next election. You know why we didn't say that? Because that would be laughable. Ronald Reagan got elected twice, just like Barack Obama got elected twice. He deserves respect. He needs to do his job, and we need to do our job.

So when you say you are not even going to hold a hearing on the President's nomination, you are showing disrespect for the Constitution—and let's see what the Constitution says—and disrespect to Ronald Reagan, I would argue. Look at what the Constitution says: The President ''shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, and Judges of the supreme Court.''

My friends are saying that the Constitution should be obeyed, that they

are strict constructionists. Where are these people? They are hiding in the corner not doing their job. Look at what it says: The President ''shall nominate, and by and with the Advice and Consent of the Senate, shall appoint . . . Judges of the supreme Court.'' It doesn't say: P.S., unless you don't like who is President. It doesn't say that.

So I say to everyone on the other side of the aisle who says they are strict constructionists—and most of them do—read the Constitution and read what Ronald Reagan said.

The American people have three words for Republicans: Do your job. Stop disrespecting the Constitution. Stop disrespecting our President and stop threatening to create a manmade crisis at the Supreme Court.

The Supreme Court has to do its job. This isn't some ideological discussion in a salon somewhere, because every day the Court considers cases with profound impacts for the American people—like whether States can have voter identification laws that put an unfair burden on voters or whether the American people have the right to organize and fight for fair pay. I could go on, because almost every issue that American families face eventually winds its way to the Court. So regardless of your political position or your personal position on any individual case, we have to fill the vacancy because Americans deserve a full functioning Supreme Court.

In closing, I want to quote Sandra Day O'Connor. Now, here is a woman—the first woman on the Supreme Court, appointed by Ronald Reagan—who made history. She says this to us in the clearest of terms: ''I think we need somebody there now to do the job, and let's get on with it.'' So if you don't want to listen to the Constitution, and you don't want to listen to Ronald Reagan, how about giving some respect to a woman who made history and understands how the Court functions. We have to get on with it.

Every one of us has to do our job. The Judiciary Committee should stop holding hearings to hurt women, and they should instead go down to the White House and advise and consent with the President on this nomination. They should stop playing politics. We should all come together. We see such division in the country. It is making a lot of our people afraid because there is no respect. How about we start off with respecting the Constitution and working together to fill this vacancy and showing the public that we can come together to have a fully functioning Supreme Court. The American people deserve nothing else.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. FLAKE). The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. CORNYN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

JUSTICE AGAINST SPONSORS OF TERRORISM ACT

Mr. CORNYN. Mr. President, I come to the floor to speak on two topics. The first is the piece of legislation that I introduced last year, along with the senior Senator from New York, Mr. SCHUMER, right after the anniversary of the September 11 attacks. This bill is entitled the ''Justice Against Sponsors of Terrorism Act,'' or JASTA for short. It makes minor adjustments to our laws that would clarify the ability of Americans attacked on U.S. soil to get justice from those who have sponsored that terrorist attack.

The Senate Judiciary Committee considered this bill last month and reported it to the floor without any objection, so now it is my hope that we can soon take up this legislation because this is important to the victims of the 9/11 attacks. Actually, that is an understatement. This bill, if signed into law, will hopefully help victims and their families achieve the closure that they so terribly need from this horrific tragedy. But this legislation is more than that. As our Nation confronts new and expanding terror networks that are targeting our citizens, stopping the funding source for terrorists grows even more important. So I hope Senators can work together to get this critical bipartisan bill done soon.

FILLING THE SUPREME COURT VACANCY

Mr. CORNYN. Mr. President, on another note, I come to the floor to make a few remarks about the Supreme Court vacancy left by the death of Justice Scalia.

It is pretty clear that our colleagues across the aisle do not believe that the American people deserve a voice in the process by which the successor to Justice Scalia is selected. We have made our position pretty clear that there will not be a new Justice confirmed until the American people, in the elections that come up in November, make their preferences known about who will make that appointment.

Instead of following the rule book of the minority leader, the senior Senator from New York, and our current Vice President—the ones that they advocated for under a Republican administration—our Democratic friends now argue that a lameduck President should be able to nominate someone to a lifetime appointment to our Nation's highest Court, which will upset the ideological balance on that Court for a generation. As I have mentioned before, the last time a Supreme Court nominee was nominated and confirmed during an election year was 1932, and we have to go back much earlier, to 1888, to find a similar situation in divided government, which we have now.

When Vice President BIDEN was chairman of the Senate Judiciary Committee, he made perfectly clear that a Supreme Court nominee should not be considered until after a Presidential election has concluded. As we all know, both Democrats and Republicans are well down the road to making their selection for their nominee for President, and obviously we will have that election in the coming November. But our friends across the aisle continue to contradict themselves and their previous statements, insisting that this decision is somehow unprecedented. Well, we know it is not, because if the shoe were on the other foot, they have made clear what they would do.

I thought I might share with my friends across the aisle what so many of my constituents in Texas have told me about our decision to let them have a voice in the selection of the next lifetime appointment to the Court.

Killeen, TX, is the home of Fort Hood, one of the largest military installations in the world. Last Friday, the town decorated a memorial to honor those who lost their lives in the terrorist attack of 2009, when MAJ Nidal Hasan went on his violent rampage. But John from Killeen wrote:

> President Obama is free to make any nomination he wants under the Constitution. The Senate, under the same Constitution, has no obligation to hold hearings on or confirm that nomination. The Judiciary Committee's decision to observe the so-called Biden Rule is absolutely correct. The replacement for Justice Scalia should be nominated by the next president.

I agree with the letter writer, and the minority leader agreed with him in 2005 as well. That is basically what Senator REID said in 2005 during the Bush 43 administration. While the President could nominate anybody he wanted, the Senate was not obligated under the Constitution to vote on that nominee.

At the end of the letter, John asked me to ''hold the line'' on this decision. He, like many Americans, is passionate about having a say in the selection of the next Supreme Court nominee. I intend to do everything I can to make sure they do have that voice.

Another constituent from Plano—just north of Dallas—was emphatic that the Senate should ''Give We The People a say.'' I couldn't agree with him more.

The American people made clear they wanted a check on the Obama administration in November of 2014 when they put Republicans in the majority of the Senate. Now we have an obligation to use that mandate from the people for issues that matter most to our country, and that includes the direction of the Supreme Court.

My constituents are right to care deeply about this because there is so much at stake. As I said, the next Supreme Court Justice could well change the balance of the Supreme Court for a generation and fundamentally reshape American society in the process. So the people should have a chance for input and should have a voice. I am proud to stand alongside my Republican colleagues and make sure their voice is

heard in the next selection of a lifetime appointment to the Court.

RECESS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Senate stand in recess, as under the previous order.

There being no objection, the Senate, at 12:18 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is now closed.

NATIONAL SEA GRANT COLLEGE PROGRAM AMENDMENTS ACT OF 2015

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of the House message to accompany S. 764, which the clerk will report.

The senior assistant legislative clerk read as follows:

House message to accompany S. 764, a bill to reauthorize and amend the National Sea Grant College Program Act, and for other purposes.

Pending:

McConnell motion to concur in the House amendment to the bill with McConnell (for Roberts) amendment No. 3450 (to the House amendment to the bill), in the nature of a substitute.

McConnell motion to refer the bill to the Committee on Commerce, Science, and Transportation.

Mr. ROBERTS. Mr. President, I suspect a quorum call has been initiated. If so, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. The Senate is not in a quorum call.

The Senator from Kansas.

Mr. ROBERTS. Mr. President, today is National Agriculture Day, and I wish to thank the farmers and ranchers of America. The Senate is considering legislation on an issue that is critically important to our Nation's food supply. It affects everyone from our producers in the fields to our consumers in the aisles of grocery stores. Without Senate action, this country will be hit with a wrecking ball—an apt description—that will disrupt the entire food chain. We need to act now to pass my amendment to S. 764. This is a compromised approach that provides a permanent solution to the patchwork of biotechnology labeling laws that will soon be wreaking havoc on the flow of interstate commerce, agriculture, and food products in our Nation's marketplace, and that is exactly what this is about. Let me repeat that. This is about the marketplace. It is not about safety. It is not about health or nutrition. It is about marketing. Science has proven again and again and again that the use of agriculture biotechnology is 100 percent safe.

In fact, last year the Agriculture Committee heard from three Federal agencies tasked with regulating agriculture biotechnology: the Department of Agriculture's Animal and Plant Health Inspection Service, the Environmental Protection Agency—yes, the EPA—and the Food and Drug Administration, the FDA. Their work is based on sound science and is the gold standard for policymaking, including this policy we are debating today—one of the most important food and agriculture decisions in recent decades.

At our hearing, the Federal Government expert witnesses highlighted the steps their agencies have already taken to ensure that agriculture biotechnology is safe—safe to other plants, safe to the environment, and safe to our food supply. It was clear our regulatory system ensures biotechnology crops are among the most tested in the history of agriculture in any country. At the conclusion of the hearing, virtually all Senate Agriculture Committee members were in agreement. What happened? When did sound science go out the window? Since that hearing, the U.S. Government reinforced their decisions on the safety of these products.

In November, the FDA took several steps based on sound science regarding food produced from biotech plants, including issuing final guidance for manufacturers that wish to voluntarily label their products as containing ingredients from biotech or exclusively nonbiotech plants.

More important, the Food and Drug Administration denied a petition that would have required the mandatory labeling of biotech foods. The FDA stated that the petitioner failed to provide the evidence needed for the agency to put such a requirement in place because there is no health safety or nutritional difference between biotech crops and their nonbiotech varieties, regardless of some of the rhetoric we have heard on the floor of the Senate.

Thus, it is clear that what we are facing today is not a safety or health issue, despite claims by my colleagues on the Senate floor; it is a market issue. This is about a conversation about a few States dictating to every other State the way food moves from farmers to consumers in the value chain. We have a responsibility to ensure that the national market can work for everyone, including farmers, manufacturers, retailers, and, yes, consumers.

This patchwork approach of mandates adds costs to national food prices. In fact, requiring changes in the production or labeling of most of the Nation's food supply for a single State would impact citizens in our home States. A recent study estimates that the cost to consumers could total as much as—get this—$82 billion annually, which comes to approximately $1,050 per hard-working American family. This Vermont law, which is supposed to go into effect in July, will cost each hard-working family $1,050. Let me repeat that. If we fail to act, the cost to consumers could total as much as $82 billion annually and will cost each hard-working American family just over $1,000. Now is not the time for Congress to make food more expensive for anybody—not the consumer or the farmer.

Today's farmers are being asked to produce more safe and affordable food to meet the growing demands at home and around a troubled and very hungry world. At the same time, they are facing increased challenges to production, including limited land and water resources, uncertain weather patterns, and pest and disease issues. Agriculture biotechnology has become a valuable tool in ensuring the success of the American farmer and meeting the challenge of increasing their yields in a more efficient, safe, and responsible manner. Any threat to the technology hurts the entire value chain—from the farmer to the consumer and all those who are involved.

I also hear—and I do understand the concern from some of my colleagues about consumers and available information about our food. Some consumers want to know more about ingredients. This is a good thing. Consumers should take an interest in their food, where it comes from, and the farmers and ranchers who also produce their food. I can assure you the most effective tool consumers have to influence our food system or to know more about food is by voting with their pocketbooks in the grocery stores and supermarkets. This legislation puts forward policies that will help all consumers not only find information but also demand consistent information from food manufacturers. However, it is important, as with any Federal legislation on this topic, for Congress to consider scientific fact and unintended consequences.

The committee-passed bill created a voluntary national standard for biotechnology labeling claims of food. I have heard concerns that a voluntary-only standard would not provide consumers with enough information, even though there is no health, safety, or nutritional concern with this biotechnology. So we worked out a compromise to address these concerns by providing an incentive for the marketplace to provide more information.

This legislation will allow the markets to work. However, if they do not live up to their commitments and information is not made available to consumers, then this legislation holds the market accountable. Under this proposal, a mandatory labeling program would go into effect only if a voluntary program does not provide significant information after several years. The marketplace would then have adequate time to adjust and utilize a variety of options—a menu of options—to disclose information about ingredients, along

with a wealth of other information about the food on the shelves.

Simply put, the legislation before us provides an immediate comprehensive solution to the unworkable State-by-State patchwork of labeling laws. Preemption doesn't extend to State consumer protection laws or anything beyond the wrecking ball that we see related to biotechnology labeling mandates, and we do ensure that the solution to the State patchwork, the one thing we all agree upon, is effective. It sets national uniformity that allows for the free flow of interstate commerce, a power granted to Congress in the U.S. Constitution. This labeling uniformity is based on science and allows the value chain from farmer to processor, to shipper, to retailer, to consumer to continue as the free market intended. This ensures uniformity in claims made by manufacturers and will enhance clarity for our consumers.

Increasingly, many Americans have taken an interest in where their food comes from and how it is made. Let's keep in mind this is a good thing. We want consumers informed about food and farming practices, but at the same time we must also not demonize food with unnecessary labels.

This debate is about more than catchy slogans and made-up names for bills. It is about the role of the Federal Government to ensure the free flow of commerce, to make decisions based upon sound science, all the while providing opportunity for the market to meet the demands of consumers.

This is not the first time this body has addressed this issue. In 2012 and 2013, Members of the Senate soundly rejected the idea of mandatory labeling for biotechnology. That is right. Both times more than 70 Members voted to reject mandatory labeling. This body then stood up for sound science and common sense, and I trust my colleagues will continue to stand up and defend sound science again.

Time is of the essence for not only agriculture in the food value chain but also consumers who work together, face the wrecking ball of this patchwork of State-by-State mandates. This legislation has the support of more than 650 organizations. We never had 650 organizations contact the Agriculture Committee about any other bill, any other piece of legislation—more than 650. My staff now tells me that number is over 700, large and small, representing the entire food chain, and that number continues to grow every day. That is quite a coalition. They are here in Washington trying to say: Look, this is not going to work with regard to State-by-State regulation.

As I have said, never before in the Agriculture Committee have we seen such a coalition of constituents all united behind such effort. Their message is clear: It is time for us to act. It is time for us to provide certainty in the marketplace.

I appreciate the bipartisan support of those on the committee who joined me to vote out our committee bill. The vote was 14 to 6. We made significant changes to address the concerns of others. Now we must carry this across the finish line. I urge my colleagues to support this compromising approach and protect the safest, most abundant, and affordable food supply in the world.

I yield the floor.

Upon close inspection, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mrs. BOXER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. BOXER. Mr. President, I rise to speak about a very important issue for the American people—what they feed their families. Here is a photo of a dad—a pretty typical photo of a dad taking his two kids shopping. You can see he has one toddler there and he has one infant in the cart. How well I remember doing this with my own kids and then watching my kids with their kids. It is kind of a tradition.

So we have a couple of questions we have to ask ourselves when we look at a photo like this. If this dad wants to know what ingredients are in the food that he gives his kids, he should have a right to know that. That is my deep belief. He has a right to know that, just as they do in so many countries all over the world.

The bill that is going to come before us, called the Safe and Accurate Food Labeling Act, is anything but that. I would call it the ''no label'' act. It is a ''no label.'' There is no label required. It is a totally voluntary system. It is a ''no label'' label. Even if in 3 years Senator ROBERTS' mandatory labeling kicked in, you still would not have a true label. I think it is an embarrassment. I think it is an insult to consumers, and it is a sham. The goal of the bill—and I hope we vote it down—is to hide the information from consumers. It is going to make it harder, not easier, for consumers to know if they are feeding their families genetically modified organisms, or GMOs.

So here again is our typical dad, and he has his kids in the cart. They are shopping, they have had their outing, and he picks up a product. He wants to see the ingredients, including whether it has been genetically modified. Guess what. There is no GMO label.

So what are his options? Well, in 3 years, maybe he will have an option. But before then, the voluntary program is going to make it literally impossible for him to know what is in his food. It is either going to be a QR code—so he will have to have a smartphone, and even when he puts the smartphone up against the code, they don't really have to tell you easily whether it is GMO, and it is going to have a whole bunch of other information—or he is going to have to call a 1–800 number.

Can you believe this? The man is going through the grocery store. He has 50 products in his cart. He is saying: Wait a minute, kids—just a minute. Here, have some chips. Then he calls 1–800 and he tries to find out, and he gets probably some person answering him in India, which is usually what you get, and you go around the mulberry bush. How embarrassing is this?

Now, if he is lucky, he gets some products from companies that really are being fair about this, such as Campbell Soup Company. They are doing a really smart, voluntary label. It says: ''Partially produced with genetic engineering. For information visit . . .'' and they have a site. Campbell's, if he is lucky, has enough products in here that have a label. He may find out more information, but it is totally voluntary. It is totally voluntary. I want to say thank you to Campbell's for being upfront and putting the information right on the label.

As a mom and as a grandma, I want to know what is in my food. Because of work we have done before, you do have to list how much sugar is in the product, which is so critical as we combat diabetes and other things. Sometimes you read that sugar content, and you think: Oh my God, I am going to get something else. And you can see how many carbs, how much fat. Why can't you find out if the product is genetically modified? Seems to me, this is fair.

So while I call the Roberts proposal the ''no-label label,'' because it makes believe you are going to have a label, but there is no label—the groups, the consumer groups call it the DARK Act, because the label is voluntary. There is not going to be a label, at least for 3 years after that, if not longer. They will figure out another way to put it off indefinitely. Even if, after 3 years USDA decides they have to make something mandatory, information will be hidden behind Web sites or phone numbers or these QR codes that are so problematic.

So this busy dad that we have here, he is going to have to stop shopping for every item on his list. He would have to pull out his phone to make a call or go to a Web site or scan a code. You don't have to live too long to know this is not going to happen. This dad is not going to do that because he has two kids. By now they are screaming: Get me out of here; I am hungry, and where is mommy? So as to all of this notion that this dad is now going to deal with all of this—I don't care how much of a super dad you are, you are not going to make 50 phone calls to 1–800 numbers. You are not going to go look at 50 QR codes and find out whether the product has GMO. You are just not going to do it. It is not going to happen. The kids are going to be melting down. Even if he doesn't have kids with him, he has other things to do, by the way, like live his life outside the supermarket. He is going to want to get back home

or get back to work. It makes no sense at all.

By the way, this dad—and I ask Senator REID to take a look at this picture, if it doesn't remind him of one of his kids taking his grandkids shopping—is going to be expected—if he has 50 products and he wants to find out—either to have a smartphone and to put it up against the code and then find a whole bunch of information—

Mr. REID. Or call the 1–800 number.

Mrs. BOXER. Or he could call the 1–800 number, and we know what happens then. He will be transferred around the world.

So Americans should not have to run through hoops. Life is difficult enough already not to have to do that. This thing is a sham. It is an insult. It is a joke.

Why are they doing it on the other side of the aisle? Because they are beholden to the special interests that don't want to label GMOs, that are afraid if people know the food is genetically modified, they won't buy it, even though there is no proof of that at all.

Mr. President, 64 countries require labels. Some 64 countries today require simple labels, and many of our products are sold in those 64 countries. Let me tell you some of these countries.

Mr. President, I ask unanimous consent to have printed in the RECORD a list of the 64 countries that require GMO labeling.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

COUNTRIES WITH GMO LABELS

1. Australia, 2. Austria, 3. Belarus, 4. Belgium, 5. Bolivia, 6. Bosnia and Herzegovina, 7. Brazil, 8. Bulgaria, 9. Cameroon, 10. China, 11. Croatia, 12. Cyprus, 13. Czech Republic, 14. Denmark, 15. Ecuador, 16. El Salvador, 17. Estonia, 18. Ethiopia, 19. Finland, 20. France;

21. Germany, 22. Greece, 23. Hungary, 24. Iceland, 25. India, 26. Indonesia, 27. Ireland, 28. Italy, 29. Japan, 30. Jordan, 31. Kazakhstan, 32. Kenya, 33. Latvia, 34. Lithuania, 35. Luxembourg, 36. Malaysia, 37. Mali, 38. Malta, 39. Mauritius, 40. Netherlands;

41. New Zealand, 42. Norway, 43. Peru, 44. Poland, 45. Portugal, 46. Romania, 47. Russia, 48. Saudi Arabia, 49. Senegal, 50. Slovakia, 51. Slovenia, 52. South Africa, 53. South Korea, 54. Spain, 55. Sri Lanka, 56. Sweden, 57. Switzerland, 58. Taiwan, 59. Thailand, 60. Tunisia, 61. Turkey, 62. Ukraine, 63. United Kingdom, and 64. Vietnam.

Mrs. BOXER. I am going to name some of these countries that require the labels. So in other words, our companies have to put the label on if they want to sell there, letting people know if their food is genetically modified: Australia, Austria, Belgium, Bolivia, Brazil, Bulgaria, China, Croatia, Cyprus, Denmark, El Salvador, Estonia, Finland, France, Germany, Greece, Hungary, Iceland, India, Ireland, Italy, Japan, Jordan, Kenya, Latvia, Mali, Malta, Netherlands, New Zealand, Norway, Peru, Poland, Portugal, Romania, Russia, Saudi Arabia, Senegal, Slovakia, South Africa, South Korea, Spain, Sri Lanka, Switzerland, Taiwan, Thailand, Turkey, Ukraine, United Kingdom, and Vietnam. I left some out, but they will be in the RECORD if anyone wants to see them.

Why is it that consumers in Russia have more information than our consumers do—the greatest country in the world? This makes no sense at all. Why is it that our companies are up in arms, since they have to put the label on in these other countries? They could put the label on here.

Now, if we care at all about what the public thinks, we should vote no on the Roberts bill. Some 90 percent of Americans want to know if the food they buy has been genetically engineered—90 percent. That is a majority of Republicans. That is a majority of Democrats. That is a majority of Independents. I think the other 10 percent are working for the big food companies, which don't seem to want to share this. Millions of Americans have filed comments with the FDA urging the agency to label genetically engineered food so they can have this information at their fingertips.

The bill also preempts any State in the Union from doing a label. Now, I don't like the notion of every State doing a label. That is why I support my bill—which has about 14 sponsors and simply says to the FDA to write a label and make this the law—or the Merkley bill, which comes up with four labels. Senator MERKLEY will talk about this. We say that would, in fact, be enough so that States wouldn't be able to act.

Meanwhile, this says no State action, and we are going to keep the status quo for at least 3 years—no labeling. Even after those 3 years, there may be no labeling at all. It is going to be barcodes, which are confusing, and 1–800 numbers, which probably take you to India to try and figure your way through it all.

Now, I have long believed in the power to give consumers information. I think you are all familiar with the dolphin-safe tuna labeling law. I am proud to say that I wrote that law. That law has been in effect since the 1990s, and people like it. But guess what. They see a smiling dolphin on the tuna can, and they know that tuna was caught in a way that does not harm the dolphins. We found out so many years ago that the tuna schools swim under the dolphins, and the tuna companies were purse seining on dolphins. They were putting nets over the dolphins, pulling them away and then catching the tuna, and the dolphins would die by the tens of thousands. So the schoolkids in those years said—at that time I was a House Member: Congresswoman BOXER, we don't want to have tuna that resulted in the death of all these dolphins. So we created the label, and the tuna companies were very helpful, just like Campbell Soup Company has been very helpful in labeling their products. When you have the companies come forward, it is very helpful. So we passed the bill. Everybody said: Oh, this is going to be terrible; no one will buy tuna. Actually, people started buying the tuna because they changed the way they fish for the tuna. The dolphins weren't harmed. We have saved literally hundreds of thousands of dolphins over the period of time that label has been in effect.

Now, as to this label, all we are saying is to let us know. Let us know. What we do know is that many of these genetically engineered products, as they are growing in the ground, require huge amounts of pesticides. Senator HEINRICH talked about that. That is one issue which has grown in importance to parents because they don't want to give their kids food that is covered in pesticides if they have an option.

So the power we give the consumers is critical—the power to simply know the truth. And, to me, knowledge is power. To me, it is respect. You tell people the truth; you don't give them a sham bill and say: Well, we won't require anything for 3 years, but then we may have a barcode, and then we may have a 1–800 number. No. It is pretty simple: Require a label. Require a label. A label is simple. A label works.

I see Senator MERKLEY on the floor, and I am finishing up. We have various ways we can do the label. One way is to give it to the FDA and tell them to come up with it, and another way is the way Senator MERKLEY has proceeded in a way to attract more support. He has given four options, all of which are very good and all of which would immediately give consumers the information they need.

In 2000, when I introduced the first Senate bill concerning the labeling of GE foods, my legislation had one supporter, and it was me. I had no other supporters back then. It was so long ago. It was in 2000. Now 14 Senators are cosponsoring the bill. I am so proud to cosponsor Senator MERKLEY's bill, the Biotechnology Food Labeling and Uniformity Act, which, again, will put forward four options for companies.

There are reasons people want this information, and not one of us here should decry what our people want, even if they want to know if the foods contain GMOs because of the prevalence of herbicide-resistant crops. We know from the USGS that growers sprayed 280 million pounds of Roundup in 2012—a pound of herbicide for every person in the country. That is what they spray on these foods that contain GMOs. Whatever the reason, Americans deserve to know what is in the food they are eating. Some want to know it just to have the information.

Some in the food and chemical industry say that adding this very small piece of information would confuse or alarm consumers. This is an old and familiar argument raised by virtually every industry when they want to avoid giving consumers basic facts. In fact, a 2014 study from the Journal of Food Policy shows there is little evidence that mandatory labeling of GE foods signals consumers to avoid the product. There is no proof of that.

The FDA requires the labeling of more than 3,000 ingredients, additives, and processes. Orange juice from concentrate must be labeled. Consumers should be able to choose the product they prefer. If they like it from concentrate, fine. If they prefer it in a different fashion, fine. There is no reason they can't also have the knowledge that the food they are buying is genetically engineered.

The world certainly has moved ahead of us. The Roberts bill would take us way back into the dark, and that is why consumer groups call it the DARK Act. It is a sham. It is an embarrassment. It is time for us to shelve the DARK Act, to listen to 90 percent of the American people. For God's sake, if we do nothing else, we ought to listen to 90 percent of the American people, and we ought to pass a real bill to help Americans make informed choices about the foods they eat.

Again, I wish to thank Senator MERKLEY for really delving into this issue and coming up with another alternative that will be very acceptable not only to me but to, I believe, the 90 percent of the people who are crying out for this information.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Mr. President, this debate on the Monsanto DARK Act, which stands for Denying Americans the Right to Know, centers around two basic propositions. The first proposition is that it would be chaotic to have 50 States with 50 different labeling standards. How could a food company possibly always get the right label to the right store if there are 50 different State standards? This is not a problem we actually have yet because we have no States that have adopted a standard for GE labeling. We have one State—I should say no States have implemented it. One State has adopted a standard, and that won't be implemented until July. So we are far away from having any issue over conflicting standards. But I acknowledge the basic point. This makes sense. It makes sense that we don't want to have a world in which every State has a different approach: In this State you do X, Y, and Z, and in this State you do A, B, and C, and what the exemptions are differ, and the formats differ, and so on and so forth. So let's just concede that at this point, it makes sense to have a single standard for the country. But a single standard about what?

That brings us to the second basic proposition, which is that there be a consumer-friendly alert that there are GE ingredients in a product. That is all. If a State says they want to have a simple, consumer-friendly alert that there are GE ingredients, then they should be able to do that.

If we don't want 50 standards, then we need to have the replacement be a national standard that provides the same thing, that is a consumer-friendly alert that there are GE ingredients. Then the individual can do more investigation. They can go to the company's Web site and find out the details, including what type of genetic engineering it is, what is its impact, and so on and so forth.

Right now there is a coalition of individuals in this Chamber who don't believe in Americans' right to know. They want to take it away. They want to support a bill, which is currently on the floor right now, that denies Americans the right to know because they are getting pressure from Monsanto and friends, and they are not willing to stand up for the American citizen, their constituents. They don't believe in a ''we the people'' America; they believe in ''we the titans,'' that we are here simply on the end of a puppet string. But we are not here for that purpose. That is not the vision of our Constitution. The vision of our Constitution is that we are an ''of the people, for the people, and by the people'' world. That is what makes America beautiful, not that a few powerful groups can control what happens here in this Chamber, this honored and revered Chamber where it is our responsibility to hold up our ''we the people'' vision of the Constitution.

So this bill, this Monsanto Deny Americans the Right to Know Act 2.0, has a few shams and scams placed in it to pretend that it is a labeling law.

The first scam that it has in it—or sham—is an 800 number. I as a consumer can go to a grocery shelf and in 5 seconds I can check three products for an ingredient by looking at the label; 1 second, 2 seconds, 3 seconds—well, less than 5 seconds. In 3 seconds I can check and see whatever I want to find out. If I want to check the calorie count or check for vitamin A or what percentage of the daily recommended amount is in the food or if I want to see if it contains peanuts because I am allergic to peanuts, I can do it for three products in 3 seconds. That is consumer-friendly. That is why we put it on the label. That is why we say: Oh gosh, we are going to give people the information they want so they can exercise their freedom when they buy things to support what they want. That is integrity between the producer and the consumer.

But do we know what the opposite of integrity is? That is the DARK Act. Deny Americans the right to know and ban States from providing this basic information. It is the complete absence of responsibility to the citizen.

Well, there is a 1–800 number. How would that work? First of all, I have to find the 800 number. Then I have to make sure I have a phone with me. Then I have to make sure I have good cell phone coverage. Then I have to go to a phone tree. You know how these work. You go to the phone tree, you listen to eight options, you pick the option, it takes you to another list, you pick another option, and then finally, after about five levels, they connect you. They say: If you want an operator, press this, and you press it and you go to some call center in the Philippines. They don't know what you are talking about. This is not consumer-friendly.

Looking at the ingredient list takes 1 second. It is 10 minutes or more when you call that 800 number, and maybe you get a message: I am sorry, we have a large call volume right now, and we will be able to answer your call in 20 minutes. That is not consumer information; that is a scam and a sham.

That is not the only one that is in this DARK bill. The second sham is this idea of a quick response code, like this one in the picture, this square code. Again, as a consumer you can't look at the ingredients and see the answer, if there are GE ingredients, no. Now you have to have not just a phone but a smartphone. You have to hope it has a battery, that it has a photo appliance with it. You have to take a picture of that code, and then that code takes you to some Web site written by the very producer who gives you the answer, maybe, or maybe they lay out a whole architecture of stuff that obfuscates it, confuses you, and you don't really get the answer, when all you needed was a little tiny symbol on the package that indicated whether it had GE ingredients. So, again, how long does that take? Ten minutes per product? Thirty minutes for the first item on your shopping list as you compare three products? That is not consumer-friendly—3 seconds versus 30 minutes—and that is just the first item on your shopping list. There is not one person in this Chamber who truly believes this is a fair substitute for consumer-friendly information. This is a sham and scam No. 2.

If this QR code had a message on it and this message right here written on the back said ''There are GE ingredients, and for details, scan this code,'' that is consumer-friendly. That is all the consumer wants to know. That is all we are asking for—a consumer-friendly alert. Then that QR code for more information is fine. That is perfectly fine. But without it, nobody even knows why it is there. What is it there for? Is this where you find out information about the company? Is this where you find out information about the new products they are going to be putting out? Is this where you find information about special sales that are going on? Nobody has any idea.

Well, the DARK bill doesn't stop with sham No. 1 and sham No. 2. No, it gives us even more fake labeling because we see it says that a form of labeling is to have no label but to put the information on your Web site. Well, to call that a label is simply a misrepresentation—and ''misrepresentation'' is a fancy word for ''lie''—because there is not any information that even appears on the product. None.

So we say: Well, I was told there would be an 800 number. I am not finding it. I was told there might be a box, and I think it is for finding out if there

are GE ingredients. But I don't find that computer code box, no, because they have adopted door No. 3, and door No. 3 is to put something on some form of social media. But what social media? Are you supposed to go to Instagram or Facebook or Twitter? Nobody has any idea.

So now there is nothing—let me repeat: nothing—on the product. So what could be learned in 1 second by a consumer, now the consumer has fully no idea. And because this whole thing is voluntary, lots of products may just choose to put nothing up.

The proponents of the DARK Act say: No, we have a pathway to more information. If companies don't put up information in the form of a barcode or a phone number or something on a social media Web site, well then we will require something in one of those three areas. That requirement down the road still provides no consumer-friendly information. It is a pathway through a hall of mirrors that leads to a hall of mirrors. It never leads to concrete, simple information.

Don't you know that if you told consumers they would have to go to a Web site to find out if there is vitamin D in the product, that would be ridiculous? It should just be printed on the package.

Don't you know if someone were interested in high fructose corn syrup and they were told they had to dial a call center in the Philippines to find out that information, consumers would say that is absurd? We all know that is the case.

Ninety percent of Americans strongly believe—or believe when given the choice—that there should be this information directly on the label. I am rounding up from 89 percent. Let's round it off. When questioned as to whether there should be information on the label to say whether there are genetically engineered ingredients, 9 out of 10 Americans say yes, there should be, and 70 percent say they feel very strongly about this. So here are our constituents, and 9 to 1, they want us to provide information. But up here on Capitol Hill we have Senator after Senator who does not care what their constituents think. They care only what big Monsanto and friends want, which is to deny Americans the right to know. That is irresponsible. That is wrong.

When we look at this number, you can see by how high it is that this is not partisan because it would be impossible to have a big difference—100 percent of one party and 80 percent of another might round off to 90 percent. But that is not the way it is. Whether you are an Independent, Democrat, or Republican, in all 3 groups, 9 out of 10 individuals, plus or minus a few percentage points, say they want this information on the package.

So here we are with this vast difference in ideologies being displayed by the Presidential debate, from the tea party right to the far left and everything in between. There is disagreement on all kinds of things, but on this, all the citizens agree—the right, left, middle, far left, far right—because it is a fundamental freedom in America to use your dollars based on basic, accurate information. That is a basic freedom that a bunch of Senators on this floor want to take away. It is just wrong to take away the States' rights to answer that request, that need, that desire for information on GE ingredients and not to replace it with a national standard. That is just wrong.

There are folks who say: Wait, I want to be on the side of science, and I don't think there is any kind of scientific information that there is any kind of disadvantage to GE products. Well, that is fundamentally wrong. If you think there are no disadvantages, it is because you don't want to know.

There are benefits, and there are disadvantages. For example, recognize that this tool can be used in ways that produce some good results and some not so good results. That is why it is up to the consumer to decide how they want to use their dollars.

On the good side, we can talk about golden rice. There are parts of the world that primarily eat rice. If they have a vitamin A deficiency, there is rice that can be grown that has been genetically modified to supply more vitamin A and makes for a healthier community. That is a positive.

For example, sweet potatoes grown in South Africa are vulnerable to certain viruses, but they have been genetically modified to resist those viruses so there is more substantive food available to the community. As far as we know, there are no particular side effects, so that is a positive.

There are some interesting ideas that occur about edible vaccine technology. This is an alternative to traditional vaccines, and they are working to have transgenic plants used for the production of vaccines that stimulate the human body's natural immune response. Wouldn't that be amazing if we could essentially inoculate against major diseases in the world through some type of GE, as long as there weren't side effects? Who knows, that may end up being a major benefit.

Just as there are scientifically documented positives, there are scientifically documented negatives. For example, let's talk about our waterways. I put up a chart which shows that since the presentation or production of herbicide-resistant crops, the amount of herbicides put on crops in America has soared. We have gone from 7.4 million pounds in 1994 to 160 million pounds by 2012. It has gone up since. All of that glyphosate is basically being sprayed multiple times a year. It gets into the air, it gets into the plants, it gets into the runoff from the fields, and it goes into our waterways. It has an impact because it is a plant killer. That is what an herbicide is. It kills plants. If you put millions of pounds of herbicide into our rivers, it does a lot of damage.

I will not go through all the studies that have noted this damage. Let me just explain that when you kill things at the base of the food chain, you change the entire food chain. This is true for micro-organisms in sea water, which we refer to as marine systems, and it is very true in micro-organisms in freshwater systems.

Micro-organisms form the basis of food chains and provide ecological services. There are a bunch of studies that show the impact of all this plant-killing herbicide running into our rivers. It affects the soil too. Quite frankly, it even creates some potential for an impact on human health.

Let me explain. Two-thirds of the air and rainfall samples tested in Mississippi and Iowa in 2007 and 2008 contain glyphosate. Those are rain samples and air samples, two-thirds of which contained this herbicide. Well, what we know is that not only do humans absorb some therefrom, but they also absorb some because of residuals in the food. A study published in the Journal of Environmental & Analytical Toxicology found that humans who consumed glyphosate-treated GMO foods have relatively high levels of glyphosate in their urine because it is in their bodies. We also know that glyphosate has been classified as a probable human carcinogen by the International Agency for Research on Cancer, part of the World Health Organization.

Here we have a probable carcinogen present in such vast quantities—present in the rain, present in the air, present in the residuals on the food. That is a legitimate concern to citizens. Does that mean that it is causing rampant outbreaks of cancer? No, I am not saying that. I am just saying there is a legitimate foundation for individual citizens to say: I am concerned about the runoff into our streams. I am concerned about the heavy application and its impact on local plants and animals. I am concerned about the possibility of absorption of anything that might contribute to cancer. That is the citizens' freedom to have those opinions.

This is not a situation where Members of this body should say: We are smarter than they are, and we don't care that they have scientific concerns because, quite frankly, we want to suppress that information. We don't want to give them a choice. We don't want to let them know. It is just wrong. It is wrong to take away States' rights to provide such basic information and not have a consumer-friendly version at a national level. I will absolutely support a 50-State standard so there is no confusion and no cost of overlapping standards or difficulties in what food goes from what warehouse to what grocery store—absolutely support that—but don't strip States from doing something 9 out of 10 Americans care about and then proceed to bury that and not provide that information in the U.S. Senate.

I encourage my colleagues: Simply say no to this Monsanto Deny Americans the Right to Know Act, the DARK Act. Simply say no. Stand up. Have some respect for this institution.

This is a bill that never went through committee. Not a single phrase of this bill went to committee. This is a new creation put on the floor without juris, without consideration on committee, and no open amendment process. How many colleagues across the aisle cried foul over the past years when Democrats were in charge and didn't allow an amendment process? They insisted they would never vote for cloture unless there was a full amendment process that honored the ideas presented by different Senators. But there is no open amendment process here. So there we are—a bad process, mega influence by Monsanto and friends oppressing and stripping the freedom of American citizens. Let's not let that happen.

I have a host of letters I was planning to read, but I see my colleague from Ohio is wanting to speak to this issue, and in fairness to all sides of this debate or ideas that he might want to present, I am going to stop here. If there is an opening later, I would like to return to the floor because of the calls and letters overwhelmingly from citizens stating they resent the Senators in this body trying to strip them of their right to know.

Thank you, Mr. President.

The PRESIDING OFFICER (Mr. LANKFORD). The Senator from Ohio.

Mr. PORTMAN. Mr. President, I want to thank my colleague from Oregon, and I am sure he will be back on the floor again to talk about this issue.

COMPREHENSIVE ADDICTION AND RECOVERY BILL

Mr. President, I want to address a couple of other issues quickly. One is the last act that this Senate took last week, which was passage of the Comprehensive Addiction and Recovery Act. I didn't have a chance to speak on it because the Senate adjourned at that point, but I just want to congratulate my colleagues for coming together as Republicans and Democrats. It was a vote of 94 to 1. That never happens around this place. It is because people understand the significance of the challenge of heroin and prescription drug abuse and addiction back in our States and wanted to stand up and put forward Federal legislation that would help make the Federal Government a better partner with State and local governments and nonprofits that are out there in the trenches doing their best, with law enforcement who are trying their darnedest, and others in the emergency medical response community who are trying to deal with this issue.

While traveling the State of Ohio the last 3 days, this Senator heard about it constantly. Before I would give a speech, people would come up and say thank you for dealing with this issue because my daughter, my cousin, or my friend is affected. Today, I was with a group of young people talking about other issues, and one said that his cousin at 23 years old had just succumbed to an overdose—died from an overdose of heroin.

This a problem in all of our States. It is a problem where we can help make a difference. I want to congratulate my colleagues, Senator WHITEHOUSE and others, for working with me to put this bill forward. We worked on it over 3 years in a comprehensive way, using the best expertise from around the country.

Now I am urging my colleagues in the House of Representatives to follow suit. Let's pass this legislation. Let's send it to the President's desk for his signature. Let's get this bill working to be able to help our constituents all over this country to better deal with a very real epidemic in our communities.

Now the No. 1 cause of death in my State is overdoses—from these deaths that are occurring from overdoses of heroin and prescription drugs. Again, I congratulate the Senate for acting on that on a bipartisan basis and having thoughtful legislation that is going to make a difference.

READ ALOUD MONTH

Mr. President, I also rise today to speak about something that also affects our young people, which is literacy and learning. This happens to be Read Aloud Month. This U.S. Senate has established the month of March as being the month that we hold up those who read aloud to their kids, because we found it is incredibly important for a child's development—particularly for the ability of a child to become adept at other subjects at school by just being read to and the literacy that results from that.

There is a campaign called the Read Aloud campaign. I congratulate them for the good work they do around the country. They started in my hometown of Cincinnati, OH, so I am very proud of them, but now it is a national effort. In libraries and schools across the country, March is held up as Read Aloud Month, where we encourage parents and other family members to get into the habit of reading to their children, if only for 15 minutes a day. That is all the Read Aloud campaign is asking for. If parents and other caregivers read at least 15 minutes a day to their kids, what an incredible difference it would make.

There is one study that is now quite well known that shows, on average, by the time a child born into poverty reaches age 3, he or she will have heard 30 million fewer words than his or her peers who are not in poverty. What does that mean, 30 million fewer words? It means that those children born into poverty are at a severe disadvantage. It means they can have a lifetime of consequences that are negative for them. The more we learn about the way the brain develops, the more clear it is that verbal skills—like other skills—develop as they are used and atrophy as they are neglected. The younger the children are, the more important this is. So reading to children, particularly younger children, is incredibly important to their development.

Even though this information is now out there and the Read Aloud campaign is doing a great job of getting the education out there, even with all this information we are told that in 40 percent of families in America today parents and other caregivers are not reading to their kids.

There is a doctor at Cincinnati Children's Hospital, Dr. Tzipi Horowitz-Kraus, who is a real expert on this topic. She stated: ''The more you read to your child, the more you help the neurons in the brain to grow and connect.'' So that is the physiological change that occurs.

We also know a child's vocabulary is largely reflective of the vocabulary at home from their parents and caregivers. There is a 2003 study by Elizabeth Hart and Todd Risley studying the impact of this 30 million word gap we talked about between households in poverty and those of their peers. They found that by age 3 the effects were already apparent. Even at that young age, ''trends in the amount of talk, vocabulary growth, and style of interaction were well established and clearly suggested widening gaps to come.'' That is another study out there about what the impact of this is.

There are a lot of adults who might not know how important reading aloud is and don't feel they have enough to do it, but, again, 15 minutes a day is all they are asking. It adds up quickly and can help close this word gap. As parents, it may be the most important single thing we can do to help our children to be able to learn.

Illiteracy or even what is called functional illiteracy—not being illiterate but not being able to read with proficiency—makes it so much harder to do everything, to earn a living, obviously to get a job, and to participate fully in society. It hurts self-esteem. It hurts personal autonomy. Millions of our friends and neighbors are struggling with these consequences every single day. According to the Department of Education, there are about 32 million adults in the United States who can't read. Nearly one out of every five adults reads below a fifth grade level. Nearly the same percentage of high school graduates cannot read. So one out of every five high school graduates not being able to read is an embarrassment for us as a country, our school system, and certainly what is not going on in our families, which again can help to get these kids off to the right start. For these adults who are functionally illiterate or illiterate, they all started with this disadvantage we are talking about, not having this opportunity at home.

Some parents may say: OK, ROB. How do we afford this, because children's books aren't inexpensive. How do you get the online resources you might want to be able to read to your kids, if

not books? I have one simple answer for that, which is get a library card. Our libraries in Ohio and around the country are all into this effort. They have all rallied behind it, and they are all eager to be a part of this.

My wife Jane and I made it a priority to read to our kids when they were growing up, and a lot of that came from books we took out of the Cincinnati and Hamilton County Libraries. It also had the consequence of introducing our kids to the libraries and helped them to become lifelong readers and learners. That is one way for those who are wondering how to begin. Get a library card, go to your library, and get started there.

I am proud Ohio has led the way in this effort. This campaign began in Cincinnati and is now becoming a national movement.

We do talk a lot in this body about education. On a bipartisan basis, we recently passed legislation that had to do with K–12 education reform. I think it was an important step, but one thing it did is it returned more power back to the States and back to our families, which I think is a good thing.

The new law also authorized grant funding for State comprehensive literacy plans, including targeted grants for early childhood education programs—what we are talking about here, early childhood. It made sure those grants are prioritized for areas with disproportionate numbers of low-income families. We also authorized professional development opportunities for teachers, literacy coaches, literacy specialists, and English as a Second Language specialists. These grants will be helpful in empowering our teachers to do their part to help our young people to learn to read. Clearly, our wonderful teachers have a role to play.

To my colleagues, while this is all fine, there is no substitute for the family. There is no substitute for what can happen in a family before the child even goes to school and then while the child is starting school to be able to give that child the advantage of being able to learn more easily. Although I supported that legislation—there are some good things in there—let's not forget the fundamental role all of us play as parents or aunts or uncles or grandparents or other caregivers.

Washington may be the only place on Earth where 30 million words—which is this word gap we talked about, which is less than the length of our Tax Code and regulations—doesn't sound like a lot, but it is a lot, and there is no government substitute to close that 30 million word gap. Ultimately, it is going to be closed by parents, grandparents, uncles, aunts, other caregivers, and brothers and sisters with the help of librarians, teachers, and others. We need to call attention to this issue to let parents know that this 15 minutes a day can make a huge difference. Every little bit counts. Every time you read to the child, you are giving him or her an educational advantage, you are making it easier for them to learn, helping to instill in them a love of learning that will last a lifetime.

Again, I thank the Read Aloud campaign. I am proud of their roots in my hometown and in Ohio. I thank them for all they are doing every day for our kids and for our future.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Mr. President, I wish to continue sharing some information about Monsanto and the Deny Americans the Right to Know Act that is on the Senate floor being debated right now.

The reason I want to turn to this is this is such an egregious overreach of the Federal Government, stripping States of the right to respond to their citizens' desire for clear information, consumer-friendly information, on GE—genetically engineered—ingredients and stripping American citizens of the right to know.

I have already gone through a number of the points that are important in this debate; that if you are going to eliminate the ability of States to provide consumer-friendly information on their label—which can be as simple as a tiny symbol or a letter such as Brazil uses—then there has to be a national standard that provides consumer-friendly information. Certainly, the hall of mirrors embedded in the DARK Act, which says consumers have to call call centers somewhere around the world and maybe they will eventually get an answer to their question about GE ingredients or they have to own a smartphone and have a data plan and take a picture of a computer code and give up some of their privacy in the process in order to try to find out this information or they have to guess where on social media the company has posted some information about the ingredients they have in their product—those three sets of components are completely unworkable, 100 percent unworkable.

Ask yourself if that would be a logical remedy to people trying to find out about the calories in a product. Instead of finding out in one second, it could take them 10 minutes or, for that matter, an hour or they may never even get an answer on the end of that call center because the call center is too busy.

The point is that 9 out of 10 Americans believe this information should be easily available on the label. I went through those numbers before. The numbers are basically the same for Republicans, basically the same for Democrats and Independents—slight variations. Throughout the ideological spectrum, this is something American citizens agree on. Along comes the Monsanto DARK Act and its proponents to say: We don't care that the American people have finally found something to agree on that goes to their core values about the right to know. We are going to stomp out their right to know because we simply don't work for the American people. We don't work for our constituents. We work for some powerful special interest.

That is wrong. I hope the American citizens will let their Senators know it is wrong. They are certainly letting me know how they feel, and I thought I would share some of those with you, but before I do that, I had some inquiries about this situation of basically all citizens throughout the ideological spectrum sharing this same point of view—9 out of 10. Is it also true for gender and age? Let me share that. Specifically, there was a followup question which asked: Does a barcode work to provide information on the label or do you want a physical label stating that there are GE ingredients? Physical label versus this barcode—which people don't even know where it is on the package.

It turns out again it is 90 percent. It is 88 percent of Democrats, 88 percent of Republicans, and 90 percent of Independents say: No, we want the physical label, not some mysterious label that we have to use our smartphone to interpret and give up some of our privacy.

How about men and women—87 percent of men, 97 percent of women.

How about younger and older—those who are less than 50 years old, 86 percent; those who are over 50 years old, 90 percent. Again, basically 9 out of 10 Americans, regardless of gender, regardless of age, regardless of ideology, say: No, this is a fundamental issue of American freedom, my freedom to exercise my choices based on basic information that should be on the label.

Let's turn to some real constituents and some real letters so we are not just talking numbers.

Bertha from Springfield writes:

I urge you to vote against SB 2609 concerning labeling of foods that contain GMOs. Every American has the right to know what they are putting in their bodies. You were elected to represent all Oregonians and protect our rights, be assured I will check yours and every other representatives' voting records before I cast my votes in the future.

Let's turn to Eli from Medford, OR:

I want to hear you come out publicly against S. 2609. Please lead the fight to get GMOs clearly labeled without delay.

Well, Eli, that is exactly what I am doing. I hadn't read your letter before I started speaking out strongly because I fundamentally believe we are here to represent our citizens—not to bow down to special interests—and this is as clear as it gets. This is as straightforward as it could possibly be.

Let's turn to Ms. JC in Salem, OR:

Please, I am requesting you NOT to support (S. 2609) (referred by some as the Dark Act) when it comes up for a vote in the Senate. I know the Senate Agricultural Committee voted 14–6 to pass the Dark Act S. 2609 last week. I believe the government should protect OUR RIGHT TO KNOW what's in our food. Please DO NOT VOTE to block GMO labeling.

She goes on:

Most European nations do not allow these types of food to be grown or sold in their countries. This should give you some information about how people in other countries view genetically modified foods.

Please do not support this legislation. Your constituents will appreciate your support for their right to know what's in the foods we put on our plates to feed to our families.

That is a very personal issue: what you are putting in your mouth, what you are putting on your family's table for your partner and your children. That is a very powerful issue, and here we have Senators who do not care and want to take away that right for something so close to people's hearts.

Let's turn to Sheila in Pendleton, OR:

I want to urge Senator MERKLEY to vote against the S. 2609, which would block mandatory labeling of genetically engineered foods. I urge the Senator to stand up for states' rights and individual rights to know. We have a right to know what is in our food so that we can make educated decisions about the food we eat.

She continues:

The free market can only work when consumers have the information they need to make informed choices. Contrary to what you hear from industry, GMO food labeling will not increase food prices. Companies frequently change labels for all sorts of reasons, without passing those costs on to consumers.

Let me dwell on that point for a moment. It is completely reasonable not to have 50 different State standards that are conflicting, but what is unreasonable is to say that putting simple information on the label—consumer-friendly information—costs a dime because that label is printed at the same cost whether or not it includes a symbol that says ''This food contains GE ingredients.'' It doesn't cost any more to print the calories on the label, doesn't cost any more to put the vitamin D content, doesn't cost any more to print a symbol or a phrase or an asterisk indicating there are GE ingredients. So let's just be through with that argument that somehow there is a cost issue.

Ronald from Medford writes:

Oppose S. 2609, the anti-GMO labeling bill. Allow States to enact their own GMO labeling laws.

And that is a point—States' rights. I hear all the time from colleagues here on this floor about States' rights, that the Federal Government should treat States as a laboratory to experiment with ideas, to see if they work, to perfect ideas that might be considered for national adoption. And isn't that exactly what Vermont is—a State laboratory that is implementing a bill on July 1? And we could all watch and see whether it works.

On July 1, there will be no conflicting State standards because there is only one State involved—Vermont. So we don't have to have confusing labels going from different warehouses to different States because there is just one State putting forward a standard. So it is an opportunity for us to view that as a laboratory and see how it works. Other States might want to copy if it works well, or they might want a different version. Then the Senate could say: You know what, now we have conflicting State standards, and let's address the core issue, which is a consumer-friendly indication on the package, and get rid of the conflicting State standards. That would be a fair and appropriate role for this Senate to play.

But to crush the only State laboratory that is about to come into existence in exchange for nothing but a hall of mirrors that does not give any reasonable opportunity for the consumer as a shopper to find out the information they need—the information they can get in 1 second by looking on the label but would instead take 10 minutes or 30 minutes or they may not even be able to get it at all while standing there in the grocery store looking at the very first product on their list.

Joshua of Eugene says:

Please support the public's right to know what food has GMO contained in it and work to defeat the DARK Act.

Additionally, I fully support also the public's right to know where their food comes from, the country of origin, as well as what nutritional content is in all food eaten in restaurants.

So he is suggesting that we should expand this conversation to restaurants. For now, let's talk about packaged foods. And he is also commenting on country of origin.

I want to live in a nation where, if I choose to buy the produce grown in America, I get to buy the produce grown in America. I want to live in a nation where, if I choose to buy the meat raised in America and support American ranchers, I get to support American ranchers. It may simply be because I want to help out my fellow countrymen. It may be because I think they have superior produce or make a superior product, a type of meat. It may just be patriotism. But it should be my right to know where that food is grown.

We have a law, country-of-origin labeling, that does exactly that because consumers want to know. It isn't about what steak to put in your mouth; it is about where the food was grown.

It so happens that we are part of a trade agreement—the World Trade Organization—that says our labeling of where pork and beef are grown is a trade impediment. I couldn't disagree more. We have lost case after case in the WTO over this topic. Finally, we had to take country-of-origin labeling off of our beef and off of our pork. We haven't had to take it off our other meats, other produce. I hope we get to the point where we can fully restore our country-of-origin labeling because it matters to Americans.

What kind of country are we when we don't even have the right to buy our fellow citizens' produce and our fellow citizens' meat? Talk about stripping away freedom. Yet here comes a group of Senators on this floor who want to further strip the rights of consumers. No wonder American citizens are angry with their government. No wonder they are angry specifically with Congress, that they rate us so unfavorably, below 10 percent. No wonder they are cynical because of things like this, where we ignore the fundamental desires of citizens and instead cave in to a powerful special interest. That is not the way it is supposed to be in the United States of America.

Terry of Lake Oswego writes:

GMO free food is information we need to have. I need the right to decide what to eat and feed my family. If the food industry want[s] to produce foods without meeting certain standards, using whatever they want to make their product, sell foods to us, what protection do we have? Do we really know the long term effects of altered food ingredients?

Well, Terry, no, we don't know all the effects, but we do know there is a series of potential benefits and a series of problems. Those problems are the massive runoff of herbicide—which is a name for plant-killing chemicals—massive runoff of plant-killing chemicals into our streams. There are plants in our streams—algae, microorganisms—that are the fundamental basis of the food chain, and that makes a difference. We do know this herbicide is classified as a potential human carcinogen by the World Health Organization. We also know those who eat GMO food end up with more glyphosate—that is herbicide—in their body.

But it is up to you, Terry, to decide whether you have concerns about this. You should get to decide. No Senator can come to this floor, Terry, and say: I know better. I want to strip your ability to make a decision because I know everything. And you know what. I don't care about the scientific research; I just want to serve these powerful ad companies that don't want you to know. So too bad, Terry, and too bad to the 90 percent of Americans, 90 percent of Democrats, 90 percent of Republicans, 90 percent of Independents, 90 percent of women, 90 percent of men—I am rounding off but pretty close—90 percent of the young. Too bad for all of that because Senators here want to deny you the information on which to make the decision you are asking for.

Gail of Portland, OR, says:

Please do all you can to defeat S. 2609. It is my understanding that under this bill, it would be illegal for States to require GMO labeling, even though polls show that 93 percent of Americans support labeling efforts.

Well, Gail, I don't have the poll you have that says 93 percent of Americans support labeling, but I do have this poll done in November 2015 by a reputable pollster that says 89 percent. So let's take your 93 percent and let's take this poll's 89 percent and just agree that basically 9 out of 10 Americans want this information on the product. And when asked if they want it in the form of a mysterious barcode that compromises

their privacy if they use it—they don't even know why it is on the product—or they want it in terms of a simple statement or symbol, they want the simple statement or symbol.

So, Gail, thank you for your letter.

William of Chemult, OR, said:

I was distressed to learn that the Senate Agriculture Committee last week approved the voluntary GMO labeling. . . . This would be a disaster if it became law. As your constituent, I'm writing to ask you to oppose this and any other scheme that would make GMO labeling voluntary.

William, I am sorry to report that it is even worse than voluntary because an actual label is banned by this bill. A State cannot put a real label or symbol on the product. Instead, this is the anti-label bill. It says you have to put on things so the customer can't see there are GE ingredients. It has banned putting clear, simple, consumer-friendly information on the product. Instead, it proposes a wild goose chase where you have to call some call center somewhere, some 800 number somewhere and hope that you can get through the phone tree; hope that eventually they will stop saying: Because of call volume, it will be another 30 minutes before we can talk to you; hope that somehow when you get to that call center, it is not staffed by folks who speak the English language with such an accent that you don't even understand what they are saying or they do not understand what you are saying.

It is even worse, William, because they want to put a barcode on as a substitute, with no indication for the purpose of this barcode, so that it is just a mystery. Why is this there? I don't know. Does this tell you about their upcoming products? Does this tell you about advertisements for discounts if you take your smartphone and you snap on this? Because the only way that barcode has value—and every Senator in this room knows this fact—it only has value if you tell the consumer why that barcode is on the package. If it says ''This product has GE ingredients. For details, scan this bar code,'' then that is a valuable contribution, but without that indication, this is just another wild goose chase taking customers on a crazy adventure with no real information when they could have had a symbol that in 1 second answered their question.

And, William, it gets worse. If you can believe it, it gets worse, because under this voluntary standard, what counts as a nonlabel—not only a 1–800 number or a barcode or a computer code of some sort—what also counts is putting something in social media somewhere. Well, what social media? There are a hundred different social media companies. How are you possibly supposed to discover, even if you wanted to, what the information is on that product?

All of this is designed, William, to prevent you from getting the information you want right on the package with a simple little symbol—not a symbol that is pejorative, not a symbol that is scary—chosen by the FDA just to give you the information. Brazil uses a ''t'' in a triangle. That would be fine. It doesn't really matter what the symbol is because citizens who want to know can find out that indicates there are GE ingredients. But, no, that would be giving you information, and the goal of the Monsanto Deny Americans the Right to Know Act is to prevent you from getting information.

I want to turn to Anna in Beaverton, OR. Anna says:

I wanted to ask that you share with your colleagues that this bill is insulting to the intelligence of Americans, limits citizens the right to make safe choices when purchasing food; hamstrings diet and medical professionals who treat, among other things, food allergies and therefore could result in an allergic person ingesting a food fraction that could result in a serious, even fatal, allergic reaction.

Here is the point: This bill is an insult to the intelligence of Americans. Anna, you have this right. This is about Senators who do not respect your intelligence, who do not honor your right to make a decision as a consumer. They know that this is an incredibly popular idea to put a symbol or phrase on a package to indicate it has key ingredients because citizens want to know. The Members here know this, and they don't care because they want to make the decision for you. They do not want to allow you freedom to make your own choices. They do not consider you to be an adult. They want to treat you like a child who is fed only the information they want to give you.

So, Anna, I am deeply disturbed about this insulting legislation that tears down the intelligence of our American citizens, that says to the 9 out of 10 Americans in every State in this Union that we want to strip away your ability to make your own choice.

Keri from Eugene writes: ''Why are we protecting large conglomerates and processed food companies instead of protecting the American people and the land?''

Well, that is a good question, Keri. I suppose it is because these companies make huge donations under the constitutional decisions of our Supreme Court.

It is a very interesting story about the evolution of our country. When our forefathers got together to draft the Constitution, they had a vision of citizens having an equal voice. That decision was somewhat flawed, as we all know—flaws we corrected over time related to race, related to gender. But the fundamental principle was that citizens got to have an equal voice.

What they pictured was this: They pictured a town commons, which cost nothing to participate in, and each citizen could get up and share their view in that town commons, could share their view before the town voted, or could share that view equally with the person representing them in Congress. This is what Thomas Jefferson called the mother principle—that we are only a republic to the degree that the decisions we make reflect the will of the people. He said for that to happen, the citizens have to have an equal voice. Those are the words he used: ''equal voice'' and ''mother principle.'' Lincoln talked about the same thing: equal voice as the foundation of our Nation.

So when you ask the question, Keri, about why are we protecting large conglomerates at the expense of where the American people stand, you have to go back 40 years ago to a case called Buckley v. Valeo. In Buckley v. Valeo, the Supreme Court stood this principle—the mother principle of equal voice—on its head because now we have a commons that is for sale. The commons is the television. The commons is the radio. The commons is the information on Web sites.

They basically said that Americans could buy as much of that commons as they want. So instead of an equal voice, Jefferson's mother principle, we instead have a completely unequal voice. Those with fabulous wealth have the equivalent of a stadium sound system, and they use it to drown out the voice of ordinary Americans.

Then a couple of years ago, on a 5-to-4 decision of the Supreme Court, they doubled down on the destruction of our ''We the People'' Nation. They tore those three words out of the start of our Constitution, and they did so by saying: You know what. We are going to allow the board members of a corporation to utilize their owners' money for the political purposes that the board wants to use, and they don't have to even inform the owners of the company that they are using their money for these political purposes. So we have this vast concentration of power in corporations because corporations are large. If they have a small board, the board says: We want to influence politics in this fashion, and we don't even have to tell the owners about it. So that is a hugely additional destructive force on top of Buckley v. Valeo. There is nothing in the Constitution that comes close to saying that corporations are people, and there certainly is nothing that says a few people who sit in the decisionmaking capacity should be able to take other people's money and spend it for their own political purposes. It was never envisioned.

Between these decisions over several decades, we have destroyed the very premise of our Constitution, Thomas Jefferson's mother principle, that we are only a republic to the degree that we reflect the will of the people.

That is the best I can do, Keri, to explain how it is possible that this bill, which flies in the face of 9 out of 10 Americans, has made it to this floor. This bill didn't go through committee. We have leadership in this body that pledged regular order. They were going to put things through committee and bring bills to the floor that had been passed by committee. But this hasn't been. That is how much, as Keri put it,

''large conglomerates'' are influencing what happens here in this Senate.

Judith of Grants Pass says:

Please do NOT support [this bill] that would block states from requiring labels on genetically modified foods. People have a right to know [whether or not they are considered safe].

She is right. She is absolutely right. It is whether or not there they are considered safe. This isn't a scientific debate. There is science of concerns—science that I have laid out here on the floor. There is also science about benefits. But that is not the issue. The issue is a citizen's right to make their own decision. If they are concerned about the massive increase in herbicides and the destruction it does to the soil, they have a right to exercise that in the marketplace. If they are concerned about the massive amount of runoff of herbicides affecting the basic food chains in our streams and rivers, they have that right. If they are concerned about the fact that there has been some movement of genes from crops to related weeds that then become resistant to herbicides, that is their business. If they are concerned that Bt corn is producing superbugs resistant to the pesticide, that is their business.

These are not phantom ideas or phantom concerns. These are scientifically documented concerns. None of this says it is unsafe to put in your mouth. I hear that all the time: Well, it is not unsafe to put these GE things in your mouth. But here is the thing: That isn't the basis on which we label. We label things people care about, and there are implications to how things are grown and their impact.

For example, we have a Federal law that says grocery stores have to label the difference between wild fish and farmed fish. Why is that? Well, there are implications to what happens in different types of farms, and citizens are given a heads-up by this law, and they can decide. They can look into it and see if it is a concern. They may not be at all concerned about how catfish are raised in a farm setting, but they may be very concerned about how salmon are raised in farm settings because we find there are some bad effects of salmon raised in pens in the ocean that transfer disease to wild salmon. That is their right. They get to look into that. We give them that ability by requiring this information be on the package.

I don't hear anyone in this Chamber standing up right now and saying they want to strip our packages of the information of wild fish versus farmed fish. We have basic information on packages regarding whether juice is fresh or whether it is created from concentrate because citizens care about the difference. So we give them this basic information to facilitate their choice. And that is the point: We facilitate their choice.

Kimberly writes in:

I am writing you today to urge you to vote no on . . . [anything that would] block Vermont's . . . [bill].

The right to know what we eat is critical.

Richard from Portland writes: ''I urge you to filibuster, if need be, to stop the 'Dark Act.' ''

Well, I would like to do that, RICHARD. I would like to do anything I can to slow this down so the American people know what is going on. But here is the level of cynicism in this Chamber: Last night, when the majority leader filed this bill, which has never gone through committee, he simultaneously filed a petition to close debate. Under the rules of the Senate, that means, after an intervening day, there is going to be a vote, and there is no way that my speaking here day and night can stop it because it is embedded in the basic rules.

However, I can try to come to this floor several times and lay out these basic arguments and hope to wake up America to what is being plotted and planned in this Chamber right now. So that is what I am trying to do. I hope that it will have an impact. I hope that when the vote comes tomorrow morning after this intervening day—Tuesday being the intervening day—that my colleagues will say this is just wrong—stripping from Americans the right to know something 9 out of 10 Americans want, stripping States of the ability to respond to their citizens' desires, shutting down a single State laboratory in Vermont when there is no conflict on labels at this point because only one State is implementing a law.

I hope that they will say: You know what. This should be properly considered in committee. This bill should be in committee. It should be given full opportunity when it does come to the floor—and I assume it would—to be openly amended so that anyone who wants to put forward an amendment would be able to do so. That is the way the Senate used to work.

When I was here as an intern in 1976, I was asked to staff the Tax Reform Act of that year. I sat up in the staff gallery. At that point there was no television on this floor; therefore, nobody outside this room could track what was going on. There were no cell phones. There was no other way to convey what was occurring. So the staff sat up in the staff gallery, and when a vote was called, you would go down the staircase to the elevator just outside here. You would meet your Senator, and you would brief your Senator on the debate that was happening on that amendment. That is what I did—amendment after amendment, day after day. Then, as soon as that amendment was voted on, there would be a group of Senators seeking recognition of the Presiding Officer, and you would hear everyone simultaneously go, ''Mr. President,'' because the rule is that the Presiding Officer is supposed to recognize the very first person he or she hears, and so everyone tried to be first the moment that an amendment was done, the moment the vote was announced. Well, with all those people simultaneously seeking the attention of the Chair, it is really impossible for the Chair to sort out exactly who is speaking first. So they call on someone on the left side of the Chamber, and then, when that amendment was done an hour later—because they would debate it for an hour and hold the vote; when the vote was done, they called on somebody on the right side of the Chamber. They worked it back and forth so that everyone got to have their amendment heard. That is an open amendment process.

I have heard many of my colleagues across the aisle call for that kind of process when the Democrats were in charge, and I support that kind of process. I supported it when I was in the majority; I support it when I am in the minority. Everything I have proposed or talked about to make this Senate Chamber work better as a legislative body I have supported consistently, whether I am in the majority or whether I am in the minority.

So here is the thing. We have the opposite of that right now. We don't have the Senate of the 1970s, where Senators honor their right to debate and have an open amendment process. That would really change this. That would provide an opportunity for all viewpoints to be heard. We would never have had a cloture motion filed within seconds of the bill first being put on the floor, and it would have been incredibly rare for a bill that had not gone through committee to be put on the floor.

We have to reclaim the legislative process, and right now we don't have it. So that is a great reason to vote no tomorrow morning. Voting no tomorrow morning is the right vote if you believe in States' rights. It is the right vote if you believe in the consumers' right to know, the citizens' right to know. And it is the right vote if you believe we shouldn't have a process in this Chamber that just jams through something for a powerful special interest at the expense of the 9 or 10 Americans who want this information.

So tomorrow, colleagues, let's turn down this insult to the intelligence of Americans, this assault on States' rights, this deprivation, this attack on the freedom of our citizens.

Thank you, Mr. President.

The PRESIDING OFFICER. The Senator from Iowa.

FILLING THE SUPREME COURT VACANCY

Mr. GRASSLEY. Mr. President, the next Supreme Court Justice could dramatically change the direction of the Court. And the majority of this body believes the American people shouldn't be denied the opportunity to weigh in on this question. We believe there should be a debate about the role of Supreme Court Justices in our constitutional system.

With that in mind, I wanted to spend a few minutes discussing the appropriate role of the Court. Before I turn to that, I wish to note that the minority leader continues his daily missives on the Supreme Court vacancy.

Most of us around here take what he says with a grain of salt. So, I am not going to waste time responding to everything he says. I will note that this is what he said in 2005 when the other side was filibustering a number of circuit court nominations, and a few months before they filibustered the Alito nomination to the Supreme Court:

The duties of the Senate are set forth in the U.S. Constitution. Nowhere in that document does it say the Senate has a duty to give presidential nominees a vote. It says appointments shall be made with the advice and consent of the Senate. That is very different than saying every nominee receives a vote.

With that, I will turn to the appropriate role of a Justice under our Constitution. Part of what makes America an exceptional Nation is our founding document. It is the oldest written Constitution in the world. It created a functioning republic, provided stability, protected individual rights, and was structured so that different branches and levels of government can resist encroachment into their areas of responsibility. A written Constitution contains words with fixed meanings. The Constitution, and in many ways the Nation, has survived because we have remained true to those words. And our constitutional republic is ultimately safeguarded by a Supreme Court that enforces the Constitution and its text.

Our Constitution creates a republic where the people decide who will govern them, and by what rules. The Supreme Court can override the people's wishes only where the Constitution prohibits what the people's elected officials have enacted. Otherwise, the Court's rulings are improper. Stated differently, the Justices aren't entitled to displace the democratic process with their own views. Where the Constitution is silent, the people decide how they will be governed.

This fundamental feature of our republic is critical to preserving liberty. The temptation to apply their own views rather than the Constitution has always lurked among the Justices. This led to the Dred Scott decision. It led to striking down many economic regulations early in the last century. And Americans know all too well in recent decades that the Supreme Court has done this regularly. Justice Scalia believed that to ensure objectivity rather than subjectivity in judicial decision-making, the Constitution must be read according to its text and its original meaning as understood at the time those words were written.

The Constitution is law, and it has meaning. Otherwise, what the Court offers is merely politics, masquerading as constitutional law. Justice Scalia wrote that the rule of law is a law of rules. Law is not Justices reading their own policy preferences into the Constitution. It is not a multifactor balancing test untethered to the text. We all know that Justices apply these balancing tests to reach their preferred policy results.

The Court is not, and should not, be engaged in a continuing Constitutional Convention designed to update our founding document to conform with the Justices' personal policy preference. The Constitution is not a living document. The danger with any Justice who believes they are entitled to ''update'' the Constitution is that they will always update it to conform with their own views. That is not the appropriate role of a Justice. As Justice Scalia put it, ''The-times-they-are-a-changin' is a feeble excuse for disregard of duty.''

Now, when conservatives say the role of Justices is to interpret the Constitution and not to legislate from the bench, we are stating a view as old as the Constitution itself. The Framers separated the powers of the Federal Government.

In Federalist 78, Hamilton wrote, ''The interpretation of the laws is the proper and peculiar province of the courts.'' It is up to elected representatives, who are accountable to the people, to make the law. It is up to the courts to interpret it.

These views of the judicial role under the Constitution were once widely held. But beginning with the Warren Court of the 1960s, the concept took hold that the Justices were change agents for society. Democracy was messy and slow. It was much easier for Justices to impose their will on society in the guise of constitutional interpretation.

Acting as a superlegislature was so much more powerful than deciding cases by reading the legal text and the record. The view took hold that a Justice could vote on a legal question just as he or she would vote as a legislator. Perhaps the Framers underestimated what Federalist 78 called the ''least dangerous branch,'' one that ''can take no active resolution whatever.'' Since the days of the Warren Court, this activist approach has been common: striking down as unconstitutional laws that the Constitution doesn't even address.

Now, to his credit, President Obama has been explicit in his view that Justices aren't bound by the law. While he usually pays lip service to the traditional, limited, and proper role of the Court to decide cases based on law and facts, he is always quick to add that on the tough cases, a judge should look to her heart or rely on empathy.

The President's empathy standard is completely inconsistent with the judicial duty to be impartial. Asking a Justice to consider empathy in deciding cases is asking a Justice to rule based on his or her own personal notion of right and wrong, rather than law.

As I have said, everyone knows this President won't be filling the current vacancy. Nonetheless, the President has indicated he intends to submit a nomination. That is ok. He is constitutionally empowered to make the nomination. And the Senate holds the constitutional power to withhold consent, as we will. But as we debate the proper role of the Court, and what type of Justice the next President should nominate, it is instructive to examine what the President says he is looking for in a nominee.

The President made clear his nominee, whoever it is, won't decide cases only on the law or the Constitution. He wrote that in ''cases that reach the Supreme Court in which the law is not clear,'' the Justice should apply his or her ''life experience.''

This, of course, is just an updated version of the same standard we have heard from this President before. It is the empathy standard. Of course, a Justice who reaches decisions based on empathy or life experience has a powerful incentive to read every case as unclear, so they have a free hand to rely on their life experiences to reach just outcomes.

The President also said any Justice he would nominate would consider ''the way [the law] affects the daily reality of people's lives in a big, complicated democracy, and in rapidly changing times. That, I believe, is an essential element for arriving at just decisions and fair outcomes.''

With all respect to the President, any nominee who supports this approach is advocating an illegitimate role for the Court. It is flatly not legitimate for any Justice to apply his or her own personal views of justice and fairness.

Perhaps most troubling is the President's statement that any nominee of his must ''arrive[] at just decisions and fair outcomes.'' That is the very definition of results-oriented judging. And it flies in the face of a judge as a fair, neutral, and totally objective decisionmaker in any particular case. A Justice is to question assumptions and apply rigorous scrutiny to the arguments the parties advance, as did Justice Scalia.

Under the President's approach, a Justice will always arrive where he or she started. That isn't judging. That is a super-legislator in a black robe. In our history, regrettably, we have had Justices who embraced this conception. Chief Justice Warren was infamous for asking, ''Is it just? Is it fair?'' without any reference to law, when he voted.

Justice Scalia's entire tenure on the Court was devoted to ending this misplaced and improper approach. In reality, a Justice is no more entitled to force another American to adhere to his or her own moral views or life experiences than any other ordinary American.

Imposition of such personal biases subjects citizens to decrees from on high that they can't change, except through constitutional amendment. And those decrees are imposed by officials they can't vote out of office.

This is not the constitutional republic the Framers created. The American people deserve the opportunity during this election year to weigh in on

whether our next Justice should apply the text of the Constitution, or alternatively, whether a Justice should rely on his or her own life experiences and personal sense of right and wrong to arrive at just decisions and fair outcomes. Senate Republicans will ensure the American people aren't denied this unique and historic opportunity.

I yield the floor.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. LEAHY. Mr. President, I listened to what my good friend from Iowa said about the standards that he is afraid an Obama nominee would utilize. I note that in the dozens and dozens of cases—probably hundreds—that Obama nominees have been voted on, my friend from Iowa did not mention a single case where they applied it to anything but the law, and I suspect that standard would apply to anybody the President would nominate.

Now, Mr. President, on another matter, I want to set the record straight. Contrary to the remarks of the Senate majority leader yesterday, Vermont has not recently passed a GE food-labeling law. I mention that because I am old-fashioned enough to like to have things clear and accurate in this Chamber.

It was in May 2014—nearly 2 years ago—that after 2 years of debate, more than 50 committee hearings featuring testimony from more than 130 representatives on all sides of the issue, the Vermont Legislature passed and the Governor of Vermont signed into law a disclosure requirement for genetically engineered ingredients in foods.

Now, in this body: After one hearing 5 months ago that was only tangentially related to the issue, and without any open debate on the floor, the Republican leadership has decided that it knows better than the State of Vermont. Today we are being asked to tell Vermonters and constituents in other States with similar laws that their opinion, their views, and their own legislative process simply doesn't matter because we can decide on a whim to ignore them. We are actually being asked to tell consumers that their right to know isn't, frankly, theirs at all.

I think in my State, in the Presiding Officer's State, and all the other Senators' States, consumers think they have a right to know. Now we are telling them: Not so much.

I hear from Vermonters regularly and with growing frequency that they are proud of Vermont's Act 120. It is a law that simply requires food manufacturers to disclose when the ingredients they use are genetically engineered. It doesn't tell them they can't use those ingredients; it simply says: Consumers have a right to know. Tell us what you are doing.

Vermonters are concerned and some are actually outraged that the Congress is trying to roll back their right to know what is in the food that they give their families. Vermont is not the only State whose laws are under attack; we just happen to be the State with the fastest approaching deadline for implementation.

The bill we are considering today is a hasty reaction—a reaction with no real, open hearing—in response to a 2-year-old law that is set to finally take effect and doesn't fully take effect until the end of this year. Instead of protecting consumers and trying to find a true compromise, this bill continues the status quo and tells the public: We don't want you to have simple access to information about the foods you consume. You don't need to know what is in the food. Trust us. We know better. We, Members of the Senate, know better than you do, so we are not going to let you know what is going on. It is no wonder that people get concerned.

Vermont's law and others like it around the country are not an attack on biotechnology. Vermont's law and others like it merely require factual labeling intended to inform consumers. All we are saying is, if you are going to buy something, you ought to know what you are getting. If you want to buy it, go ahead. Nobody is stopping you. But you ought to be able to know what is in it.

Producers of food with GE products have nothing to hide. Let's take Campbell's, which is a multibillion-dollar brand. It is certainly one of the biggest brands in this country. They are already taking steps to label their products. They have to do that to comply with similar laws in other countries. They said: Sure, we will comply, and we will label our packages.

Our ranking member on the Agriculture Committee, Senator STABENOW, has had commitments from other CEOs in the food industry who are ready and able to move ahead with labeling and national disclosure. They actually know that consumers really care about what they are getting. Now the U.S. Senate wants to tell those millions of consumers ''You have no right to know. We are going to block your chance to know, and we are going to keep you from knowing what is in your food.'' And some of these large companies are saying that they agree with the consumer. An asterisk, a symbol, a factual notation on a product label is not going to send our economy into a tailspin and cause food prices to spiral out of control.

Again, let's get rid of the rhetoric. I heard some on the floor in this Chamber argue that Vermont's labeling law will cost consumers an average of $1,000 more per year on food purchases. Wow. The second smallest State in the Nation passed a law that simply tells companies to disclose the ingredients in the food consumers are buying, and somehow that law is going to cost consumers $1,000 more per year in food purchases? If the claim wasn't so laughable, we might be able to ignore it. But we found out where that cost estimate came from. It came directly from a study paid for by the Corn Refiners Association and is based on every single food manufacturer in the United States eliminating GE ingredients from their food. We are not asking anybody to eliminate anything—this is not what anyone is asking companies or farmers to do. We are just saying: If I buy something and I am going to feed it to my children—or in my case, my grandchildren—or my wife and I are going to eat it, I would kind of like to know what is in it. All we are asking for is a simple label.

At a time when too much of the national discourse is hyperbolic at best, why don't we set an example for the rest of the country? Try a little truth in this Chamber. GE labeling should be the least of our woes.

In fact, the bill before us today is an attack on another Vermont law. That law has been on the books for only, well, 10 years. Oh my God, the sky is falling. It is actually similar to a law that is on the books in Virginia these are genetically engineered seed labeling laws. Farmers in both Vermont and Virginia have benefited from this law, and those selling seed to other States have complied with it. Why preempt State laws that have worked well for 10 years and with which companies are already complying? Are we going to do that because one or two companies that are willing to spend a great deal of money feel otherwise?

GE labeling is about disclosure. It gives consumers more information, more choices, and more control on what they feed themselves and their families. If we hide information from the consumers, we limit a measure of accountability for producers and marketers.

I don't know what people are trying to hide. Our producers and marketers in Vermont are proud to showcase not just the quality of their products but the methods by which they are produced. We are not blocking our markets to anybody, whether it is GE foods or otherwise. If it works, we ought to give people a choice. Why have 100 people here say: Oh no, we know better than all of you.

I am a proud cosponsor of Senator MERKLEY's bill. It provides for a strong national disclosure standard. It would give manufacturers a whole variety of options to disclose the presence of GE ingredients in their food, and they can pick and choose how they do it.

I am equally grateful to Senator STABENOW. She has fought hard to negotiate a pathway toward a national disclosure standard. We should not move forward with this bill without an open and full debate. We shouldn't just say to consumers throughout the country: We know better than you.

I am not going to support any bill that takes away the right of Vermont or any State to legislate in a way that advances consumer awareness. If we don't want to have a patchwork of State disclosure laws, then let's move

in the direction of setting a national mandatory standard. Some of the biggest food companies in this country are moving forward and complying with Vermont's law.

This week is Sunshine Week, so let's hope the Senate rejects efforts to close doors and not let the American public know what is in their food. I hope they will oppose advancing this hastily crafted legislation and work towards a solution that actually lets the consumers in Texas, Iowa, Vermont, or anywhere else know what is in their food.

I see the distinguished majority deputy leader on the floor. I have more to say, but I will save it for later.

The PRESIDING OFFICER. The Senator from Iowa.

FOIA IMPROVEMENT ACT OF 2015

Mr. GRASSLEY. Mr. President, last week, when the Senate passed the Comprehensive Addiction and Recovery Act, I spoke on this floor about the good work that is getting done in the Senate since Republicans took over. Time and again, we have seen both sides of the aisle come together to find practical solutions to real problems facing the American people.

That is the way the Senate is supposed to work, and we need to keep that momentum as we move forward to tackle other critical issues.

As chairman of the Judiciary Committee, I continue to be proud of the role we have played in getting work done in a bipartisan manner.

Today, on the floor of the Senate, we are doing that once again. We are passing another Judiciary Committee bill that carries strong, bipartisan support. We are passing another Judiciary Committee bill that solves real issues and is supported by folks on all ends of the political spectrum.

Don't get me wrong. Finding agreement on both sides of the aisle is no easy task. Even the most well-intentioned efforts can get bogged in the details.

But the fact that we are here today is a testament to good-faith negotiations and a commitment to make government work for the American people. And it is another indication of what this institution can be and what it was meant to be.

The FOIA Improvement Act makes much-needed improvements to the Freedom of Information Act, and its passage marks a critically important step in the right direction toward fulfilling FOIA's promise of open government.

I am proud to be an original co-sponsor of the FOIA Improvement Act, and I want to thank Senator CORNYN and the ranking member of the Judiciary Committee, Senator LEAHY, for their tireless, bipartisan work to advance this bill through the Senate.

I am especially proud that the bill's passage occurs during this year's Sunshine Week, an annual nationwide initiative highlighting the importance of openness and transparency in government.

Every year, Sunshine Week falls around the birthday of James Madison, the father of our Constitution. This isn't by mistake.

Madison's focus on ensuring that government answers to the people is embodied in the spirit of FOIA, so passing the FOIA Improvement Act this week is a fitting tribute to his commitment to accountable government and the protection of individual liberty. And it is an opportunity for us all to recommit ourselves to these same higher principles.

This year marks the 50th anniversary of FOIA's enactment. For over five decades, FOIA has worked to help folks stay in the know about what their government is up to. The Supreme Court said it best when it declared: ''The basic purpose of FOIA is to ensure an informed citizenry, vital to the functioning of a democratic society, needed to check against corruption and to hold the governors accountable to the governed.''

To put it simply, FOIA was created to ensure government transparency, and transparency yields accountability.

After all, a government that operates in the dark, without fear of exposure or scrutiny, is one that enables misdeeds by those who govern and fosters distrust among the governed. By peeling back the curtains and allowing the sunlight to shine in, however, FOIA helps fight back against waste, fraud, and abuse of the taxpayer's dollar.

No doubt, FOIA has successfully brought to light numerous stories of government's shortcomings. Through FOIA, folks have learned about public health and safety concerns, mistreatment of our Nation's veterans, and countless other matters that without FOIA would not have come to light.

But despite its successes, a continued culture of government secrecy has served to undermine FOIA's fundamental promise.

For example, we have seen dramatic increases in the number of backlogged FOIA requests. Folks are waiting longer than ever to get a response from agencies. Sometimes, they simply hear nothing back at all. And we have seen a record-setting number of FOIA lawsuits filed to challenge an agency's refusal to disclose information.

More and more, agencies are simply finding ways to avoid their duties under FOIA altogether. They are failing to proactively disclose information, and they are abusing exemptions to withhold information that should be released to the public.

Problems with FOIA have persisted under both Republican and Democrat administrations, but under President Obama, things have only worsened, and his commitment to a ''new era of openness'' has proven illusory at best.

In January, the Des Moines Register published a scathing editorial, outlining the breakdowns in the FOIA system and calling on Congress to tackle the issue head-on.

The editorial described: ''In the Obama administration, federal agencies that supposedly work for the people have repeatedly shown themselves to be flat-out unwilling to comply with the most basic requirements of the Freedom of Information Act.''

It continued: ''At some federal agencies, FOIA requests are simply ignored, despite statutory deadlines for responses. Requesters are often forced to wait months or years for a response, only to be denied access and be told they have just 14 days to file an appeal.''

According to the editorial: ''Other administrations have engaged in these same practices, but Obama's penchant for secrecy is almost unparalleled in recent history.''

These are serious allegations, and no doubt, there are serious problems needing fixed.

So reforms are necessary to address the breakdowns in the FOIA system, to tackle an immense and growing backlog of requests, to modernize the way folks engage in the FOIA process, and to ultimately help change the culture in government toward openness and transparency.

What we have accomplished with this bill—in a bipartisan manner—is a strong step in the right direction.

First, the bill makes much-needed improvements to one of the most overused FOIA exemptions. It places a 25-year sunset on the government's ability to withhold certain documents that demonstrate how the government reaches decisions. Currently, many of these documents can be withheld from the public forever, but this bill helps bring them into the sunlight, providing an important and historical perspective on how our government works.

Second, the bill increases proactive disclosure of information. It requires agencies to make publicly available any documents that have been requested and released three or more times under FOIA. This will go a long way toward easing the backlog of requests.

Third, the bill gives more independence to the Office of Government Information Services. OGIS, as it is known, acts as the public's FOIA ombudsman and helps Congress better understand where breakdowns in the FOIA system are occurring. OGIS serves as a key resource for the public and Congress, and this bill strengthens OGIS's ability to carry out its vital role.

Fourth, through improved technology, the bill makes it easier for folks to submit FOIA requests to the government. It requires the development of a single, consolidated online portal through which folks can file a request. But let me be clear: it is not a one-size-fits-all approach. Agencies will still be able to rely on request-processing systems they have already built into their operations.

Most importantly, the bill codifies a presumption of openness for agencies to follow when they respond to FOIA requests. Instead of knee-jerk secrecy, the presumption of openness tells agencies to make openness and transparency their default setting.

These are all timely and important reforms to the FOIA process, and they will help ensure a more informed citizenry and a more accountable government.

So I am pleased to see this bill move through the Senate. President Obama has an opportunity to join with Congress in securing some of the most substantive and necessary improvements to FOIA since its enactment.

On July 4 of this year, FOIA turns 50. Let's continue this strong, bipartisan effort to send a bill to the President's desk before then. Let's work together to help fulfill FOIA's promise.

I yield the floor.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. LEAHY. Mr. President, I thank the senior Senator from Iowa for his remarks. As he knows, I have worked for years on improving FOIA along with my friend, the senior Senator from Texas. We are celebrating Sunshine Week, a time to pay tribute to one of our Nation's most basic values—the public's right to know. Our very democracy is built on the idea that our government should not operate in secret. James Madison, a staunch defender of open government and whose birthday we celebrate each year during Sunshine Week, wisely noted that for our democracy to succeed, people ''must arm themselves with the power knowledge gives.'' It is only through transparency and access to information that the American people can arm themselves with the information they need to hold our government accountable.

We are also celebrating the 50th anniversary of the enactment of the Freedom of Information Act, FOIA, our Nation's premier transparency law. I was actually at the National Archives yesterday, and I looked at the actual bill signed into law in 1966 by then-President Johnson, Vice President Hubert Humphrey, and Speaker John McCormack, all who were here long before I was. I was thinking that, 50 years ago, the Freedom of Information Act became the foundation on which all our sunshine and transparency policies rest, so I can think of no better way to celebrate both Sunshine Week and the 50th Anniversary of FOIA than by passing the FOIA Improvement Act.

This bipartisan bill, which I coauthored with Senator CORNYN, codifies the principle that President Obama laid out in his 2009 executive order. He asked all Federal agencies to adopt a ''presumption of openness'' when considering the release of government information under FOIA. That follows the spirit of FOIA put into place by President Clinton, repealed by President Bush, and reinstated as one of President Obama's first acts in office, but I think all of us felt we should put the force of law behind the presumption of openness so that the next President, whomever he or she might be, cannot change that without going back to Congress. Congress must establish a transparency standard that will remain for future administrations to follow—and that is what our bill does. We should not leave it to the next President to decide how open the government should be. We have to hold all Presidents and their administrations accountable to the highest standard. I do not think my friend, the senior Senator from Texas, will object if I mention that in our discussions we have both said words to the effect that we need FOIA, whether it is a Democratic or Republican administration. I do not care who controls the administration. When they do things they think are great, they will release a sheath of press releases about them. However, it is FOIA that lets us know when they are not doing things so well. The government works better if every administration is held to the same standard.

The FOIA Improvement Act also provides the Office of Government Information Services, OGIS, with additional independence and authority to carry out its work. The Office of Government and Information Services, created by the Leahy-Cornyn OPEN Government Act in 2007, serves as the FOIA ombudsman to the public and helps mediate disputes between FOIA requesters and agencies. Our bill will provide OGIS with new tools to help carry out its mission and ensure that OGIS can communicate freely with Congress so we can better evaluate and improve FOIA going forward. The FOIA Improvement Act will also make FOIA easier to use by establishing an online portal through which the American people can submit FOIA requests, and it will ensure more information is available to the public by requiring that frequently requested records be made available online.

Last Congress, the FOIA Improvement Act, which Senator CORNYN and I wrote, passed the Senate unanimously. The House failed to take it up. So as the new Congress came in, to show we are bipartisan with a change from Democratic leadership to Republican leadership, Senator CORNYN and I moved quickly to reintroduce our legislation in the new Congress. The Senate Judiciary Committee unanimously approved our bill in February 2015. Sometimes it is hard for the Senate Judiciary Committee to unanimously agree that the sun rises in the east, but on this issue, we came together. Our bill has been awaiting Senate action for over a year. I urge its swift passage today. I want the House to take it up. I want the President to sign it into law. I am proud to stand here with my good friend, the senior Senator from Texas.

The PRESIDING OFFICER (Ms. AYOTTE). The Senator from Texas.

Mr. CORNYN. Madam President, I want to thank my colleague, the Senator from Vermont, for being together with me on what some people would regard as the Senate's odd couple—people with very different views on a lot of different things but who try to work together on legislation such as this, freedom of information reform legislation, but I can think of others that we worked on as well, such as patent reform and criminal justice reform.

I think most people are a little bit surprised when they see us fighting like cats and dogs on various topics, which we will—and those fights are important when they are based on principle—I think they are a little bit surprised when they see us then come together and try to find common cause, common ground on things such as this, but this is the sort of thing that makes the Senate work. This is the sort of thing that the American people deserve, when Republicans and Democrats, people all along the ideological spectrum, work together to find common ground.

I couldn't agree with the Senator more about, really, a statement of human nature. It is only human nature to try to hide your failures and to trumpet your successes. It is nothing more, nothing less than that. But what the Freedom of Information Act is premised on is the public's right to know what their government is doing on their behalf.

I know some people might think, well, for somebody who is a conservative, this is a little bit of an odd position. Actually, I think it is a natural fit. If you are a conservative like me, you think that the government doesn't have the answer to all the challenges that face our country, that sometimes, as Justice Brandeis said, sunlight is the best disinfectant.

Indeed, I know something else about human nature: that people act differently when they know others are watching than they do when they think they are in private and no one can see what they are doing. It is just human nature.

So I have worked together with Mr. LEAHY, the Senator from Vermont, repeatedly to try to advance reforms of our freedom of information laws, and I am glad to say that today we will have another milestone in that very productive, bipartisan relationship on such an important topic. This is Sunshine Week, a week created to highlight the need for more transparent and open government.

Let me mention a couple of things this bill does. It will, of course, as we said, strengthen the existing Freedom of Information Act by creating a presumption of openness. It shouldn't be incumbent on an American citizen asking for information from their own government—information generated and maintained at taxpayer expense—they shouldn't have to come in and prove something to be able to get access to something that is theirs in the

first place. Now, there may be good reason—classified information necessary to fight our Nation's adversaries, maybe personally private information that is really not the business of government, but if it is, in fact, government information bought for and maintained by the taxpayer, then there ought to be a presumption of openness. This legislation will, in other words, build on what our Founding Fathers recognized hundreds of years ago: that a truly democratic system depends on an informed citizenry to hold their leaders accountable. And in a form of government that depends for its very legitimacy on the consent of the governed, the simple point is, if the public doesn't know what government is doing, how can they consent? So this is also about adding additional legitimacy to what government is doing on behalf of the American people.

I just want to again thank the chairman of the Senate Judiciary Committee. We had a pretty productive couple of weeks with passage of the Comprehensive Addiction and Recovery Act, which the Presiding Officer was very involved in, and now passage of this legislation by, I hope, unanimous consent.

PRESUMPTION OF OPENNESS

Mr. LEAHY. Madam President, Senator CORNYN and I have worked together to improve and protect the Freedom of Information Act, FOIA—our Nation's premiere transparency law—for many years and look forward to continuing this partnership.

The bill we passed today codifies the principle that President Obama laid out in his 2009 Executive order in which he asked all Federal agencies to adopt a ''presumption of openness'' when considering the release of government information under FOIA. This policy embodies the very spirit of FOIA. By putting the force of law behind the presumption of openness, Congress can establish a transparency standard that will remain for generations to come. Importantly, codifying the presumption of openness will help reduce the perfunctory withholding of documents through the overuse of FOIA's exemptions. It requires agencies to consider whether the release of particular documents will cause any foreseeable harm to an interest the applicable exemption is meant to protect. If it will not, the documents should be released.

Mr. CORNYN. I thank Senator LEAHY for his remarks and for working together on this important bill. This bill is a good example of the bipartisan work the Senate can accomplish when we work together toward a common goal. I agree with Senator LEAHY that the crux of our bill is to promote disclosure of government information and not to bolster new arguments in favor of withholding documents under FOIA's statutory exemptions.

I want to clarify a key aspect of this legislation. The FOIA Improvement Act makes an important change to exemption (b)(5). Exemption (b)(5) permits agencies to withhold documents covered by litigation privileges, such as the attorney-client privilege, attorney work product, and the deliberative process privilege, from disclosure. Our bill amends exemption (b)(5) to impose a 25-year sunset for documents withheld under the deliberative process privilege. This should not be read to raise an inference that the deliberative process privilege is somehow heightened or strengthened as a basis for withholding before the 25-year sunset. This provision of the bill is simply meant to effectuate the release of documents withheld under the deliberative process privilege after 25 years when passage of time undoubtedly dulls the rationale for withholding information under this exemption.

Mr. LEAHY. I thank Senator CORNYN for his comments, and I agree with his characterization of the intent behind the 25-year sunset and the deliberative process privilege. This new sunset should not form the basis for agencies to argue that the deliberative process privilege somehow has heightened protection before the 25-year sunset takes effect. Similarly, the deliberative process privilege sunset is not intended to create an inference that the other privileges—including attorney-client and attorney work product, just to name a few—are somehow heightened in strength or scope because they lack a statutory sunset or that we believe they should not be released after 25 years. Courts should not read the absence of a sunset for these other privileges as Congress's intent to strengthen or expand them in any way.

Mr. CORNYN. I thank Senator LEAHY for that clarification and agree with his remarks. If there is any doubt as to how to interpret the provisions of this bill, they should be interpreted to promote, not detract, from the central purpose of the bill which is to promote the disclosure of government information to the American people.

Madam President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 17, S. 337.

The PRESIDING OFFICER. The clerk will report the bill by title.

The bill clerk read as follows:

A bill (S. 337) to improve the Freedom of Information Act.

There being no objection, the Senate proceeded to consider the bill.

Mr. CORNYN. Madam President, I ask unanimous consent that the Cornyn substitute amendment be agreed to; that the bill, as amended, be read a third time and passed; and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 3452) in the nature of a substitute was agreed to.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

The bill (S. 337), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

Mr. CORNYN. I thank the Presiding Officer.

Again, let me express my gratitude to my partner in this longstanding effort. Since I have been in the Senate, Senator LEAHY has worked tirelessly, together with me and my office and really the whole Senate, to try to advance the public's right to know by reforming and expanding our freedom of information laws.

Thank you.

Mr. LEAHY. Madam President, I thank the distinguished senior Senator from Texas. He has worked tirelessly on this, and I think we both agree that the best government is one where you know what they are doing.

NATIONAL SEA GRANT COLLEGE PROGRAM AMENDMENTS ACT OF 2015—Continued

Mr. LEAHY. Madam President, on another matter—and I thank the distinguished Senator from Florida for not seeking recognition immediately. I ask unanimous consent that as soon as I finish, I can yield to the Senator from Florida.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEMBERING BERTA CACERES

Mr. LEAHY. Madam President, the woman in the photograph next to me is Berta Caceres, an indigenous Honduran environmental activist who was murdered in her home on March 3.

Ms. Caceres was internationally admired, and in the 12 days since her death and since my remarks on the morning after and on the day of her funeral on March 5, there has been an outpouring of grief, outrage, remembrances, denunciations, and declarations from people in Honduras and around the world.

Among the appalling facts that few people may have been aware of before this atrocity is that more than 100 environmental activists have reportedly been killed in Honduras just since 2010. It is an astonishing number that previously received little attention. One might ask, therefore, why Ms. Caceres' death has caused such a visceral, explosive reaction.

Berta Caceres, the founder and general coordinator of the Civic Council of Popular and Indigenous Organizations of Honduras, COPINH, was an extraordinary leader whose courage and commitment, in the face of constant threats against her life, inspired countless people. For that she was awarded the prestigious 2015 Goldman Environmental Prize.

Her death is a huge loss for her family, her community, and for environmental justice in Honduras. As her family and organization have said, it illustrates ''the grave danger that human rights defenders face, especially those who defend the rights of indigenous people and the environment against the exploitation of [their] territories.''

This is by no means unique to Honduras. It is a global reality. Indigenous

people are the frequent targets of threats, persecution, and criminalization by state and non-state actors in scores of countries.

Why is this? Why are the world's most vulnerable people who traditionally live harmoniously with the natural environment so often the victims of such abuse and violence?

There are multiple reasons, including racism and other forms of prejudice, but I put greed at the top of the list. It is greed that drives governments and private companies, as well as criminal organizations, to recklessly pillage natural resources above and below the surface of land inhabited by indigenous people, whether it is timber, oil, coal, gold, diamonds, or other valuable minerals. Acquiring and exploiting these resources requires either the acquiescence or the forcible removal of the people who live there.

In Berta Caceres' case, the threats and violence against her and other members of her organization were well documented and widely known, but calls by the Inter-American Commission on Human Rights for protective measures were largely ignored.

This was particularly so because the Honduran Government and the company that was constructing the hydroelectric project that Ms. Caceres and COPINH had long opposed were complicit in condoning and encouraging the lawlessness that Ms. Caceres and her community faced every day.

The perpetrators of this horrific crime have not been identified. Since March 3, there has been a great deal of legitimate concern expressed about the treatment of Gustavo Castro, the Mexican citizen who was wounded and is an eyewitness, and who has ample reason to fear for his life in a country where witnesses to crime are often stalked and killed. In the meantime, for reasons as yet unexplained, the Honduran Government suspended, for 15 days, Castro's lawyer's license to practice.

That concern extends to the initial actions of the Honduran police who seemed predisposed to pin the attack on associates of Ms. Caceres. This surprised no one who is familiar with Honduras's ignominious police force.

The fact is we do not yet know who is responsible, but a professional, comprehensive investigation is essential, and the Honduran Government has neither the competence nor the reputation for integrity to conduct it themselves.

There have been countless demands for such an investigation. Like her family, I have urged that the investigation be independent, including the participation of international experts. With rare exception, criminal investigations in Honduras are incompetently performed and incomplete.

They almost never result in anyone being punished for homicide. As Ms. Caceres's family has requested, the Inter-American Commission is well suited to provide that independence and expertise, but the Honduran authorities have not sought that assistance just as they refused the family's request for an independent expert to observe the autopsy.

The family has also asked that independent forensic experts be used to analyze the ballistics and other evidence. The internationally respected Guatemalan Forensic Anthropology Foundation, which has received funding from the U.S. Agency for International Development for many years, would be an obvious option, but the Honduran Government has so far rejected this request, too.

Like Ms. Caceres's family, I have also urged that the concession granted to the company for the Agua Zarca hydroelectric project be cancelled. It has caused far too much controversy, divisiveness, and suffering within the Lenca community and the members of Ms. Caceres's family and organization. It clearly cannot coexist with the indigenous people of Rio Blanco who see it as a ''permanent danger'' to their safety and way of life. It is no wonder that two of the original funders of the project have abandoned it. The Dutch, Finnish, and German funders should follow their example.

This whole episode exemplifies the irresponsibility of undertaking such projects without the free, prior, and informed consent of indigenous inhabitants who are affected by them. Instead, a common practice of extractive industries, energy companies, and governments has been to divide local communities by buying off one faction, calling it ''consultation,'' and insisting that it justifies ignoring the opposing views of those who refuse to be bought.

When a majority of local inhabitants continue to protest against the project as a violation of their longstanding territorial rights, the company and its government benefactors often respond with threats and provocations, and community leaders are vilified, arrested, and even killed. Then representatives of the company and government officials profess to be shocked and saddened and determined to find the perpetrators, and years later, the crime remains unsolved and is all but forgotten.

Last year, President Hernandez, Minister of Security Corrales, and other top Honduran officials made multiple trips to Washington to lobby for Honduras' share of a U.S. contribution to the Plan of the Alliance for Prosperity of the Northern Triangle of Central America. Among other things, they voiced their commitment to human rights and their respect for civil society, although not surprisingly they had neglected to consult with representatives of Honduran civil society about the contents of the plan.

The fiscal year 2016 Omnibus Appropriations Act includes $750 million to support the plan, of which a significant portion is slated for Honduras. I supported those funds. In fact I argued for an amount exceeding the levels approved by the House and Senate appropriations committees because I recognize the immense challenges that widespread poverty, corruption, violence, and impunity pose for those countries.

Some of these deeply rooted problems are the result of centuries of self-inflicted inequality and brutality perpetrated by an elite class against masses of impoverished people. But the United States also had a role in supporting and profiting from that corruption and injustice, just as today the market for illegal drugs in our country fuels the social disintegration and violence that is causing the people of Central America to flee north.

I also had a central role in delineating the conditions attached to U.S. funding for the Plan of the Alliance for Prosperity, and there is strong, bipartisan support in Congress for those conditions. They are fully consistent with what the Northern Triangle leaders pledged to do and what the State Department and the U.S. Agency for International Development agree is necessary if the plan is to succeed.

I mention this because the assassination of Berta Caceres brings U.S. support for the plan sharply into focus. That support is far from a guarantee.

It is why a credible, thorough investigation is so important.

It is why those responsible for her death and the killers of other Honduran social activists and journalists must be brought to justice.

It is why Agua Zarca and other such projects that do not have the support of the local population should be abandoned.

And it is why the Honduran Government must finally take seriously its responsibility to protect the rights of journalists, human rights defenders, other social activists, COPINH, and civil society organizations that peacefully advocate for equitable economic development and access to justice.

Only then should we have confidence that the Honduran Government is a partner the United States can work with in addressing the needs and protecting the rights of all the people of Honduras and particularly those who have borne the brunt of official neglect and malfeasance for so many years.

Madam President, I yield the floor to the distinguished Senator from Florida.

The PRESIDING OFFICER. The Senator from Florida.

Mr. NELSON. Madam President, I would just add to Senator LEAHY's comments that a year ago, unfortunately, Honduras was known as the murder capital of the world, with the highest number of per capita murders per 100,000 people. That has improved somewhat. But that little, poor nation, under its new President, is struggling to overcome the drug lords, the crime bosses who prey on a country that is ravaged by poverty. It is such a tempting thing when all kinds of dollars are put in front of their noses in order to tempt them to get involved in these crime syndicates that have a distribution network of whatever it is—drugs,

trafficking, human trafficking, other criminal elements—a distribution that goes from south to north on up into the United States.

So I join Senator LEAHY in his expression of grief and condolences for the lady who was murdered.

DRILLING OFF THE ATLANTIC SEABOARD

Madam President, this Senator has conferred with the administration on its proposal for the drilling off the Atlantic seaboard. At least the administration listened to this Senator and kept the Atlantic area off of my State of Florida from proposed drilling leases for this next 5-year lease period. They did that last year. We are grateful they did that for the reasons for which we have fought for years to keep drilling off of the coast of Florida, not only because of what we immediately anticipate—tourism, the environment—but also our military training and testing areas.

So this Senator made the argument to the Obama administration that if you are coming out there with leases off the Atlantic seaboard, don't put it off of Florida. We have military and intelligence rockets coming out of Cape Canaveral Air Force Station. We have the rockets coming out of the Kennedy Space Center for NASA. Obviously, we can't have oil rigs out there when we are dropping the first stages of these rockets. And the administration complied.

But the administration then went on to offer for lease tracks of the Atlantic Ocean from the Georgia line all the way through the Carolinas, including up to the northern end of Virginia—very interesting. Just this morning the administration has walked back the offering of those leases off the eastern seaboard of the United States.

Now, it is certainly good news not only for the fact that they never did it in the first place off of Florida, but it is good news for the Atlantic coast residents who then fought so hard to keep the drilling off their coast. They first released this draft plan in January of 2015, a year ago, and the Department of the Interior had suggested opening up these new areas of the Mid-Atlantic. As we would expect, communities up and down the Atlantic seaboard voiced their objection, and they did it in a bipartisan way. From Atlantic City to Myrtle Beach, cities and towns along the coast passed resolutions to make clear their opposition to the drilling off their shores. Obviously, they weren't the only ones because—surprise, surprise—just this week the Pentagon weighed in and voiced its concerns, having been just corroborated in the Senate Armed Services Committee when I asked the question of the Secretary of the Navy about the concerns that drilling in the Mid-Atlantic region would impact the military's ability to maintain offshore readiness because of the testing and training areas.

The Pentagon had voiced this concern two administrations ago with regard to drilling in the gulf off of Florida, which is the largest testing and training area for our U.S. military in the world. So today, there is the Interior Department's decision to remove the Atlantic from the 5-year plan. Well, what about the next 5-year plan? And what about the rigs already operating in other areas off of our coast, such as off of Alabama, Mississippi, Louisiana, and Texas in the gulf.

We have carried on this fight now for four decades, and today we still have a renewed push to allow drilling off of these sensitive areas for the reasons I have mentioned. Some of our own colleagues are offering an amendment to a little energy bill that is about energy efficiency. It is a nongermane amendment. But what they want to do is to sweeten the pot with all of the revenues for offshore drilling that would normally go to the Federal Government instead to go to the States—another incentive to do that drilling by the oil industry. But what we saw was that the coastal communities—in this case the Mid-Atlantic seaboard—rise up and voice objections, regardless of their partisan affiliation.

We have seen again today that the Pentagon raised its objection, and, unfortunately, we have found a Federal safety regulator asleep at the switch. It has been nearly 6 years since we faced one of the greatest natural disasters that our country has ever seen, and that was the gulf oilspill. Yet, according to the GAO report released just last week, we are no better off now than we were before that tragic accident. As a reaction to that accident, the Deepwater Horizon oil rig explosion that, I remind my colleagues, killed 11 men and sent up to almost 5 million barrels—not gallons, barrels—of oil gushing into the gulf, there were a number of questions that were asked: How could this happen? Where were the safety inspectors?

Well, it soon became clear that the agency in charge—a subdivision of the Department of the Interior, the Minerals Management Service—was so cozy with the oil and gas industry that the Interior Department's own inspector general considered it a conflict of interest. And in response to the IG's findings, the Interior Department decided to reorganize, and it split that agency—the Minerals Management Service—into two, one in charge of leasing and the other in charge of safety.

Last Friday, the GAO—what is the GAO? It is the General Accounting Office. It is the independent, nonpartisan research arm of Congress. The GAO released a report that found that the ongoing restructuring—that splitting into—actually ''reverses actions taken to address the post-Deepwater Horizon concerns, weakening its oversight.''

The report goes on to say that the Interior Department's newly created agency in charge of safety—one of the two that were split—the Bureau of Safety and Environmental Enforcement, suffers—this is the report's words—''a lack of coherent leadership'' and ''inconsistent guidance.''

So here we are 6 years after the gulf oilspill, and we are weakening oversight—the very words of the report—6 years later. Obviously, this is inexcusable. That is why a number of us have asked the Energy and Natural Resources Committee to hold a hearing on this troubling report to get to the bottom of it.

Now, at some point, the objections of the vast majority of people who live along the coast and the economies that depend on those environments and those white sandy beaches and crystal blue water and the military bases that are utilizing the testing and training areas over those waters have to be heard. Their concerns have to be addressed. We can't continue to keep having a fight every time this comes up every 5 years. There is too much at stake. Yet the fight goes on. Now there is the new evidence mounted just last Friday and—lo and behold—the results of that new evidence this morning—pulling the plug on the leasing off the eastern coast of the United States.

Madam President, I yield the floor.

The PRESIDING OFFICER. The Senator from North Dakota.

Mr. HOEVEN. Madam President, I come to the floor today in support of the biotechnology labeling solutions bill.

This legislation will avoid a patchwork of State labeling regulations and in so doing will save families thousands of dollars a year to protect American jobs and provide consumers with accurate, transparent information about their food.

First of all, I wish to thank Chairman PAT ROBERTS for his leadership on the issue of bioengineered food and for bringing forward his chairman's mark. Specifically, the biotechnology labeling solutions bill does three things. It immediately ends the problem of having a patchwork of inconsistent State GMO labeling programs. Second, it creates a voluntary bioengineered labeling program within 1 year. So USDA would set up a voluntary program within a year, and then within 3 years, it requires the Department of Agriculture to create a mandatory bioengineering labeling program if there is insufficient information available on products' bioengineered content.

So it makes sure that we don't have a patchwork of 50 State labeling laws. It sets up a voluntary program within 1 year. Then, if the information isn't out there sufficient for consumers, it makes sure that USDA follows up and ensures that the information is provided and that it is provided in a variety of ways that work for consumers but also work for our farmers and ranchers and for the food industry so that we don't raise costs for our consumers.

This bill will ensure that the Vermont GE labeling law, which goes into effect on July 1 of this year, does

not end up costing American families billions of dollars when they fill up their grocery carts. If we don't act soon, food companies will have one of three options for complying with the Vermont law. No. 1, they can order new packaging for products going to each individual State with a labeling law; No. 2, they could reformulate products so that no labeling is required; or No. 3, they can stop selling to States with mandatory labeling laws. Of course, all of these options or any of these options would not only increase the cost of food to consumers but could result in job losses in our ag communities.

For millions of Americans, the GMO or bioengineered food labeling issue will impact the affordability of their food. Testimony provided by the USDA, FDA, and the EPA to the Senate Agriculture Committee last fall made clear that foods produced with the benefit of biotechnology are safe. Nobody is disputing that the food is safe. The real risk is if we don't address the Vermont GMO law, real families will have a tougher time making ends meet, they will face higher costs, and they are going to have more challenges getting the foods they want.

In fact, if food companies have to apply Vermont's standards to all products nationwide, it will result in an estimated increase of over $1,050 per year per household. For families having a tough time paying bills, this is in essence a regressive tax. It will hurt people of low incomes more than it will hurt people with substantial means.

From a jobs perspective, the story is also concerning. It has been calculated that if Vermont's law is applied nationwide, it will cost over $80 billion a year to switch products over to non-GMO supplies. Those billions of dollars a year in additional costs will hurt our ag and food industry that creates more than 17 million jobs nationwide. In my home State of North Dakota alone, 94,000 jobs or 38 percent of our State's economy rely on the ag and food industry.

This is a bad time to make it more expensive to do business in the ag sector. Recently, an economist at the Federal Reserve Bank of Kansas City testified that net farm income in 2015 is more than 50 percent less than it was in 2013, and it is expected to go down again in 2016. So this is an issue that affects our family farms directly across the country.

If Vermont's law goes forward, many farmers who rely on biotech crops to increase productivity will be deprived of that critical tool. This Senator knows how hard our farmers work and how much they put on the line every year when they have to take out an operating loan for crops that may or may not materialize. We shouldn't ask them to feed the Nation with one hand tied behind their backs by taking away biotechnology.

More than just overcoming the problems associated with having a patchwork of State regulations, I think it is important for Americans to know this legislation ensures that consumers have consistent, accurate information about the bioengineered content of their food. The biotechnology labeling solutions bill creates greater transparency for consumers by putting in place, within 1 year, a new voluntary bioengineered food labeling program to ensure products labeled as having been produced with biotechnology meet a uniform national standard.

As I mentioned, food produced with the aid of bioengineering are, according to the FDA, EPA, and USDA, safe. However, many consumers want to know if the food they are buying is produced using biotechnology, which is why this legislation's national voluntary bioengineering standard makes so much sense. The voluntary program in this legislation will ensure that a consumer who buys a food product with a bioengineering smart label in North Dakota is purchasing a product that is held at the same disclosure standards as food sold in New York, California, or North Carolina.

This voluntary program will let the marketplace respond to consumer demand for information. You can look at the USDA organic food program, a voluntary label many consumers look for in our grocery stores. Yet this bill goes further to create a mandatory bioengineered food disclosure program if the Secretary of Agriculture finds that there is insufficient consumer access to information about bioengineered foods.

We need a solution, and this bill helps keep our Nation's food affordable, it supports jobs, and it provides consumers consistent information about bioengineered foods. I urge my colleagues to work together to support this bipartisan measure.

NATIONAL AGRICULTURE DAY

Madam President, I would like to take just a minute to acknowledge, recognize, and thank our Nation's farmers on National Agriculture Day.

Today on National Agriculture Day, I want to celebrate and thank America's ag producers. That includes those in my home State of North Dakota who provide us with the lowest cost, highest quality food supply not just in the world but in the history of the world. America's grocery stores abound with fresh fruits, vegetables, and meats. Our dinner tables are able to offer our families a greater variety of nutritious, flavorful foods than ever before. They are a testament to the hard work, commitment, and innovation of our Nation's agricultural producers. Agriculture and ag-related industries is also an important part of the American economy, contributing $835 billion to our Gross Domestic Problem in 2014.

Further, our America's food and ag sector provides jobs for 16 million people and contributes billions of dollars to the national economy. Agriculture also has a positive balance of trade and produces a financial surplus for our country.

I especially want to thank the men and women of North Dakota who farm and ranch. They made agriculture North Dakota's largest industry with nearly $11 billion in sales last year. I am proud to say North Dakota leads the Nation in the production of 9 important commodities and is first or second in 15. This includes half of all the duram and spring wheat, more than 90 percent of the Nation's flax, and more than 85 percent of the Nation's canola.

America's farmers and ranchers work through drought and floods, crop disease, hail, and other challenges year in and year out. Yet they still get up every morning, put on their boots, and go out in the field and pastures for our country. Our farmers and ranchers built America, and today they sustain it. On National Agriculture Day, we acknowledge the enormous debt of gratitude we owe them.

Thank you, Madam President, and with that I yield the floor.

The PRESIDING OFFICER. The Senator from North Carolina.

Mr. TILLIS. Thank you, Madam President.

I thank the distinguished Senator from North Dakota for his comments, and I would like to be associated with all of them, in fact, particularly recognizing our farmers in North Carolina. The Senator from North Dakota and I have had discussions about the friendly competition among the agriculture States and the hard work they are doing to feed America and the world, but today I rise to express my support for Chairman ROBERTS' bill for the biotechnology labeling legislation.

I am supporting Chairman ROBERTS' effort because it addresses a real problem. The problem is that a small portion of the food industry is trying to impose their policy preferences onto the entire food supply chain in the United States. We are where we are because the Vermont law is not written in a way that merely impacts the citizens of Vermont. It is astonishing to hear the misleading claim that the Vermont law is about the right to know. If the Vermont law is about the right to know, why is it that the law exempts so many products?

Here are some examples of the absurdity of the Vermont law. Vegetable cheese lasagna would be labeled, but meat lasagna wouldn't. Soy milk would need to be labeled, but cow's milk would not. Frozen pizza would need to be labeled, but delivered pizza would not. Chocolate syrup would need to be labeled, but maple syrup would not. Vegetable soup would need to be labeled, but vegetable beef soup would not. Food at a restaurant would be totally exempt, but not food at a grocery store. Vegetarian chili would need to be labeled, but meat chili would not. Veggie burgers made with soy would need to be labeled, but cheeseburgers would not.

By my way of thinking, it is a patchwork that doesn't make sense if you are trying to come up with a consistent way to communicate to consumers what is in the food they are eating. The

Vermont law is a classic case of the government picking winners and losers and putting the burden of those decisions on the backs of hard-working Americans.

I had this slide up to begin with, but this is something we have to continue to be focused on. If you were to take the Vermont law and have a couple dozen States create their own variance and have all the complexity added, it is estimated the added cost of compliance would result in a cost of some 1,000 additional dollars per household. In this economy, how many families can afford another $1,000 a year for food?

I am surprised that number is not higher. It most likely will be and here is why: Manufacturers are subject to a $1,000 fine if one of their products is mistakenly or inadvertently found for sale in Vermont on a store shelf. The food industry will have over 100,000 items in the State of Vermont—a State that has roughly 625,000 residents. If only 5 percent to 10 percent of those products are even unintentionally mislabeled, that means fines of as much as $10 million per day, in addition to the millions per year companies will have to pay to actually change their supply chains to comply with the law to serve a population of 625,000.

We are often told in this Chamber we need to be more cognizant of the science. Those who are irresponsibly scaring the American people to defend the Vermont mandatory labeling law need to understand the science is against them. Late last year, the FDA rejected a petition calling for mandatory labeling of foods from genetically engineered products stating that ''the simple fact that a plant is produced by one method over another does not necessarily mean that there will be a difference in the safety or other characteristics of the resulting foods. . . . To date, we have completed over 155 consultations for GE plant varieties. The numbers of consultations completed, coupled with the rigor of the evaluations, demonstrate that foods from GE plants can be as safe as comparable foods produced using conventional plant breeding.''

During a Senate Appropriations subcommittee hearing last week, USDA Secretary Vilsack responded to questions regarding GMOs by emphasizing that the mandatory labeling efforts are not about food safety, nutritional benefits, or sound science. Two weeks ago, the Secretary was quoted at a conference referring to genetically modified products saying, ''I am here to unequivocally say they are safe to consumers.''

Chairman ROBERTS' language does exactly what Congress should be doing with regard to marketing standards; that is, setting rules of engagement that are consistent, balanced, and fair for all players in the industry by providing consistent information to consumers about the content of their food. With the chairman's bill, the marketplace has an opportunity to find the best approaches to getting consumers the information they want without imposing new regulations that add costs to our food supply, complexity, and no more real information or clarity.

If we as a nation are going to have a discussion on the necessity of labeling biotechnology products, fine, but the Vermont law is not the catalyst for that debate, and that conversation should be with the American people, not one State with roughly 625,000 people dictating to the market of more than 317 million people.

I encourage my colleagues to recognize that we should do everything we can to inform consumers about the content of their food. There is a right way to do it and there is a wrong way to do it. There is a more costly way to do it as proposed by the Vermont law or there is a more straightforward, effective, and consistent way, and that is what Chairman ROBERTS is trying to accomplish with this bill. I encourage everyone to support it.

Thank you, Madam President.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MANCHIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. GARDNER). Without objection, it is so ordered.

FILLING THE SUPREME COURT VACANCY

Mr. MANCHIN. Mr. President, I rise today to discuss Presidential nominations. I think most people in this body know I am probably one of the least partisan people—looking at the issues, working across the aisle, always reaching out to my friends and colleagues on the other side of the aisle. I don't look at the barrier a lot of people look at here.

I know we are able to debate and we are able to advise and consent on nominations because we just did it. I have a tremendous problem in my State, and I think in all of our States—Colorado and all across the country—with opioid addiction and drug abuse. With that being said, I truly believe that for us to fight this war, we have to have a cultural change within the FDA. The President of the United States nominated Dr. Robert Califf, a very good man, but a person who came from within the industry and who I did not think would bring a cultural change. Still, he was the recommendation of the President.

The majority leader from Kentucky basically brought that to the floor for a vote. I thought it was the wrong person, even though this was a nomination from a President of my party, and me being a Democrat. So I think it is a misnomer for us to believe we are going to hold hard to party lines.

I have said that I didn't think Dr. Califf would bring the cultural change. I hope he proves me wrong. I am willing to work with him on that, and I will fight to make sure we rid this country of the scourge of legal prescription drug abuse that is ruining families and destroying lives. I think we have proved the President can bring people up, which is his responsibility, and we can look at that person and agree. In this case, I had only four votes on my side. The majority of all the Republicans but one—yes, all the Republicans but one—voted for him. I still think it was wrong, but we are going to make the best of it that we can.

The bottom line is we did our job. We truly did our job, and I can live with that decision. I look at the Constitution, and it is very clear. It says the President ''shall.'' It doesn't say ''may.'' Being in the legislature—and the Presiding Officer has been in the legislature as well—the words ''shall'' and ''may'' are worlds apart. It says ''shall,'' and we know he will nominate.

Why are we not willing to go through this process? I am as likely to find someone he might recommend who I will not vote for as maybe the Chair and maybe our other colleagues. I saw what happened when I first got here. We got condemned for not voting at all. We weren't getting any votes because there was protection going on. Basically, for whoever is up in the cycle, tough votes make it very difficult for people to get reelected. We proved that to be wrong because basically we saw a big switch in the Senate from the majority to the minority and the minority to the majority.

I have said very strongly that no vote is worse than a tough vote. A no vote in this body is worse than a tough vote. If you are saying that you would rather not vote at all because it might cause a problem back home, I think we have more problems if we don't do our job. That is why I can't figure this out.

If the President brings a person up, there is going to be 2 or 3 months, and if we can't find someone we can agree on—60 of us—that means it will take at least 14 Republicans to find someone they can agree on and they think is good for the country and move forward. If not, then it will run right into the next administration, whoever that may be. But basically we would be doing our job.

I just have a hard time on this one. I am going to evaluate that nominee based on their legal qualifications and judicial philosophy. I am going to look and basically see what type of jurist they have been, what types of decisions they have made, what types of social media they have been on, and what they have talked about. I will look at all of that, which is what we should be doing, to find out as much about that person as I can and to see how they will govern and rule in the future. Hopefully we will find someone who will look at the issues, look at the rule of law, and look at who we are as a country. I think we all can do that. I know very well the Chair can. I know very well every one of our colleagues

on both sides of the aisle is able to do that.

I don't believe the President can count on all Democrats, just because he is a Democrat, falling in line. If that were the case, we wouldn't have had Senator MARKEY of Massachusetts, DICK BLUMENTHAL, and I voting against Robert Califf, who was the President's nominee.

So we are going to have to find that right person. But if we never get the chance to evaluate the person, I don't know how we can do that. Again, it truly gets down to the fact that this is the job we are supposed to do. We talk about orderly business. We are getting things done. I have heard people say: Oh, yes, we are getting things done now that the Republicans are in the majority. The Chair has been here long enough to understand that the majority might set the agenda, but it is the minority that drives the train as to whether we get on something or not. So we have to work together.

We have proved the old game plan didn't work. The new game plan is fine. Let's have an open amendment process, let's go through it and debate it, and then let it go up or down on its merits. That is what we are asking for on this. Let it go to committee. When the nomination comes, let it go to the committee and look at the nomination. I mean dissect it in every way, shape, or form, whoever that person may be—he or she. I am willing to live with whatever the committee comes out with, and I am going to do my own research. When it comes to the floor, there is no guarantee that I am going to vote for that person—absolutely not. And I have already proved that. All of us have proved that we haven't just blindly followed party lines, nor should we. We aren't expected to. Our constituents don't expect us to do that. They do not want us to do it, that is for sure.

Again, the Constitution states that the President ''shall nominate, and by and with the Advice and Consent of the Senate, shall appoint. . . . '' He can appoint only if we have the advice and consent of the Senate. There is no other way this President or any other President can make that decision. We make the final decision.

Again, we are to the point now where the rhetoric is back and forth and it gets a little harsher and everybody gets ingrained, entrenched: By golly, we are not going to take anybody up; we don't care who that person will be. And I just hate to see that. We are all friends. We all know each other, and we all truly, I believe, are here for the right reasons and want to do the best job we can. But we are still expected to do our job.

At the end of the day, did you do your job? Yes, we looked; the President gave us somebody; we didn't think that person was qualified; we didn't think they were centrist enough; they didn't have the background or a record that we could extract what we felt their performance would be in the future; and for those reasons, we voted against that person. Or the President gave us somebody who basically we found did not have political ties to either side, who basically ruled on the law—the best interpretation of the law—and with the Constitution always at the forefront. That is the person he gave us, and that is the person we would support. But if we never get a chance to look at whoever is given to us, there is no way we can move forward.

When I was Governor of my great State of West Virginia, I had to do the job 24 hours a day, 7 days a week, every minute of every day, every day of every week, every week of every month, every month of every year. It was expected. That was my job, and I tried to do the best I could. There were some times when I had to make some tough decisions. There were times I drew people together and times when there was so much division that we had to basically let it cool off and then move forward. But we always kept trying to do a better job for the people of West Virginia.

I think the American people expect us to do a better job. I really do. I don't care who gets credit for it—Republicans, Democrats. Basically, it should be all of us because the way this body works, it takes 60 votes to get on something, if we want to make that the criteria.

With that being said, I can assure you there will not be a person the President of the United States gives us—whether it is this President or the next administration and the next President—who will be the perfect jurist. We are not going to find that perfect jurist. We are not going to find someone slanted too far to the left or too far to the right so that we can't get 60 votes. We are going to have to find somebody who has shown some common sense and has some civility about them, basically using the Constitution as the basis and framework for the decisions they made as a jurist, and show that is how they are going to govern in the highest Court in the land and be a model for the rest of the world, reflecting that we are still a government of rules. We are a body where the rule of law means everything. It is hard for us to do that if we can't find someone who we feel is qualified to do the job.

So, Mr. President, I urge all my colleagues—all of my colleagues in this great body and all of my dear Republican friends—to look and think about this. If the right person is not there, don't vote for them. As a matter of fact, I would probably vote against them too. I have before. I think I am the most centrist Member of this body, and I am going to vote for what I think is good for my country and for the State of West Virginia. I think the people of West Virginia expect me to do that, and they expect me to do my job too.

With that, I hope we have another opportunity to think this over. The President probably will be giving us somebody in very short order. I would hope we are able to move to where the Judiciary Committee is able to look at that person, give us their findings on that person, and either tell us why we should not advise the President we are going to consent or find a person we can all agree upon and move forward.

With that, Mr. President, I yield the floor.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. DAINES. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MORNING BUSINESS

Mr. DAINES. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

75TH ANNIVERSARY OF THE NEVADA PARENT TEACHER ASSOCIATION

Mr. REID. Mr. President, I wish to honor the 75th anniversary of the Nevada Parent Teacher Association. The Nevada PTA will formally celebrate 75 years of advocacy and work for and on behalf of the children of Nevada, at various events in the State during the last week of April.

Since 1941, the Nevada PTA has been part of the Nation's largest volunteer child advocacy association. The organization promotes education, health, safety, and the arts to the children of Nevada and has been instrumental in fostering the growth of countless students. The Nevada PTA takes pride in ensuring that schools are a central part of the communities in which they reside. The organization has led efforts to curb childhood obesity, foster connections between children and the important men in their lives, and promote volunteering in innovative ways.

Since its inception, they have also been a strong supporter of art programs that allow children to grow as students and people. Working with the national association, the Nevada PTA has participated in art programs that allow children to create original works of art in categories such as photography, film, and music composition. These programs not only encourage students to be creative, but also allow connections with fellow classmates that share common interests.

Nevada PTA exemplifies the broader objective of the National PTA, advocacy for all children. Multiple schools in Nevada have been recognized by the National PTA for the School of Excellence Awards which are granted to institutions that promote diversity, demonstrate clarity in academic standards,

and establish meaningful connections with their local parent teacher association.

I applaud President David Flatt and his team for his strong leadership in one of the most important organizations for children in the State of Nevada. I am pleased that, through yours and other's selfless efforts, incalculable numbers of students, teachers, and parents have been positively affected by the Nevada PTA. This organization is an invaluable part of communities throughout the State, and I would like to extend my best wishes for continued success.

VOTE EXPLANATION

Mr. WARNER. Mr. President, due to a prior commitment, I regret I was not present to vote on the nomination of Dr. John B. King to be Secretary of the Department of Education. Had I been present, I would have voted in support of his confirmation. I look forward to working closely with him as the Department of Education continues implementing the Every Student Succeeds Act in the Commonwealth of Virginia.

ADDITIONAL STATEMENTS

CASEY FAMILY PROGRAMS

● Mr. BENNET. Mr. President, today I congratulate Casey Family Programs for 50 years of public service to help vulnerable children and families in the child welfare system. Founded in 1966 by Jim Casey, the founder of United Parcel Service, UPS, this private operating foundation has been working quietly and effectively on behalf of our most vulnerable children and families.

At the beginning, Casey Family Programs started with a specific focus on providing quality foster care. After gaining considerable experience in providing direct services, Casey Family Programs recognized that it could help more families and children by working to support long-lasting improvements across entire child welfare systems. Today the foundation provides strategic consultation, technical assistance, data analysis, and independent research and evaluation at no cost to all 50 states. It also serves county and tribal child welfare jurisdictions across the Nation, including my State of Colorado.

Casey Family Programs seeks a unique partnership with the States by asking what jurisdictions hope to achieve as it relates to the foundation's mission.

In my State of Colorado, this means helping State leaders implement Colorado's Federal waiver program. It means developing initiatives to reduce reliance on congregate care, if other options may be more appropriate for the child and family. It means working with our Denver courts with a judicial engagement team to enhance collaboration among the courts, agencies, and families. Casey Family Programs also has a specific team based in Denver dedicated to Indian Child Welfare.

At the Federal level, Casey Family Programs offers its experience, research, and data to help policymakers understand and address the complicated issues of child welfare and foster care. Over the years I have been proud to work with Casey Family Programs, and I appreciate their dedication and commitment to the original vision of their founder, Jim Casey.

I believe we all share this vision of helping children find a safe and stable home, but achieving it is more challenging than it seems. I congratulate Casey Family Programs on 50 years of public service, and I look forward to continue working with the foundation in Colorado and in Congress for years to come.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mr. Pate, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

MESSAGE FROM THE HOUSE

At 11:59 a.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bill, without amendment:

S. 2426. An act to direct the Secretary of State to develop a strategy to obtain observer status for Taiwan in the International Criminal Police Organization, and for other purposes.

The message also announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 1268. An act to amend the Energy Independence and Security Act of 2007 to promote energy efficiency via information and computing technologies, and for other purposes.

H.R. 2080. An act to reinstate and extend the deadline for commencement of construction of a hydroelectric project involving Clark Canyon Dam.

H.R. 2984. An act to amend the Federal Power Act to provide that any inaction by the Federal Energy Regulatory Commission that allows a rate change to go into effect shall be treated as an order by the Commission for purposes of rehearing and court review.

H.R. 4411. An act to extend the deadline for commencement of construction of a hydroelectric project.

H.R. 4412. An act to extend the deadline for commencement of construction of a hydroelectric project.

H.R. 4427. An act to amend section 203 of the Federal Power Act.

H.R. 4721. An act to amend title 49, United States Code, to extend authorizations for the airport improvement program, to amend the Internal Revenue Code of 1986 to extend the funding and expenditure authority of the Airport and Airway Trust Fund, and for other purposes.

The message further announced that the House has agreed to the following concurrent resolutions, in which it requests the concurrence of the Senate:

H. Con. Res. 75. Concurrent resolution expressing the sense of Congress that the atrocities perpetrated by ISIL against religious and ethnic minorities in Iraq and Syria include war crimes, crimes against humanity, and genocide.

H. Con. Res. 121. Concurrent resolution expressing the sense of the Congress condemning the gross violations of international law amounting to war crimes and crimes against humanity by the Government of Syria, its allies, and other parties to the conflict in Syria, and asking the President to direct his Ambassador at the United Nations to promote the establishment of a war crimes tribunal where these crimes could be addressed.

ENROLLED BILLS SIGNED

The President pro tempore (Mr. HATCH) announced that on today, March 15, 2016, he has signed the following enrolled bills, which were previously signed by the Speaker of the House:

S. 1172. An act to improve the process of presidential transition.

S. 1580. An act to allow additional appointing authorities to select individuals from competitive service certificates.

S. 1826. An act to designate the facility of the United States Postal Service located at 99 West 2nd Street in Fond du Lac, Wisconsin, as the Lieutenant Colonel James ''Maggie'' Megellas Post Office.

H.R. 1755. An act to amend title 36, United States Code, to make certain improvements in the congressional charter of the Disabled American Veterans.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 1268. An act to amend the Energy Independence and Security Act of 2007 to promote energy efficiency via information and computing technologies, and for other purposes; to the Committee on Energy and Natural Resources.

H.R. 2984. An act to amend the Federal Power Act to provide that any inaction by the Federal Energy Regulatory Commission that allows a rate change to go into effect shall be treated as an order by the Commission for purposes of rehearing and court review; to the Committee on Energy and Natural Resources.

H.R. 4411. An act to extend the deadline for commencement of construction of a hydroelectric project; to the Committee on Energy and Natural Resources.

H.R. 4412. An act to extend the deadline for commencement of construction of a hydroelectric project; to the Committee on Energy and Natural Resources.

H.R. 4427. An act to amend section 203 of the Federal Power Act; to the Committee on Energy and Natural Resources.

The following concurrent resolutions were read, and referred as indicated:

H. Con. Res. 75. Concurrent resolution expressing the sense of Congress that the atrocities perpetrated by ISIL against religions and ethnic minorities in Iraq and Syria include war crimes, crimes against humanity, and genocide; to the Committee on Foreign Relations.

H. Con. Res. 121. Concurrent resolution expressing the sense of the Congress condemning the gross violations of international law amounting to war crimes and crimes against humanity by the Government of Syria, its allies, and other parties to the conflict in Syria, and asking the President to direct his Ambassador at the United Nations to promote the establishment of a war crimes tribunal where these crimes could be addressed; to the Committee on Foreign Relations.

MEASURES PLACED ON THE CALENDAR

The following bill was read the first and second times by unanimous consent, and placed on the calendar:

H.R. 2080. An act to reinstate and extend the deadline for commencement of construction of a hydroelectric project involving Clark Canyon Dam.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

S. 2686. A bill to clarify the treatment of two or more employers as joint employers under the National Labor Relations Act.

ENROLLED BILLS PRESENTED

The Secretary of the Senate reported that on today, March 15, 2016, she had presented to the President of the United States the following enrolled bills:

S. 1172. An act to improve the process of presidential transition.

S. 1580. An act to allow additional appointing authorities to select individuals from competitive service certificates.

S. 1826. An act to designate the facility of the United States Postal Service located at 99 West 2nd Street in Fond du Lac, Wisconsin, as the Lieutenant Colonel James ''Maggie'' Megellas Post Office.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, with an amendment in the nature of a substitute:

S. 1492. A bill to direct the Administrator of General Services, on behalf of the Archivist of the United States, to convey certain Federal property located in the State of Alaska to the Municipality of Anchorage, Alaska (Rept. No. 114–228).

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, without amendment:

S. 2133. A bill to improve Federal agency financial and administrative controls and procedures to assess and mitigate fraud risks, and to improve Federal agencies' development and use of data analytics for the purpose of identifying, preventing, and responding to fraud, including improper payments (Rept. No. 114–229).

By Mr. CORKER, from the Committee on Foreign Relations, with an amendment in the nature of a substitute:

S. 1252. A bill to authorize a comprehensive strategic approach for United States foreign assistance to developing countries to reduce global poverty and hunger, achieve food and nutrition security, promote inclusive, sustainable, agricultural-led economic growth, improve nutritional outcomes, especially for women and children, build resilience among vulnerable populations, and for other purposes.

By Mr. ALEXANDER, from the Committee on Health, Education, Labor, and Pensions, with an amendment in the nature of a substitute:

S. 2512. A bill to expand the tropical disease product priority review voucher program to encourage treatments for Zika virus.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Ms. BALDWIN (for herself, Mr. BLUMENTHAL, Mr. BOOKER, Mrs. BOXER, Mr. BROWN, Mr. CARDIN, Mr. CASEY, Mr. DURBIN, Mr. FRANKEN, Mrs. GILLIBRAND, Ms. HIRONO, Ms. KLOBUCHAR, Mr. LEAHY, Mr. MARKEY, Mr. MENENDEZ, Mr. MERKLEY, Ms. MIKULSKI, Mrs. MURRAY, Mr. PETERS, Mr. REED, Mr. REID, Mr. SCHATZ, Mr. SCHUMER, Mrs. SHAHEEN, Ms. STABENOW, Mr. UDALL, Ms. WARREN, Mr. WHITEHOUSE, and Mr. WYDEN):

S. 2677. A bill to make college more affordable, reduce student debt, and provide greater access to higher education for all students of the United States; to the Committee on Finance.

By Mr. SCHATZ (for himself, Mr. HATCH, Mr. TESTER, Mr. COCHRAN, Ms. COLLINS, and Ms. BALDWIN):

S. 2678. A bill to direct the NIH to intensify and coordinate fundamental, translational, and clinical research with respect to the understanding of pain, the discovery and development of therapies for chronic pain, and the development of alternatives to opioids for effective pain treatments; to the Committee on Health, Education, Labor, and Pensions.

By Ms. KLOBUCHAR (for herself and Mr. TILLIS):

S. 2679. A bill to amend title 38, United States Code, to direct the Secretary of Veterans Affairs to establish within the Department of Veterans Affairs a center of excellence in the prevention, diagnosis, mitigation, treatment, and rehabilitation of health conditions relating to exposure to burn pits; to the Committee on Veterans' Affairs.

By Mr. ALEXANDER (for himself, Mrs. MURRAY, Mr. CASSIDY, and Mr. MURPHY):

S. 2680. A bill to amend the Public Health Service Act to provide comprehensive mental health reform, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. HEINRICH (for himself and Mr. UDALL):

S. 2681. A bill to authorize the Secretary of the Interior to retire coal preference right lease applications for which the Secretary has made an affirmative commercial quantities determination, to substitute certain land selections of the Navajo Nation, to designate certain wilderness areas, and for other purposes; to the Committee on Energy and Natural Resources.

By Mrs. GILLIBRAND (for herself, Ms. WARREN, and Mr. BLUMENTHAL):

S. 2682. A bill to provide territories of the United States with bankruptcy protection; to the Committee on Energy and Natural Resources.

By Ms. HIRONO (for herself and Mrs. FISCHER):

S. 2683. A bill to include disabled veteran leave in the personnel management system of the Federal Aviation Administration; to the Committee on Commerce, Science, and Transportation.

By Mr. INHOFE:

S. 2684. A bill to provide for the operation of unmanned aircraft systems by owners and operators of critical infrastructure; to the Committee on Commerce, Science, and Transportation.

By Mr. DURBIN (for himself, Ms. COLLINS, and Mr. BENNET):

S. 2685. A bill to amend the Public Health Service Act to improve mental and behavioral health services on campuses of institutions of higher education; to the Committee on Health, Education, Labor, and Pensions.

By Mr. ALEXANDER (for himself, Mr. MCCONNELL, Mr. ISAKSON, Ms. AYOTTE, Mr. BARRASSO, Mr. BLUNT, Mr. BOOZMAN, Mr. BURR, Mrs. CAPITO, Mr. CASSIDY, Mr. COATS, Mr. COCHRAN, Ms. COLLINS, Mr. CORKER, Mr. CORNYN, Mr. COTTON, Mr. CRAPO, Mr. CRUZ, Mr. DAINES, Mr. ENZI, Mrs. FISCHER, Mr. FLAKE, Mr. GARDNER, Mr. GRAHAM, Mr. HATCH, Mr. HELLER, Mr. INHOFE, Mr. JOHNSON, Mr. KIRK, Mr. LANKFORD, Mr. LEE, Mr. MCCAIN, Mr. MORAN, Mr. PERDUE, Mr. RISCH, Mr. ROBERTS, Mr. ROUNDS, Mr. RUBIO, Mr. SCOTT, Mr. SESSIONS, Mr. SHELBY, Mr. THUNE, Mr. TILLIS, Mr. VITTER, and Mr. WICKER):

S. 2686. A bill to clarify the treatment of two or more employers as joint employers under the National Labor Relations Act; read the first time.

By Mr. CASEY (for himself, Mr. ALEXANDER, Mr. BENNET, Mr. HATCH, Mrs. MURRAY, and Ms. COLLINS):

S. 2687. A bill to amend the Child Abuse Prevention and Treatment Act to improve plans of safe care for infants affected by illegal substance abuse or withdrawal symptoms, or a Fetal Alcohol Spectrum Disorder, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Ms. STABENOW (for herself, Ms. MIKULSKI, and Mr. FRANKEN):

S. Res. 399. A resolution supporting the goals and ideals of ''National Professional Social Work Month''; to the Committee on Health, Education, Labor, and Pensions.

By Mr. ISAKSON (for himself and Mr. CASEY):

S. Res. 400. A resolution designating March 25, 2016, as ''National Cerebral Palsy Awareness Day''; considered and agreed to.

ADDITIONAL COSPONSORS

S. 207

At the request of Mr. MORAN, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of S. 207, a bill to require the Secretary of Veterans Affairs to use existing authorities to furnish health care at non-Department of Veterans Affairs facilities to veterans who live more than 40 miles driving distance from the closest

medical facility of the Department that furnishes the care sought by the veteran, and for other purposes.

S. 262

At the request of Mr. LEAHY, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 262, a bill to reauthorize the Runaway and Homeless Youth Act, and for other purposes.

S. 373

At the request of Mr. TOOMEY, his name was added as a cosponsor of S. 373, a bill to provide for the establishment of nationally uniform and environmentally sound standards governing discharges incidental to the normal operation of a vessel.

S. 480

At the request of Mrs. SHAHEEN, the name of the Senator from Maine (Ms. COLLINS) was added as a cosponsor of S. 480, a bill to amend and reauthorize the controlled substance monitoring program under section 399O of the Public Health Service Act.

S. 586

At the request of Mrs. SHAHEEN, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 586, a bill to amend the Public Health Service Act to foster more effective implementation and coordination of clinical care for people with pre-diabetes, diabetes, and the chronic diseases and conditions that result from diabetes.

S. 764

At the request of Mr. SCHATZ, his name and the name of the Senator from Washington (Ms. CANTWELL) were withdrawn as cosponsors of S. 764, a bill to reauthorize and amend the National Sea Grant College Program Act, and for other purposes.

S. 849

At the request of Mr. ISAKSON, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 849, a bill to amend the Public Health Service Act to provide for systematic data collection and analysis and epidemiological research regarding Multiple Sclerosis (MS), Parkinson's disease, and other neurological diseases.

S. 857

At the request of Ms. STABENOW, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 857, a bill to amend title XVIII of the Social Security Act to provide for coverage under the Medicare program of an initial comprehensive care plan for Medicare beneficiaries newly diagnosed with Alzheimer's disease and related dementias, and for other purposes.

S. 1538

At the request of Mr. DURBIN, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of S. 1538, a bill to reform the financing of Senate elections, and for other purposes.

S. 1714

At the request of Mr. MANCHIN, the name of the Senator from Washington (Mrs. MURRAY) was added as a cosponsor of S. 1714, a bill to amend the Surface Mining Control and Reclamation Act of 1977 to transfer certain funds to the Multiemployer Health Benefit Plan and the 1974 United Mine Workers of America Pension Plan, and for other purposes.

S. 1785

At the request of Mr. LEE, the name of the Senator from Louisiana (Mr. VITTER) was added as a cosponsor of S. 1785, a bill to repeal the wage rate requirements of the Davis-Bacon Act.

S. 1830

At the request of Mr. BARRASSO, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 1830, a bill to amend title XVIII of the Social Security Act to provide for the coverage of marriage and family therapist services and mental health counselor services under part B of the Medicare program, and for other purposes.

S. 1865

At the request of Ms. KLOBUCHAR, the names of the Senator from Minnesota (Mr. FRANKEN), the Senator from Pennsylvania (Mr. CASEY) and the Senator from South Carolina (Mr. GRAHAM) were added as cosponsors of S. 1865, a bill to amend the Public Health Service Act with respect to eating disorders, and for other purposes.

S. 1890

At the request of Mr. HATCH, the names of the Senator from Colorado (Mr. GARDNER) and the Senator from Indiana (Mr. COATS) were added as cosponsors of S. 1890, a bill to amend chapter 90 of title 18, United States Code, to provide Federal jurisdiction for the theft of trade secrets, and for other purposes.

S. 1982

At the request of Mr. CARDIN, the name of the Senator from South Dakota (Mr. ROUNDS) was added as a cosponsor of S. 1982, a bill to authorize a Wall of Remembrance as part of the Korean War Veterans Memorial and to allow certain private contributions to fund the Wall of Remembrance.

S. 2055

At the request of Mr. BURR, the name of the Senator from Tennessee (Mr. ALEXANDER) was added as a cosponsor of S. 2055, a bill to amend the Public Health Service Act and the Federal Food, Drug, and Cosmetic Act with respect to national health security.

S. 2067

At the request of Mr. WICKER, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 2067, a bill to establish EUREKA Prize Competitions to accelerate discovery and development of disease-modifying, preventive, or curative treatments for Alzheimer's disease and related dementia, to encourage efforts to enhance detection and diagnosis of such diseases, or to enhance the quality and efficiency of care of individuals with such diseases.

S. 2151

At the request of Mr. THUNE, the name of the Senator from Kansas (Mr. ROBERTS) was added as a cosponsor of S. 2151, a bill to amend the Public Health Service Act to provide liability protections for volunteer practitioners at health centers under section 330 of such Act.

S. 2166

At the request of Mr. BLUNT, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 2166, a bill to amend part B of title IV of the Social Security Act to ensure that mental health screenings and assessments are provided to children and youth upon entry into foster care.

S. 2185

At the request of Ms. HEITKAMP, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. 2185, a bill to require the Secretary of the Treasury to mint coins in recognition of the fight against breast cancer.

S. 2216

At the request of Ms. COLLINS, the name of the Senator from Nevada (Mr. HELLER) was added as a cosponsor of S. 2216, a bill to provide immunity from suit for certain individuals who disclose potential examples of financial exploitation of senior citizens, and for other purposes.

S. 2437

At the request of Ms. MIKULSKI, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. 2437, a bill to amend title 38, United States Code, to provide for the burial of the cremated remains of persons who served as Women's Air Forces Service Pilots in Arlington National Cemetery, and for other purposes.

S. 2512

At the request of Mr. FRANKEN, the name of the Senator from Tennessee (Mr. ALEXANDER) was added as a cosponsor of S. 2512, a bill to expand the tropical disease product priority review voucher program to encourage treatments for Zika virus.

S. 2550

At the request of Mrs. MCCASKILL, the names of the Senator from Massachusetts (Mr. MARKEY) and the Senator from Illinois (Mr. DURBIN) were added as cosponsors of S. 2550, a bill to repeal the jury duty exemption for elected officials of the legislative branch.

S. 2577

At the request of Mr. CORNYN, the names of the Senator from Ohio (Mr. PORTMAN), the Senator from Nevada (Mr. HELLER), the Senator from Minnesota (Ms. KLOBUCHAR) and the Senator from New Mexico (Mr. UDALL) were added as cosponsors of S. 2577, a bill to protect crime victims' rights, to eliminate the substantial backlog of DNA and other forensic evidence samples to improve and expand the forensic science testing capacity of Federal, State, and local crime laboratories, to increase research and development of

new testing technologies, to develop new training programs regarding the collection and use of forensic evidence, to provide post-conviction testing of DNA evidence to exonerate the innocent, to support accreditation efforts of forensic science laboratories and medical examiner offices, to address training and equipment needs, to improve the performance of counsel in State capital cases, and for other purposes.

S. 2630

At the request of Mr. FRANKEN, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. 2630, a bill to amend the Fair Labor Standards Act of 1938 to require certain disclosures be included on employee pay stubs, and for other purposes.

S. 2646

At the request of Mr. BURR, the names of the Senator from West Virginia (Mrs. CAPITO), the Senator from Oklahoma (Mr. LANKFORD) and the Senator from Oklahoma (Mr. INHOFE) were added as cosponsors of S. 2646, a bill to amend title 38, United States Code, to establish the Veterans Choice Program of the Department of Veterans Affairs to improve health care provided to veterans by the Department, and for other purposes.

S. RES. 199

At the request of Ms. STABENOW, her name was withdrawn as a cosponsor of S. Res. 199, a resolution expressing the sense of the Senate regarding establishing a National Strategic Agenda.

S. RES. 340

At the request of Mr. CASSIDY, the name of the Senator from Oklahoma (Mr. INHOFE) was added as a cosponsor of S. Res. 340, a resolution expressing the sense of Congress that the so-called Islamic State in Iraq and al-Sham (ISIS or Dáesh) is committing genocide, crimes against humanity, and war crimes, and calling upon the President to work with foreign governments and the United Nations to provide physical protection for ISIS' targets, to support the creation of an international criminal tribunal with jurisdiction to punish these crimes, and to use every reasonable means, including sanctions, to destroy ISIS and disrupt its support networks.

S. RES. 383

At the request of Mr. PERDUE, the name of the Senator from Oklahoma (Mr. INHOFE) was added as a cosponsor of S. Res. 383, a resolution recognizing the importance of the United States-Israel economic relationship and encouraging new areas of cooperation.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Ms. BALDWIN (for herself, Mr. BLUMENTHAL, Mr. BOOKER, Mrs. BOXER, Mr. BROWN, Mr. CARDIN, Mr. CASEY, Mr. DURBIN, Mr. FRANKEN, Mrs. GILLIBRAND, Ms. HIRONO, Ms. KLOBUCHAR, Mr. LEAHY, Mr. MARKEY, Mr. MENENDEZ, Mr. MERKLEY, Ms. MIKULSKI, Mrs. MURRAY, Mr. PETERS, Mr. REED, Mr. REID, Mr. SCHATZ, Mr. SCHUMER, Mrs. SHAHEEN, Ms. STABENOW, Mr. UDALL, Ms. WARREN, Mr. WHITEHOUSE, and Mr. WYDEN):

S. 2677. A bill to make college more affordable, reduce student debt, and provide greater access to higher education for all students of the United States; to the Committee on Finance.

Ms. MIKULSKI. Mr. President, I rise today to talk about an issue that is of the utmost importance to me, Marylanders, and American families—college affordability.

I have said this often, but we in this country enjoy many freedoms: the freedom of speech, the freedom of the press, and the freedom of religion. But there is an implicit freedom our Constitution does not lay out in writing, but its promise has excited the passions, hopes, and dreams of people in this country since its founding. It is the freedom to take whatever talents God has given you, to fill whatever passion is in your heart, to learn so you can earn and make a contribution to society—the freedom to achieve.

The freedom to achieve should never be stifled in this country because of economic reasons. Your freedom to achieve should never be determined by the zip code you live in, by the color of your skin, or by the size of your family's wallet. It should be, in a democratic country, that everyone has access to be able to do that. That means affordable education. That means access to the opportunity ladder that students and families can count on, because we know a degree is something that no one can ever take away from you.

When I was a young girl at a Catholic all-girls school, my Mom and Dad made it very clear that they wanted me to go to college. But, right around graduation, my family was going through a rough time because my father's grocery store had suffered a terrible fire. I offered to put off college and work at the grocery store until the business got back on its feet. My Dad said, ''BARB, you have to go. Your mother and I will find a way, because no matter what happens to you, no one can ever take that degree away from you. The best way I can protect you is to make sure you can earn a living all of your life.'' My father gave me the freedom to achieve.

When it comes to higher education, I believe in choice and opportunity. Anyone willing to work hard has a right to learn so you can get a college degree or certificate. Millions of American students are graduating colleges and universities, but as they are handed their diplomas, they are being handed a lifetime of debt.

More than 58 percent of Maryland college students have taken on an average debt of $27,000 or more. Having this debt is like a first mortgage, making it hard to buy a home, start a business, or a family. I am worried about them, as should the rest of us, and what it means for their future. College is a part of the American dream; it should not be a part of the American financial nightmare.

That is why, over the last several months, I embarked on a college affordability tour across the state of Maryland. I wanted to find out what were some of the challenges students faced when it came to college. I wanted to know how the Federal Government can help them be successful. The stories I heard were poignant, and were likely ones that everyone in this chamber has heard time and time again.

I met a bright young woman last year. She had the financial support of her parents to attend college. Unfortunately, during her sophomore year, her mother—who was a nurse—lost her job. To make sure she could still go to college, her family made the decision to dip into their retirement savings to help pay. This goes to show that her family knew how important it was that she continue her education. Even with this additional financial support, she still had to rely on Federal financial aid to pay for books.

Or the young man who is the first in his family to go to college. He hopes he is not the last. He would not be where he is today had it not been for a strong support system in high school through participation in a college bound program that gave him the opportunity to be exposed to college classes. While he came to college academically prepared, he still needed help navigating our complex Federal financial aid system.

This is just a small sample of the stories I heard. But they all say the same thing: ''We need help.'' Many students and families are stressed and stretched, having to work and save to pay for college. They want to know what Congress is doing for them. They need a Federal Government that is on their side.

Student loan debt is more than $1.3 trillion, exceeding total credit card and car loan debt, and eclipsed only by mortgage debt. Family incomes are not keeping pace with inflation, which means they are less able to help with the costs of higher education.

Getting a college education is the core of the American dream. Let us continue to fight to make sure that every student in America, whether you are in rural Eastern Shore or in big cities like Los Angeles, has access to that dream. Let us work together to make sure that when students graduate, their first mortgage is not their student debt. Carrying the burden of student loans drags down young people's financial future, making it harder to buy a home, start a family, or save for retirement.

It is my belief that this bill—the In The Red Act—will make college a reality for millions of Americans. I am pleased to see that provisions in this bill would allow eligible student borrowers the opportunity to refinance their Federal loans. I believe that if

you can refinance a yacht, you should be able to refinance your student loans. This will help more than 24 million students in the United States, including more than 800,000 student borrowers in Maryland.

I am also pleased to see that this bill increases Pell Grants to keep pace with rising costs. This will ensure that college students, who rely on Pell Grants, can pay for tuition, books, room and board, and other living expenses like child care.

The In The Red Act is absolutely a great bill for students, and it is a great bill for America. It gives our students access to the American dream. It gives our young people access to the freedom to achieve, to be able to follow their talents, and to be able to achieve higher education in whatever field they will be able to serve this country. It is my hope that we come together to pass this bill in a swift, expeditious, and uncluttered way.

While our work is not done when it comes to ensuring access to affordable higher education, this bill helps us get there. I look forward to working with my colleagues on both sides of the aisle to move this issue forward.

By Mr. DURBIN (for himself, Ms. COLLINS, and Mr. BENNET):

S. 2685. A bill to amend the Public Health Service Act to improve mental and behavioral health services on campuses of institutions of higher education; to the Committee on Health, Education, Labor, and Pensions.

Mr. DURBIN. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 2685

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Mental Health on Campus Improvement Act''.

SEC. 2. FINDINGS.

Congress makes the following findings:

(1) The 2014 Association of University and College Counseling Center Directors Survey found that the average ratio of counselors to students on campus is nearly 1 to 1,833 and is often far higher on large campuses. The International Association of Counseling Services accreditation standards recommends 1 counselor per 1,000 to 1,500 students.

(2) College counselors report that 10 percent of enrolled students sought counseling in 2014.

(3) More than 90 percent of counseling directors believe there is an increase in the number of students coming to campus with severe psychological problems; today, 44 percent of the students who visit campus counseling centers are dealing with severe mental illness, up from 16 percent in 2000, and 24 percent are on psychiatric medication, up from 17 percent in 2000.

(4) The majority of campus counseling directors report that the demand for services and the severity of student needs are growing without an increase in resources.

(5) Many students who need help never receive it. Only 15 percent of college and university students who commit suicide received campus counseling. Of students who seriously consider suicide each year, only 52 percent of them seek any professional help at all.

(6) A 2015 American College Health Association survey of more than 93,000 college and university students revealed that, within the last 12 months, 57 percent of students report having felt overwhelming anxiety, 35 percent felt so depressed it was difficult to function, and 48 percent felt hopeless. However, only 12 percent of students reported receiving professional treatment for anxiety within the past 12 months, and 11 percent reported receiving treatment for depression within the past 12 months.

(7) The 2015 American College Health Association survey also found that 9 percent of students have seriously considered suicide in the past 12 months, a 20 percent increase compared to 2012.

(8) Research conducted between 1997 and 2009, and presented at the 118th annual convention of the American Psychological Association found that more students are grappling with depression and anxiety disorders than were a decade ago. The study found that of students who sought college or university counseling, 41 percent had moderate to severe depression in 2009, that number was 34 percent in 1997.

(9) A survey conducted by the student counseling center at the University of Idaho in 2000 found that 77 percent of students who responded reported that they were more likely to stay in school because of counseling and that their school performance would have declined without counseling.

(10) Students with psychological issues often struggle academically and are at risk for dropping out of school. Counseling has been shown to address these issues while having a positive impact on students remaining in school. A 6-year longitudinal study found college and university students receiving counseling to have a 11.4 percent higher retention rate than the general college and university population.

(11) A national survey of college and university students living with mental health conditions, conducted by the National Alliance on Mental Illness, found that 64 percent of students who experience mental health problems in college or university and withdraw from school do so because of their mental health issues. The survey also found that 50 percent of that group never accessed mental health services and supports.

SEC. 3. IMPROVING MENTAL AND BEHAVIORAL HEALTH ON COLLEGE CAMPUSES.

Title V of the Public Health Service Act is amended by inserting after section 520E–2 (42 U.S.C. 290bb–36b) the following:

''SEC. 520E–3. GRANTS TO IMPROVE MENTAL AND BEHAVIORAL HEALTH ON COLLEGE CAMPUSES.

''(a) PURPOSE.—It is the purpose of this section, with respect to settings at institutions of higher education, to—

''(1) increase access to mental and behavioral health services;

''(2) foster and improve the prevention of mental and behavioral health disorders, and the promotion of mental health;

''(3) improve the identification and treatment for students at risk;

''(4) improve collaboration and the development of appropriate levels of mental and behavioral health care;

''(5) reduce the stigma for students with mental health disorders and enhance their access to mental health services; and

''(6) improve the efficacy of outreach efforts.

''(b) GRANTS.—The Secretary, acting through the Administrator and in consultation with the Secretary of Education, shall award competitive grants to eligible entities to improve mental and behavioral health services and outreach on campuses of institutions of higher education.

''(c) ELIGIBILITY.—To be eligible to receive a grant under subsection (b), an entity shall—

''(1) be an institution of higher education; and

''(2) submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require, including the information required under subsection (d).

''(d) APPLICATION.—An application for a grant under this section shall include—

''(1) a description of the population to be targeted by the program carried out under the grant, including the particular mental and behavioral health needs of the students involved;

''(2) a description of the Federal, State, local, private, and institutional resources available for meeting the needs of such students at the time the application is submitted;

''(3) an outline of the objectives of the program carried out under the grant;

''(4) a description of activities, services, and training to be provided under the program, including planned outreach strategies to reach students not currently seeking servvices;

''(5) a plan to seek input from community mental health providers, when available, community groups, and other public and private entities in carrying out the program;

''(6) a plan, when applicable, to meet the specific mental and behavioral health needs of veterans attending institutions of higher education;

''(7) a description of the methods to be used to evaluate the outcomes and effectiveness of the program; and

''(8) an assurance that grant funds will be used to supplement, and not supplant, any other Federal, State, or local funds available to carry out activities of the type carried out under the grant.

''(e) SPECIAL CONSIDERATIONS.—In awarding grants under this section, the Secretary shall give special consideration to applications that describe programs to be carried out under the grant that—

''(1) demonstrate the greatest need for new or additional mental and behavioral health services, in part by providing information on current ratios of students to mental and behavioral health professionals;

''(2) propose effective approaches for initiating or expanding campus services and supports using evidence-based practices, including peer support strategies;

''(3) target traditionally underserved populations and populations most at risk;

''(4) where possible, demonstrate an awareness of, and a willingness to, coordinate with a community mental health center or other mental health resource in the community, to support screening and referral of students requiring intensive services;

''(5) identify how the institution of higher education will address psychiatric emergencies, including how information will be communicated with families or other appropriate parties;

''(6) propose innovative practices that will improve efficiencies in clinical care, broaden collaborations with primary care, or improve prevention programs; and

''(7) demonstrate the greatest potential for replication and dissemination.

''(f) USE OF FUNDS.—Amounts received under a grant under this section may be used to—

''(1) provide mental and behavioral health services to students, including prevention, promotion of mental health, voluntary

screening, early intervention, voluntary assessment, treatment, management, and education services relating to the mental and behavioral health of students;

''(2) conduct research through a counseling or health center at the institution of higher education involved regarding improving the mental and behavioral health of students through clinical services, outreach, prevention, or academic success, in a manner that is in compliance with the health privacy and security rules promulgated under section 264(c) of the Health Insurance Portability and Accountability Act of 1996 (42 U.S.C. 1320d–2 note);

''(3) provide outreach services to notify students about the existence of mental and behavioral health services;

''(4) educate students, families, faculty, staff, and communities to increase awareness of mental health issues;

''(5) support student groups on campus, including athletic teams, that engage in activities to educate students, including activities to reduce stigma surrounding mental and behavioral disorders, and promote mental health wellness;

''(6) employ appropriately trained staff;

''(7) provide training to students, faculty, and staff to respond effectively to students with mental and behavioral health issues;

''(8) expand mental health training through internship, post-doctorate, and residency programs;

''(9) develop and support evidence-based and emerging best practices, including a focus on culturally and linguistically appropriate best practices; and

''(10) evaluate and disseminate best practices to other institutions of higher education.

''(g) DURATION OF GRANTS.—A grant under this section shall be awarded for a period not to exceed 3 years.

''(h) EVALUATION AND REPORTING.—

''(1) EVALUATION.—Not later than 18 months after the date on which a grant is received under this section, the eligible entity involved shall submit to the Secretary the results of an evaluation to be conducted by the entity (or by another party under contract with the entity) concerning the effectiveness of the activities carried out under the grant and plans for the sustainability of such efforts.

''(2) REPORT.—Not later than 2 years after the date of enactment of the Mental Health on Campus Improvement Act, the Secretary shall submit to the appropriate committees of Congress a report concerning the results of—

''(A) the evaluations conducted under paragraph (1); and

''(B) an evaluation conducted by the Secretary to analyze the effectiveness and efficacy of the activities conducted with grants under this section.

''(i) TECHNICAL ASSISTANCE.—The Secretary may provide technical assistance to grantees in carrying out this section.

''(j) DEFINITION.—In this section, the term 'institution of higher education' has the meaning given such term in 101 of the Higher Education Act of 1965 (20 U.S.C. 1001).

''(k) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated such sums as may be necessary to carry out this section.

''SEC. 520E–4. MENTAL AND BEHAVIORAL HEALTH OUTREACH AND EDUCATION ON COLLEGE CAMPUSES.

''(a) PURPOSE.—It is the purpose of this section to increase access to, and reduce the stigma associated with, mental health services to ensure that students at institutions of higher education have the support necessary to successfully complete their studies.

''(b) NATIONAL PUBLIC EDUCATION CAMPAIGN.—The Secretary, acting through the Administrator and in collaboration with the Director of the Centers for Disease Control and Prevention, shall convene an interagency, public-private sector working group to plan, establish, and begin coordinating and evaluating a targeted public education campaign that is designed to focus on mental and behavioral health on the campuses of institutions of higher education. Such campaign shall be designed to—

''(1) improve the general understanding of mental health and mental health disorders;

''(2) encourage help-seeking behaviors relating to the promotion of mental health, prevention of mental health disorders, and treatment of such disorders;

''(3) make the connection between mental and behavioral health and academic success; and

''(4) assist the general public in identifying the early warning signs and reducing the stigma of mental illness.

''(c) COMPOSITION.—The working group convened under subsection (b) shall include—

''(1) mental health consumers, including students and family members;

''(2) representatives of institutions of higher education;

''(3) representatives of national mental and behavioral health associations and associations of institutions of higher education;

''(4) representatives of health promotion and prevention organizations at institutions of higher education;

''(5) representatives of mental health providers, including community mental health centers; and

''(6) representatives of private- and public-sector groups with experience in the development of effective public health education campaigns.

''(d) PLAN.—The working group under subsection (b) shall develop a plan that—

''(1) targets promotional and educational efforts to the age population of students at institutions of higher education and individuals who are employed in settings of institutions of higher education, including through the use of roundtables;

''(2) develops and proposes the implementation of research-based public health messages and activities;

''(3) provides support for local efforts to reduce stigma by using the National Health Information Center as a primary point of contact for information, publications, and service program referrals; and

''(4) develops and proposes the implementation of a social marketing campaign that is targeted at the population of students attending institutions of higher education and individuals who are employed in settings of institutions of higher education.

''(e) DEFINITION.—In this section, the term 'institution of higher education' has the meaning given such term in 101 of the Higher Education Act of 1965 (20 U.S.C. 1001).

''(f) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated such sums as may be necessary to carry out this section.''.

SEC. 4. INTERAGENCY WORKING GROUP ON COLLEGE MENTAL HEALTH.

(a) PURPOSE.—It is the purpose of this section to provide for the establishment of a College Campus Task Force to discuss mental and behavioral health concerns on campuses of institutions of higher education.

(b) ESTABLISHMENT.—The Secretary of Health and Human Services (referred to in this section as the ''Secretary'') shall establish a College Campus Task Force (referred to in this section as the ''Task Force'') to discuss mental and behavioral health concerns on campuses of institutions of higher education.

(c) MEMBERSHIP.—The Task Force shall be composed of a representative from each Federal agency (as appointed by the head of the agency) that has jurisdiction over, or is affected by, mental health and education policies and projects, including—

(1) the Department of Education;

(2) the Department of Health and Human Services;

(3) the Department of Veterans Affairs; and

(4) such other Federal agencies as the Administrator of the Substance Abuse and Mental Health Services Administration, in consultation with the Secretary, determines to be appropriate.

(d) DUTIES.—The Task Force shall—

(1) serve as a centralized mechanism to coordinate a national effort—

(A) to discuss and evaluate evidence and knowledge on mental and behavioral health services available to, and the prevalence of mental health illness among, the age population of students attending institutions of higher education in the United States;

(B) to determine the range of effective, feasible, and comprehensive actions to improve mental and behavioral health on campuses of institutions of higher education;

(C) to examine and better address the needs of the age population of students attending institutions of higher education dealing with mental illness;

(D) to survey Federal agencies to determine which policies are effective in encouraging, and how best to facilitate outreach without duplicating, efforts relating to mental and behavioral health promotion;

(E) to establish specific goals within and across Federal agencies for mental health promotion, including determinations of accountability for reaching those goals;

(F) to develop a strategy for allocating responsibilities and ensuring participation in mental and behavioral health promotions, particularly in the case of competing agency priorities;

(G) to coordinate plans to communicate research results relating to mental and behavioral health amongst the age population of students attending institutions of higher education to enable reporting and outreach activities to produce more useful and timely information;

(H) to provide a description of evidence-based best practices, model programs, effective guidelines, and other strategies for promoting mental and behavioral health on campuses of institutions of higher education;

(I) to make recommendations to improve Federal efforts relating to mental and behavioral health promotion on campuses of institutions of higher education and to ensure Federal efforts are consistent with available standards and evidence and other programs in existence as of the date of enactment of this Act; and

(J) to monitor Federal progress in meeting specific mental and behavioral health promotion goals as they relate to settings of institutions of higher education;

(2) consult with national organizations with expertise in mental and behavioral health, especially those organizations working with the age population of students attending institutions of higher education; and

(3) consult with and seek input from mental health professionals working on campuses of institutions of higher education as appropriate.

(e) MEETINGS.—

(1) IN GENERAL.—The Task Force shall meet not less than 3 times each year.

(2) ANNUAL CONFERENCE.—The Secretary shall sponsor an annual conference on mental and behavioral health in settings of institutions of higher education to enhance coordination, build partnerships, and share best practices in mental and behavioral health promotion, data collection, analysis, and services.

(f) DEFINITION.—In this section, the term ''institution of higher education'' has the meaning given such term in 101 of the Higher Education Act of 1965 (20 U.S.C. 1001).

(g) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated such sums as may be necessary to carry out this section.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 399—SUPPORTING THE GOALS AND IDEALS OF ''NATIONAL PROFESSIONAL SOCIAL WORK MONTH''

Ms. STABENOW (for herself, Ms. MIKULSKI, and Mr. FRANKEN) submitted the following resolution; which was referred to the Committee on Health, Education, Labor, and Pensions:

S. RES. 399

Whereas the primary mission of the social work profession is to enhance well-being and help meet the basic needs of all people, especially the most vulnerable in society;

Whereas social work is one of the fastest growing careers in the United States with more than 640,000 members of the profession;

Whereas social workers work in all areas of our society to improve happiness, health and prosperity, including in government, schools, universities, social service agencies, communities, the military, and mental health and health care facilities;

Whereas social workers daily embody this year's ''National Professional Social Work Month'' theme, ''Forging Solutions Out of Challenges'', by helping individuals, communities and the larger society tackle and solve issues that confront them;

Whereas social workers have helped the Nation live up to its ideals by successfully pushing for equal rights for all, including women, African Americans, Latinos, people who are LGBTQ, and various ethnic, cultural, and religious groups;

Whereas social workers have helped people in the Nation overcome racial strife and economic and health care uncertainty by successfully advocating for initiatives such as the Medicaid program under title XIX of the Social Security Act, unemployment insurance, workplace safety initiatives, benefits under the Social Security Act, the Civil Rights Act of 1964, the Voting Rights Act of 1965, and the Patient Protection and Affordable Care Act;

Whereas social workers are the largest group of mental health care providers in the United States and work daily to help people overcome depression, anxiety, substance abuse, and other disorders so they can lead more fulfilling lives;

Whereas the U.S. Department of Veterans Affairs employs more than 12,000 professional social workers and social workers help bolster the Nation's security by providing support to active duty military personnel, veterans and their families;

Whereas thousands of child, family, and school social workers across the country provide assistance to protect children and improve the social and psychological functioning of children and their families;

Whereas social workers help children find loving homes and create new families through adoption;

Whereas social workers in schools work with families and schools to foster future generations by ensuring students reach their full academic and personal potential;

Whereas social workers work with older adults and their families to improve their quality of life and ability to live independently as long as possible and get access to high-quality mental health and health care; and

Whereas social workers have helped the United States and other nations overcome earthquakes, floods, wars, and other disasters by helping survivors get services such as food, shelter, and health care, and mental health care to address stress and anxiety: Now, therefore, be it

Resolved, That the Senate—

(1) supports the goals and ideals of ''National Professional Social Work Month'';

(2) acknowledges the diligent efforts of individuals and groups who promote the importance of social work and observe ''National Professional Social Work Month'';

(3) encourages the people of the United States to engage in appropriate ceremonies and activities to promote further awareness of the life-changing role that social workers play; and

(4) recognizes with gratitude the contributions of the hundreds of thousands of caring individuals who have chosen to serve their communities through social work.

SENATE RESOLUTION 400—DESIGNATING MARCH 25, 2016, AS ''NATIONAL CEREBRAL PALSY AWARENESS DAY''

Mr. ISAKSON (for himself and Mr. CASEY) submitted the following resolution; which was considered and agreed to:

S. RES. 400

Whereas a group of permanent disorders of the development of movement and posture that are attributed to nonprogressive disturbances that occur in the developing brain is referred to as ''cerebral palsy'';

Whereas cerebral palsy, the most common motor disability in children, is caused by damage to 1 or more specific areas of the developing brain, which usually occurs during fetal development before, during, or after birth;

Whereas the majority of children who have cerebral palsy are born with cerebral palsy, but cerebral palsy may be undetected for months or years;

Whereas 75 percent of individuals with cerebral palsy also have 1 or more developmental disabilities, including epilepsy, intellectual disability, autism, visual impairment, or blindness;

Whereas according to information released by the Centers for Disease Control and Prevention—

(1) the prevalence of cerebral palsy is not decreasing; and

(2) an estimated 1 in 323 children has cerebral palsy;

Whereas approximately 800,000 individuals in the United States are affected by cerebral palsy;

Whereas although there is no cure for cerebral palsy, treatment often improves the capabilities of a child with cerebral palsy;

Whereas scientists and researchers are hopeful for breakthroughs in cerebral palsy research;

Whereas researchers across the United States conduct important research projects involving cerebral palsy; and

Whereas the Senate can raise awareness of cerebral palsy in the public and the medical community: Now, therefore, be it

Resolved, That the Senate—

(1) designates March 25, 2016, as ''National Cerebral Palsy Awareness Day'';

(2) encourages each individual in the United States to become better informed about and aware of cerebral palsy; and

(3) respectfully requests that the Secretary of the Senate transmit a copy of this resolution to the Executive Director of Reaching for the Stars: A Foundation of Hope for Children with Cerebral Palsy.

AMENDMENTS SUBMITTED AND PROPOSED

SA 3451. Mr. MCCONNELL submitted an amendment intended to be proposed to amendment SA 3450 proposed by Mr. MCCONNELL (for Mr. ROBERTS) to the bill S. 764, to reauthorize and amend the National Sea Grant College Program Act, and for other purposes; which was ordered to lie on the table.

SA 3452. Mr. CORNYN (for himself and Mr. LEAHY) proposed an amendment to the bill S. 337, to improve the Freedom of Information Act.

SA 3453. Mrs. SHAHEEN submitted an amendment intended to be proposed to amendment SA 3450 proposed by Mr. MCCONNELL (for Mr. ROBERTS) to the bill S. 764, to reauthorize and amend the National Sea Grant College Program Act, and for other purposes; which was ordered to lie on the table.

SA 3454. Mrs. SHAHEEN submitted an amendment intended to be proposed to amendment SA 3450 proposed by Mr. MCCONNELL (for Mr. ROBERTS) to the bill S. 764, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 3451. Mr. MCCONNELL submitted an amendment intended to be proposed to amendment SA 3450 proposed by Mr. MCCONNELL (for Mr. ROBERTS) to the bill S. 764, to reauthorize and amend the National Sea Grant College Program Act, and for other purposes; which was ordered to lie on the table; as follows:

At the end add the following.

''This Act shall take effect 1 day after the date of enactment.''

SA 3452. Mr. CORNYN (for himself and Mr. LEAHY) proposed an amendment to the bill S. 337, to improve the Freedom of Information Act; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''FOIA Improvement Act of 2016''.

SEC. 2. AMENDMENTS TO FOIA.

Section 552 of title 5, United States Code, is amended—

(1) in subsection (a)—

(A) in paragraph (2)—

(i) in the matter preceding subparagraph (A), by striking ''for public inspection and copying'' and inserting ''for public inspection in an electronic format'';

(ii) by striking subparagraph (D) and inserting the following:

''(D) copies of all records, regardless of form or format—

''(i) that have been released to any person under paragraph (3); and

''(ii)(I) that because of the nature of their subject matter, the agency determines have become or are likely to become the subject of subsequent requests for substantially the same records; or

''(II) that have been requested 3 or more times; and''; and

(iii) in the undesignated matter following subparagraph (E), by striking ''public inspection and copying current'' and inserting

''public inspection in an electronic format current'';

(B) in paragraph (4)(A), by striking clause (viii) and inserting the following:

''(viii)(I) Except as provided in subclause (II), an agency shall not assess any search fees (or in the case of a requester described under clause (ii)(II) of this subparagraph, duplication fees) under this subparagraph if the agency has failed to comply with any time limit under paragraph (6).

''(II)(aa) If an agency has determined that unusual circumstances apply (as the term is defined in paragraph (6)(B)) and the agency provided a timely written notice to the requester in accordance with paragraph (6)(B), a failure described in subclause (I) is excused for an additional 10 days. If the agency fails to comply with the extended time limit, the agency may not assess any search fees (or in the case of a requester described under clause (ii)(II) of this subparagraph, duplication fees).

''(bb) If an agency has determined that unusual circumstances apply and more than 5,000 pages are necessary to respond to the request, an agency may charge search fees (or in the case of a requester described under clause (ii)(II) of this subparagraph, duplication fees) if the agency has provided a timely written notice to the requester in accordance with paragraph (6)(B) and the agency has discussed with the requester via written mail, electronic mail, or telephone (or made not less than 3 good-faith attempts to do so) how the requester could effectively limit the scope of the request in accordance with paragraph (6)(B)(ii).

''(cc) If a court has determined that exceptional circumstances exist (as that term is defined in paragraph (6)(C)), a failure described in subclause (I) shall be excused for the length of time provided by the court order.'';

(C) in paragraph (6)—

(i) in subparagraph (A)(i), by striking ''making such request'' and all that follows through ''determination; and'' and inserting the following: ''making such request of—

''(I) such determination and the reasons therefor;

''(II) the right of such person to seek assistance from the FOIA Public Liaison of the agency; and

''(III) in the case of an adverse determination—

''(aa) the right of such person to appeal to the head of the agency, within a period determined by the head of the agency that is not less than 90 days after the date of such adverse determination; and

''(bb) the right of such person to seek dispute resolution services from the FOIA Public Liaison of the agency or the Office of Government Information Services; and''; and

(ii) in subparagraph (B)(ii), by striking ''the agency.'' and inserting ''the agency, and notify the requester of the right of the requester to seek dispute resolution services from the Office of Government Information Services.''; and

(D) by adding at the end the following:

''(8)(A) An agency shall—

''(i) withhold information under this section only if—

''(I) the agency reasonably foresees that disclosure would harm an interest protected by an exemption described in subsection (b); or

''(II) disclosure is prohibited by law; and

''(ii)(I) consider whether partial disclosure of information is possible whenever the agency determines that a full disclosure of a requested record is not possible; and

''(II) take reasonable steps necessary to segregate and release nonexempt information; and

''(B) Nothing in this paragraph requires disclosure of information that is otherwise prohibited from disclosure by law, or otherwise exempted from disclosure under subsection (b)(3).'';

(2) in subsection (b), by amending paragraph (5) to read as follows:

''(5) inter-agency or intra-agency memorandums or letters that would not be available by law to a party other than an agency in litigation with the agency, provided that the deliberative process privilege shall not apply to records created 25 years or more before the date on which the records were requested;''; and

(3) in subsection (e)—

(A) in paragraph (1)—

(i) in the matter preceding subparagraph (A), by inserting ''and to the Director of the Office of Government Information Services'' after ''United States'';

(ii) in subparagraph (N), by striking ''and'' at the end;

(iii) in subparagraph (O), by striking the period at the end and inserting a semicolon; and

(iv) by adding at the end the following:

''(P) the number of times the agency denied a request for records under subsection (c); and

''(Q) the number of records that were made available for public inspection in an electronic format under subsection (a)(2).'';

(B) by striking paragraph (3) and inserting the following:

''(3) Each agency shall make each such report available for public inspection in an electronic format. In addition, each agency shall make the raw statistical data used in each report available in a timely manner for public inspection in an electronic format, which shall be made available—

''(A) without charge, license, or registration requirement;

''(B) in an aggregated, searchable format; and

''(C) in a format that may be downloaded in bulk.'';

(C) in paragraph (4)—

(i) by striking ''Government Reform and Oversight'' and inserting ''Oversight and Government Reform'';

(ii) by inserting ''Homeland Security and'' before ''Governmental Affairs''; and

(iii) by striking ''April'' and inserting ''March''; and

(D) by striking paragraph (6) and inserting the following:

''(6)(A) The Attorney General of the United States shall submit to the Committee on Oversight and Government Reform of the House of Representatives, the Committee on the Judiciary of the Senate, and the President a report on or before March 1 of each calendar year, which shall include for the prior calendar year—

''(i) a listing of the number of cases arising under this section;

''(ii) a listing of—

''(I) each subsection, and any exemption, if applicable, involved in each case arising under this section;

''(II) the disposition of each case arising under this section; and

''(III) the cost, fees, and penalties assessed under subparagraphs (E), (F), and (G) of subsection (a)(4); and

''(iii) a description of the efforts undertaken by the Department of Justice to encourage agency compliance with this section.

''(B) The Attorney General of the United States shall make—

''(i) each report submitted under subparagraph (A) available for public inspection in an electronic format; and

''(ii) the raw statistical data used in each report submitted under subparagraph (A) available for public inspection in an electronic format, which shall be made available—

''(I) without charge, license, or registration requirement;

''(II) in an aggregated, searchable format; and

''(III) in a format that may be downloaded in bulk.'';

(4) in subsection (g), in the matter preceding paragraph (1), by striking ''publicly available upon request'' and inserting ''available for public inspection in an electronic format'';

(5) in subsection (h)—

(A) in paragraph (1), by adding at the end the following: ''The head of the Office shall be the Director of the Office of Government Information Services.'';

(B) in paragraph (2), by striking subparagraph (C) and inserting the following:

''(C) identify procedures and methods for improving compliance under this section.'';

(C) by striking paragraph (3) and inserting the following:

''(3) The Office of Government Information Services shall offer mediation services to resolve disputes between persons making requests under this section and administrative agencies as a nonexclusive alternative to litigation and may issue advisory opinions at the discretion of the Office or upon request of any party to a dispute.''; and

(D) by adding at the end the following:

''(4)(A) Not less frequently than annually, the Director of the Office of Government Information Services shall submit to the Committee on Oversight and Government Reform of the House of Representatives, the Committee on the Judiciary of the Senate, and the President—

''(i) a report on the findings of the information reviewed and identified under paragraph (2);

''(ii) a summary of the activities of the Office of Government Information Services under paragraph (3), including—

''(I) any advisory opinions issued; and

''(II) the number of times each agency engaged in dispute resolution with the assistance of the Office of Government Information Services or the FOIA Public Liaison; and

''(iii) legislative and regulatory recommendations, if any, to improve the administration of this section.

''(B) The Director of the Office of Government Information Services shall make each report submitted under subparagraph (A) available for public inspection in an electronic format.

''(C) The Director of the Office of Government Information Services shall not be required to obtain the prior approval, comment, or review of any officer or agency of the United States, including the Department of Justice, the Archivist of the United States, or the Office of Management and Budget before submitting to Congress, or any committee or subcommittee thereof, any reports, recommendations, testimony, or comments, if such submissions include a statement indicating that the views expressed therein are those of the Director and do not necessarily represent the views of the President.

''(5) The Director of the Office of Government Information Services may directly submit additional information to Congress and the President as the Director determines to be appropriate.

''(6) Not less frequently than annually, the Office of Government Information Services shall conduct a meeting that is open to the public on the review and reports by the Office and shall allow interested persons to appear and present oral or written statements at the meeting.'';

(6) by striking subsections (j) and (k), and inserting the following:

''(j)(1) Each agency shall designate a Chief FOIA Officer who shall be a senior official of such agency (at the Assistant Secretary or equivalent level).

''(2) The Chief FOIA Officer of each agency shall, subject to the authority of the head of the agency—

''(A) have agency-wide responsibility for efficient and appropriate compliance with this section;

''(B) monitor implementation of this section throughout the agency and keep the head of the agency, the chief legal officer of the agency, and the Attorney General appropriately informed of the agency's performance in implementing this section;

''(C) recommend to the head of the agency such adjustments to agency practices, policies, personnel, and funding as may be necessary to improve its implementation of this section;

''(D) review and report to the Attorney General, through the head of the agency, at such times and in such formats as the Attorney General may direct, on the agency's performance in implementing this section;

''(E) facilitate public understanding of the purposes of the statutory exemptions of this section by including concise descriptions of the exemptions in both the agency's handbook issued under subsection (g), and the agency's annual report on this section, and by providing an overview, where appropriate, of certain general categories of agency records to which those exemptions apply;

''(F) offer training to agency staff regarding their responsibilities under this section;

''(G) serve as the primary agency liaison with the Office of Government Information Services and the Office of Information Policy; and

''(H) designate 1 or more FOIA Public Liaisons.

''(3) The Chief FOIA Officer of each agency shall review, not less frequently than annually, all aspects of the administration of this section by the agency to ensure compliance with the requirements of this section, including—

''(A) agency regulations;

''(B) disclosure of records required under paragraphs (2) and (8) of subsection (a);

''(C) assessment of fees and determination of eligibility for fee waivers;

''(D) the timely processing of requests for information under this section;

''(E) the use of exemptions under subsection (b); and

''(F) dispute resolution services with the assistance of the Office of Government Information Services or the FOIA Public Liaison.

''(k)(1) There is established in the executive branch the Chief FOIA Officers Council (referred to in this subsection as the 'Council').

''(2) The Council shall be comprised of the following members:

''(A) The Deputy Director for Management of the Office of Management and Budget.

''(B) The Director of the Office of Information Policy at the Department of Justice.

''(C) The Director of the Office of Government Information Services.

''(D) The Chief FOIA Officer of each agency.

''(E) Any other officer or employee of the United States as designated by the Co-Chairs.

''(3) The Director of the Office of Information Policy at the Department of Justice and the Director of the Office of Government Information Services shall be the Co-Chairs of the Council.

''(4) The Administrator of General Services shall provide administrative and other support for the Council.

''(5)(A) The duties of the Council shall include the following:

''(i) Develop recommendations for increasing compliance and efficiency under this section.

''(ii) Disseminate information about agency experiences, ideas, best practices, and innovative approaches related to this section.

''(iii) Identify, develop, and coordinate initiatives to increase transparency and compliance with this section.

''(iv) Promote the development and use of common performance measures for agency compliance with this section.

''(B) In performing the duties described in subparagraph (A), the Council shall consult on a regular basis with members of the public who make requests under this section.

''(6)(A) The Council shall meet regularly and such meetings shall be open to the public unless the Council determines to close the meeting for reasons of national security or to discuss information exempt under subsection (b).

''(B) Not less frequently than annually, the Council shall hold a meeting that shall be open to the public and permit interested persons to appear and present oral and written statements to the Council.

''(C) Not later than 10 business days before a meeting of the Council, notice of such meeting shall be published in the Federal Register.

''(D) Except as provided in subsection (b), the records, reports, transcripts, minutes, appendices, working papers, drafts, studies, agenda, or other documents that were made available to or prepared for or by the Council shall be made publicly available.

''(E) Detailed minutes of each meeting of the Council shall be kept and shall contain a record of the persons present, a complete and accurate description of matters discussed and conclusions reached, and copies of all reports received, issued, or approved by the Council. The minutes shall be redacted as necessary and made publicly available.''; and

(7) by adding at the end the following:

''(m)(1) The Director of the Office of Management and Budget, in consultation with the Attorney General, shall ensure the operation of a consolidated online request portal that allows a member of the public to submit a request for records under subsection (a) to any agency from a single website. The portal may include any additional tools the Director of the Office of Management and Budget finds will improve the implementation of this section.

''(2) This subsection shall not be construed to alter the power of any other agency to create or maintain an independent online portal for the submission of a request for records under this section. The Director of the Office of Management and Budget shall establish standards for interoperability between the portal required under paragraph (1) and other request processing software used by agencies subject to this section.''.

SEC. 3. REVIEW AND ISSUANCE OF REGULATIONS.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the head of each agency (as defined in section 551 of title 5, United States Code) shall review the regulations of such agency and shall issue regulations on procedures for the disclosure of records under section 552 of title 5, United States Code, in accordance with the amendments made by section 2.

(b) REQUIREMENTS.—The regulations of each agency shall include procedures for engaging in dispute resolution through the FOIA Public Liaison and the Office of Government Information Services.

SEC. 4. PROACTIVE DISCLOSURE THROUGH RECORDS MANAGEMENT.

Section 3102 of title 44, United States Code, is amended—

(1) by redesignating paragraphs (2) and (3) as paragraphs (3) and (4); and

(2) by inserting after paragraph (1) the following:

''(2) procedures for identifying records of general interest or use to the public that are appropriate for public disclosure, and for posting such records in a publicly accessible electronic format;''.

SEC. 5. NO ADDITIONAL FUNDS AUTHORIZED.

No additional funds are authorized to carry out the requirements of this Act or the amendments made by this Act. The requirements of this Act and the amendments made by this Act shall be carried out using amounts otherwise authorized or appropriated.

SEC. 6. APPLICABILITY.

This Act, and the amendments made by this Act, shall take effect on the date of enactment of this Act and shall apply to any request for records under section 552 of title 5, United States Code, made after the date of enactment of this Act.

SA 3453. Mrs. SHAHEEN submitted an amendment intended to be proposed to amendment SA 3450 proposed by Mr. MCCONNELL (for Mr. ROBERTS) to the bill S. 764, to reauthorize and amend the National Sea Grant College Program Act, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. _____. REPEAL OF DUPLICATIVE MANDATORY INSPECTION PROGRAM.

(a) FOOD, CONSERVATION, AND ENERGY ACT OF 2008.—Effective June 18, 2008, section 11016 of the Food, Conservation, and Energy Act of 2008 (Public Law 110–246; 122 Stat. 2130) is repealed.

(b) AGRICULTURAL ACT OF 2014.—Effective February 7, 2014, section 12106 of the Agricultural Act of 2014 (Public Law 113–79; 128 Stat. 981) is repealed.

(c) APPLICATION.—The Federal Meat Inspection Act (21 U.S.C. 601 et seq.) and the Agricultural Marketing Act of 1946 (7 U.S.C. 1621 et seq.) shall be applied and administered as if the provisions of law struck by this section had not been enacted.

SA 3454. Mrs. SHAHEEN submitted an amendment intended to be proposed to amendment SA 3450 proposed by Mr. MCCONNELL (for Mr. ROBERTS) to the bill S. 764, to reauthorize and amend the National Sea Grant College Program Act, and for other purposes; which was ordered to lie on the table; as follows:

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(c) APPLICATION.—The Federal Meat Inspection Act (21 U.S.C. 601 et seq.) and the Agricultural Marketing Act of 1946 (7 U.S.C. 1621 et seq.) shall be applied and administered as if the provisions of law struck by this section had not been enacted.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on March 15, 2016, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Banking, Housing, and Urban Affairs be authorized to meet during the session of the Senate on March 15, 2016, at 10 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on March 15, 2016, at 2:30 p.m., in room SR–253 of the Russell Senate Office Building to conduct a hearing entitled ''Hands Off: The Future of Self-Driving Cars.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on March 15, 2016, at 10 a.m., in room SD–366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on March 15, 2016, at 10 a.m., to conduct a hearing entitled ''Ukrainian Reforms Two Years after the Maidan Revolution and the Russian Invasion.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on March 15, 2016, at 10 a.m., to conduct a hearing entitled ''The Security of U.S. Visa Programs.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate on March 15, 2016, at 10 a.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Late-Term Abortion: Protecting Babies Born Alive and Capable of Feeling Pain.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON VETERANS' AFFAIRS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Veterans' Affairs be authorized to meet during the session of the Senate on March 15, 2016, at 2:15 p.m., in room SR–418 of the Russell Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. CORNYN. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on March 15, 2016, at 2:30 p.m., in room SH–219 of the Hart Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON READINESS AND MANAGEMENT SUPPORT

Mr. CORNYN. Mr. President, I ask unanimous consent that the Subcommittee on Readiness and Management Support of the Committee on Armed Services be authorized to meet during the session of the Senate on March 15, 2016, at 10 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

NATIONAL CEREBRAL PALSY AWARENESS DAY

Mr. DAINES. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 400, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 400) designating March 25, 2016, as ''National Cerebral Palsy Awareness Day.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. DAINES. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 400) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

MEASURE READ THE FIRST TIME—S. 2686

Mr. DAINES. Mr. President, I understand that there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The legislative clerk read as follows:

A bill (S. 2686) to clarify the treatment of two or more employers as joint employers under the National Labor Relations Act.

Mr. DAINES. Mr. President, I now ask for a second reading and, in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection is heard.

The bill will be read for the second time on the next legislative day.

ORDERS FOR WEDNESDAY, MARCH 16, 2016

Mr. DAINES. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 10:15 a.m., Wednesday, March 16; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; further, that following leader remarks, the Senate then resume consideration of the message to accompany S. 764; further, that notwithstanding the provisions of rule XXII, the cloture vote on the motion to concur with further amendment occur at 11:45 a.m.; finally, that the time following leader remarks until 11:45 a.m. be equally divided between the two leaders or their designees.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDER FOR ADJOURNMENT

Mr. DAINES. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order, following the remarks of Senator BLUMENTHAL.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. DAINES. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. BLUMENTHAL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. DAINES). Without objection, it is so ordered.

GENETICALLY MODIFIED FOOD LABELING BILL

Mr. BLUMENTHAL. Mr. President, an important consumer right is under attack, under siege today in the United States Senate. It is the right to know what is in your food. A lot of consumers take for granted that they will read the ingredients on a package and they will know what is in their food. The right to know what you are putting in your body is a basic right, especially what your children are putting in their bodies.

I understand that the Agriculture Committee has reported—and the majority leader has indicated that he will bring to the floor—a misguided anti-consumer measure that will not only dilute but decimate an essential aspect of that right to know. It is not the name of the bill its proponents are using, but I agree with Members of the House and this body who have called this bill the DARK Act. Why? Because it denies Americans the right to know. Unfortunately, that is essentially what the bill does. It denies Americans the right to know.

I hold a pretty simple belief that labels on the food we buy should accurately reflect what is in the food. Whether it is the nutritional content, the ingredients—whether something is organic or not—consumers should know what they are paying for and what they are putting in their bodies. That is how we keep the large corporations that make most of our food from using ingredients that are unhealthful—unhealthful and, essentially, potentially deceptive.

Like the overwhelming majority of people in this country—and by the way, a poll released in December said it was about 90 percent—I support mandatory on-package labeling of food containing genetically modified organisms, GMOs. This support cuts across geographic lines and party lines because it is such a commonsense position. Leave it up to consumers—you and me—to decide when we buy food products and when we consume them. If they want to buy a particular product, let them do so, but make sure they know what they are getting. This issue is of particular importance to my constituents.

I am proud that Connecticut was the first State to enact legislation that would require mandatory labeling of genetically engineered foods. And as attorney general of Connecticut, I championed this measure, and it is a consummate example of consumer protection and consumer education.

The DARK Act, by contrast, would strip my State of its ability to protect our own people. It would prevent States, including Connecticut, Maine, and Vermont, which have already done so, from enacting laws requiring the labeling of GMO foods. It would take away from States their right to pass laws to ensure their citizens have access to basic information about their food, and it would preempt long-standing State consumer protection laws in all 50 States. These laws pertain to false advertising, consumer protection, fraud, breach of warranty, or unfair trade practices.

This measure is a sweeping and draconian proposal, and that would be bad enough, but the DARK Act actually goes further. It would also bar States and local communities from enacting any kind of law overseeing genetically modified crops. Several counties in California and Oregon, as well as the States of Washington and Hawaii, have restricted planting of GMO crops, citing the health effects of the seeds and economic effects of megacompanies that produce these seeds on local farmers and the unknown long-term environmental consequences. But this bill would stop all of those efforts, State and local efforts. It would stop them dead in their tracks.

In addition to keeping information from consumers, the DARK Act would affect hard-working farmers who will have no way of knowing if the seed they purchased is genetically engineered, and that is true even if the seeds are altered in any way that prevents crops from reproducing, forcing farmers to buy new seeds every season from the GMO company.

I don't mean to cast aspersions on the biotechnology industry. There is enormous potential in research on this front, and scientists have made many, many contributions to our food supply. There may be scientific efforts under way in this area that have healthful and economically beneficial results, but keeping consumers in the dark is harmful, and the rule ought to be first do no harm.

If there is scientific support for the health or environmental benefits, why not let consumers know? Let consumers make knowledgeable and informed choices. Consumers are capable of those kinds of choices, and I am shocked that this deliberative body is considering a measure that is crafted so purposefully and intentionally to, in effect, deceive the American public and actively deny them the accurate information they deserve.

There is no question that this bill is nothing more than a carve-out for big businesses and mega-GMO seed corporations. My view is that this body ought to facilitate transparency. The Federal legislation should promote information and education, not inhibit or prevent it. That is why I have endorsed a bill that Senator MERKLEY and others of us are proposing and advocating that in a very commonsense way allows manufacturers to choose from a menu of options to indicate to consumers whether a product includes genetically engineered ingredients.

I want to make clear and emphasize we are not calling for some kind of skull and crossbones logo or black box warning label. In fact, we are not talking about a warning; we are talking about information. The options on the menu that would be offered to food producers are nonjudgmental, clear, concise, and accurate. This information is impartial and objective, allowing consumers to make informed decisions.

Last month, the Secretary of Agriculture convened a series of meetings in an attempt to broker a compromise between industry and labeling advocates, and I want to take a moment to commend the unflagging leadership of a number of groups in my State and one of my constituents, Tara Cook-Littman, who by coincidence was the only woman at these meetings. She is the cofounder of Citizens for GMO Labeling. She led the grassroots effort in Connecticut to pass the first-in-the-Nation GMO labeling law. She is also the mother of three children whom I have met. Like most Americans, she cares deeply about what she and her family are eating.

As part of their innovation cycle, food companies often redesign and relaunch products, adding new attributes to existing products, such as flavors and new ingredients, so they can handle the normal course of relabeling and repackaging.

One of the most important points Tara has raised is that the industry's proposed solution to include QR codes on GMO products is really no solution at all. QR codes, which let customers use a smartphone to scan a product to be linked to a Web page with information, are no substitute for clear, explicit labels that all consumers can see with the transparency and objectivity they deserve and need. Relying on QR codes discriminates against people who are unable to afford a smartphone or a data plan. It threatens privacy by allowing industry to keep track of who is scanning what product—information that many of us might not want to be in the hands of companies and used to market to us—and, from a very practical standpoint, may not be usable where reception is weak or nonexistent.

As anyone who has ever shopped with a baby or a child knows, shopping is hard enough under some circumstances, and forcing consumers to try to get the right scan of a product when information could simply appear on the label is absurd. What is the reason for the QR code other than to make it more difficult for a consumer to know? What rationale could there be other than creating a hurdle for that consumer to learn that information?

So I urge my colleagues, do not be fooled or tricked by the DARK Act claims that food prices will rise with GMO labeling—not so. Food processors regularly make changes to these labels to meet changing consumer demands or for other marketing or regulatory reasons. In fact, Ben & Jerry's cofounder, Jerry Greenfield, confirmed: ''It's a normal course of business to be going through changes on your labels.'' And other responsible food companies have joined Ben & Jerry's, most prominently Campbell's Soup. I commend their leadership. My constituents and all consumers should be aware that there are companies like Campbell's that have stepped forward and want consumers to be more informed, not less.

We are on the brink of potentially passing legislation as early as tomorrow morning that would ban States such as Connecticut from requiring GMO labeling. That is a violation of the very essence of States' rights to protect their citizens. It may well be that some States would want to be stronger in protecting their citizens than others, and they should have the

right to do so. Preempting all State legislation in this area infringes on that fundamental sovereignty and right of States to protect their citizens.

As the American Association for Justice has stated, this legislation will unjustly preempt State consumer protection laws. I know the importance of that preemption doctrine as a former attorney general who has fought consistently to allow States to set standards for consumer protection and enforce those standards, both Federal and State.

I commend those manufacturers that have realized that now is the time to embrace GMO labeling, including Campbell's, Ben & Jerry's, Amy's Kitchen, and Nature's Path. I hope we can work together with food manufacturers to give American consumers, like consumers in 63 countries around the world—63 countries around the world—a more transparent food system by approving a mandatory on-packaging GMO labeling system and rejecting this anti-consumer effort.

Thank you, Mr. President.

I yield the floor.

ADJOURNMENT UNTIL 10:15 A.M. TOMORROW

The PRESIDING OFFICER. Under the previous order, the Senate stands adjourned until 10:15 a.m. tomorrow.

Thereupon, the Senate, at 6:44 p.m., adjourned until Wednesday, March 16, 2016, at 10:15 a.m.

NOMINATIONS

Executive nominations received by the Senate:

THE JUDICIARY

WALTER DAVID COUNTS, III, OF TEXAS, TO BE UNITED STATES DISTRICT JUDGE FOR THE WESTERN DISTRICT OF TEXAS, VICE ROBERT A. JUNELL, RETIRED .

E. SCOTT FROST, OF TEXAS, TO BE UNITED STATES DISTRICT JUDGE FOR THE NORTHERN DISTRICT OF TEXAS, VICE SAM R. CUMMINGS, RETIRED.

REBECCA ROSS HAYWOOD, OF PENNSYLVANIA, TO BE UNITED STATES CIRCUIT JUDGE FOR THE THIRD CIRCUIT, VICE MARJORIE O. RENDELL, RETIRED.

JAMES WESLEY HENDRIX, OF TEXAS, TO BE UNITED STATES DISTRICT JUDGE FOR THE NORTHERN DISTRICT OF TEXAS, VICE JORGE A. SOLIS, RETIRING.

IRMA CARRILLO RAMIREZ, OF TEXAS, TO BE UNITED STATES DISTRICT JUDGE FOR THE NORTHERN DISTRICT OF TEXAS, VICE TERRY R. MEANS, RETIRED.

UNITED STATES SENTENCING COMMISSION

DANNY C. REEVES, OF KENTUCKY, TO BE A MEMBER OF THE UNITED STATES SENTENCING COMMISSION FOR A TERM EXPIRING OCTOBER 31, 2019, VICE RICARDO H. HINOJOSA, TERM EXPIRED.

THE JUDICIARY

KAREN GREN SCHOLER, OF TEXAS, TO BE UNITED STATES DISTRICT JUDGE FOR THE EASTERN DISTRICT OF TEXAS, VICE RICHARD A. SCHELL, RETIRED.

KATHLEEN MARIE SWEET, OF NEW YORK, TO BE UNITED STATES DISTRICT JUDGE FOR THE WESTERN DISTRICT OF NEW YORK, VICE WILLIAM M. SKRETNY, RETIRED.

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) PAUL J. VERRASTRO

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) WILLIAM J. GALINIS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) CHRISTIAN D. BECKER

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) TIMOTHY J. WHITE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) BRUCE L. GILLINGHAM

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) KYLE J. COZAD
REAR ADM. (LH) LISA M. FRANCHETTI
REAR ADM. (LH) ROY J. KELLEY
REAR ADM. (LH) DAVID M. KRIETE
REAR ADM. (LH) BRUCE H. LINDSEY
REAR ADM. (LH) JAMES T. LOEBLEIN
REAR ADM. (LH) WILLIAM R. MERZ
REAR ADM. (LH) DEE L. MEWBOURNE
REAR ADM. (LH) MICHAEL T. MORAN
REAR ADM. (LH) STUART B. MUNSCH
REAR ADM. (LH) JOHN B. NOWELL, JR.
REAR ADM. (LH) TIMOTHY G. SZYMANSKI

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. TROY M. MCCLELLAND

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. PHILLIP E. LEE, JR.

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. ALAN J. REYES

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. MARY C. RIGGS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. CAROL M. LYNCH

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. MARK E. BIPES

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. BRIAN R. GULDBEK

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. LOUIS C. TRIPOLI

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. ROBERT T. DURAND

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. JON C. KREITZ

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. SHAWN E. DUANE
CAPT. SCOTT D. JONES
CAPT. WILLIAM G. MAGER
CAPT. JOHN B. MUSTIN
CAPT. MATTHEW P. O'KEEFE
CAPT. JOHN A. SCHOMMER

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral

REAR ADM. (LH) THOMAS W. LUSCHER

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral

REAR ADM. (LH) BRIAN S. PECHA

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral

REAR ADM. (LH) DEBORAH P. HAVEN

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral

REAR ADM. (LH) MARK J. FUNG

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral

REAR ADM. (LH) RUSSELL E. ALLEN
REAR ADM. (LH) WILLIAM M. CRANE
REAR ADM. (LH) MICHAEL J. DUMONT

FOREIGN SERVICE

THE FOLLOWING–NAMED CAREER MEMBERS OF THE FOREIGN SERVICE OF THE DEPARTMENT OF STATE FOR PROMOTION INTO THE SENIOR FOREIGN SERVICE, AS A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE OF THE UNITED STATES OF AMERICA, CLASS OF COUNSELOR:

RIAN HARKER HARRIS, OF VIRGINIA
TIMOTHY MEADE RICHARDSON, OF MARYLAND

THE FOLLOWING–NAMED CAREER MEMBER OF THE FOREIGN SERVICE FOR PROMOTION INTO THE SENIOR FOREIGN SERVICE, AS A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE OF THE UNITED STATES OF AMERICA, CLASS OF COUNSELOR, EFFECTIVE FEBRUARY 18, 2016:

HUGO YUE YON, OF CALIFORNIA

THE FOLLOWING–NAMED CAREER MEMBER OF THE FOREIGN SERVICE FOR PROMOTION INTO THE SENIOR FOREIGN SERVICE, AS A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF COUNSELOR, AND CONSULAR OFFICER AND SECRETARY IN THE DIPLOMATIC SERVICE OF THE UNITED STATES OF AMERICA:

GREG A. SHERMAN, OF VIRGINIA

THE FOLLOWING–NAMED PERSONS FOR APPOINTMENT AS A FOREIGN SERVICE OFFICER OF CLASS FOUR, CONSULAR OFFICER AND SECRETARY IN THE DIPLOMATIC SERVICE OF THE UNITED STATES OF AMERICA:

SUEMAYAH M. ABU–DOULEH, OF ILLINOIS
KATIE M. ADAMSON, OF COLORADO
ANI A. AKINBIYI, OF FLORIDA
HANNAH M. E. AKINBIYI, OF FLORIDA
KHARMIKA T. ALSTON, OF NORTH CAROLINA
JONATHAN R. ANDERSON, OF VIRGINIA
PAULINE W. ANDERSON, OF NEVADA
BENJAMIN D. ARTERBURN, OF TENNESSEE
JASON P. AZEVEDO, OF MASSACHUSETTS
OSCAR A. BAEZ, OF MASSACHUSETTS
DREW D. BAZIL, OF COLORADO
JAMES J. BOYDEN, OF WASHINGTON
COURTNEY J. BRASIER, OF FLORIDA
DIANA F. E. BRAUNSCHWEIG, OF CALIFORNIA
HECTOR RODRIGUEZ BROWN, OF TEXAS
KETURA D. BROWN, OF THE DISTRICT OF COLUMBIA
SHANNON S. BROWN, OF FLORIDA
ELISE B. BRUMBACH, OF PENNSYLVANIA
SEAN T. BUCKLEY, OF THE DISTRICT OF COLUMBIA
DAVID S. BURNSTEIN, OF THE DISTRICT OF COLUMBIA
PATRICIA A. BURROWS, OF MAINE
CAROLYN KRUMME CALDERON, OF TEXAS
HANNAH CHA, OF OHIO
LAP NGUYEN CHANG, OF WASHINGTON
PETER H. CHRISTIANSEN, OF ALASKA
ERIN E. CONCORS, OF ARIZONA
TAVON H. COOKE, OF NEW JERSEY
JAMES T. CORE, OF WYOMING
MERCEDES L. CROSBY, OF MASSACHUSETTS
THOMAS L. CZERWINSKI, OF TEXAS
RANYA M. DAHER, OF VIRGINIA
EION M. DANDO, OF MINNESOTA
QUAZI RUMMAN DASTGIR, OF THE DISTRICT OF COLUMBIA
JOHN K. DE LANCIE, OF CALIFORNIA
ALEXANDER FAIRBANKS DOUGLAS, OF VIRGINIA
SAMUEL C. DOWNING, OF WASHINGTON
PATRICK R. ELLIOT, OF NEW HAMPSHIRE
LANCE C. ERICKSON, OF OHIO
CHRISTOPHER F. ESTOCH, OF FLORIDA
DOUGLAS SOMERVILLE EVANS, OF VIRGINIA
EVAN M. FRITZ, OF TEXAS
KATHERINE D. GARRY, OF THE DISTRICT OF COLUMBIA
CARRIE A. GIARDINO, OF FLORIDA
SARAH D. GLASSBURNER–MOEN, OF OREGON
GAYSHIEL F. GRANDISON, OF FLORIDA
THOMAS E. GRIFFITH, OF VIRGINIA
JULIA M. GROEBLACHER, OF KANSAS
MATHEW L. HAGENGRUBER, OF MONTANA
KATHERINE E. HALL, OF COLORADO
CHRISTINA E. D. HARDAWAY, OF GEORGIA
CAITLIN B. HARTFORD, OF WASHINGTON
JENNIFER A. HENGSTENBERG, OF GEORGIA
MARK J. HITCHCOCK, OF CALIFORNIA

KATHERINE L. HO, OF TEXAS
GREGORY HOLLIDAY, OF MINNESOTA
NINA E. HOROWITZ, OF VIRGINIA
PHILLIP C. HUGHEY, OF VIRGINIA
LAUREN N. HUOT, OF FLORIDA
IRINA ITKIN, OF INDIANA
ADAM J. JAGELSKI, OF WASHINGTON
SURIYA C. JAYANTI, OF CALIFORNIA
ANTON P. JONGENEEL, OF CALIFORNIA
HELENA U. JOYCE, OF CALIFORNIA
NATHAN D. KATO-WALLACE, OF THE DISTRICT OF COLUMBIA
JEHAN M. KHALEELI, OF NEW YORK
DANIEL E. KIGHT, OF VIRGINIA
ERIN L. KIMSEY, OF NORTH CAROLINA
COURTNEY E. KLINE, OF PENNSYLVANIA
KRISTINE M. KNAPP, OF SOUTH DAKOTA
JOSEPH R. KNUPP, OF PENNSYLVANIA
SHEELA E. KRISHNAN, OF VIRGINIA
JENNIFER LANDAU-CARTER, OF OREGON
ADRIAN J. LANSPEARY, OF NEW YORK
JON R. LARSON, OF FLORIDA
YALE H. LAYTON, OF WYOMING
ANDREW L. LEAHY, OF OREGON
JUDITH K. LEPUSCHITZ, OF CALIFORNIA
KELLI S. LONG, OF SOUTH CAROLINA
MERIDETH S. MANELLA, OF NEW JERSEY
JAMES S. MANLOWE, OF NEW MEXICO
MICHAEL A. MARCOUS, OF FLORIDA
STEPHEN L. MARTELLI, OF DELAWARE
DWAYNE THOMAS MCDAVID, OF NEVADA
SHAUN M. MCGUIRE, OF LOUISIANA
SEAN P. MCKEATING, OF TEXAS
BENJAMIN W. MEDINA, OF TEXAS
LUKE E. MEINZEN, OF MISSOURI
PARINAZ KERMANI MENDEZ, OF FLORIDA
SCOTT E. MILGROOM, OF MASSACHUSETTS
ROLAND P. MINEZ, OF WASHINGTON
ANGELA C. MIZEUR, OF THE DISTRICT OF COLUMBIA
ROBYN B. MOFSOWITZ, OF THE DISTRICT OF COLUMBIA
KEITH W. MURPHY, OF TEXAS
KHANH P. NGUYEN, OF MASSACHUSETTS
ADAM R. OLSZOWKA, OF ILLINOIS
KATIE A. OSTERLOH, OF FLORIDA
BENJAMIN J. PARISI, OF FLORIDA
STRADER PAYTON, OF MISSOURI
KIMBERLY A. PEASE, OF WISCONSIN
HILARY J. PETERS, OF WASHINGTON
DREW N. PETERSON, OF PENNSYLVANIA
ELLIOT M. REPKO, OF FLORIDA
RONALD S. RHINEHART, OF WASHINGTON
DANIEL C. RHODES, OF VIRGINIA
AMANDA S. ROBERSON, OF ARIZONA
GREGORY L. ROBINSON, OF VIRGINIA
JOHN A. ROWOLD, OF MISSOURI
SUJOYA S. ROY, OF THE DISTRICT OF COLUMBIA
CLAIRE E. RUFFING, OF NEW YORK
KATHLEEN M. RYAN, OF MASSACHUSETTS
MEGAN M. SALMON, OF ILLINOIS
STEPHEN V. SASS, OF NEW JERSEY
BRYAN SCOTT SCHILLER, OF FLORIDA
SHILOH A. SCHLUNG, OF ALASKA
LYNN MARIE SEGAS, OF CALIFORNIA
TAU N. SHANKLIN-ROBERTS, OF THE DISTRICT OF COLUMBIA
DIVIYA SHARMA, OF FLORIDA
SHANA Y. SHERRY, OF CALIFORNIA
SHAN SHI, OF WISCONSIN
TAMARA R. SHIE, OF FLORIDA
COLLEEN E. SMITH, OF WASHINGTON
CARLA ELENA SNYDER, OF FLORIDA
JORGE E. SOLARES, OF TEXAS
JOIA A. STARKS, OF VIRGINIA
ADAM J. STECKLER, OF TEXAS
EMILY MARIE STOLL, OF VIRGINIA
ELIZABETH A. STREETT, OF WASHINGTON
BRUCE W. SULLIVAN, OF NEW JERSEY
CHRISTOPHER E. TEJIRIAN, OF NEW YORK
TRACI DENISE THIESSEN, OF THE DISTRICT OF COLUMBIA
BAXTER J. THOMASON, OF TENNESSEE
JERAD S. TIETZ, OF NEW YORK
VICKI S. TING, OF CALIFORNIA
THAO ANH N. TRAN, OF THE DISTRICT OF COLUMBIA
DANIEL R. TRIPP, OF FLORIDA
DAVID L. WAGNER, OF MASSACHUSETTS
LISA M. WILKINSON, OF VIRGINIA
BRIAN P. WILLIAMS, OF FLORIDA
JAMES S. WILSON, OF VIRGINIA
DUDEN YEGENOGLU, OF GEORGIA
SYLVIE YOUNG, OF CALIFORNIA

THE FOLLOWING-NAMED PERSON FOR APPOINTMENT AS A MEMBER OF THE FOREIGN SERVICE TO BE A CONSULAR OFFICER AND SECRETARY IN THE DIPLOMATIC SERVICE OF THE UNITED STATES OF AMERICA, EFFECTIVE MAY 30, 2015:

JENNIFER MARIE SCHUETT, OF NEW MEXICO

THE FOLLOWING-NAMED PERSONS OF THE DEPARTMENT OF STATE FOR APPOINTMENT AS A FOREIGN SERVICE OFFICER OF CLASS ONE, CONSULAR OFFICER AND SECRETARY IN THE DIPLOMATIC SERVICE OF THE UNITED STATES OF AMERICA:

MELINDA L. CROWLEY, OF MARYLAND
BOOTS POLIQUIN, OF MARYLAND

THE FOLLOWING-NAMED PERSON FOR APPOINTMENT AS A FOREIGN SERVICE OFFICER OF CLASS THREE, CONSULAR OFFICER AND SECRETARY IN THE DIPLOMATIC SERVICE OF THE UNITED STATES OF AMERICA:

SARAH E. EVANS, OF VIRGINIA

THE FOLLOWING-NAMED PERSONS OF THE DEPARTMENT OF STATE FOR APPOINTMENT AS A MEMBER OF THE FOREIGN SERVICE TO BE A CONSULAR OFFICER AND SECRETARY IN THE DIPLOMATIC SERVICE OF THE UNITED STATES OF AMERICA:

PAUL J. ANDERSEN, OF VIRGINIA
BERNIE SARFO ANNOR, OF VIRGINIA
KENDRA MICHELLE ARBAIZA-SUNDAL, OF WISCONSIN
KENT M. ARGANBRIGHT, OF VIRGINIA
RAINA T. ARMSTRONG, OF VIRGINIA
SARAH HART ASHBY, OF TEXAS
CLAIRE JUMANNA ASHCRAFT, OF CALIFORNIA
KATHERINE ANN AVONDET, OF VIRGINIA
JOHN THOMAS AVRETT II, OF VIRGINIA
JEFFERY C. BAMBERG, OF VIRGINIA
BENJAMIN BANFIELD, OF VIRGINIA
SARAH JANE BANNISTER, OF PENNSYLVANIA
SAPTARSHI BASU, OF THE DISTRICT OF COLUMBIA
ADAM WADDELL BENTLEY, OF CALIFORNIA
CHELSEA ROSE BERGESEN, OF WASHINGTON
DANIEL MARK BINGHAM-PANKRATZ, OF WISCONSIN
CHRISTOPHER JOSEPH BODINGTON, OF OHIO
ANDREW MICHAEL BOLAND, OF VIRGINIA
MATTHEW CARL BOWLBY, OF MINNESOTA
SUSAN SILSBY BOYLE, OF MARYLAND
ALEX BRANIGAN, OF VIRGINIA
JOHN BRUNO, OF VIRGINIA
ANNE BURKETT, OF VIRGINIA
MARGARET J. CADENA, OF VIRGINIA
KENDALL MERLE CALKINS, OF VIRGINIA
MICHELE C. CALVERT, OF VIRGINIA
NORTH KEENEY CHARLES, OF KANSAS
GRACE CHENG, OF VIRGINIA
BRANDON D. CHIN, OF VIRGINIA
KEVIN CHING, OF ILLINOIS
AIMEE NICOLE CHIU, OF VIRGINIA
TASHINA ETTER COOPER, OF VIRGINIA
ALEXANDRE JULES COTTIN, OF NEW MEXICO
DAVID PATRICK COUGHRAN, JR., OF WASHINGTON
WILLIAM LYNWOOD COX, OF VIRGINIA
JENNIFER ANN CROOK, OF VIRGINIA
STEPHANIE CURTIS SCHMITT, OF VIRGINIA
DENNIS DAME, OF MARYLAND
DANIEL ALLAN DARBY, OF VIRGINIA
GREGORY DAVID, OF CALIFORNIA
CLAIRE YERKE DESJARDINS, OF OHIO
MICHAEL H. DING, OF MASSACHUSETTS
JEFFREY D. DIRKS, OF WASHINGTON
JOHN R. DOW, OF THE DISTRICT OF COLUMBIA
RAISA NICOLE ELLENBERG DUKAS, OF VIRGINIA
ERIC CONRAD EIKMEIER, OF VIRGINIA
ERIC SPENCER ELLIOTT, OF NEW MEXICO
JULIE ANN ESPINOSA, OF MARYLAND
PAUL ESTRADA, OF CALIFORNIA
GERALD EURICE, OF VIRGINIA
CRAIG LOUIS FINKELSTEIN, OF VIRGINIA
JOHN TIMOTHY FOJUT, OF NEW JERSEY
ROBERT S. FRANCIS, OF VIRGINIA
NATHANAEL LAWRENCE GIBSON, OF VIRGINIA
TIJR AIIRE GILLIAM, OF VIRGINIA
GLENN CHAPMAN GODBEY, OF FLORIDA
SAMUEL C. GOELLER, OF VIRGINIA
MICHAEL ANTHONY GONZALEZ, OF FLORIDA
LUIS L. GONZALEZ III, OF TEXAS
CARA BRICKWEG GREENO, OF MISSOURI
EMILY RAE HALL, OF VIRGINIA
TARYN KATHLEEN HANLEY, OF VIRGINIA
JORDAN T. HARDENBERGH, OF VIRGINIA
CHERYL ANN HARRIS, OF VIRGINIA
HOUSTON RANDALL HARRIS, OF TEXAS
RYAN D. HARVEY, OF VIRGINIA
FREDERICK HAWKINS, OF VIRGINIA
AARON MICHEAL HAYMAN, OF VIRGINIA
DAVID C. HONG, OF VIRGINIA
HYE JIK HONG, OF VIRGINIA
ILDIKO ANG HRUBOS, OF HAWAII
DARYL L. HUMES, OF VIRGINIA
JASON INSLEE, OF COLORADO
BARRY ALAN JOHNSON, OF MICHIGAN
DAVID HOWARD JOHNSON, OF WISCONSIN
LAUREN AMANDA JOHNSON, OF NORTH CAROLINA
ALBERT BERTRAND KAFKA, OF THE DISTRICT OF COLUMBIA
SYDNEY KELLY, OF NEVADA
SENG JAE KIM, OF NEW YORK
PAUL KOPECKI, OF THE DISTRICT OF COLUMBIA
LAURI A. KRANIG, OF VIRGINIA
MICHAEL JAMIE KRIS, OF VIRGINIA
ERJON KRUJA, OF VIRGINIA
MAUREEN KUMAR, OF TEXAS
WILLIAM SETH LACY, OF VIRGINIA
NEAL BRIAN LARKINS, OF MASSACHUSETTS
JOHN DANIEL LATHERS II, OF THE DISTRICT OF COLUMBIA
BRIGID A. LAUGHLIN, OF NEW JERSEY
DELLA P. LEACH, OF VIRGINIA
HYE RI LEE, OF VIRGINIA
STACY LEMERY, OF THE DISTRICT OF COLUMBIA
ERICA PAIGE LENGYEL, OF VIRGINIA
AVA G. LEONE, OF THE DISTRICT OF COLUMBIA
JARED AMI LEVANT, OF VIRGINIA
LENECIA HELENA LEWIS–KIRKWOOD, OF NEW YORK
JAKOB KANE LOUKAS, OF THE DISTRICT OF COLUMBIA
ANN R. MANGOLD, OF THE DISTRICT OF COLUMBIA
JENNIFER D. MARSH, OF VIRGINIA
JUAN ERNESTO MAUNEZ, OF VIRGINIA
JAY R. MCCANN, OF MARYLAND
KATHLEEN M. MEILAHN, OF TEXAS
NICOLE E. MELLSTROM, OF VIRGINIA
ROBERT DANIEL MERVINE, OF VIRGINIA
DAVID MESSENGER, OF VIRGINIA
JILL MARGARET MESSINGER, OF THE DISTRICT OF COLUMBIA
STEPHANIE E. C. MILLER, OF VIRGINIA
HENRI SCOTT MINION, OF VIRGINIA
BRIAN R. MIRANDA, OF VIRGINIA
BRANDICE P. MITHAIWALA, OF VIRGINIA
IAN LOUIS MORELLO, OF VIRGINIA
SEAN CHRISTIAN MURRAY, OF VIRGINIA
ROBERT MUTCHLER, OF VIRGINIA
MAUREEN F. O'CONNELL, OF CALIFORNIA
CHELSEA DE VITA OPPENHEIM, OF VIRGINIA
DAVID DANIEL OSWALD, OF VIRGINIA
GEORGE OTTERBACHER, OF VIRGINIA
MATTHEW J. PAGETT, OF FLORIDA
DONALD R. PARRISH III, OF VIRGINIA
CAROLINE LAHEY PLATT, OF VIRGINIA
GORDON ALMA PLATT, OF OREGON
ZACHARY T. PONCHERI, OF VIRGINIA
ROBERT ERLE POULSON–HOUSER, OF PENNSYLVANIA
SANJIN PRASTALO, OF VIRGINIA
RICHARD PRATT RALEY, OF VIRGINIA
BRIDGET ELIZABETH ROCHESTER, OF VIRGINIA
KARL ROGERS, OF NEW YORK
JASON RUBIN, OF FLORIDA
REBECCA SATTERFIELD, OF TEXAS
MIKEL LEWIS SAVIDES, OF CALIFORNIA
CECELIA A. SAVOY–CHASE, OF VIRGINIA
MATTHEW LOUIS SCHUMANN, OF VIRGINIA
COLIN M. SEALS, OF ILLINOIS
MICHELLE F. SEGAL, OF CALIFORNIA
JULIECLAIRE BOND SHEPPARD, OF CALIFORNIA
CHIMERE MELODY SHERROD, OF VIRGINIA
SHAHTAJ SIDDIQUI, OF CALIFORNIA
ASHLEY MARTINA SIMMONS, OF FLORIDA
HEATHER ANN SIZEMORE, OF VIRGINIA
JESSICA K. SLATTERY, OF THE DISTRICT OF COLUMBIA
SHANNON SMALL, OF THE DISTRICT OF COLUMBIA
MELANIE JO SMITH, OF WASHINGTON
BRIAN E. SMYSER, OF NEW YORK
SUMIT K. SOOD, OF VIRGINIA
ROBYN JANELLE SOTOLOV, OF VIRGINIA
PHILLIP WESLEY STARKWEATHER, OF CONNECTICUT
CATHERINE SWANSON, OF TEXAS
ALLEN R. TACKETT, OF THE DISTRICT OF COLUMBIA
LUKE TATEOKA, OF HAWAII
ERIN K. THOMAS, OF VIRGINIA
LARRY ANTOINE THOMPSON, OF VIRGINIA
ANDREW STEPHEN THORNHILL, OF VIRGINIA
MARCUS WILLIAM THORNTON, OF MISSOURI
NATHANIEL GRAY TISHMAN, OF CALIFORNIA
PETER E. TRAVIA, OF VIRGINIA
LAURA JENNIFER TRUGLIO, OF VIRGINIA
MARY KAY TRUONG, OF VIRGINIA
RYAN H. USTICK, OF THE DISTRICT OF COLUMBIA
WILLIAM R. VAN DE BERG, OF NORTH CAROLINA
STAVROS VASILIADIS, OF VIRGINIA
NATHAN CORY VOELKER, OF WASHINGTON
JERRY WANG, OF TEXAS
KENNETH DAVID WILCOX, OF MARYLAND
KELLY MARIE WINCK, OF TENNESSEE
ALAN BRYCE WINDSOR, OF THE DISTRICT OF COLUMBIA
MATTHEW D. WINSLOW, OF WYOMING
JOSHUA DAVID WODA, OF MASSACHUSETTS
MICHAEL TSENG WU, OF VIRGINIA
JOANNA CHRISTINE WULFSBERG, OF ARIZONA
TAO ZENG, OF PENNSYLVANIA
JULIE ELIZABETH ZINAMON, OF VIRGINIA

EXTENSIONS OF REMARKS

WHY VOTING MATTERS IN THE AFRICAN AMERICAN COMMUNITY

SPEECH OF

HON. DONALD M. PAYNE, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Monday, March 14, 2016

Mr. PAYNE. Mr. Speaker, we are here tonight to honor the thousands of brave men and women who, 51 years ago, organized and marched over the Edmund Pettus Bridge in Selma, Alabama in support of a fundamental truth: that every American has the right to vote.

The Selma march altered the course of history. As Dr. Martin Luther King, Jr. said, ''Selma produced the voting rights legislation of 1965.'' The Voting Rights Act of 1965 banned discriminatory voting requirements that disenfranchised African American voters.

For 51 years, the Voting Rights Act has helped ensure that all Americans have an equal opportunity to participate in the democratic process.

But nearly three years ago, the Supreme Court gutted the Voting Rights Act, saying it was outdated and unjustified. Since this decision, we have seen that the Voting Rights Act is needed now more than ever before.

Today, 30 states require voters to show identification in order to vote. And 15 states already require voters to show a photo ID in order to cast a ballot. At the same time, Republican controlled-legislatures continue their efforts to cut early voting.

All of this limits access to the ballot, making it harder for American citizens to have a say in the direction of our country.

Restrictive voting laws disproportionately impact minorities and low-income communities.

Upwards of 25 percent of African Americans lack a photo ID, compared to 8 percent of white Americans. Moreover, 12 percent of those earning less than $25,000 annually lack a photo ID.

States with strict voter ID laws require voters to have certain government-issued photo IDs, like driver's licenses. However, African Americans and low-income individuals are less likely to have driver's licenses because they are more likely to live in cities and rely on public transportation.

These groups also have a harder time obtaining other valid forms of photo ID because they often lack the time and money to track down necessary documents, like Social Security cards, and because ID offices are not easily accessible to them.

America is a nation built on the democratic process, and when that process is broken for any of us, it impacts all of us.

People want to vote because they care deeply about where our country is headed. They want to create a better life for themselves and their families, and they know that their ability to do so is in many ways tied to the outcomes of elections.

As a country, we should make it as easy as possible for people to exercise this right. Election officials should not erode the democratic principles that they have sworn to uphold. They should make sure every American citizen has an equal voice in the democratic process.

Protecting every person's right to vote is essential to a fully functioning democracy. The countless men and women who risked their lives to defend that right knew our system of government only works when it's inclusive and fair—when it enables all voices to have a say in the future of our country.

So it's our responsibility to make it easier for people to cast a ballot. Just as it's the responsibility of those people to vote. When people don't vote, not only do they dishonor those who risked everything for voting rights; they risk perpetuating policies that hurt hard-working Americans. I can tell you with certainty—had we not elected President Obama, we wouldn't have the Affordable Care Act, and 20 million fewer people would have health insurance.

So it's important for every eligible American to vote. Failure to do so can have grave consequences for American families, who deserve public policies that work for them, not special interests.

Voting rights has been historically important to the African American community, which was denied its constitutional right to vote for far too long. That is why this caucus—the Congressional Black Caucus—is doing everything possible to expand voting rights protections and increase citizen participation in elections.

We are calling for an immediate restoration of the Voting Rights Act. Democracy cannot flourish until voting rights are reinstated in this country. We have broken down many barriers to justice and equality since the Selma march and the signing of the Voting Rights Act, but we dishonor those accomplishments and the people who fought for them if we accept the continued weakening of voting rights.

Fifty-one years ago, thousands of Americans marched in Selma against racial discrimination in voting. That march is ours to continue.

HONORING THE 30TH ANNIVERSARY OF SAINT LOUIS CRISIS NURSERY

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. LUETKEMEYER. Mr. Speaker, I rise today to honor Saint Louis Crisis Nursery, which will celebrate its 30th Anniversary on April 2, 2016. In 1986, Saint Louis Crisis Nursery opened its doors to provide twenty-four-hour shelter and special care for children whose families have faced an emergency or crisis. Numerous areas are served by Saint Louis Crisis Nursery including St. Louis City, St. Charles, and Wentzville. For over 30 years, Saint Louis Crisis Nursery has provided protection for more than 98,000 children who were at risk of abuse and neglect. With the month of April being National Child Abuse Prevention Month, this recognition is well deserved for an organization that is working to prevent child abuse.

The mission of Saint Louis Crisis Nursery is to keep Missouri's most vulnerable citizens safe from harm. Supporting and strengthening the fragile and the under-resourced is key to overcoming the cycle of neglect and abuse.

In addition to providing shelter during emergencies, Saint Louis Crisis Nursery offers a variety of programs: parent education groups, home visits, teen parenting groups, art and play therapy, holiday hearts campaign, training institute, school supply drive, community outreach, and family emergency fund. These programs enrich the families in the community, which in turn encourages children to be raised in a healthy environment.

Saint Louis Crisis Nursery started out with one crisis nursery location and has grown to five crisis nursery locations during the past 30 years. They have also established seven community outreach centers and a regional administrative office. The staff has grown from 12 to more than 100, and counseling/support services that started with assisting 435 families now touches over 6,000 lives.

I ask you to join me in recognizing Saint Louis Crisis Nursery on their 30th Anniversary of serving the citizens of their community.

CONGRATULATING MR. JIM BROWN ON BEING ELECTED PRESIDENT OF THE PENNSYLVANIA BUILDERS ASSOCIATION

HON. BILL SHUSTER

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. SHUSTER. Mr. Speaker, I rise today to congratulate Mr. Jim Brown of Hollidaysburg, PA, on being elected 2016 President of the Pennsylvania Builders Association (PBA).

Chartered in 1952, PBA is a statewide nonprofit affiliated with the National Association of Home Builders. The guiding voice for the state's home building industry and housing consumers, PBA provides an admirable service to countless people, especially as in one way or another, we all have a fundamental need for shelter. At the core of this herculean task, PBA works to enhance and improve the ability of our state's building professionals to provide the best quality homes at the most affordable prices for all Pennsylvanians. Given these significant responsibilities, it's easy to see why the organization needs strong and experienced leadership. That's why I am proud to highlight Jim's election.

As president of J.R. Brown Construction, Inc., a member of the board of the National Association of Home Builders, and a member of the Blair-Bedford Builders Association, where he has served as president, vice president, builder director, chairman of the Scholarship and Social Committees, and co-chair of

the Home and Garden Show Committee, Jim undoubtedly has the experience and service-minded approach necessary to lead PBA in its noble mission. I am also pleased to highlight that Jim is the first Blair County builder to be elected to this office since 1972, a fact that our communities can take pride in. I have complete faith that Jim will put his 26 years of building experience to work in representing this critical industry and all those who rely on affordable housing to pursue their version of the American Dream.

On behalf of the citizens of the Ninth District of Pennsylvania, I want to thank Mr. Jim Brown for continuing his service to our community and congratulate him for being elected President of the PBA.

TRIBUTE TO KAREN BARNETT—28TH CONGRESSIONAL DISTRICT WOMAN OF THE YEAR

HON. ADAM B. SCHIFF

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. SCHIFF. Mr. Speaker, I rise today in honor of Women's History Month. Each year, we pay special tribute to the contributions and sacrifices made by our nation's women. It is an honor to pay homage to outstanding women who are making a difference in my Congressional District. I would like to recognize a remarkable woman, Karen Barnett, of Atwater Village, a unique neighborhood in Los Angeles, California.

A Los Angeles native, Karen has lived in Atwater Village for the past 14 years. In pursuing her education, Karen chose to stay local and attended Art Center College of Design in Pasadena. Today, her experience as a designer provides a unique perspective on improving her community and neighborhood.

Currently, Karen Barnett is a member of the Atwater Village Neighborhood Council. She serves as Chair of the Atwater Village Neighborhood Council River Committee, which she initiated because of her concerns regarding the present and possible future uses of the Los Angeles River. In this capacity, Karen has dedicated many hours finding ways to get the community involved in possible projects along Atwater Village's four mile section of the Los Angeles River.

Ms. Barnett has been a steadfast advocate for the environment and for the Los Angeles River. Under Karen's direction and with the approval of the Atwater Village Neighborhood Council Board, the Atwater Village Neighborhood Council River Committee applied for a National Park Service Rivers, Trails, and Conservation Assistance Program technical service grant. As a result of the Committee's hard work and dedication, Atwater Village was awarded the Atwater Village East Bank River Way grant, which will help map the area and identify locations for possible projects.

I ask all Members to join me today in honoring an exceptional woman of California's 28th Congressional District, Karen Barnett, for her extraordinary service to the community.

THE CONTINUING ROLE OF WOMEN IN THE VOTING RIGHTS MOVEMENT

HON. TERRI A. SEWELL

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Ms. SEWELL of Alabama. Mr. Speaker, today, in honor of Restoration Tuesday and March being Women's History month; I rise to acknowledge the role of women in the continuing battle for protecting our constitutional right to vote.

The Voting Rights Act of 1965 was only made possible because of the brave men and women who marched,—and were willing to die for voting equality as they crossed the Edmund Pettus Bridge on Bloody Sunday. Moreover, the narrative of the battle for voting rights in America is incomplete without the story of the strong contributions of the women who helped to advance these efforts. Nearly a decade has passed since Congress reauthorized the Voting Rights Act of 1965 in July 2006. This reauthorization not only continued to guarantee protections against modern day voting barriers, it elevated three mothers of the civil rights movement in its title: Fannie Lou Hamer, Rosa Parks, and Coretta Scott King. Honoring these great women who fought for equality and justice, this reauthorization stamped a day in time where both parties were able to come together and show overwhelming support for the most essential right on which this great democracy was founded, the right to vote.

However, when the Supreme Court struck down Section 4 pre-clearance and federal protection for vulnerable communities in 2013, a number of states, including Alabama, passed restrictive laws designed to suppress the vote. It is imperative that we remain ever vigilant in upholding the legacy, not only of the historic women for which the reauthorization of the Act was named, but of the three women who sat on the Supreme Court bench and gave dissenting opinions following the tragic Section 4 strike down.

Whether protesting from the streets or the Supreme Court bench, women have long played a vital role in the movement for voting rights in America's history. As we celebrate the rich history of women in politics during Women's History Month, we honor the conviction and determination of women like Susan B. Anthony and Amelia Boynton Robinson who fought relentlessly for equality for the ultimate benefit of our country as a whole. When women succeed, America succeeds and Congress should honor the fight and sacrifice by passing the Voting Rights Advancement Act of 2016.

Fannie Lou Hamer is famous for stating what so many were feeling then and still feel now when she said—"I am sick and tired of being sick and tired." Like the brave women of our past, we all need to be sick and tired of injustice and inequality. On this Restoration Tuesday, we honor the women who championed the cause of protection of our sacred and fundamental right to the polls.

WELCOME HOME VIETNAM VETERANS DAY COMMEMORATION

HON. JOHN SHIMKUS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. SHIMKUS. Mr. Speaker, our Nation's Vietnam War Commemoration gives us the opportunity for all Americans to recognize, honor, and thank our Vietnam Veterans and their families for their service and sacrifices during the Vietnam War from November 1, 1955 through May 15, 1975.

Over 9,000 organizations across America have joined with the Department of Defense as a Commemorative Partner to honor our Nation's Vietnam Veterans, including Benjamin Mills Chapter, NSDAR; the Illinois State Organization, NSDAR; and the National Society of the Daughters of the American Revolution.

This year's commemoration includes nine million Americans, approximately 7.2 million of them living today, and makes no distinction as to who served in-country, in-theater, or was stationed elsewhere during those 20 years—all answered the call of duty.

Veterans' Affairs Secretary Robert A. McDonald has designated March 29, 2016, the last day that U.S. troops were on the ground in Vietnam, as a day to honor those who have "borne the battle", and to extend gratitude and appreciation to them and their families.

Alan Gaffner, the Mayor of the City of Greenville, has also proclaimed March 29, 2016 as: WELCOME HOME VIETNAM VETERANS DAY in Greenville, Illinois. I stand with Major Gaffner and my constituents in Greenville as we humbly thank our Vietnam Veterans for their service and sacrifice.

CONGRATULATING LOGAN MORIARITY FOR HIS FIRST PLACE WIN IN THE 2016 MISSOURI STATE WRESTLING CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Logan Moriarity for his first place win in the 2016 Class 4, 170 pound weight class, Missouri State Wrestling Championship.

Logan and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to Jefferson City High School and their local community.

I ask you to join me in recognizing Logan for a job well done.

CONGRATULATING MRS. PEGGY J. BOSMA-LaMASCUS ON A SUCCESSFUL 34-YEAR CAREER AT PATRIOT FEDERAL CREDIT UNION

HON. BILL SHUSTER

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. SHUSTER. Mr. Speaker, I rise today to congratulate Mrs. Peggy J. Bosma-LaMascus, the former President and CEO of Patriot Federal Credit Union, on a distinguished career and a well-deserved retirement.

Mrs. Bosma-LaMascus began her career with Letterkenny Federal Credit Union, the predecessor to Patriot Federal Credit Union, in 1982. Under Peggy's subsequent leadership, the credit union grew from $26 million in assets to over $520 million, which has put Patriot in the top 5 percent of all credit unions in the country in terms of assets. In addition to implementing beneficial mortgage, lending, and wealth management programs and processes, Peggy always made sure to keep the credit union's focus on member service and convenience. What is possibly even more impressive than her tremendous accomplishments is the way she remained committed to having a positive impact on people's lives and the lives of their families. I believe her trust in the credit union philosophy ''Not for Profit, Not for Charity, But for Service'' is truly worth highlighting and celebrating.

Additionally, many know that Peggy played a significant role in the 1990s to save jobs at the Letterkenny Army Depot, as the Department of Defense pursued a Base Realignment and Closure. It was to acknowledge the Letterkenny Army Depot's missile repair capabilities that Peggy urged the credit union to change its name to Patriot Federal Credit Union.

What's more, Peggy has also made time to serve several community boards and organizations like the Downtown Chambersburg and Chambersburg United Way, and the Greater Chambersburg Area Chamber of Commerce. It was in 2006 that the Greater Chambersburg Area Chamber of Commerce named her Businessperson of the Year. Peggy has additionally played a notable role in advancing credit unions by serving many state and federal level organizations.

On behalf of the Ninth District of Pennsylvania, I want to thank Mrs. Peggy J. Bosma-LaMascus for her dedication to making our communities not only stronger financially but also richer in personal service and community spirit. Her leadership and dedication to Pennsylvanians is to be commended, and her retirement is well-deserved.

IN RECOGNITION OF NATIONAL AG DAY

HON. ROD BLUM

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. BLUM. Mr. Speaker, I rise today, on March 15th, in honor of National Ag Day and the hardworking farmers in the First District of Iowa.

Iowa continues to make enormous contributions to the U.S. Our farmers feed our nation, fuel our cars, and nourish our livestock.

With ninety percent of the available land used for agriculture, Iowa is the number one producer of soy and corn in the country and continues to rank high in the production of many more commodities, including beef and pork, and trails behind only California in terms of total value for agricultural production.

I commend and thank the hardworking farmers of Iowa who continue to produce record crops and embrace new technologies and practices.

I encourage everyone to thank a farmer today for their contributions to our nation and look forward to the advancement of agriculture across the U.S.

DEVELOPING A STRATEGY TO OBTAIN OBSERVER STATUS FOR TAIWAN IN THE INTERNATIONAL CRIMINAL POLICE ORGANIZATION

SPEECH OF

HON. MATT SALMON

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Monday, March 14, 2016

Mr. SALMON. Mr. Speaker, today, I rise in support of Senate Bill 2426, which is the Senate companion to my bill H.R. 1853 that passed the House earlier this year. This bill directs the Administration to work to bring Taiwan in to the International Criminal Police Organization, also known as INTERPOL.

Taiwan is an important U.S. ally and I have long been a supporter of the government and people of Taiwan. In fact, I was lucky enough to serve a mission for my church in Taiwan and grew to love the Taiwanese people for their core values, democratic standards, open-market principles, and peaceful way of life.

While in Congress, I have worked hard to facilitate policies that encourage Taiwan's continued vibrancy, to provide an example of hope and democracy around the world. Although Taiwan has proven to be a faithful, global partner for those in need, China seeks to marginalize Taiwan's role in the world. As such, I have pursued ways to further include Taiwan in the global community for its own good, but perhaps more importantly, for the benefit of the global community.

Today, nearly every country is confronting threats of terrorism and international criminal organizations. Yet at a time when it is more important than ever that countries communicate about these ongoing threats, Taiwan is barred from directly participating. This is short sighted and must be addressed. For that reason, I introduced legislation to direct the President to develop a strategy to obtain observer status for Taiwan in INTERPOL, so that it can more fully engage in the international law enforcement community. The goal is to increase participation with important global actors to share information on international criminals, and together bring them to justice and protect would-be victims.

I was pleased that after my legislation passed the House unanimously last year, Senator GARDNER took up the cause and passed his companion bill, S. 2426, through the Senate. I wholeheartedly support this bill's final passage so that we can send this important, pro-security bill to the President for his signature. I encourage all Members to support this legislation.

IN RECOGNITION OF THOMAS J. KEENEY, THE 2016 GREATER WILKES-BARRE FRIENDLY SONS OF SAINT PATRICK MAN OF THE YEAR

HON. MATT CARTWRIGHT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. CARTWRIGHT. Mr. Speaker, I rise today to honor Thomas J. Keeney, who was named 2016 Man of the Year from the Greater Wilkes-Barre Friendly Sons of Saint Patrick. Tom received his award from the Friendly Sons on Friday, March 11.

Born in Wilkes-Barre, Pennsylvania, Tom's family traveled a great deal throughout his youth, as a result of Tom's father, Donald, serving as a Major in the U.S. Army. In 1964, Tom graduated from Coughlin High School and served in the U.S. Air Force from 1965 to 1969. While in the Air Force, Tom was an aircraft mechanic and maintained the F100D/F fighter aircraft. After leaving the service, Tom entered the Plumber Apprentice training program offered by Plumbers Local 147 and began working as a contractor in the construction industry. Tom also served as a Reserve member of the U.S. Army, while working as a plumber, pipefitter, and welder. He served a variety of units as a Combat Medic 91B. He remained in the Army serving for 27 years, achieving the rank of Master Sergeant E8.

Today, Tom resides in Plains, Pennsylvania and is a retired master plumbing and heating contractor. He is the father of two children, Patrick and Maurita, and has three grandchildren. He is a member of the Knights of Columbus Council 302 and served the organization in many capacities, from Grand Knight to Faithful Navigator. He is also the past Commander of Alhamar Caravan Number 4 Order of the Alhambra and is an active member of Ancient Order of Hibernians, the American Legion, the Veterans of Foreign Wars, and remains active in many other community organizations.

It is an honor to recognize Thomas Keeney for receiving the Greater Wilkes-Barre Friendly Sons Man of the Year Award for 2016. I am grateful for his extensive service to our nation. I wish him the best as he and the Friendly Sons celebrate his many civic achievements.

CELEBRATING THE RETIREMENT OF ROBERT J. HAND

HON. JIM COSTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. COSTA. Mr. Speaker, I rise today to celebrate and recognize the service of Mr. Robert J. Hand's thirty year career dedicated to public service. Until his recent retirement, Mr. Hand served as the Executive Director for Resources for Independence, Central Valley (RICV) for the past ten years. RICV is a non-

profit organization whose mission is to ''encourage people with disabilities to be in control of their lives and to live more independently through a diverse range of choices and opportunities.'' Bob dedicated his forty-year career to public service, and his efforts will continue to impact the community and be felt by all who have had the opportunity to work with him along the way.

Bob has been very active in many organizations and has held countless leadership roles over the course of his career. Through his role with RICV, Bob aided in the establishment of Inspiration Park, California's first universally accessible public park. The eight-acre park features several basketball courts, a fully accessible playground, a sensory garden, fitness cluster, Dog Park, and so much more. While there are many parks in California that feature some disabled friendly features, Inspiration Park is the only one that serves these needs one hundred percent. Additionally, since the park's recent opening in late 2015, Bob and his team at RICV, along with their other partners, have committed to providing funding for the general development along with maintenance of the park.

In addition to his time at RICV, Bob also served as the former Chairman of the Board of the California Foundation for Independent Living Centers, California State Rehabilitation Council, and the City of Fresno Disability Advisory Commission. He is also the founder and facilitator of the Central Valley Coalition for Human Services. Bob received his Master's Degree in Rehabilitation Counseling from California State University, Fresno and later returned as an adjunct instructor to teach leadership development for people suffering from disabilities. He has shared countless presentations in California, Kansas, South Carolina, and South Korea aimed to supplement the ''Leaders without Limits'' training manuals which he co-authored. While Bob's career has been filled with many personal accomplishments, it is without a doubt that his life's goal was not to improve upon his own successes, but rather to improve the lives of others.

Mr. Speaker, I ask my colleagues to join me in celebrating a man who has dedicated his entire career to public service. Bob's many accomplishments within the community are a direct reflection of his strong dedication and perseverance. Through these accomplishments, Bob has improved the lives of many, and even upon his retirement, will undeniably continue to do so for many years to come.

RECOGNIZING THE EXTRAORDINARY LIFE OF MRS. INEZ POWELL DADE

HON. G.K. BUTTERFIELD

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. BUTTERFIELD. Mr. Speaker, I rise to recognize the extraordinary life of Mrs. Inez Powell Dade who was born in my hometown of Wilson, North Carolina on November 7, 1912. Sadly, Mrs. Dade passed away on Tuesday, March 8, 2016 at the age of 103.

Inez Powell was the fourth of seven children born to Mr. James Powell and Mrs. Martha Hageans Powell. Inez and her siblings grew up on a farm where they milked cows and picked cotton and tobacco. In 1937, following her husband John Battle, Inez moved to Washington, DC. She would remain in the Nation's Capital for more than 70 years. Later in life, Inez married World War II veteran and federal government employee Mr. James Dade.

Inez would go on to work for the Architect of the Capitol (AOC) where she would spend 23 years. Assigned to the United States Senate, Inez worked the overnight shift ensuring the Senate buildings and offices were ready for the next day's business. She retired from the AOC in 1970.

After her retirement, Inez purchased the Tiny Tot Preschool and Nursery, Inc. in Washington, DC which went on to become a well-known child development center in the city. She understood the anxiety parents felt when they had to leave their children in someone's care so she made it her mission to provide the kind of environment where parents could feel that their children were safe.

She committed herself to providing quality care at a reasonable cost for more than 40 years. In May of 2012, Mrs. Dade retired for a second time and ushered in the next generation of childcare providers.

On November 7, 2012 Inez celebrated her 100th birthday. Her family and friends celebrated her life and accomplishments with a ''Centennial Celebration'' on November 4, 2012 at the Washington Navy Yard, Washington, DC. The celebration featured remarks from Congresswoman ELEANOR HOLMES NORTON, then-DC Mayor Vincent Gray, and then-City Councilwoman Muriel Bowser. She also received commendation from President Barack Obama and First Lady Michelle Obama.

Sadly, Mrs. Inez Dade passed away on Tuesday, March 8, 2016 at the age of 103. Mrs. Dade is survived by her four daughters, Helen, Peggy, Rose Marie, and Shirley; her youngest sister, Vanilla Beane; and grandchildren and great grandchildren too numerous to name. Her immediate family as well as her family from First Baptist Church of Annapolis where she was a member for 49 years will cherish her memory.

Mr. Speaker, I ask my colleagues to join me in expressing condolences to Mrs. Dade's family, friends, and all those who were touched by her amazing life.

CONGRATULATING JOSH MCCLURE FOR HIS FIRST PLACE WIN IN THE 2016 MISSOURI STATE WRESTLING CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Josh McClure for his first place win in the 2016 Class 2, 145 pound weight class, Missouri State Wrestling Championship.

Josh and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to Fulton High School and their local community.

I ask you to join me in recognizing Josh for a job well done.

PERSONAL EXPLANATION

HON. LUIS V. GUTIÉRREZ

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. GUTIÉRREZ. Mr. Speaker, I was unavoidably absent in the House chamber for votes on Monday, March 14, 2016. I would like to show that, had I been present, I would have voted ''yea'' on roll call votes 111, 112, and 113.

ISIS IN THE WORLD

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Caleb Leachman attends Needville High School in Needville, Texas. The essay topic is: ISIS in the world.

ISIS (Islamic State of Iraq and Syria) has become a serious issue for the entire world lately. The terrorist attack ISIS performed on Paris, France, was a serious warning for the United States. ISIS executed seven different terrorist attacks all in Paris. The first attacks were launched almost simultaneously, as two explosions went off around 9:20 p.m. near Stade de France. Many men then shot up a restaurant in Paris called Petit Cambodge and the Le Carillon bar. These shooters killed fifteen innocent civilians. These same shooters then drove five hundred yards to the Casa Nostra Pizzeria and killed at least five people. These militants then drove a mile southeast to attack La Belle Equipe. They killed nineteen civilians at this location. Then the Bataclan concert venue was attacked. This was the deadliest as eighty nine people lost their lives. The last attack was set off at 9:50 p.m. as another bomb exploded near Stade de France. Before these events happened, President Barack Obama believed that the United States had already contained the Islamic state. This attack shows that us as Americans can never forget about the Islamic terrorists. The Paris attacks increased the growing awareness of the terrorist group called ISIS. Originally, ISIS was warning the world through videos and social media. Their attack shows that they mean business and that they will do anything they want until they are stopped. The attack creates a sense of frightfulness to the American public. This puts pressure on the government to do something about ISIS and other terrorist groups. As an American citizen, I know my family and I are extremely worried about ISIS. My family is certainly not the only one who feels this way. When they attacked Paris,

most Americans asked one question. What stops ISIS from attacking the United States in this way? The answer is clear, nothing. This is a major political issue for the next presidential race. This attack in Paris can have an outcome on who the Americans select as their next president. The way the candidates respond to ISIS can decide who will be the next leader of our great country. This attack put ISIS at the top of the list for American issues and they will continue to be a focal point for the American government for years to come.

TRIBUTE TO ABBE LAND—28TH CONGRESSIONAL DISTRICT WOMAN OF THE YEAR

HON. ADAM B. SCHIFF

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. SCHIFF. Mr. Speaker, I rise today in honor of Women's History Month. Each year, we pay special tribute to the contributions and sacrifices made by our nation's women. It is an honor to pay homage to outstanding women who are making a difference in my Congressional District. I would like to recognize a remarkable woman, Abbe Land, of West Hollywood, California.

Abbe arrived in California in the late 1970s and has since dedicated her life to public service. Drawn into public life by possible eviction, she joined the Coalition for Economic Survival, a tenants' rights group to build the City of West Hollywood with LGBTQ activists, renters, and immigrants. After her appointment to the city's very first planning commission, Abbe was elected Councilmember for the City of West Hollywood and served for 23 years including serving as Mayor five times.

For much of her time on the council, she served as the sole woman, and she was instrumental in the creation of the Women's Advisory Board, Disabilities Advisory Board, and the city's domestic violence prevention program for same-sex couples. For more than two decades, she has influenced policy at the local, state, and federal levels. In 1993, she led the effort for West Hollywood to declare itself the nation's first "pro-choice city." In 1996, she led her city in enacting an important gun control ordinance which paved the way for the state of California to ban the sale of certain handguns.

Abbe is currently the Executive Director and Chief Executive Officer of the Trevor Project, a nationally recognized nonprofit providing crisis intervention and suicide prevention to LGBTQ youth. Under her leadership, the Trevor Project continues to save the lives of youth around the country. Prior to the Trevor Project, Abbe served as Co-CEO of the Saban Free Clinic, in Los Angeles, where she led the clinic's growth from a budget of $6 million to one of $16 million.

From Abbe's work protecting our environment to fighting for civil and reproductive rights, from her support for inclusionary housing to her efforts to combat homelessness, the people of the 28th District have benefited from her voice and steady leadership. Throughout her life's work, Abbe has been an inspiration to all who fight injustice.

Abbe continues to live in West Hollywood with her husband, artist Martin Gantman.

I ask all Members to join me in honoring an exceptional woman of California's 28th Congressional District, Abbe Land, for her extraordinary service to the community.

CELEBRATING COLUMBIA STATE COMMUNITY COLLEGE'S 50TH YEAR

HON. MARSHA BLACKBURN

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mrs. BLACKBURN. Mr. Speaker, I rise today to celebrate Columbia State Community College's 50th year of excellence in education and ask my colleagues to join with me in celebrating their success.

Columbia State is Tennessee's first community college. Their vision has been to build on its heritage of excellence through innovation in education and services that foster success and bring distinction and recognition for the quality and effectiveness of the college. At the college's convocation on September 26, 1966, former Tennessee Governor Frank G. Clement said, "Because of this school, young people who otherwise would have to terminate their academic career at the high school level will find a way into the world of higher education."

Today, Columbia State has grown and expanded into five different campus locations including Columbia, Franklin, Lawrenceburg, Lewisburg, and Clifton. They also serve in nine of the Seventh District's counties. The college is home to thousands of alumni who have gone on to make an impact in all different sectors of society and industries.

I honor Columbia State Community College for serving and empowering people for the last 50 years to achieve their educational aspirations and go farther than they ever thought possible and I join with them in their celebration of achievement.

PERSONAL EXPLANATION

HON. MICHAEL T. McCAUL

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. MCCAUL. Mr. Speaker, on March 14, 2016, I missed a vote on S. 2426, directing the Secretary of State to develop a strategy to obtain observer status for Taiwan in the international Criminal Police Organization. However, I would like to reflect that had I been present for this vote I would have voted "yea".

40TH ANNIVERSARY OF SAMTRANS

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Ms. SPEIER. Mr. Speaker, I rise today to honor SamTrans, a core provider of public transit and allied services in San Mateo County and for all of Silicon Valley, upon its 40th Anniversary. This is the story of a government agency that sees mountains as molehills, and that believes that challenges are merely potholes to be filled.

In one of its many roles, SamTrans operates buses in San Mateo County. In its second role, it administers Caltrain service linking San Francisco, San Mateo and Santa Clara Counties—the heart of Silicon Valley. Finally, the staff of SamTrans also manage the San Mateo County Transportation Authority. This trifecta of public agencies—all operated via SamTrans—have become the backbone of mobility across three counties over the past forty years.

In 1976, SamTrans was formed through the consolidation of 11 municipal bus systems in San Mateo County. The following year, it began what was to become a decades-long effort at inclusion of our entire population in transit services with the commencement of Redi-Wheels service. Redi-Wheels offers mobility to the disabled. My mother-in-law regularly used Redi-Wheels, linking her to doctor's appointments, trips to the grocery store, and bridge club gatherings throughout the community. SamTrans is not simply a bus or train or road construction organization. It offers all of our residents dignity through mobility, an offer accepted by over 300,000 disabled residents in 2015 alone.

The success of SamTrans is evident in its expanding scope of operations during these past four decades. From operating bus service starting in 1976, SamTrans was made the managing agency of our local transportation authority—the body that funds roads—in 1988. While the board of the transportation authority sets priorities, the SamTrans staff plans and carries out those directives.

This spirit of flexibility and frugalness was recognized as invaluable when, in 1992, SamTrans was made the managing partner of the newly-created Peninsula Corridor Joint Powers Board. While the Board of Directors of the joint powers board oversees Caltrain service, the staff of SamTrans makes important contributions to the planning and operating backbone of Caltrain. Baby Bullet Caltrain service, launched in 2004 and promising to cut travel times between San Francisco and San Jose by up to 50 percent, sparked a renaissance in Caltrain ridership which today is over 60,000 passengers every weekday. SamTrans and Caltrain have since worked together so that trains, buses and shuttles support these commuters throughout the week and throughout San Mateo County.

In 1992, the SamTrans board also provided 25 percent of the construction costs of the Colma BART station, bringing BART service further into northern San Mateo County. Eventually, BART arrived at San Francisco International Airport, bus service was modified to account for emerging travel patterns, and roadways were constructed, all with the participation of SamTrans staff and its board.

Mr. Speaker, you might ask why voters repeatedly approved sales tax measures to create this web of mobility. Approval arises from the confidence that voters have in the staff of SamTrans in its multiple roles serving bus riders, train travelers and motorists. Unlike some transportation agencies, there is no drama at SamTrans, only reliable delivery—of bus service, train service or road construction.

Today, the bus service that is at the core of the operations of SamTrans continues to evolve. Service has been consolidated along the El Camino corridor and increased in frequency to once every fifteen minutes. Bus service on weekends has been extended

south into Santa Clara County and northward to Devil's Slide to serve weekend visitors to our new county park. Over the years, SamTrans set records for miles travelled between major repairs, miles driven without accidents, courtesy towards customers, participation in community events, and as a great place to work. In fiscal year 2015, 13.1 million rides were taken on SamTrans buses, and 2016 is destined to be an even greater year.

Mr. Speaker, this is an agency that struggles to keep up with the expectations of the public, but this is the opposite of the image of some government agencies which are, sadly, viewed as unresponsive to public needs. SamTrans, with a board that welcomes challenges and a staff which multi-tasks across three counties and tens of millions of dollars of annual obligations, has a bright future. Forty years ago, no one could foresee that the consolidation of several bus lines would lead to serving over 13 million bus riders annually. No one could foresee the multiple roles that this organization would come to play. However, at 40 years and thriving, SamTrans has become the mobility master of Silicon Valley. We honor its past, welcome its future, and celebrate its spirit. Thank you, SamTrans, for all of your roles and activities. SamTrans moves Silicon Valley.

POLICE BRUTALITY EVENTS

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Alexa Keller attends Seven Lakes High School in Katy, Texas. The essay topic is: Select an important event that has occurred in the past year and explain how that event has changed/shaped our country.

Several well-publicized police brutality events near the end of 2014 created a new wave of race discrimination discussions across America. After the shooting of Michael Brown in Ferguson, Missouri, protestors held up signs exclaiming, ''Hands up, don't shoot'', and after the choking death of Eric Garner in New York City, the cry of ''I can't breathe'' by protestors demonstrated their outrage. Social media furthered the causes, and during the 2015 presidential debates, most candidates took a stance on whether ''Black Lives Matter'' or ''All Lives Matter.'' Specifically, the death of Freddie Gray in Baltimore, Maryland, in April of 2015, and the consequences of his death will shape the future of America with respect to race relations and law enforcement.

In April, 25-year-old Freddie Gray died while in police custody, which led to weeks of protests and unrest. Stores were looted and a CVS pharmacy was burned to ground, after thieves took off with all the prescription drugs they could get their hands on. Baltimore found itself in a predicament because it was unprepared for this kind of mass protest, and law enforcement certainly didn't expect it to go on for weeks.

Once the rioting was finished, the city of Baltimore was left in a state of flux. There was an ''Us vs. Them'' relationship between police and citizens. To make matters worse, the number of homicides in Baltimore in 2015 hit 344, the highest total since 1993 when Baltimore had 100,000 more people living in it (Baltimore Sun). In addition, there were more than 900 shootings in Baltimore last year, which was up 75% over the prior year. During the weeks of unrest in April and May, over 150 police officers were injured. The general feeling of unease between officers and citizens is assumed to be the main reason that now the police force in Baltimore is down by 200 officers.

The city of Baltimore needs to make significant progress toward fixing the situation, but at what cost? Recently, over $2 million was spent on new civil disturbance equipment which includes protective gear, shields, and helmets. (www.nytimes.com) The Maryland State Assembly is working toward a new law enforcement bill of rights to provide police with extra legal protection that is not afforded to the general public. But, will these measures fix the anti-cop rhetoric which likely makes it difficult for police officers to do their jobs correctly and effectively? The fact that the ''Black Lives Matter'' leader DeRay Mckesson is planning to run for mayor of Baltimore is proof that relations are still dicey. Baltimore will likely prove to be a microcosm for the rest of the country, and how it handled the events that occurred in 2015 has and has the potential to impact the United States as a whole.

HONORING THE LIFE OF DR. DANA LOUISE RAPHAEL

HON. JIM COSTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. COSTA. Mr. Speaker, I rise today to pay tribute to the life of Dr. Dana Louise Raphael, who passed away on February 2, 2016, at the age of 90. Dr. Raphael will be remembered as someone who lived her life with dedication to her community, family, and to her career in the field of medical anthropology.

Dr. Raphael was born on January 5, 1926, in New Britain, Connecticut, to Louis Raphael and Naomi Kaplan. From a very young age, education was of great importance to Dr. Raphael. She attended Columbia University, where she earned both her bachelor's and doctorate degrees. While at Columbia University, Dr. Raphael was a protégée of cultural anthropologist, Margaret Mead and became one of the first scientists that challenged milk formula manufacturers.

In 1953, Dr. Raphael married the love of her life, Howard Boone Jacobson, and as a newlywed, completed her initial field work in India. Dr. Raphael soon became a respected medical anthropologist, writer, and lecturer. She is well-known for her global work in supporting breast feeding and is credited for launching the Doula movement in the United States. Dr. Raphael first used the term doula in her 1969 anthropological study to describe women caregivers during labor and childbirth whose function was associated with the success of breastfeeding.

In 1975, Dr. Raphael and Margaret Mead co-founded the Human Lactation Center (HLC). The HLC researches lactation patterns around the world and is also an NGO with consultative status with the Economic and Social Council of the United Nations. Her advocacy allowed her to take on companies like Nestle in the 1980s pushing them to become more aware of the role producers of formula played in infant mortality in developing countries. Dr. Raphael's contributions to these projects resulted in the implementation of education programs for young mothers to prevent unnecessary deaths of newborns. Her willingness to help people was conveyed in her book Tender Gift: Breastfeeding, which was published in 1973. The book was a product of Dr. Raphael's own sadness of not being able to breastfeed her son and outlined a number of tools for women to assist with successful breastfeeding. The book went on to be known as the breastfeeding bible by many in the midwife and doula community.

During the last 20 years of her life, Dr. Raphael served on the U.S. Board of the Club of Rome where she committed herself to educating world leaders on the impacts of climate change.

She also served as an Adjunct Professor at Yale University, was an invited lecturer in the U.S., China, India, and Japan, and was a recipient of two Fulbright awards. Throughout her career, Dr. Raphael recognized the importance of serving her community and expressed a profound love for it. Her contributions to women around the world will be her legacy. She is survived by her sons, Seth Jacobson and Brett Raphael, daughter, Jessa Murnin, and her six grandchildren.

Mr. Speaker, it is with great respect that I ask my colleagues in the U.S. House of Representatives to join me in honoring the life of Dr. Dana Louise Raphael. Dr. Raphael touched and aided many people throughout her life. Her advocacy, deep commitment, and positive attitude will be greatly missed by all who knew her.

CONGRATULATING DAVID PRINGLE

HON. LYNN A. WESTMORELAND

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. WESTMORELAND. Mr. Speaker, it is with a great deal of admiration that we congratulate Mr. David Pringle, Senior Vice President of Aflac, on his retirement on behalf of the citizens of our districts.

As you know, Aflac is one of Georgia's most renowned and respected companies. The company has repeatedly found its name on prestigious lists such as Fortune's 100 Best Companies to Work For and Ethisphere's list of World's Most Ethical Companies. In addition, Aflac has generously provided the opportunity for more than 5,000 skilled individuals to demonstrate the spirit that has made the company a household name and has helped make Georgia a highly desirable place to live and raise a family.

What makes a company like Aflac so successful are the employees and leaders, like

David, who work tirelessly behind the scenes. As Senior Vice President, David serves as a role model, as his career is a veritable road map for young ambitious people to follow and emulate. However, his recent decision to retire from Aflac and departure from Washington certainly will be a source of sadness among members of Congress and staff so accustomed to reaching out to David whenever in need of counsel. It is not only the institutional knowledge of the insurance industry's most complex issues that will be missed, but the friendship David has provided to us over the years.

We wish David and Linell all the best in their next chapter, and hope that it includes the rewards and the leisure he has so richly earned.

CONGRATULATING JARRETT JACQUES FOR HIS FIRST PLACE WIN IN THE 2016 MISSOURI STATE WRESTLING CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Jarrett Jacques for his first place win in the 2016 Class 2, 138 pound weight class, Missouri State Wrestling Championship.

Jarrett and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to Owensville High school and their local community.

I ask you to join me in recognizing Jarrett for a job well done.

IN RECOGNITION OF JAMES McNULTY, 26TH MAYOR OF SCRANTON

HON. MATT CARTWRIGHT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. CARTWRIGHT. Mr. Speaker, I rise today to honor the late Jim McNulty, former Mayor of Scranton, who passed away on March 2, 2016 after battling cancer and heart problems. Jim was a champion for the Electric City and will be remembered for his service to his community.

Born in Scranton on February 27, 1945 to Henry and Eloise McNulty, he was the eldest of six siblings. Jim graduated from the University of Scranton in 1966, with a degree in Political Science. In 1981, Jim entered his name in Scranton's mayoral election, and his campaign was centered on reviving Scranton's economy. The rose became an iconic image of Jim's candidacy, as he handed out thousands to voters and wore one on his lapel.

Jim assumed office in 1982. During his time as mayor, he took on several projects that revitalized city's infrastructure, attracted tourism, and reclaimed pride in Scranton's history as a railroad hub. Jim worked with the National Park Service to establish Steamtown National Historic Site. Through Jim's efforts, Scranton was also able to rehabilitate the historic Erie-Lackawanna train station on Jefferson Avenue and convert it into hotel. His administration committed the funding needed to finish Montage Mountain Road, which allowed for the development of Montage Mountain Ski Resort. He also attracted a heavyweight championship fight between Larry Holmes and Lucien Rodriguez.

After his term ended in 1986, Jim went on to become a local media personality. He hosted a radio talk show on WARM, billed as ''the Mayor of WARMland.'' He also covered politics on WYOU–TV's ''Sunday Live with Jim McNulty.'' Outside of the media, Jim worked as a political consultant to other candidates and campaigns. In 1991, Jim married Evie Rafalko, and the couple recently celebrated their 25th anniversary.

It is an honor to recognize the life of this talented public servant. Jim's legacy will not be soon forgotten by the Electric City. His passing is deeply saddening, and he will be greatly missed by the people of Scranton.

REMEMBERING BEATRICE ''BEA'' JAIVEN HEINE

HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. FITZPATRICK. Mr. Speaker, today I rise to recognize the life of Beatrice ''Bea'' Jaiven Heine who passed away peacefully at her home on March 1, 2016 at the age of 94.

The daughter of Russian immigrants, Mrs. Heine grew up in Connecticut where she graduated from Stamford High School. She went on to receive a Bachelor's degree at Southern Connecticut State Teachers College and later a Masters degree from Columbia University followed by her Doctoral degree in education from Temple University. She is best known professionally for decades as an educator in elementary school primarily for Haddon Township's fifth grade and later at the college level for teacher education with a focus on mathematics. Long before the importance of math education was widely acknowledged, Mrs. Heine creatively engaged students and future teachers to learn math with logic and showed that ''Math can be fun.''

She was an avid traveler and met her husband, the late Joseph Heine, on a cruise. They were blessed with two daughters and shared nearly 34 years of happy marriage.

While her list of educational, career and personal accomplishments are no doubt impressive, her family notes that she was modest about her successes. It is fitting that March is designated as Women's History Month—a time to recognize and celebrate the accomplishments of women, like Mrs. Heine, both in our nation and in our communities, who have made a positive impact.

Remembered for her sparkling eyes, winning dimples, auburn hair, radiant smile, and warm laugh, Mrs. Heine formed rewarding relationships with family, friends, neighbors, and colleagues. To those who knew her, there is little doubt that the world is a better place because of Bea.

PERSONAL EXPLANATION

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. GRAVES of Missouri. Mr. Speaker, on March 14, I missed a series of Roll Call votes. Had I been present, I would have voted ''YEA'' on Numbers 111, 112, and 113.

HONORING CARL JUNCTION HIGH SCHOOL PRINCIPAL DAVID PYLE ON BEING NAMED THE MISSOURI ASSOCIATION OF SECONDARY SCHOOL PRINCIPALS' 2016 PRINCIPAL OF THE YEAR

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. LONG. Mr. Speaker, I rise today to honor Carl Junction High School Principal David Pyle on being named the Missouri Association of Secondary School Principals' 2016 Principal of the year.

As Principal of Carl Junction High School, Pyle has worked diligently to ensure that students receive a high-value education and expand their learning opportunities. Going beyond the call of duty, he also takes time to familiarize himself with students by name and interacts with them on a personal level.

Namely, Principal Pyle was awarded this decoration based on his positive impact in the areas of collaborative leadership; curriculum, instruction and assessment; and his personalization of this learning environment.

Mr. Speaker, David Pyle's committed leadership in Carl Junction, Missouri, has set an essential example of how to maintain a standard of academic excellence for students. I am honored to congratulate him on his achievements as Principal of Carl Junction High School, and know that—with people like Principal Pyle in place—its students will be well prepared to achieve their future goals and achieve the American Dream.

HONORING THE 100TH ANNIVERSARY OF THE ROTARY CLUB OF FRESNO

HON. JIM COSTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. COSTA. Mr. Speaker, I rise today to celebrate the 100th anniversary of the historic Rotary Club of Fresno, California—an institution that has brought families and communities together since its establishment.

The Rotary Club of Fresno was first organized as provisional Rotary Club on December 13, 1915, and three months later, a group of 23 Fresno business leaders chartered the organization on March 1, 1916. At the time, the Fresno Rotary Club was the first rotary club in Central California, the ninth in the State of California and the 203rd club in the world. The Fresno club held its first meeting in Downtown Fresno in the Hotel Fresno Ballroom, and held

its first District Conference in Rotary by 1916. In 1919, the club implemented their first community project, firmly establishing their organization in Fresno by the act of planting 1,000 olive trees along Golden State Highway, otherwise known as State Highway 99.

Since its establishment, the Fresno Rotary Club has supported hundreds of community projects and organizations in the local community, including: the water tower in downtown Fresno, building the 3,500 seat Rotary Amphitheater at Woodward Park, contributing to the construction of Playland at Roeding Park, providing mentorship programs through the Boys & Girls Clubs of America, donating to the Salvation Army, Schools, and our local hospitals.

The Rotary Club of Fresno has been dedicated to numerous causes that have contributed over $3.7 million throughout its existence to many local and international projects which support local issues and international humanitarian efforts. The club's Wheelchair project has delivered over 4,200 wheelchairs to Central American and African nations since 2003. Project Nino has provided medical services and treatment to children over the last 30 years in the small village of Santiago de Tautla, Mexico, and has treated over 100,000 patients since 1985. The ''WAPI'' Water Purification project has delivered countless solar cookers and water treatment devices throughout the world. The Rotary Club of Fresno has also contributed over $1.2 million to the Rotary International Foundation in support of its worldwide humanitarian efforts to eradicate polio, and improve people's lives.

Members of the Fresno Rotary continue to dedicate themselves to community development and involvement. Whether it's organizing a city wide Boy Scout Council, or holding an annual Christmas party at the senior citizens home, or providing scholarships for students to pay for college. The Fresno Rotary has made a strong impact in our community, and has enriched the quality of life for many residents throughout the Central Valley.

Mr. Speaker, it is with great respect that I ask my colleagues in the House of Representatives to join me in recognizing the Rotary Club of Fresno as they celebrate its 100th anniversary and prepare to continue to provide outstanding leadership through the Central Valley, the State of California, and our Nation.

THE RISE OF ISIS

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Cameron Kallina attends Seven Lakes High School in Katy, Texas. The essay topic is: The rise of ISIS.

The rise of ISIS in the past year has taken a toll on the perception of the terroristic group from a blatant ''JV team'', the words of our Commander in Chief, to a threat even greater than Al Qaeda. They have demonstrated time and time again that they are serious and are here to stay. From Paris to the shooting down of a Russian commercial airline, the actions of these attacks have shaken sense of security of everyday normal life.

ISIS is a terrorist militant group, disowned by Al Qaeda in early 2014 due to their brutal tactics, which has risen to power through the massive land they have conquered from Northern Syria to Central Iraq. They are the richest terror group in the world due to owning over half of Syria's oil assets and those profits from the oil help independently fund their regime.

Their actions have had an impact on not only the United States, but abroad as well. ISIS has become a focus of the 2016 Presidential election. Where prior to the attacks of late 2015 the focus of the debates centered on the economy, there has been a shift to national security, especially how to implement measures and how to maintain it. According to a Gallup poll which was published on December 14, 2015, 16% of Americans think terrorism is now the number one issue in the election, up from 3% in early November. (http://www.gallup.com/poll/187655/americans-name-terrorism-noproblem.aspx) The candidates differ on how to handle the rising situation. The candidates all have their theory on how to defeat this group. One idea from Hillary Clinton states we should shut down every terrorist account on social media, Donald Trump has made statements that we should ban all Muslims from entering the country, Ted Cruz says we must stand with our Allies against the terror threat, and there are many other ideas from other candidates that have their own strategy for facing ISIS.

Our sense of security has also been shaken. The ruthless terrorist attacks on Paris, France left the world in a shocked state of disbelief. 130 people were massacred and 368 were wounded that night at Stade de France, cafes, restaurants, and a concert hall. It left a scar on France they'll never forget. It seemed nowhere was safe; any place could now be a target. And citizens around the world were aware of this, tensions were high as everyone waited with the anticipation of another attack happening. Cities in Europe and the United States were on a heightened alert in the days and weeks following.

These acts of violence has shown the true colors and motivation of this radical regime. They show no intentions of letting up and have become a threat, not just to the U.S.A., but to all of the Western Civilized world. America must lead the fight against these monsters with the help of our Allies to secure victory and peace worldwide.

CONGRATULATING JACKSON BERCK FOR HIS FIRST PLACE WIN IN THE 2016 MISSOURI STATE WRESTLING CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Jackson Berck for his first place win in the 2016 Class 4, 195 pound weight class, Missouri State Wrestling Championship.

Jackson and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to Francis Howell Central High School and their local community.

I ask you to join me in recognizing Jackson for a job well done.

PERSONAL EXPLANATION

HON. BRAD R. WENSTRUP

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. WENSTRUP. Mr. Speaker, I missed three votes on March 14. If I were present, I would have voted on the following:

Rollcall No. 111: On Passage of S. 2426, ''yea.''

Rollcall No. 112: On Passage of H. Con. Res. 75, ''yea.''

Rollcall No. 113: On Passage of H. Con. Res. 121, ''yea.''

IN RECOGNITION OF HOPE WENG, THE PRUDENTIAL SPIRIT OF COMMUNITY AWARDS PROGRAM 2016 HONOREE

HON. KYRSTEN SINEMA

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Ms. SINEMA. Mr. Speaker, I rise today to recognize Hope Weng, a young student from my district who is one of two students to receive national recognition for exemplary volunteer service in her community. Ms. Weng of Tempe has just been named the 2016 Middle Level State Honoree by The Prudential Spirit of Community Awards program, an annual honor conferred on the most impressive student volunteers in each state and the District of Columbia.

Ms. Weng, an eighth-grade student at Tempe Preparatory Academy, delivered 100 care packages containing cookies, thank-you cards and self-penned essays to residents of a veterans home to honor their service. After writing an essay about veterans and having met with a veteran at a local VFW post, Ms. Weng was inspired to initiate a project that would honor and show appreciation to our veterans. Ms. Weng achieved her goal by creating a budget and then raising the funds through the sale of Girl Scout cookies, hosting a garage sale, winning a writing contest, saving her Chinese New Year gift money and soliciting donations. She engaged the community by having individuals write messages of gratitude in her thank-you cards.

Thanks to Ms. Weng's dedication to service, 100 Arizona veterans received thoughtful care packages. Members, please join me in congratulating Ms. Weng for being named one of the top honorees in Arizona by The 2016 Prudential Spirit of Community Awards program. Ms. Weng, congratulations on all of your accomplishments and thank you for recognizing and honoring our veterans.

PERSONAL EXPLANATION

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. GRAYSON. Mr. Speaker, during Roll Call vote number 111, 112 and 113 on S. 2426, H. Con. Res. 75, H. Con. Res. 121, I was unavoidably detained. Had I been present, I would have voted yea. My flight, JetBlue 2224, was delayed by 1 hour and 20 minutes.

CHALLENGES WITHIN THE POLITICAL PROCESS

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Arjun Luthra attends Clear Springs High School in League City, Texas. The essay topic is: Challenges within the political process.

Within the US political system, there is an iron triangle which defines the spheres of influence and relationship between the United States Congress, the bureaucracy and the interest groups. Along with these groups, the executive branch influences the appointments of justices and bureaucratic officials. Concerns regarding public policy are placed on the shoulders of numerous institutions. What makes the political process so challenging is to ensure there is reconciliation of the political interests of these numerous institutions like Congress, which represents individual districts and states, and the President, which represents the overall nation.

The President, Office of Management and Budget, the Congressional Budget Office, agencies and interest groups are all involved in the budgeting process. The President bears responsibility of presenting the Budget to Congress while the Congressional Budget Office advises Congress of potential consequences of budget decisions. Within the process, the agencies provide projection of budgetary needs. The complexity of the process and shared roles among the institution often require adaptation or reconciliation. For example, in 1973, President Nixon refused to disburse appropriated funds of Congress. This lead to the Budget Impoundment Act which transferred power of President to Congress. This particular historical example not only demonstrates a check and balance system, but also exemplifies the challenges in the political process.

In addition to budget, legislation becomes difficult to enact either due to political gridlock due to divided government or party polarization. This gridlock has led to a restricted number of bills that pass through the congressional committees. Only 4 percent of bills introduced to Congress become law and only about 6 percent of bills reach floor debate. Furthermore, discussion of bill is restricted by the closed rule in the House, which places time limit for debate and restricts amendments. While in the Senate, senators can request for a filibuster, which extends time of debate. This allows members of the Senate to push their interests forward and often prevent discussion of other legislation proposed.

In essence, the political process is challenging especially in creating the political agenda and reaching specific goals set by the numerous governmental institutions. Today, hot topics in the political agenda include gun control, education and immigration policies. Although pushing for funds and legislation that yields long-term benefits for the constituents is challenging, the political process requires purposeful rather than reckless action that is advantageous to the United States. The political process ensures recognition of the Constitution as a governing document and also ensures a check on the abuse of political power.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $19,124,286,688,944.60. We've added $8,497,409,640,031.52 to our debt in 6 years. This is over $7.5 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

TRIBUTE TO DR. FRIEDA JORDAN—28TH CONGRESSIONAL DISTRICT WOMAN OF THE YEAR

HON. ADAM B. SCHIFF

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. SCHIFF. Mr. Speaker, I rise today in honor of Women's History Month. Each year, we pay special tribute to the contributions and sacrifices made by our nation's women. It is an honor to pay homage to outstanding women who are making a difference in my Congressional District. I would like to recognize a remarkable woman, Dr. Frieda Jordan, of Glendale, California.

After graduating from high school in Tehran, Iran, Frieda Jordan moved to England, where she received a BSc and a PhD in Biochemistry from King's College London. She also became a Certified Histocompatibility Specialist with the American Board of Histocompatibility and Immunogenetics. Dr. Jordan is currently the Director of DNA Molecular Typing at Foundation Laboratory, and is a laboratory inspector with the European Federation for Immunogenetics representing Armenia. Prior to her work at Foundation Laboratory, Dr. Jordan was Associate Director of the Human Leukocyte Antigen and Immunogenetics Laboratory at Cedars-Sinai Medical Center in Los Angeles.

Dr. Jordan has dedicated an extraordinary amount of time and energy in serving her community through her medical and scientific expertise. She is co-founder and president of the Armenian Bone Marrow Donor Registry (ABMDR), as well as chair of its ''Support Group'' for patients and their family members. ABMDR, which was founded in 1999, recruits and provides matched unrelated donors for stem cell or bone marrow transplantation to patients who are facing life-threatening blood disorders. ABMDR has identified more than 3531 potential matches for patients all around the world, and has facilitated 26 stem cell transplants. This organization has also brought new medical technology to Armenia, where it established a Stem Cell Harvesting Center in 2009.

Dr. Jordan is an active member and participant of various medical organizations including the Armenian Medical Association, the World Marrow Donor Association, the National Marrow Donor Program, and the European Federation for Immunogenetics. An accomplished speaker, Dr. Jordan has given presentations at numerous conferences and workshops in the United States and around the world.

I ask all Members to join me today in honoring an exceptional woman of California's 28th Congressional District, Dr. Frieda Jordan, for her extraordinary service to the community.

IN RECOGNITION OF JOSEPH HEFFERS, THE 2016 GREATER PITTSTON FRIENDLY SONS OF SAINT PATRICK MAN OF THE YEAR

HON. MATT CARTWRIGHT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. CARTWRIGHT. Mr. Speaker, I rise today to honor Joseph Heffers, who was named Man of the Year by the Greater Pittston Friendly Sons of Saint Patrick for the year 2016.

Joseph is the son of the late John Heffers and Mary Golden Heffers. He was born and raised in Pittston, Pennsylvania, and graduated from Pittston High School. He attended Wilkes-Barre Business College and earned a degree in Business and Accounting. He served in the Army from 1964 to 1967 in the Special Troops United at Fort Dix, New Jersey and was named Soldier of the Month during 1966. He worked at Eberhard Faber in Mountain Top, Pennsylvania as Project Manager for 21 years, receiving the President's Award from Eberhard Faber in 1986. He later worked at Cooper Industries in Weatherly as a Production Specialist and retired from InterMetro Industries in Wilkes-Barre. Joseph then managed the Metro Wire Federal Credit Union in Plains from 2001–2010.

He is a former President of the Greater Pittston Friendly Sons of Saint Patrick and received the Achievement Award in 2010. He was the historical speaker at the 100th anniversary banquet at the Friendly Sons in 2015. He is on the Advisory Board of the Salvation Army in West Pittston. And, finally, Mr. Heffers is a former financial secretary of President

John F. Kennedy Council Number 372 Knights of Columbus, council Choir and Trustee of the 4th Degree Assembly.

Mr. Heffers coached several youth teams: Stoners Soccer, Jenkins Township and girls' softball and girls' Varsity Basketball at St. Mary's Assumption in Pittston. He is a member of St. John the Evangelist Church where he also serves as a Senior Altar Server.

Mr. Heffers resides in Port Griffith with his wife of 44 years, the former Mary Catherine Shea. They are the parents of two children, Joseph and Mary Elizabeth Gregor. Joseph and Mary Heffers have two grandchildren, Maxwell Wallace Gregor and Declan Joseph Gregor.

It is an honor to recognize Joseph for all of his accomplishments, and I am grateful for his lifetime of service to our community and country.

CONGRATULATING JARED RENNICK FOR HIS FIRST PLACE WIN IN THE 2016 MISSOURI STATE WRESTLING CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Jared Rennick for his first place win in the 2016 Class 3, 195 pound weight class, Missouri State Wrestling Championship.

Jared and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to Washington High School and their local community.

I ask you to join me in recognizing Jared for a job well done.

PERSONAL EXPLANATION

HON. ADAM B. SCHIFF

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. SCHIFF. Mr. Speaker, during Roll Call vote numbers 111, 112 and 113 on S. 2426, H. Con. Res. 75, H. Con. Res. 121, I was unavoidably detained. Had I been present, I would have voted aye.

TRIBUTE TO C. MARSHALL KIBLER

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. WILSON of South Carolina. Mr. Speaker, sadly, South Carolina has lost a native son, C. Marshall Kibler, who was one of our state's most respected and admired business leaders. He fulfilled a rewarding life as a Southern Gentleman. He co-founded one of South Carolina's leading commercial real estate firms with Jeremy Wilson, now associated with Newmark Grubb. I especially appreciate his ability to select and mentor young professionals to achieve success.

The following obituary is from The State of Columbia, S.C. on March 15, 2016:

COLUMBIA.—C. Marshall Kibler passed away unexpectedly, Sunday, March 13, 2016, after a brief illness. He was predeceased by his parents, Clarence Marshall Kibler and Eleanor VanBenthuysen Roman Kibler.

A lifelong resident of Columbia, Marshall was a graduate of A.C. Flora High School, where he played football and was a member of the Dark Horseman Club. Mr. Kibler was a graduate of The University of South Carolina. He was cofounder and president of Wilson Kibler, Inc., a statewide commercial real estate firm with offices in Columbia, Charleston, Myrtle Beach and Greenville. Mr. Kibler was a founding member of The Capital Rotary Club, where he served as President and was a Paul Harris Fellow. His real estate designations include the Society of Industrial and Office Realtor (SIOR) and Certified Commercial Investment Member (CCIM). He was also actively involved with the Executives' Association of Greater Columbia (EAGC). Marshall served as president of The Palmetto Little League in 1992, the year the Wilson Kibler team was the league champions. He also served on the board of Cooperative Ministry. Mr. Kibler was a member of Forest Lake Club, the Pine Tree Hunt Club, the Columbia Cotillion Club, the Centurion Society, the Quadrille Club, the Flamenco Club and the Palmetto Club. He had an interest in history and was a member of the Sons of the American Revolution.

He is survived by his beloved best friend and wife of 40 years, Anna Belle Heyward Kibler; his children, Heyward Haskell Kibler (Rula), Sarah Rhett Kibler Brewer (Brooks), and Anna Belle ''Boo'' Kibler Moca (Steven). He was affectionately known as ''Kib'' by his seven adoring grandchildren, Jones Emile Kibler, Heyward Julian Kibler, Sarah Taylor Rhett Brewer, Townes Brooks Brewer, Anna Belle Heyward Brewer, Henry Marshall Moca, and William Rhett Moca. Also surviving are his sister, Eleanor Kibler ''Cis'' Ellison (Hagood) and brother, E. Robertson ''Bud'' Kibler (Beth). Marshall enjoyed his second home in Little Switzerland, NC where he loved time with his grandchildren, relaxing and otherwise doing very little.

A Mass of Christian Burial will be held 11 o'clock, Thursday, March 17th, at St. Joseph Catholic Church, 3600 Devine Street, Columbia, with The Rev. Msgr. Richard D. Harris officiating. Final Commendation and Farewell Prayers will follow at Elmwood Cemetery. The family will receive friends at the home, 8 Ashley Court, Columbia, from 4 until 6 o'clock, Wednesday evening. Shives Funeral Home, Trenholm Road Chapel, is assisting the family. In lieu of flowers, for the benefit of St. Joseph Catholic School, memorials may be made to The Central Carolina Community Foundation, Kibler Scholarship Fund, 2711 Middleburg Drive, Suite 213, Columbia, SC 29204.

In temper he was frank, manly and sincere, an elegant gentleman. In deportment, dignified and courteous, and in all the domestic relations of life, exemplary and irreproachable. Memories and condolences may be shared at ShivesFuneralHome.com.

IN HONOR OF THE TUSKEGEE AIRMEN FOUNDATION 75TH ANNIVERSARY

HON. MIKE ROGERS

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. ROGERS of Alabama. Mr. Speaker, I ask for the House's attention to recognize the 75th Anniversary of the activation of the U.S. Army Air Corps 99th Pursuit Squadron. The first black combat aviation unit comprised of pilots and support personnel trained at Tuskegee Army Air Field.

Tuskegee Airman Foundation is a national non-profit organization whose mission is to continue to build on the successes of the past, highlight the role models of today and develop the workforce of tomorrow.

In 1940, the military selected Tuskegee Institute to train pilots because of its commitment to aeronautical training; its facilities, engineering and technical instructors as well as a suitable climate for year-round flying.

In May of 1940, the first Civilian Pilot Training Program students completed their training. ''The Tuskegee Experience'' later grew to become a center for African-American aviation during World War II.

These brave airmen overcame segregation and prejudice to become one of the most respected fighter groups of WWII paving the way for full integration of the U.S. military. These men and women of the Tuskegee Airmen exemplify the State of Alabama's priority of Public Service Excellence.

This commemoration of their legacy comes directly from the efforts and determination of over 16,000 courageous men and women and recognizes the fortitude of these individuals to stand strong in the face of adversity.

Their accomplishments gave way to the continuation on a grand scale through the introduction of American youth to the world of aviation, technology, engineering and math through local and national programs and activities.

Mr. Speaker, please join me in recognizing today, March 22, 2016 as Tuskegee Airmen Foundation Day in honor of the Tuskegee Airmen Foundation 75th Anniversary.

RELIGION, RIGHTS, AND REFUGE

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Bushra Hamid attends Manvel High School in Manvel, Texas. The essay topic is: Select an important event that has occurred in the past year and explain how that event has changed/shaped our country.

Religion, rights, refuge—this past year has shaped our country like no other. From Pope Francis's historic visit to the United States, to the Supreme Court's new ruling on marriage equality, 2015 has marked, no doubt, a memorable year that has been etched in history. And yet, one of the most unfortunate

highlights of 2015 was the refugee crisis that has taken the world by storm. The worst humanitarian crisis of the year has roiled this country, causing doubt and confusion for leaders across the nation.

The failure of the President's administration to stand behind its so called ''red lines'' that were imposed upon the Assad regime during the years of the Syrian Civil War quickly allowed the cruel Syrian dictator to gain comfort as he continued carrying out his brutal atrocities against innocent civilians. Our shortcomings undoubtedly contributed to the refugee crisis. Although our influence in the region did not lead to the instability of the nation, as the strongest and leading democratic nation of the world, we needed—but failed—to take required actions and stand ground by the promising words that we first declared, thus unfortunately giving Bashar Al-Assad a leeway.

Eventually, conflicting messages faced our country. As Russia began to heavily intervene in the troubling Arab nation, our country began to scramble for a settled negotiation. In the mean time, lives were still being lost, homes were still being destroyed, and futures were still being gambled with. Yet, there remained a big elephant questioning his stance in the room: what shall be done with the millions of citizens-turned-refugees who had no where else to go? Thus, the issue of whether or not to accept Syrian refugees swiftly took America by storm. History began to repeat itself as state governors sought to ban refugees from their lands, striking a similar response to that of Franklin D. Roosevelt's administration, when, in the time of World War II, refused to let Jewish refugees in America. It was evident that we needed to take measures to help the lives of those who were forced to flee from Syria to foreign lands with nothing left, while at the same time, to not risk minimizing our national security.

Logistics aside, it is clear that the Syrian refugee crisis has been a sad burden that, as a leading nation, we needed to face head-on. Failure to unite and stand strong with any decisions that we as a nation decide upon unfortunately leads to a disruption of tranquility. We must unite as a country and come to decisive actions in our future international encounters.

PERSONAL EXPLANATION

HON. RODNEY P. FRELINGHUYSEN

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. FRELINGHUYSEN. Mr. Speaker, on Monday, March 14, I was unavoidably detained. As a result, I missed three recorded votes:

On rollcall Number 113, passage of House Concurrent Resolution 121. As a strong supporter, had I been present I would have voted ''yes.''

On rollcall Number 112, passage of House Concurrent Resolution 175. As a cosponsor, had I been present I would have voted ''yes.''

On rollcall Number 111, passage of S. 2426, had I been present I would have voted ''yes.''

CONGRATULATING ALEC HAGAN FOR HIS FIRST PLACE WIN IN THE 2016 MISSOURI STATE WRESTLING CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Alec Hagan for his first place win in the 2016 Class 4, 138 pound weight class, Missouri State Wrestling Championship.

Alec and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to Eureka High School and their local community.

I ask you to join me in recognizing Alec for a job well done.

HONORING RON JIBSON

HON. JASON CHAFFETZ

OF UTAH

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. CHAFFETZ. Mr. Speaker, I rise today to honor Ron Jibson who, on April 12, 2016, will be honored as the 37th ''Giant in our City.'' This award honors those individuals with exceptional and distinguished service and extraordinary professional achievement. Ron is an incredibly deserving recipient.

Ron's contributions to the Utah business community have been transformative, and his work to solve important issues has transformed our state. Ron currently serves as President and CEO of Questar Corporation, a natural gas and energy company. Not only is Ron an industry leader, he has contributed countless hours of service to our community. He currently serves as a trustee for Utah State University and serves on the boards of the Utah Symphony/Opera and the Women's Leadership Institute. Countless Utahns have, and continue to be, impacted by Ron's work.

I am honored to recognize Ron Jibson as a true ''giant'' in Utah's community today. I thank him for his commitment to bettering Utah, and his influence in effecting change.

IN RECOGNITION OF BILL BURKE, RECIPIENT OF THE GREATER PITTSTON FRIENDLY SONS OF SAINT PATRICK SWINGLE AWARD

HON. MATT CARTWRIGHT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. CARTWRIGHT. Mr. Speaker, I rise today to honor Bill Burke, who on March 17, 2016 will receive the Swingle Award from the Greater Pittston Friendly Sons of Saint Patrick. For nearly three decades, Bill's dedication and service to the community has produced many ambitious pupils and hardworking students.

Born in Pittston, Pennsylvania and son of William P. Burke and Nora Barrett Burke, Bill is married to the former Maripat Seitzinger of Scranton. They have four children: William, Jack, Peter, and Maeve.

Bill is a graduate of Scranton Preparatory School, the University of Scranton, and the University of Notre Dame. He has been employed as a history teacher at Scranton Prep since 1990. In recognition of his contributions in teaching, he received The Rochelle Olifson Teacher of Impact Award from the University of Southern California, the Rose Kelly Award from the University of Scranton, and has been a finalist for the Disney Teacher of the Year. He has also served Scranton Prep as Director of Admissions and Assistant Director of the Richmond Summer Service Program.

Under Bill's direction, the Scranton Prep cross-country team has won four PIAA State championships and twelve PIAA District II Championships. In his sixteen years at the helm of both cross-country and track, Prep has produced 18 all-state athletes and three state champions, and three athletes have garnered regional and national honors.

As an all-state performer himself, Bill was elected to Scranton Prep's Athletic Honor Roll. He is also a member of the University of Scranton's Wall of Fame, and was elected to the Pennsylvania Sports Hall of Fame, North Eastern Pennsylvania Division, in 2008. Bill was included in the Scranton Times Tribune's Top 25 Coaches of All Time list in 2005.

Bill is a member of the John F. Kennedy Council Number 372 Knights of Columbus, Greater Pittston Friendly Sons of Saint Patrick, and the AOH Wolf Tone Division Pittston. He has been a coaching instructor for Special Olympics. He is a founding member of the Diocese of Scranton Cross-Country League and is on the staff of the North Pocono football team as the speed and conditioning coach. He is currently the cross-country coach at the University of Scranton.

It is an honor to recognize Bill for all of his community contributions, and I congratulate him for receiving the Swingle Award. I am grateful for his efforts to develop young people into leaders.

WHAT MAKES THE POLITICAL PROCESS IN CONGRESS SO CHALLENGING?

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Ann Johnson attends Kempner High School in Sugar Land, Texas. The essay topic is: In your opinion, what makes the political process in Congress so challenging?

I used to think that Congress was largely ineffective. However, after taking a semester of AP Government, I realized that the legislative body was supposed to be that way. Congress isn't supposed to react quickly, rather, it is supposed to take its time and deliberate over the best course of action. The large number of political checkpoints a bill must pass naturally complicates the process. These checkpoints ensure that the bill is the best version it can be and brings the greatest good to the greatest number of people.

However, there are many extraneous factors that make the political process more challenging. One is the very apparent political divide in Congress. When Democrats only support bills created by Democrats and vice versa, the political process becomes nearly impossible to maneuver. Many great ideas and proposals for our country get lost in the partisan struggle or passed bills, heavy with compromises, never amount to any real change. Too often, politicians are more concerned with party approval instead of the needs of the American people. The deep divide in Congress and unwillingness to engage in across the aisle collaboration makes the political process extremely challenging.

Another factor in the political process is the influence of wealthier Americans in the decision-making process. In recent times, Americans of higher socioeconomic have been able to contribute heavily to elections and legislation. After the Citizens United vs FEC ruling, corporations and unions were able to spend unlimited sums of money on campaigns. This allows wealthier Americans to yield more power in the election and legislative fronts. They are able to influence lawmakers to vote their way, instead of voting for the benefit of all Americans. When lawmakers are forced to vote for their own personal benefit or for the benefit of their financial contributors, it makes the political process incredibly challenging.

Lastly, lack of interest in the political process by the public is a challenge. As Americans, we have been blessed with the right to participate in our democratic process. From voting for candidates to speaking out about different laws, Americans are able to influence the political process in many ways. However, too few Americans take advantage of these privileges. When all Americans unite for a cause, true change is certainly possible. Leading America in the right direction requires the participation of all Americans and politicians working together hand in hand.

IN RECOGNITION OF THE 2016 STATE REPRESENTATIVE DAVID FLYNN SCHOLARSHIP FUND

HON. WILLIAM R. KEATING

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. KEATING. Mr. Speaker, I rise today to recognize the 2016 State Representative David Flynn Scholarship Fund and to honor the man for whom it was named: David Flynn, loving husband, father, grandfather, great-grandfather, friend, neighbor, and former Dean of the Massachusetts State House.

The 2016 State Representative David Flynn Scholarship Fund, awarded to one student from the Plymouth campus at Quincy College this year, will make higher education more accessible to the most deserving student. This Scholarship Fund was established to honor David's dedication to Plymouth County residents and his lifelong passion for education.

Still a student at Bridgewater State College, David Flynn began his first political step as Bridgewater Parks Commissioner in 1957. He would go on to never lose a campaign in his political career, which included serving as the Representative of the 8th Plymouth District in the Massachusetts State House. In addition to his tenure in the State House and as an advisor in the Dukakis and King Administrations, David is remembered for his instrumental work in the expansion and success of Bridgewater State University in the decades after his graduation. He was crucial in securing funding for every campus building built since 1965 and played a decisive role in changing the name of the institution.

After retiring from political life in 2010, David returned to his home in Bridgewater to spend time with his wife Barbara, nine children, thirty grandchildren and four great-grandchildren. On December 10, 2015 at the age of 82, surrounded by his loving family and friends, David peacefully left this world—but his memory and legacy will live on in the lives of the thousands of Massachusetts students and residents who directly benefited from his commitment and dedication to public service.

Mr. Speaker, I ask that my colleagues join me in honoring the life of an extraordinary public servant. David Flynn epitomized the meaning of civic responsibility, and I celebrate the great work that the scholarship fund in his name will continue to do.

HONORING FLORIDA'S TEACHERS

HON. VERN BUCHANAN

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. BUCHANAN. Mr. Speaker, I rise today in recognition of outstanding public school teachers in Florida's 16th Congressional District.

I was once told that children are 25 percent of the population, but they are 100 percent of the future.

And it's true. The education of a child is an investment, not only in that student, but in the future of our country.

Therefore, I established the Congressional Teacher Awards to honor educators for their ability to teach and inspire students.

An independent panel has chosen the following teachers for Florida's 16th District 2016 Congressional Teacher Award for their accomplishments as educators:

Mr. Lorenzo Browner, for his accomplishments as an ESE teacher at Florine Abel Elementary School in Sarasota.

Ms. Charlotte Latham, for her accomplishments as a fifth grade teacher at BD Gullett Elementary School in Bradenton.

Mr. Todd Brown, for his accomplishments as a civics teacher at Sarasota Military Academy Prep in Sarasota.

Dr. Jennifer Jaso, for her accomplishments as a social studies teacher at Sarasota Middle School in Sarasota.

Ms. Judith Black, for her accomplishments as a French teacher at Pine View School in Osprey.

Ms. Stacie Cratty for her accomplishments as a dance teacher at Manatee School for the Arts in Palmetto.

On behalf of the people of Florida's 16th District I congratulate each of these outstanding teachers and offer my sincere appreciation for their service and dedication.

RECOGNIZING DR. CHRISTOPHER L. MARKWOOD

HON. LYNN A. WESTMORELAND

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. WESTMORELAND. Mr. Speaker, in a world riddled with self-service and promotion, true public servants are hard to come by. But in Georgia's higher education system, we are fortunate to have selfless and strong men and women to inspire our next generation. It is in the defense of hard work and promotion of academic excellence that Georgia's students recognize a true leader. And with great honor, I would like to recognize a new leader in Georgia and my friend, Dr. Christopher L. Markwood.

On March 31, 2016, President Markwood will be formally inaugurated as the fifth president of Columbus State University. His confirmation comes without doubt, as his roles at Texas A&M University-Corpus Christi and the University of Wisconsin-Superior proved his ability to lead.

President Markwood has already made a strong impact on both Columbus State University and the Columbus community. Since President Markwood was hired in June of 2015, Columbus State University has seen a spike in enrollment, and now serves 8,440 students from across the state and nation. The university recorded one of its largest fundraising years ever, bringing them close to their $106 million comprehensive goal. Columbus State University is now the home of the ''TSYS Center for Cybersecurity'', which trains our students in the growing and in-demand field of computer science and network security. Much of this would not have been possible without President Markwood's passion for the university's success.

It has been a privilege to work with President Markwood during my last term in Congress and I look forward to watching Columbus State University continue to excel under his leadership. I wish President Markwood, his wife Bridget, and their daughter all the best as they continue to serve Cougar Nation.

RECOGNIZING WILLIAM KIRKMAN FOR BEING AWARDED THE SPRINGFIELD AREA CHAMBER OF COMMERCE'S 2016 SPRINGFIELDIAN AWARD

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. LONG. Mr. Speaker, I rise today to recognize business leader William Kirkman for recently being named winner of the 2016 Springfieldian Award at the Springfield Area Chamber of Commerce's annual meeting.

As the Springfield Chamber of Commerce's most acclaimed decoration for more than 50 years, the annual Springfieldian Award honors an individual who has demonstrated outstanding leadership and dedication to the Springfield, Missouri, community.

As the first in his family to attend college, Kirkman graduated from Missouri State University in 1969. He was hired by Baird, Kurtz & Dobson (BKD) accounting firm out of college and rose through their ranks; He climbed from associate to partner and eventually became the firm's Chief Operating Officer in 2004.

Described as a man with a heart of gold, Kirkman was admired and respected by his peers. He demonstrated a passion for helping those who worked under him to blossom professionally, and is considered to have been an early pioneer in helping women to break into the accounting profession.

In addition to his impressive professional career, Kirkman has served in numerous leadership roles for Springfield area organizations. Currently, he holds the Chair position of the Board of Directors of City Utilities of Springfield but, in the past, he served at the Chair positions of the Springfield Area Chamber of Commerce board of directors, the Springfield/Branson National Airport board of directors, and Springfield's Center City Development Corporation. He also served as President of the Springfield Business Development Corporation in 1995, and received the Outstanding Alumni Award from Missouri State University in 2004. Lastly though, and certainly not the least of his accomplishments, Kirkman also achieved the rank of Captain while serving in the Marine Corps.

Mr. Speaker, William Kirkman—who I consider a personal friend—is not only a pillar of the Springfield community, but has been a mentor and inspiration for countless individuals that he has interacted with along his storied career. I urge my colleagues to join me as I extend my appreciation for his service to Missouri's Seventh Congressional District.

WOMEN ONCE AGAIN MADE HISTORY IN 2015

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Alesondra Cruz attends George Ranch High School in Richmond, Texas. The essay topic is: Women Once Again Made History in 2015.

Capt. Kristen Griest and 1st Lt. Shaye Haver became the first women to graduate from the Army Ranger School in August 2015, the first year it was open to women. The course is a notoriously difficult feat in army training and has proven impossible to copious soldiers in the past. It results in strong leaders, pushing soldiers to not only their physical, but mental threshold. The sixty-one day long course includes brutal obstacles and a 12 mile march to be completed in three hours. Ninety-four men and 2 women beat the grueling course.

It has long been established that women can play an efficacious role in the military. The extent of that role, however, is still debated. In November 2012, the American Civil Liberties Union filed a federal lawsuit on behalf of four service women and the Service Women's Action Network. They stated that plaintiff, Maj. Mary Jennings Hegar, an Air National Guard helicopter pilot, served her country with the utmost strength and honor, yet was unable to obtain a leadership position. In 2013, then-Defense Secretary Leon Panetta announced that the army would lift its ban on women serving in combat roles. This announcement was strongly pushed by the armed service chiefs themselves and led to evaluation by the armed forces. When the two women completed the course, the 75th Ranger Regiment had not opened its doors to women or changed its policy. Consequently, Griest and Haver could not enter the 75th Ranger Regiment with their fellow graduates. However, their completion of the course and inability to serve with their peers sparked discussion over whether women should serve at this level or solely have the pride of wearing their well-earned Ranger Tabs. This discussion may have been a factor in Defense Secretary Ash Carter's recent announcement that all combat jobs are now open to women.

Whether a person believes that women should be fully integrated or not, this accomplishment has opened conversation in an unprecedented way. Many people defend their stance on integrating women due to women's perceived physical limitation; however, Griest and Haver have proven just as capable as their male counterparts. As an eighteen year old, my thoughts immediately go to the Selective Service Act and what role integration of women may have on it. If women are fully active in the military, will we be asked to register? Regardless of the final decision for the Ranger Regiment or Selective Service Act, there is no doubt that this event has left an imprint on how Americans see the role of women in our military.

When asked about her accomplishment, Griest said, ''We felt like we were contributing as much as the men, and we felt that they felt that way, too.'' There is no doubt that these women have a desire to serve our country with pride and strength. Their dedication to America has inspired women and men alike, and positions women to serve their country for many years to come.

IN CELEBRATION OF MABELLE M. SELLAND'S 90TH BIRTHDAY

HON. JIM COSTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. COSTA. Mr. Speaker, I rise today to celebrate the 90th birthday of Ms. Mabelle M. Selland, a wonderful friend and loving community member.

Mabelle Maasen Selland was born on March 7, 1926, in Chicago, Illinois, and lived there until the first grade when her family moved to Omaha, Nebraska. Mabelle graduated from Bensen High School in 1944, and later moved to California with her mother where she settled in Pasadena. Mabelle then moved to the Bay Area at the age of 19 to become a keypunch operator. Mabelle later came to Fresno at the invitation of friends to work as an operator for Pacific Gas and Electric and saved enough money to enroll at Fresno State College. It was at Fresno State where Mabelle met Harold ''Bud'' Selland. Mabelle and Bud fell in love and were married in 1951. They raised three children, Julie, Eric, and Bethany and were married for 55 years until Bud's passing in 2006.

Mabelle was an accomplished young lady who always displayed a strong passion for preserving, and improving her community, and that passion has continued throughout her life. She has dedicated her entire life to involving herself in various community activities. She worked as a Social Worker for Fresno County from 1950–1955, served as the People to People president, and as chairwoman for the Fresno Moulmein, Burma Sister City, where she received two awards for outstanding service from the National Sister City Conference in Washington D.C.

In 1972, Mabelle received her Master's Degree in Asian History from Fresno State, and continued her work in the community. From 1973 to 1979, Mabelle served as the Executive Director for the Fresno City and County Historical Society. She worked diligently to successfully enter Kearney Mansion on the National Register of Historic Places. She received a state Historic Preservation Grant to restore Kearney Mansion, and created seven ethnic history exhibits, restored costume collection and exhibited over 200 pieces.

In 1973, Mabelle became an instrumental force behind starting a movement to save the Old Administration building on the campus of Fresno City College. Mabelle and her friend, Ephraim Smith, saved the building from the planned demolition. After 38 years from her initial suggestion that the community should save the landmark, the building was finally restored and re-opened in 2011.

In the 1980's, Mabelle served as the Cultural Arts Manager for the City of Fresno Cultural Arts office, where she eventually retired from in 1994. After her retirement from the City of Fresno, Mabelle traveled the world with her family and friends and continued to serve on the County Historic Records and Landmarks Commission. She wrote about Southeast Asian history and coordinated performances and village festivals at the Southeast Asian Business Conference.

Furthermore, Mabelle founded the Heritage Fresno, a historic preservation organization in 2003, and served on the County Tourism Committee in 2004.

It goes without saying that Mabelle continues to be a force to be reckoned with, even at the young age of 90. Throughout the many roads she has traveled, we thank Mabelle for the many lives that she has touched along the way. It is for these reasons that we join Mabelle Selland's family and friends in wishing her a blessed 90th birthday.

Mr. Speaker, I ask my colleagues to join me in celebrating a woman who has dedicated her life to public service. Mabelle's many accomplishments within the community are a direct reflection of her strong dedication and perseverance. We wish her continued health and happiness in the years to come.

IN RECOGNITION OF THOMAS F. QUINNAN, RECIPIENT OF THE 2016 GREATER PITTSTON FRIENDLY SONS OF SAINT PATRICK ACHIEVEMENT AWARD

HON. MATT CARTWRIGHT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. CARTWRIGHT. Mr. Speaker, I rise today to honor Thomas F. Quinnan, who will receive the 2016 Greater Pittston Friendly Sons of Saint Patrick Achievement Award on March 17. Thomas has had a diverse career that has stretched over several decades, while still finding time to participate in the community.

Thomas F. Quinnan was born in Pittston, Pennsylvania and is the son of the late Edward and Clare Gunning Quinnan. Tom received his early education at St. Mary's Assumption School and graduated from St. John the Evangelist's High School, Pittston, and Penn State University, Wilkes-Barre. He later received training in Air Navigation Systems and Equipment at The FAA Academy, and management training at the Management Training School and the Center for Management Development. He attended the Rochester Institute of Technology, Rochester, New York, majoring in Electrical Engineering Technology.

Mr. Quinnan was employed by the Federal Aviation Administration for over 33 years and retired as the Field Office Manager, Wilkes-Barre/Scranton sector. His career started at the New York International Airport, and he advanced to a Navigational Aid Specialist assigned to the Newark, New Jersey sector office. During his time in Newark, he was assigned to most of the facilities in the state of New Jersey including the Teterboro, Newark, Trenton, Morristown, and Atlantic City airports. In 1975, Tom was selected to be Chief of Navaids And Communications Unit at the Rochester International Airport, where he served until his selection as manager at Wilkes-Barre/Scranton. During his career, Tom obtained FAA Certification credentials on Instrument Landing Systems, Vhf Omnirange, Tactical Air Navigation, Air Traffic Control Towers, and several other air traffic control systems.

Quinnan was a member of the Manville, New Jersey Volunteer Fire Company No. 3 serving as Recording Secretary and was a Fire Inspector for the Borough of Manville. He is a former President of the Ancient Order of Hibernians, Neil McLaughlin Division, Avoca, Pennsylvania and a former President of the Airport Management Association. Tom is a member of the Queen of Apostles Parish in Avoca, and a long-standing member of the Friendly Sons.

Tom resides in Avoca with his wife, the former Barbara Ann Grace. They are the parents of three sons: Thomas, Shawn, and Robert, with daughters-in-law, Ann, Denise, and Kara. Tom and Barbara also have six grandchildren: Melissa, Kaleigh, Patrick, Brady, Collin, and Ryan.

It is an honor to recognize Thomas F. Quinnan for his service in the community and his extraordinary career.

IMMIGRATION

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 15, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Ann Marie Ramas attends Ridge Point High School in Missouri City, Texas. The essay topic is: Select an important event that has occurred in the past year and explain how that event has changed/shaped our country.

In the past year, immigration has become a prevalent and controversial topic in social and political discussions. President Obama made some changes to immigration policies, prompting the case United States v. Texas (2015) where a Texas judge blocked President Obama's executive action on immigration known as Deferred Actions for Parents of Americans (DAPA). This executive order, along with the Catch and Release Act, epitomizes President Obama's position on immigrants. He believes that implementing lenient rules on illegal immigrants is fair, that we should not deport illegal immigrants under certain circumstances—if they have children who are American citizens or legal residents, if they pass a criminal background check, or if they are willing to pay their fair share of taxes.

Like most things nowadays, this has sparked some controversy. In addition to the rising notoriety and outrageous deeds of ISIS, the Syrian refugees seeking protection, and the increasing frequency of terrorists' attacks all over the world, United States v. Texas not only exemplifies but also enlarges the heated issue of immigration.

America is a compassionate nation, but it is a compassionate and fearful nation. We know that it is morally right to help those in need, especially considering the fact that Americans have all traveled to this great nation in search for a better life. However, the terrorist attacks and ISIS have embedded fear in Americans eliciting questions and doubts like whether to choose ethics over their own security. President Obama justifies his stance stating that, ''We are born of immigrants. Immigration is our origin story . . . our oldest tradition. Immigrants and refugees revitalize and renew America''. Advocates agree and applaud this statement while the opposing side wonders whether this is still true at the cost of our safety. However, one thing that both sides can agree on is the fact that the American immigration system is broken. So how do we fix it? That is the debate.

The United States v. Texas case and the whole immigration matter distinctly divide the American people. Depending how far we are from the first of our family to move to the United States or how compassionate or cautious we are, we view this concern from different perspectives. This issue has changed and shaped our nation in that nowadays, the word ''immigrant'' has a negative connotation. It is used as an insult to imply that ''you don't belong here''. Illegal immigration has also demeaned our country and opening ourselves up to help refugees has allowed us to be vulnerable to ISIS, eager to use our generosity as a chance to infiltrate us. The American public now has an impaired opinion of immigrants, forgetting that they are of immigration descent as well. As President Obama said, the United States is a country of immigrants. Immigration molded this nation. It is the foundation of our people. People from all over the world immigrated to America to escape hardships and oppression. Therefore, it is quite ironic that centuries after its establishment, America is being divided by immigration.

CORRECTION

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S1475–1514

Measures Introduced: Eleven bills and two resolutions were introduced, as follows: S. 2677–2687, and S. Res. 399–400. **Page S1503**

Measures Reported:

S. 1492, to direct the Administrator of General Services, on behalf of the Archivist of the United States, to convey certain Federal property located in the State of Alaska to the Municipality of Anchorage, Alaska, with an amendment in the nature of a substitute. (S. Rept. No. 114–228)

S. 2133, to improve Federal agency financial and administrative controls and procedures to assess and mitigate fraud risks, and to improve Federal agencies' development and use of data analytics for the purpose of identifying, preventing, and responding to fraud, including improper payments. (S. Rept. No. 114–229)

S. 1252, to authorize a comprehensive strategic approach for United States foreign assistance to developing countries to reduce global poverty and hunger, achieve food and nutrition security, promote inclusive, sustainable, agricultural-led economic growth, improve nutritional outcomes, especially for women and children, build resilience among vulnerable populations, with an amendment in the nature of a substitute.

S. 2512, to expand the tropical disease product priority review voucher program to encourage treatments for Zika virus, with an amendment in the nature of a substitute. **Page S1503**

Measures Passed:

FOIA Improvement Act: Senate passed S. 337, to improve the Freedom of Information Act, after agreeing to the following amendment proposed thereto: **Pages S1494–96**

Cornyn/Leahy Amendment No. 3452, in the nature of a substitute. **Page S1496**

National Cerebral Palsy Awareness Day: Senate agreed to S. Res. 400, designating March 25, 2016, as ''National Cerebral Palsy Awareness Day''. **Page S1511**

House Messages:

National Sea Grant College Program Amendments Act—Agreement: Senate continued consideration of the House message to accompany S. 764, to reauthorize and amend the National Sea Grant College Program Act, taking action on the following motions proposed thereto: **Pages S1482–94, S1496–1501**

Pending:

McConnell motion to concur in the House amendment to the bill with McConnell (for Roberts) Amendment No. 3450 (to the House amendment to the bill), in the nature of a substitute. **Page S1482**

McConnell motion to refer the bill to the Committee on Commerce, Science, and Transportation. **Page S1482**

A unanimous-consent agreement was reached providing for further consideration of the House message to accompany the bill at approximately 10:15 a.m., on Wednesday, March 16, 2016; that notwithstanding the provisions of rule XXII, the cloture vote on the McConnell motion to concur in the House amendment to the bill with McConnell (for Roberts) Amendment No. 3450 (to the House amendment to the bill) (listed above), occur at 11:45 a.m.; and that the time following Leader remarks until 11:45 a.m., be equally divided between the two Leaders, or their designees. **Page S1511**

Nominations Received: Senate received the following nominations:

Walter David Counts, III, of Texas, to be United States District Judge for the Western District of Texas.

E. Scott Frost, of Texas, to be United States District Judge for the Northern District of Texas.

Rebecca Ross Haywood, of Pennsylvania, to be United States Circuit Judge for the Third Circuit.

James Wesley Hendrix, of Texas, to be United States District Judge for the Northern District of Texas.

Irma Carrillo Ramirez, of Texas, to be United States District Judge for the Northern District of Texas.

Danny C. Reeves, of Kentucky, to be a Member of the United States Sentencing Commission for a term expiring October 31, 2019.

Karen Gren Scholer, of Texas, to be United States District Judge for the Eastern District of Texas.

Kathleen Marie Sweet, of New York, to be United States District Judge for the Western District of New York.

40 Navy nominations in the rank of admiral.

Routine lists in the Foreign Service.

Pages S1513–14

Messages from the House: Page S1502

Measures Referred: Pages S1502–03

Measures Placed on the Calendar: Page S1503

Measures Read the First Time: Page S1503

Enrolled Bills Presented: Page S1503

Additional Cosponsors: Pages S1503–05

Statements on Introduced Bills/Resolutions: Pages S1505–08

Additional Statements: Page S1502

Amendments Submitted: Pages S1508–10

Authorities for Committees to Meet: Page S1511

Adjournment: Senate convened at 10 a.m. and adjourned at 6:46 p.m., until 10:15 a.m. on Wednesday, March 16, 2016. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S1513.)

Committee Meetings

(Committees not listed did not meet)

APPROPRIATIONS: USAID

Committee on Appropriations: Subcommittee on State, Foreign Operations, and Related Programs concluded a hearing to examine proposed budget estimates and justification for fiscal year 2017 for the United States Agency for International Development, after receiving testimony from Gayle Smith, Administrator, United States Agency for International Development.

APPROPRIATIONS: LIBRARY OF CONGRESS AND THE ARCHITECT OF THE CAPITOL

Committee on Appropriations: Subcommittee on Legislative Branch concluded a hearing to examine proposed budget estimates and justification for fiscal year 2017 for the Library of Congress and the Architect of the Capitol, after receiving testimony from David Mao, Acting Librarian of Congress; and Stephen T. Ayers, Architect of the Capitol.

DEFENSE AUTHORIZATION REQUEST AND FUTURE YEARS DEFENSE PROGRAM

Committee on Armed Services: Subcommittee on Readiness and Management Support concluded a hearing to examine the current state of readiness of United States forces in review of the Defense Authorization Request for fiscal year 2017 and the Future Years Defense Program, after receiving testimony from General Daniel Allyn, USA, Vice Chief of Staff of the Army, Admiral Michelle Howard, USN, Vice Chief of Naval Operations, General John Paxton, USMC, Assistant Commandant of the Marine Corps, and General David L. Goldfein, USAF, Vice Chief of Staff of the Air Force, all of the Department of Defense.

DEFENSE AUTHORIZATION REQUEST AND FUTURE YEARS DEFENSE PROGRAM

Committee on Armed Services: Committee concluded a hearing to examine the posture of the Department of the Navy in review of the Defense Authorization Request for fiscal year 2017 and the Future Years Defense Program, after receiving testimony from Raymond E. Mabus, Jr., Secretary of the Navy, Admiral John M. Richardson, USN, Chief of Naval Operations, and General Robert B. Neller, USMC, Commandant of the Marine Corps, all of the Department of Defense.

NOMINATIONS

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine the nominations of Matthew Rhett Jeppson, of Florida, to be Director of the Mint, Department of the Treasury, and Lisa M. Fairfax, of Maryland, and Hester Maria Peirce, of Ohio, both to be a Member of the Securities and Exchange Commission, after the nominees testified and answered questions in their own behalf.

SELF-DRIVING CARS

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine the future of self-driving cars, after receiving testimony from Chris Urmson, Google X, Mountain View, California; Michael F. Ableson, General Motors Co., Austin, Texas; Glen W. De Vos, Delphi Automotive, Auburn Hills, Michigan; Joseph Okpaku, Lyft, Inc., San Francisco, California; and Mary Cummings, Duke University Humans and Autonomy Laboratory, Durham, North Carolina.

IMPACTS ON NATURAL RESOURCES

Committee on Energy and Natural Resources: Committee concluded an oversight hearing to examine the presidential memorandum issued on November 3, 2015 entitled, ''Mitigating Impacts on Natural Resources from Development and Encouraging Related Private Investment'', after receiving testimony from Michael Bean, Principal Deputy Assistant Secretary of the Interior for Fish and Wildlife and Parks; Brian

Ferebee, Associate Deputy Chief, National Forest System, Department of Agriculture; Sara Longan, Alaska Department of Natural Resources Office of Project Management and Permitting Executive Director, Anchorage; Shaun Sims, Sims Sheep Company, Evanston, on behalf of the Wyoming Association of Conservation Districts; Doug Lashley, GreenVest, Annapolis, Maryland; Laura Skaer, American Exploration and Mining Association, Spokane, Washington; and Lynn Scarlett, The Nature Conservancy, Arlington, Virginia.

UKRAINIAN REFORMS

Committee on Foreign Relations: Committee concluded a hearing to examine Ukrainian reforms two years after the Maidan Revolution and the Russian invasion, after receiving testimony from Victoria Nuland, Assistant Secretary of State, Bureau of European and Eurasian Affairs; and Ian J. Brzezinski, Brent Scowcroft Center on International Security, and John E. Herbst, Dinu Patriciu Eurasia Center, both of the Atlantic Council, Washington, D.C.

U.S. VISA PROGRAMS SECURITY

Committee on Homeland Security and Governmental Affairs: Committee concluded a hearing to examine the security of United States visa programs, after receiving testimony from David T. Donahue, Principal Deputy Assistant Secretary of State for Consular Affairs; and Leon Rodriguez, Director, Citizenship and Immigration Services, Sarah R. Saldana, Director, Immigration and Customs Enforcement, and John Roth, Inspector General, all of the Department of Homeland Security.

LATE-TERM ABORTION

Committee on the Judiciary: Committee concluded a hearing to examine late-term abortion, including S. 1553, to amend title 18, United States Code, to protect pain-capable unborn children, after receiving testimony from Melissa Ohden, The Abortion Survivors Network, Gladstone, Missouri; Colleen A. Malloy, Northwestern University Feinberg School of Medicine, Chicago, Illinois; Diana Greene Foster, University of California San Francisco Bixby Center for Global Reproductive Health, San Francisco; Jodi Magee, Physicians for Reproductive Health, Clifton, New Jersey; Angelina B. Nguyen, Charlotte Lozier Institute, and Christy Zink, both of Washington, D.C.; and Kathi A. Aultman, Orange Park, Florida.

VETERANS AFFAIRS LEGISLATION

Committee on Veterans' Affairs: Committee concluded a hearing to examine S. 2646, to amend title 38, United States Code, to establish the Veterans Choice Program of the Department of Veterans Affairs to improve health care provided to veterans by the Department, S. 2633, to improve the ability of the Secretary of Veterans Affairs to provide health care to veterans through non-Department health care providers, and S. 2473, to direct the Secretary of Veterans Affairs to carry out a pilot program to provide veterans the option of using an alternative appeals process to more quickly determine claims for disability compensation, after receiving testimony from Senator Burr; Robert A. McDonald, Secretary of Veterans Affairs; and Louis J. Celli, Jr., The American Legion, Carlos Fuentes, Veterans of Foreign Wars of the United States, and Adrian Atizado, Disabled American Veterans, all of Washington, D.C.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 10 public bills, H.R. 4739–4748; and 3 resolutions, and H. Res. 643–645 were introduced. **Pages H1388–89**

Additional Cosponsors: **Pages H1389–90**

Reports Filed: There were no reports filed today.

Speaker: Read a letter from the Speaker wherein he appointed Representative Hardy to act as Speaker pro tempore for today. **Page H1347**

Recess: The House recessed at 10:39 a.m. and reconvened at 12 noon. **Page H1353**

Guest Chaplain: The prayer was offered by the Guest Chaplain, Reverend Tyrone M. Thomas, Charity Church Baltimore, MD. **Page H1353**

Recess: The House recessed at 1:15 p.m. and reconvened at 1:31 p.m. **Page H1362**

Suspensions—Proceedings Resumed: The House agreed to suspend the rules and pass the following

measures which were debated on Monday, March 15th:

Extending the deadline for commencement of construction of a hydroelectric project involving the Gibson Dam: H.R. 2081, to extend the deadline for commencement of construction of a hydroelectric project involving the Gibson Dam, by a 2/3 yea-and-nay vote of 410 yeas to 2 nays, Roll No. 116; and **Page H1364**

Extending the deadline for commencement of construction of a hydroelectric project: H.R. 3447, amended, to extend the deadline for commencement of construction of a hydroelectric project, by a 2/3 yea-and-nay vote of 406 yeas to 3 nays, Roll No. 117. **Pages H1364–65**

SENSE Act: The House passed H.R. 3797, to establish the bases by which the Administrator of the Environmental Protection Agency shall issue, implement, and enforce certain emission limitations and allocations for existing electric utility steam generating units that convert coal refuse into energy, by a recorded vote of 231 ayes to 183 noes, Roll No. 123. **Pages H1365–81**

Rejected the Adams motion to recommit the bill to the Committee on Energy and Commerce with instructions to report the same back to the House forthwith with an amendment, by a recorded vote of 173 ayes to 236 noes, Roll No. 122. **Pages H1379–81**

Rejected:

Peters amendment (No. 4 printed in part B of H. Rept. 114–453) that sought to require the EPA to provide notice to communities about the anticipated effects of this Act on air quality not later than 90 days after the date of enactment of this Act; **Pages H1374–75**

Pallone amendment (No. 1 printed in part B of H. Rept. 114–453) that sought to strike the Cross-State Air Pollution Rule portion of the bill (by a recorded vote of 166 ayes to 224 noes, Roll No. 118); **Pages H1371–72, H1376–77**

Pallone amendment (No. 2 printed in part B of H. Rept. 114–453) that sought to give the Governor of a State the ability to opt-out of the Cross-State Air Pollution Rule portion of the bill if the Governor determines that implementing that provision would increase the overall cost of complying with EPA's rule (by a recorded vote of 175 ayes to 233 noes, Roll No. 119); **Pages H1372–74, H1377**

Bera amendment (No. 3 printed in part B of H. Rept. 114–453) that sought to require a GAO report on the increase in sulfur dioxide and other air pollution emissions that result from this Act and the effect of such emissions on public health (by a recorded vote of 179 ayes to 235 noes, Roll No. 120); and **Pages H1374, H1377–78**

Veasey amendment (No. 5 printed in part B of H. Rept. 114–453) that sought to ensure public health is taken into account by the Administrator of the Environmental Protection Agency before law goes into effect (by a recorded vote of 182 ayes to 234 noes, Roll No. 121). **Pages H1375–76, H1378–79**

H. Res. 640, the rule providing for consideration of the bills (H.R. 4596) and (H.R. 3797) was agreed to by a recorded vote of 235 ayes to 176 noes, Roll No. 115, after the previous question was ordered by a yea-and-nay vote of 235 yeas to 177 nays, Roll No. 114. **Pages H1362–64**

Senate Message: Message received from the Senate by the Clerk and subsequently presented to the House today appears on page H1355.

Quorum Calls—Votes: Three yea-and-nay votes and seven recorded votes developed during the proceedings of today and appear on pages H1362–63, H1363–64, H1364, H1364–65, H1376, H1377, H1377–78, H1378–79, H1380–81, and H1381. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 5:21 p.m.

Committee Meetings

DEFENDING AMERICAN AGRICULTURE AGAINST FOREIGN PESTS AND DISEASES

Committee on Agriculture: Subcommittee on Biotechnology, Horticulture, and Research; and Subcommittee on Livestock and Foreign Agriculture held a hearing entitled ''Defending American Agriculture Against Foreign Pests and Diseases''. Testimony was heard from Kevin Shea, Administrator, Animal and Plant Health Inspection Service, U.S. Department of Agriculture; and Kevin Harriger, Executive Director, Agriculture Programs and Trade Liaison, Office of Field Operations, U.S. Customs and Border Protection.

MEMBERS' DAY

Committee on Appropriations: Subcommittee on Defense held a hearing entitled ''Members' Day''. Testimony was heard from Representatives Valadao, Bost, McSally, Byrne, Aguilar, Thompson of Pennsylvania, Bridenstine, Cook, Ted Lieu of California, Reichert, Carter of Georgia, Clay, Gibson, Meehan, Blumenauer, Wagner, Tsongas, Kennedy, and Brooks of Alabama.

APPROPRIATIONS—U.S. FISH AND WILDLIFE SERVICE

Committee on Appropriations: Subcommittee on Interior, Environment, and Related Agencies held a budget hearing on the U.S. Fish and Wildlife Service. Testimony was heard from Dan Ashe, Director,

U.S. Fish and Wildlife Service; and Chris Nolin, Budget Officer, U.S. Fish and Wildlife Service.

APPROPRIATIONS—U.S. SECRET SERVICE

Committee on Appropriations: Subcommittee on Homeland Security held a budget hearing on U.S. Secret Service. Testimony was heard from Joseph Clancy, Director, U.S. Secret Service.

APPROPRIATIONS—DEPARTMENT OF LABOR

Committee on Appropriations: Subcommittee on Labor, Health and Human Services, and Education held a budget hearing on the Department of Labor. Testimony was heard from Thomas E. Perez, Secretary, Department of Labor.

APPROPRIATIONS—DEPARTMENT OF AGRICULTURE, RURAL DEVELOPMENT

Committee on Appropriations: Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies held a budget hearing on the Department of Agriculture, Rural Development. Testimony was heard from Lisa Mensah, Under Secretary, Rural Development; Sam Rikkers, Administrator, Rural Business—Cooperative Service; Tony Hernandez, Administrator, Rural Housing Service; Brandon McBride, Administrator, Rural Utilities Service; and Michael Young, Budget Officer, Department of Agriculture.

APPROPRIATIONS—NATIONAL AERONAUTICS AND SPACE ADMINISTRATION

Committee on Appropriations: Subcommittee on Commerce, Justice, Science, and Related Agencies held a budget hearing on National Aeronautics and Space Administration. Testimony was heard from Charles Bolden Jr., Administrator, National Aeronautics and Space Administration.

APPROPRIATIONS—DEPARTMENT OF ENERGY, ENVIRONMENTAL MANAGEMENT

Committee on Appropriations: Subcommittee on Energy and Water Development held a budget hearing on Department of Energy, Environmental Management. Testimony was heard from Monica Regalbuto, Assistant Secretary for Environmental Management, Department of Energy.

APPROPRIATIONS—DEPARTMENT OF TREASURY INTERNATIONAL PROGRAMS

Committee on Appropriations: Subcommittee on State, Foreign Operations, and Related Programs held a budget hearing on Department of Treasury International Programs. Testimony was heard from Jack Lew, Secretary, Department of the Treasury.

APPROPRIATIONS—FEDERAL COMMUNICATIONS COMMISSION

Committee on Appropriations: Subcommittee on Financial Services and General Government held a budget hearing on the Federal Communications Commission. Testimony was heard from Tom Wheeler, Chairman, Federal Communications Commission; and Ajit Pai, Commissioner, Federal Communications Commission.

OFFICE OF INSPECTOR GENERAL, DEPARTMENT OF TRANSPORTATION AND DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT

Committee on Appropriations: Subcommittee on Transportation, Housing and Urban Development, and Related Agencies held an oversight hearing on Offices of Inspector General. Testimony was heard from Calvin L. Scovel III, Inspector General, Department of Transportation; and David A. Montoya, Inspector General, Department of Housing and Urban Development.

THE U.S. TRANSPORTATION COMMAND FISCAL YEAR 2017 READINESS POSTURE

Committee on Armed Services: Subcommittee on Readiness held a hearing entitled ''The U.S. Transportation Command Fiscal Year 2017 Readiness Posture''. Testimony was heard from General Darren W. McDew, Commander, U.S. Transportation Command.

FISCAL YEAR 2017 BUDGET REQUEST FOR NATIONAL SECURITY SPACE

Committee on Armed Services: Subcommittee on Strategic Forces held a hearing entitled ''Fiscal Year 2017 Budget Request for National Security Space''. Testimony was heard from General John Hyten, USAF, Commander, Air Force Space Command; Doug Loverro, Deputy Assistant Secretary of Defense for Space Policy, Department of Defense; Dyke Weatherington, Acting Deputy Assistant Secretary of Defense for Space, Strategic, and Intelligence Systems, Department of Defense; Lieutenant General David Buck, USAF, Commander, Joint Functional Component Command for Space; Robert Cardillo, Director, National Geospatial Intelligence Agency; and Frank Calvelli, Principal Deputy Director, National Reconnaissance Office.

EXAMINING THE POLICIES AND PRIORITIES OF THE U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES

Committee on Education and the Workforce: Full Committee held a hearing entitled ''Examining the Policies and Priorities of the U.S. Department of Health and Human Services''. Testimony was heard from

Sylvia Mathews Burwell, Secretary, U.S. Department of Health and Human Services.

MISCELLANEOUS MEASURES

Committee on Energy and Commerce: Full Committee concluded a markup on H.R. 2666, the "No Rate Regulation of Broadband Internet Access Act"; and H.R. 4725, the "Common Sense Savings Act of 2016". H.R. 2666 was ordered reported, as amended. H.R. 4725 was ordered reported, without amendment.

REVIEW OF THE FY 2017 FOREIGN ASSISTANCE BUDGET: ALIGNING INTERESTS, ENSURING EFFECTIVENESS AND TRANSPARENCY

Committee on Foreign Affairs: Full Committee held a hearing entitled "Review of the FY 2017 Foreign Assistance Budget: Aligning Interests, Ensuring Effectiveness and Transparency". Testimony was heard from Gayle Smith, Administrator, U.S. Agency for International Development; and Dana J. Hyde, Chief Executive Officer, Millennium Challenge Corporation.

TRADE WITH CUBA: GROWTH AND OPPORTUNITIES

Committee on Foreign Affairs: Subcommittee on Terrorism, Nonproliferation, and Trade held a hearing entitled "Trade with Cuba: Growth and Opportunities". Testimony was heard from public witnesses.

U.S.-INDIA RELATIONS: DEMOCRATIC PARTNERS OF ECONOMIC OPPORTUNITY

Committee on Foreign Affairs: Subcommittee on Asia and the Pacific held a hearing entitled "U.S.–India Relations: Democratic Partners of Economic Opportunity". Testimony was heard from public witnesses.

U.S. POLICY TOWARD NATIONAL SELF-DETERMINATION MOVEMENTS

Committee on Foreign Affairs: Subcommittee on Europe, Eurasia, and Emerging Threats held a hearing entitled "U.S. Policy Toward National Self-Determination Movements". Testimony was heard from public witnesses.

STATE OF EMERGENCY: THE DISASTER OF CUTTING PREPAREDNESS GRANTS

Committee on Homeland Security: Subcommittee on Emergency Preparedness, Response, and Communications held a hearing entitled "State of Emergency: The Disaster of Cutting Preparedness Grants". Testimony was heard from Bill de Blasio, Mayor, City of New York, New York; and public witnesses.

EXECUTIVE OVERREACH IN DOMESTIC AFFAIRS PART I—HEALTH CARE AND IMMIGRATION

Committee on the Judiciary: Task Force on Executive Overreach held a hearing entitled "Executive Overreach in Domestic Affairs Part I—Health Care and Immigration". Testimony was heard from public witnesses.

THE CHEVRON DOCTRINE: CONSTITUTIONAL AND STATUTORY QUESTIONS IN JUDICIAL DEFERENCE TO AGENCIES

Committee on the Judiciary: Subcommittee on Regulatory Reform, Commercial and Antitrust Law held a hearing entitled "The Chevron Doctrine: Constitutional and Statutory Questions in Judicial Deference to Agencies". Testimony was heard from public witnesses.

MISCELLANEOUS MEASURES

Committee on Natural Resources: Full Committee began a markup on H.R. 87, the "Shiloh National Military Park Boundary Adjustment and Parker's Crossroads Battlefield Designation Act"; H.R. 295, to reauthorize the Historically Black Colleges and Universities Historic Preservation program; H.R. 329, the "Indian Employment, Training and Related Services Consolidation Act of 2015"; H.R. 496, the "Alabama Hills National Scenic Area Establishment Act"; H.R. 1621, to modify the boundary of Petersburg National Battlefield in the Commonwealth of Virginia, and for other purposes; H.R. 1838, the "Clear Creek National Recreation Area and Conservation Act"; H.R. 2009, the "Pascua Yaqui Tribe Land Conveyance Act of 2015"; H.R. 2733, the "Nevada Native Nations Land Act"; H.R. 3070, the "EEZ Clarification Act"; H.R. 3211, to provide for the addition of certain real property to the reservation of the Siletz Tribe in the State of Oregon; H.R. 3826, the "Mount Hood Cooper Spur Land Exchange Clarification Act"; H.R. 4245, to exempt importation and exportation of sea urchins and sea cucumbers from licensing requirements under the Endangered Species Act of 1973; H.R. 4579, the "Utah Test and Training Range Encroachment Prevention and Temporary Closure Act"; and H.R. 4680, to prepare the National Park Service for its Centennial in 2016 and for a second century of promoting and protecting the natural, historic, and cultural resources of our National Parks for the enjoyment of present and future generations, and for other purposes.

EXAMINING FEDERAL ADMINISTRATION OF THE SAFE DRINKING WATER ACT IN FLINT, MICHIGAN—PART II

Committee on Oversight and Government Reform: Full Committee held a hearing entitled "Examining Federal Administration of the Safe Drinking Water Act in Flint, Michigan—Part II". Testimony was heard from public witnesses.

ACCOUNTABILITY AND TRANSPARENCY REFORM AT THE OFFICE OF INFORMATION AND REGULATORY AFFAIRS

Committee on Oversight and Government Reform: Subcommittee on Government Operations held a hearing entitled "Accountability and Transparency Reform at the Office of Information and Regulatory Affairs". Testimony was heard from Michelle Sager, Director, Strategic Issues, Government Accountability Office; Howard Shelanski, Administrator, Office of Information and Regulatory Affairs, Office of Management and Budget; and public witnesses.

RACING TO REGULATE: EPA'S LATEST OVERREACH ON AMATEUR DRIVERS

Committee on Science, Space, and Technology: Subcommittee on Oversight held a hearing entitled "Racing to Regulate: EPA's Latest Overreach on Amateur Drivers". Testimony was heard from Representative McHenry; Brent Yacobucci, Section Research Manager, Energy and Minerals Section, Congressional Research Service; and public witnesses.

THE PRESIDENT'S FISCAL YEAR 2017 BUDGET REQUEST FOR COAST GUARD AND MARITIME TRANSPORTATION PROGRAMS

Committee on Transportation and Infrastructure: Subcommittee on Coast Guard and Maritime Transportation held a hearing entitled "The President's Fiscal Year 2017 Budget Request for Coast Guard and Maritime Transportation Programs". Testimony was heard from Admiral Paul F. Zukunft, Commandant, U.S. Coast Guard; Paul "Chip" N. Jaenichen, Sr., Administrator, Maritime Administration; and Mario Cordero, Chairman, Federal Maritime Commission.

TWENTY FIVE YEARS AFTER THE PERSIAN GULF WAR: AN ASSESSMENT OF VA'S DISABILITY CLAIM PROCESS WITH RESPECT TO GULF WAR ILLNESS

Committee on Veterans' Affairs: Subcommittee on Disability Assistance and Memorial Affairs; and Subcommittee on Oversight and Investigations held a joint hearing entitled "Twenty Five Years After the Persian Gulf War: An Assessment of VA's Disability Claim Process with Respect to Gulf War Illness". Testimony was heard from David R. McLenachen, Deputy Under Secretary for Disability Assistance, U.S. Department of Veterans Affairs; and public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, MARCH 16, 2016

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on Department of Defense, to hold hearings to examine proposed budget estimates and justification for fiscal year 2017 for the National Guard and Reserve, 10:30 a.m., SD–192.

Subcommittee on Energy and Water Development, to hold hearings to examine proposed budget estimates and justification for fiscal year 2017 for the National Nuclear Security Administration, 2:30 p.m., SD–138.

Committee on Armed Services: Subcommittee on Airland, to hold hearings to examine Army Unmanned Aircraft Vehicle and Air Force Remotely Piloted Aircraft Enterprises in review of the Defense Authorization Request for fiscal year 2017 and the Future Years Defense Program, 2:30 p.m., SR–222.

Subcommittee on Emerging Threats and Capabilities, to hold closed hearings to examine the Department of Defense's global counterterrorism strategy, 2:30 p.m., SVC–217.

Committee on Commerce, Science, and Transportation: business meeting to consider S. 2658, to amend title 49, United States Code, to authorize appropriations for the Federal Aviation Administration for fiscal years 2016 through 2017, S. 2644, to reauthorize the Federal Communications Commission for fiscal years 2017 and 2018, and a routine list in the Coast Guard, 10 a.m., SR–253.

Committee on Environment and Public Works: to hold hearings to examine the 2016 Water Resources Development Act, focusing on policies and projects, 10 a.m., SD–406.

Committee on Health, Education, Labor, and Pensions: business meeting to consider S. 1455, to provide access to medication-assisted therapy, S. 2256, to establish programs for health care provider training in Federal health care and medical facilities, to establish Federal co-prescribing guidelines, to establish a grant program with respect to naloxone, S. 480, to amend and reauthorize the controlled substance monitoring program under section 399O of the Public Health Service Act, S. 2680, to amend the Public Health Service Act to provide comprehensive mental health reform, and S. 2687, to amend the Child Abuse Prevention and Treatment Act to improve plans of safe care for infants affected by illegal substance abuse or withdrawal symptoms, or a Fetal Alcohol Spectrum Disorder, 10 a.m., SD–106.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine Department of Homeland Security management and acquisition reform, 2 p.m., SD–342.

Committee on Judiciary: Subcommittee on Immigration and the National Interest, to hold hearings to examine the impact of immigration on United States workers, 10 a.m., SD–226.

Full Committee, to hold hearings to examine preventing a fiscal crisis in America, focusing on a balanced budget amendment to the Constitution, 2 p.m., SD–226.

Committee on Veterans' Affairs: to hold a joint hearing with the House Committee on Veterans' Affairs to examine the legislative presentation of multiple Veterans Service Organizations, 10 a.m., SD–G50.

House

Committee on Appropriations, Subcommittee on Interior, Environment, and Related Agencies, budget hearing on the National Park Service, 9:30 a.m., B–308 Rayburn.

Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies, budget hearing on Department of Agriculture, Research, Education, and Economics, 10 a.m., 2362–A Rayburn.

Subcommittee on Financial Services and General Government, budget hearing on the Department of the Treasury, 10 a.m., 2359 Rayburn.

Subcommittee on Homeland Security, budget hearing on the Federal Emergency Management Agency, 10 a.m., 2362–B Rayburn.

Subcommittee on Labor, Health and Human Services, and Education, budget hearing on the National Institutes of Health, 10 a.m., 2358–C Rayburn.

Subcommittee on Commerce, Justice, Science, and Related Agencies, budget hearing on the National Science Foundation, 10:30 a.m., H–309 Capitol.

Subcommittee on Interior, Environment, and Related Agencies, budget hearing on Indian Affairs; and oversight hearing on Bureau of Indian Education Schools, 1 p.m., B–308 Rayburn.

Committee on Armed Services, Full Committee, hearing entitled ''The Fiscal Year 2017 National Defense Authorization Budget Request from the Military Departments'', 10 a.m., 2118 Rayburn.

Subcommittee on Emerging Threats and Capabilities, hearing entitled ''Fiscal Year 2017 Budget Request for U.S. Cyber Command: Preparing for Operations in the Cyber Domain'', 2 p.m., 2212 Rayburn.

Subcommittee on Tactical Air and Land Forces, hearing entitled ''Fiscal Year 2017 Army and Air Force Rotorcraft Modernization Programs'', 3:30 p.m., 2118 Rayburn.

Committee on Education and the Workforce, Full Committee, hearing entitled ''Examining the Policies and Priorities of the U.S. Department of Labor'', 10 a.m., 2175 Rayburn.

Committee on Energy and Commerce, Subcommittee on Commerce, Manufacturing, and Trade, hearing entitled ''Disrupter Series: Digital Currency and Block Chain Technology'', 11 a.m., 2123 Rayburn.

Committee on Financial Services, Full Committee, hearing entitled ''The Semi-Annual Report of the Bureau of Consumer Financial Protection'', 10 a.m., 2128 Rayburn.

Subcommittee on Oversight and Investigations, hearing entitled ''The FDIC's Targeting of Refund Anticipation Loans'', 2 p.m., 2128 Rayburn.

Committee on Foreign Affairs, Full Committee, markup on H. Res. 343, expressing concern regarding persistent and credible reports of systematic, state-sanctioned organ harvesting from non-consenting prisoners of conscience in the People's Republic of China, including from large numbers of Falun Gong practitioners and members of other religious and ethnic minority groups; and H.R. 4678, to prohibit modification, abrogation, abandonment, or other related actions with respect to United States jurisdiction and control over United States Naval Station, Guantanamo Bay, Cuba, without congressional action, 10 a.m., 2172 Rayburn.

Committee on Homeland Security, Full Committee, hearing entitled ''DHS in Today's Dangerous World: Examining the Department's Budget and Readiness to Counter Homeland Threats'', 10 a.m., 311 Cannon.

Committee on House Administration, Full Committee, markup on a resolution to amend the Committee regulations collectively known as the Guide to Outfitting and Maintaining an Office of the U.S. House of Representatives; a resolution to approve regulations pursuant to H. Res. 5 regarding Congressional Member Organizations; a resolution to amend the Committee regulations collectively known as the Members' Congressional Handbook; and a resolution to amend the Committee regulations collectively known as the Committee Handbook, 10:30 a.m., 1310 Longworth.

Committee on the Judiciary, Full Committee, markup on H.R. 4731, the ''Refugee Program Integrity Restoration Act of 2016'', 10 a.m., 2141 Rayburn.

Committee on Natural Resources, Full Committee, markup on H.R. 87, the ''Shiloh National Military Park Boundary Adjustment and Parker's Crossroads Battlefield Designation Act''; H.R. 295, to reauthorize the Historically Black Colleges and Universities Historic Preservation program; H.R. 329, the ''Indian Employment, Training and Related Services Consolidation Act of 2015''; H.R. 496, the ''Alabama Hills National Scenic Area Establishment Act''; H.R. 1621, to modify the boundary of Petersburg National Battlefield in the Commonwealth of Virginia, and for other purposes; H.R. 1838, the ''Clear Creek National Recreation Area and Conservation Act''; H.R. 2009, the ''Pascua Yaqui Tribe Land Conveyance Act of 2015''; H.R. 2733, the ''Nevada Native Nations Land Act''; H.R. 3070, the ''EEZ Clarification Act''; H.R. 3211, to provide for the addition of certain real property to the reservation of the Siletz Tribe in the State of Oregon; H.R. 3826, the ''Mount Hood Cooper Spur Land Exchange Clarification Act''; H.R. 4245, to exempt importation and exportation of sea urchins and sea cucumbers from licensing requirements under the Endangered Species Act of 1973; H.R. 4579, the ''Utah Test and Training Range Encroachment Prevention and Temporary Closure Act''; and H.R. 4680, to prepare the National Park Service for its Centennial in 2016 and for a second

century of promoting and protecting the natural, historic, and cultural resources of our National Parks for the enjoyment of present and future generations, and for other purposes (continued), 10 a.m., 1324 Longworth.

Committee on Oversight and Government Reform, Full Committee, hearing entitled ''Rebuilding Afghanistan: Oversight of Defense Department Infrastructure Projects'', 9 a.m., 2154 Rayburn.

Subcommittee on Information Technology, hearing entitled ''VA Cybersecurity and IT Oversight'', 2 p.m., 2247 Rayburn.

Subcommittee on the Interior; and Subcommittee on Health Care, Benefits and Administrative Rules, joint hearing entitled ''Examining the Renewable Fuel Standard'', 2 p.m., 2154 Rayburn.

Committee on Rules, Full Committee, markup and hearing on a resolution authorizing the Speaker to appear as amicus curiae on behalf of the House of Representatives in the matter of United States, et al. v. Texas, et al., No. 15–674, 3 p.m., H–313 Capitol.

Committee on Science, Space, and Technology, Subcommittee on Research and Technology, hearing entitled ''An Overview of the Budget Proposal for the National Institute of Standards and Technology for Fiscal Year 2017'', 10 a.m., 2318 Rayburn.

Subcommittee on Environment, hearing entitled ''An Overview of the Budget Proposal for the National Oceanic and Atmospheric Administration for Fiscal Year 2017'', 2 p.m., 2318 Rayburn.

Committee on Small Business, Full Committee, hearing entitled ''SBA Management and Performance Challenges: The Inspector General's Perspective'', 11 a.m., 2360 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Economic Opportunity; and Subcommittee on Health, hearing on draft legislation to improve the authority of the Secretary of Veterans Affairs to hire and retain physicians and other employees of the Department of Veterans Affairs, 2 p.m., 334 Cannon.

Committee on Ways and Means, Subcommittee on Health, hearing entitled ''Preserving and Strengthening Medicare'', 10 a.m., 1100 Longworth.

Full Committee, markup on H.R. 4472, the ''Modernizing the Interstate Placement of Children in Foster Care Act''; H.R. 4722, to amend the Internal Revenue Code of 1986 to require inclusion of the taxpayer's social security number to claim the refundable portion of the child tax credit; H.R. 4723, the ''Protecting Taxpayers by Recovering Improper Obamacare Subsidy Overpayments Act; and H.R. 4724, the ''Reducing Duplicative and Ineffective Federal Funding Act'', 3 p.m., 1100 Longworth.

Permanent Select Committee on Intelligence, Subcommittee on Emerging Threats, hearing on FBI FY 2017 Budget, 2 p.m., HVC–304. This hearing will be closed.

Joint Meetings

Joint Hearing: Senate Committee on Veterans' Affairs, to hold a joint hearing with the House Committee on Veterans' Affairs to examine the legislative presentation of multiple Veterans Service Organizations, 10 a.m., SD–G50.

Next Meeting of the **SENATE**

10:15 a.m., Wednesday, March 16

Senate Chamber

Program for Wednesday: Senate will continue consideration of the House message to accompany S. 764, National Sea Grant College Program Amendments Act. At 11:45 a.m., Senate will vote on the motion to invoke cloture on McConnell motion to concur in the House amendment to the bill with McConnell (for Roberts) Amendment No. 3450 (to the House amendment to the bill).

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, March 16

House Chamber

Program for Wednesday: Consideration of H.R. 4596—Small Business Broadband Deployment Act.

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